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THE
RULE OF CONSCIENCE;
OR,
Bishop TAYLOR's
Ductor Dubitantium
ABRIDGED.

By RICHARD BARCROFT, Curate
of *Christ Church* in *Surrey*.

IN TWO VOLUMES.

VOL. I.

LONDON:

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Head in *Chancery-Lane*. 1725.





To the RIGHT HONOURABLE
GENERAL
WILLIAM STEWART.

SIR,

I Cannot but think
it a Circumstance
very favourable
to me, as an A-
bridger of this excellent
Work, that You, who have
in general the best Right
to my Acknowledgments,
have certainly a most just
A 2 one

The Dedication.

one to this Address. There is not the least Necessity of pointing out, to those who know You, the near Relation between my *Patron*, and my *Subject*. And indeed, the greatest Work of one of the best of Men; a Work, wholly designed to enforce the Duties of Religion and Morality; could not, without great Impropriety, be inscribed to any Person, in whom both those Characters are not eminently conspicuous.

Even those superior Talents in humane Life, which recommended You to the
Favour

The Dedication.

Favour and Esteem of several succeeding Princes, cannot, I persuade my self, but appear still in a stronger Light, from the steady Regard You have expressed for the Honour and Service of *God Almighty*. A lasting Instance of This you have more particularly given, in contributing so largely to ward erecting to him an House of Publick Worship. And that Your Alms too, may ascend up with this Monument of your Piety, *as a Memorial before him*; You intend shortly to found a Seminary for the Instructi-

A 3 on

The Dedication.

on of poor Children in the Principles and Duties of that holy Religion, which, it is the principal Design of this Work to explain and promote.

After mentioning these Instances of the pious and laudable Zeal, wherewith You are animated for the Advancement of Religion and Virtue; I should disappoint the publick Expectation, in omitting to specify the noble Benefaction, calculated for the same Glorious Ends, which You lately conferred on *All-Souls College*, in that most ancient
and

The Dedication.

and famous Seat of Learning, the University of Oxford.

These are Actions, SIR, which I chuse to mention, as more properly comporting with the Nature and Design of the Work, which I here presume to lay before You. Not that I am a Stranger to Your Military Qualifications, which have justly raised You to the honourable Character You sustain: But the Celebration of These, ought rather to be the Subject of History, than of an Address prefatory to a Work of this kind. I am

The Dedication.

I am sensible indeed, that a Performance, intended to inculcate the Duties of Religion and Virtue, is less necessary to You, who know so well how to practice them: But this very Consideration will justify my Ambition of having it known, that I have been encouraged in it, by so Great, and so Good a Man. I am,

24 OCT 62
STR,

Your most obliged, most grateful,

and most humble Servant,

August 17.
1724.

Richard Barcroft.

THE



THE PREFACE.



HIS Abridgment having been undertaken at my Instance, I think my self obliged to give some Account of the Motives, upon which I was induced to advise it.

Thro' all the Writings of Bishop Taylor there runs a bright Vein of Piety. His Diction is expressive and animated, tho' not always correct; and his Sentiments bold and masterly, tho' he is sometimes too diffuse and exuberant in his Explications. And, perhaps some may be of Opinion, that, where

The PREFACE.

where his Method and Design seemed to require strict Argumentation, he has affected to make more frequent Citations from humane Authors than was necessary, in order to embellish his Writings, according to the Genius of the Times wherein he wrote, with the finest Flowers from them.

This general Character of the Works published by that learned and excellent Prelate, is not perhaps more conspicuously verified in any Part of them, than in the great Work, which he published under the Title of Ductor Dubitantium, or Rule of Conscience: Wherein it might have been expected from so able a Casuist, that the Nature of his Subject would have contributed, in some measure, to moderate and repress the Luxuriancy of his Fancy, and the Inclination he so frequently discovers towards intermixing his Argument with common Places of Learning,

It

The PREFACE.

It is probably owing to one or more of these Causes, that a Book, in which, among some Faults and Errors, there are perhaps more Beauties than in any one Book extant in the English Tongue, hath not succeeded, or been perused, in a Degree equal to the Merit of it. I apprehended therefore, but with all Deference to the Judgment of other Persons, that an Abridgment of it, if well performed, might be of good Service to the Publick. And believing the Abridger duly qualified for the Performance; I thought he could not employ his Time, in a manner either more useful to others, or more improving to himself in the Course of his Studies, than by undertaking it.

How well he hath executed his Design, must be left to the Judgment of the Reader. For, having had no Opportunity of perusing his Papers, either before they were sent to the Press, or since they were printed off; I am
alto-

The P R E F A C E.

altogether incapable of making a Judgment in the Case my self.

I shall only add, that in my humble Opinion, and according to the narrow compass of my Knowledge, there is no Work extant in any Language, that appears more to want, or more to deserve, an Abridgment.

RICHARD FIDDES.

24 OCT 62



T H E



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and the RULES *in each*
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second BOOKS.

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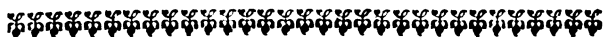
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Ductor

Ductor Dubitantium,
 O R,
 RULE OF CONSCIENCE,
 A B R I D G E D.

The First B O O K.
 Of CONSCIENCE, the KINDS of it, and the
 general RULES of Conducting them.

C H A P. I.
The Rule of Conscience in General.

R U L E I.
*Conscience is the Mind of Man governed by
 a Rule, and measured by the Proportions
 of Good and Evil, in order to Practice :
 viz. to conduct all our Relations, and all
 our Intercourse between God, our Neigh-
 bour, and our Selves; that is, in all mo-
 ral Actions.*

AS God supporteth the Nature of Things
 by his Power, and ordereth the Events
 of Things by his Providence; so he directeth
 B the

the Actions of reasonable Creatures by certain Laws, which are put into a Man's Mind as into a Treasury or Repository. Some of these Laws are implanted in his very Nature; some are conveyed into the Mind by subsequent Actions; by Education and positive Sanction; by Learning and Custom. And as that Providence which governs all the World, is nothing else but God present by his Providence; so is he present to our Hearts by his Laws, and rules in us by his Substitute, our Conscience: So that when we call God to Witness, we only mean that our Conscience is right, and that God and his Vicar, our Conscience, know it. In short, *God* and our *Conscience*, like relative Terms, seem to infer each other: For if there were not a nearer Relation between them than is commonly imagined, it would be difficult to account for that Trouble, Terror, and Amazement, Men generally feel upon the Commission of a vile or cruel Action, be it done never so secretly. They cannot help feeling inward Causes of Fear, tho' they are secure from without; or, in other Words, they are forced to fear God, when they are under no Apprehensions from Men.

But before we proceed to a distinct Explication of the Parts of this Rule, it may not be improper to consider, *whether it be possible*

possible for a Man to be wholly without Conscience?

In order to the Determination of this Question, let it be observed, that Conscience is sometimes taken for the *Practical intellectual Faculty*; so we say, the Law of Nature, and the Fear of God, is *written in the Conscience* of every Man.

Sometimes it is taken for the habitual Perswasion and Belief of the Principles written there; as when we say, such a one is a good Man, and *makes a Conscience of his Ways*.

Or, the word Conscience is used effectively, for any single Operation or Action of Conscience; as when we say, *I make a Conscience of taking up Arms* in this particular Cause. Of the first and last Acceptation of the word Conscience, there is no doubt: For the *last may*, but *the first can never* be lost. But for the *second*; it may, like any other Habit, be lost, as to the Degrees of more or less; tho' *this* with more difficulty than any thing else, because it is founded so immediately in Nature, so exercised in all the Actions and Intercourses of our Lives, and so assisted by the Grace of God, that it is next to impossible to lose the Habit wholly. For Conscience being *the Worm that never dies*, it seems hard, that That should be made the Instrument to punish us to eternal Ages, which we never found to have any Influence, or

that it laid any Restraint upon our past Behaviour.

So that when Men do Things against their Consciences, it is no otherwise than as they do Things against their Reason; and as we never say that a Man is wholly without Reason, when he abuses it to any vile Purposes; so neither should we say, that a Man is without Conscience, when he acts against it in this or that particular Instance.

But we shall the better understand the Nature, Use, and Offices of Conscience, by considering the Parts of the Rule separately.

I. Conscience is the Mind of a Man.

When God sent the blessed *Jesus* into the World to perfect all Righteousness, and to teach the World all his Father's Will; it was said, *I will give my Laws in your Hearts, and in your Minds will I write them.* That is, you shall be governed, as you have hitherto been, by the Law of natural and essential Equity and Reason, by that Law which is implanted in every Man's Nature: And whatsoever besides this shall be enjoined you, shall be written in your Minds by the Spirit, who shall write all the Laws of Christianity in the Tables of your Consciences. He shall make you understand and relish them; because, you shall see, you need them, and cannot be happy without them. He shall call them to your Mind, furnish
you.

you with sufficient Reasons for observing them, and make them appear as natural to you, as those wherewith you were born.

Thus Conscience is the Mind; and God *writing his Laws in our Minds*, informs our Conscience, and furnishes it with Laws, Rules, and Measures; and it is therefore called by *St. Paul, the Law of the Mind*. And when the Conscience is thus directed how to distinguish Good from Evil, how to please God, how to do Justice and Charity to our Neighbour, and how to govern our selves; when the Revelations of Christ, and the Injunctions of God are fully laid up in our Minds; then is the Mind *perfectly instructed to every good Work*.

II. *Conscience is the Mind of a Man governed by a Rule.*

If to a firm and enlighten'd Reason, we join an honest Heart full of Simplicity and close Attention, and readily disposed to assent to the Truth; we have all That by which the Conscience is informed and amended, guided and preserved in its just Measures, Strength and Relations. For the Rule of Conscience is all that Knowledge of Things and Rules, by which God would have Good and Evil to be measured; that is, the Will of God communicated to us by any means, either by Reason or Revelation. For God being the Origin of all *Good*, and *Good* being

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only a Conformity to him, or to his Will; the Measures he appoints are to limit and determine us. For we can no more make the Measures of Good and Evil, than we can make the Good it self. We may indeed give the Instance in which the Good is measured; but the *Measure* it self is the *Will* of God. It is good to obey *humane Laws*; but for this Reason, because it is the *Will* of God that we should obey them: And tho' Man gives a *Law* which we are to obey, yet that is not the Rule. For Obedience is made a Duty by the Command of God.

III. *Conscience is the Mind of a Man, governed by a Rule*, and measured by the Proportions of Good and Evil.

That is, the Conscience is to be informed of that which God hath declared to be Good or Evil respectively. This Clause is added to the former (*of a Rule*) because the express Line of the divine Rule is not the adequate Measure of Conscience. For that Man does not always keep a good Conscience, who observes only the Words of a divine Law; but the Proportions also, and Reasons of it, the Similitudes and Relations of it in like instances are the Measures of Conscience. The *whole* Measure of Conscience, is God's Will made known to us by Reason or Revelation; which, from the several Manners, Times, and Parts of its Communicati-
on,

on, hath got several Names, *viz.* the Law of Nature; the Consent of Nations; Right Reason; the Decalogue; the Sermon of Christ; the Canons of the Apostles; the Ecclesiastical and Civil Laws of Governors; Fame, or the ordinary Reputation of Things, expressed by Proverbs and other Measures of publick Honesty. These being the full Measures of Right and Wrong, of Lawful and Unlawful, will be the Rule of Conscience, and the Subject of the present Books.

IV. *Conscience is the Mind of a Man, governed by a Rule, and measured by the Proportions of good and Evil*, in order to Practice.

In this, Conscience differs very much from *Knowledge*, which is employed only about Things and their Relations; and from *Faith* also, because tho' it be in order to Practice, yet it is not so immediately. That *Jesus Christ* is the Son of God, our Lord, and our Master, is a Proposition of *Faith*; and from thence, if we pass on to Practice, it is in Consequence of another Proposition, *If he be our Lord, where is his Fear?* When *David's* Heart smote him upon his Adultery and Murder, his Conscience certainly made this Reflection: Adultery and Murder are high Violations of the divine Law, they provoke God to Anger, whose Anger is worse than Death. There is a Conjunction of *Faith* and practical *Knowledge*, which are indeed

the Principles of Conscience; but the subsequent Acts made it strictly and properly *Conscience*. He remembered that he had betrayed *Uriah*, and debauched his Wife; and upon this finds himself obliged to beg God's Pardon; he condemns himself, but humbly hopes God will forgive him.

V. Conscience is the Mind of a Man, governed by a Rule, measured by the Proportions of Good and Evil, in order to Practice; that is, to conduct all our Relations and Intercourses between God, our Neighbour, and our Selves; that is, in all moral Actions.

This is the final Cause of Conscience, and by this it is distinguished from Prudence, which is also practical Knowledge reduced to particular Actions. For Prudence has Relation to the Things of the World; but Conscience to the Things relating to God. Prudence considers Things as they are profitable or unprofitable; but Conscience as they are lawful or unlawful, honest or dishonest. There are some Actions in which Prudence is not at all concerned, being wholly indifferent to *this*, or *that*, with regard to Advantage; but there is no Action in which Conscience can be unconcerned. For tho' an Action may, in all its Circumstances, be indifferent to *good* or *bad*; yet none can be so to *lawful* and *unlawful*; the very being
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indifferent making it *lawful*, because it is indifferent. And in this sense, even our natural Actions are, in some sort, moral, as they come under our Conscience, are permitted by it, and allowed to be innocent. But when they at all relate to another Person, they are of more moral Concernment, and are properly to be considered in this Court. This is the full Effect of Conscience, to conduct all our Relations, all our moral Actions.

RULE II.

The Duty and Offices of Conscience, are to dictate, and to testify or bear Witness; to accuse or excuse; to loose or bind.

The first Act which is to *dictate*, is the Act of That which Divines call the *σωτήριος*, the Phylactery or Preserver of the Records of the Laws; and by it we are taught our Duty. This is what is called by St. Paul, *the* Rom. ii. *Work of the Law written in our Hearts:* ^{15.}

And hence it is, that to sin against our Consciences, is so highly inexcusable. But it is always more or less so, in Proportion to the Violence which is offered to the Conscience. For Conscience never fails to dictate what it is persuaded of; nor can a Man act against its Suggestions, without offering some Violence to it.

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The natural Principles of Justice and Religion are its universal Dictates, and are therefore the most obvious; but whatsoever can be plainly and infallibly, by rational Consequences, deduced from them, are, tho' not immediately, yet truly and properly, its Dictates too. Thus it is with regard to clear Revelation. For whatsoever God conveys into the Conscience by a subsequent Act, is placed there to the same intent with that which, because it began with our Nature, we call *natural*. And the Reason is plain; because all that Law by which God governs us, must be written in our Hearts, since it is that by which all our Actions are to be guided. Whatsoever therefore is done in Opposition to what *Nature* or that practical Reason in which all Men agree, or to those Notices which God plainly by a subsequent Act or Revelation conveys into the Mind, is acting directly against Conscience, as every Man's Experience must inform him.

'Tis the part of Conscience likewise to *bear Witness*. So St. Paul, *Their Conscience bearing Witness*; and Conscience, thus understood, is a practical Memory. For as practical Notices seated in the Understanding do, in a sense, make the *Understanding* to be *Conscience*; so the Actions of our Life, preserved in our Memory, and laid open to practical Judgments, change the *Memory* also
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into *Conscience*. It is not likely that Man, who has a real Superiority over Beasts by the Use of Reason, should be a stranger to his own Actions, as they are to theirs, for the want of it; or that the Evil he commits, should not be remember'd with some Marks of Displeasure.

Another Act of Conscience is to *accuse*, or *excuse*. St. Paul subjoins these to the Acts above-mentioned; *their Conscience bearing Witness, and their Thoughts the mean time accusing or excusing one another*. If upon a Review of the Actions of our Lives, we find that in the main they have been regularly exerted; our Conscience immediately acquits us, gives Ease to the Mind, and dispels those Fears which naturally arise in it, upon a consciousness of Guilt. But when, upon examining our Actions, by God's Rule, *the engrafted Word*, the Word of God written in our Hearts, we find we have deviated from it; the Accusations and Clamours of Conscience, are ever ready to break in upon us; and if, at any time, they chance to sleep, yet they are easily awakened, and make the evil Man restless. Be the Vice never so privately committed, yet no Care nor Watchfulness can give Security. There dwells within a Principle of Fear, that can never leave us till 'tis done away by Repentance.

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To *loose* or *bind*, are likewise, tho' not directly, Acts of Conscience. Upon viewing the Records, or Legislative part of Conscience, it binds to Duty; upon viewing the Act, it gives us Comfort or binds to Punishment. The *binding to Duty*, is so an Effect of Conscience, that it cannot be separated from it; but the *binding to Punishment*, is an Act of Conscience also, as it is a *judge*, and is designed to affright the Offender, and to punish him. And the Mind thus troubled and affrighted, is what the Scripture calls a *wounded Spirit*. It is not possible to point out all the Evils of a troubled Conscience, or wounded Spirit; but some of the principal, which I shall here touch upon, are very obvious and remarkable.

The first is, the Accusations and Disturbance of the Mind, when it is in Pain; then, when it needs most comfort, it shall be most disquieted. Prosperity indeed may bribe or abuse the Conscience, may fill it with Noise, divert it with Business, blind it with Gayety and Equipage, and by a thousand other ways still its Suggestions: But when a Man is *smitten of God*, robbed of the Allurements and Opportunities of Sin, and Conscience is restored to its native Force; then it speaks its own Sense, and is ever loudest, when the Man is poor, or sick, or miserable.

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The second Effect is *Shame*, which Conscience never fails to inflict secretly; there being a secret Turpitude and Baseness in Sin, which cannot be better expressed than by its Opposition to Conscience. A good Conscience makes a Man bold; he reflects, that his Behaviour has been innocent and rational; whereas, he that sins, sins against Reason, the Honour and Perfection of his Nature; and such a Behaviour cannot but be attended with Shame. The Spirits naturally flag, the Mind feels a Charge of Cowardice and Meanness, upon our behaving contrary to our Reason, and the Light of our Minds. And therefore he who said, *If I were sure God would pardon me, and Men would not know my Sin; yet I should be ashamed to sin, because of its natural and essential Baseness*; said but what every Man may find Reason for saying.

There is another Effect which cannot well be described, either by him who feels, or by him who sees it; as being altogether without Limit and without Order. It is a distraction of Mind, indeterminate, confused Thoughts, bewildered, flying every thing, pursuing nothing. It was *Nebuchadnezzar's* Case, *his Thoughts troubled him*. Shame accompanies the Act of Sin, but this is the Confusion which follows upon the Commission of it. And the Reason is, Men find themselves

themselves in a Condition they did not expect; they know not yet what it is, where they are, nor whither it will carry them. Pleasure was their pursuit; and when their Passions and Imaginations are once gratified, Then succeeds a Pain they thought not of. Their Spirits are hurried and confused; like a Man taken in some Act of Lust or Theft, he would escape somewhere, but he knows not where; would do something, but he knows not what. Indeed, this Confusion and first Amazement of Conscience in some disingenuous and baser Natures, proceeds to Impudence and Hardness of Countenance. But Conscience can have no Hand in this; for whatsoever of this nature happens, is in direct opposition to Conscience; and therefore it commonly goes on to Obstinacy, hardness of Heart, a resolution not to repent, a disregard to God, and to an utter *Reprobation*. For if the Conscience were suffered to proceed regularly, this Confusion, when it comes to be stated, and the Man hath well considered, generally passes on to Fear; which is properly the next Effect of a guilty Conscience.

For *Shame* and *Fear* are never far asunder. Sin makes us *ashamed* before Men, and *afraid* of God. A consciousness of Guilt makes a Man a Coward, and timorous as a Child. Thus it is with Tyrants and injurious

ous Persons; they are afraid of Evil because they act it; oppress the bravest Men, and dread the meanest. They are guarded with Swords and Poisons, and tho' they threaten terribly, are themselves most afraid. The Mind, in this situation, is perpetually restless. The Man is put to many mean Shifts to excuse his Crime before Men; and yet cannot excuse it to God, or to himself. He therefore has Recourse to the Arts of Forgetfulness; he would not reflect upon his Pain; he runs to Weakness for Excuse, and to Sin for a Comfort; and in the Uneasiness and Disorder of his Soul, to the Methods and Paths of Hell for a Sanctuary.

This *Fear* and *Restlessness*, thus inflicted by Conscience, doth not only encrease at our Death, but after it is likewise the beginning of Hell. The Conscience, in the separate State, doth perpetually accuse, and with an insupportable Amazement, dreads the approach of the *great Day*. The Fury within will compell the Man to confess, and then he is prepared for the horrible Sentence, as they who upon the Rack, first accuse themselves, and then are hurried to Execution. This is the Progress of an evil Conscience in its Acts of *binding*.

But if it be asked, by what Instrument Conscience does thus torment a Man for his Sins; whether it gives Torment, as it understands,

stands, by the use of some natural Power; or whether God inflicts it, or whether it proceeds from bare Opinion; or by our being perswaded of some future Events which are to follow upon Sin; by Religion or Belief; or lastly, by mere Bugbear and Illusion? I answer;

That it may afflict a Man by all these. For it is naturally inquisitive and busy, querulous and uneasy. But because Men have a thousand little Arts to still the Voice of Conscience, God often finds means to rouse it, and makes it sick and troublesome. But how fantastick soever some of those Instruments may seem from which we receive our Torture; as a clap of Thunder, a Dream, a superstitious Tale, and the like; yet this does not prove that the Fear is vain, but rather that God is the Author of Conscience, and will, notwithstanding all the Arts of Concealment, set up a Tribunal and a Rack in in the Court of Conscience. And therefore God thus threatens wicked Men; *The Lord shall give thee a trembling Heart, and failing of Eyes, and sorrow of Mind, and thy Life shall hang in doubt before thee, and thou shalt fear Day and Night, and shalt have no assurance of thy Life.* But the great Instrument of bringing this to pass, is that strong and universal Persuasion among Men, that *Evil shall be to them that do Evil,*

or in the Scripture Phrase, that every Man shall be, some time or other, *rewarded according to his Deeds*.

But if this be the Case, say some, why is the Conscience less shocked at some Sins, than at others; since in those of the highest Malignity, we find great difference in the Fears of Men, even when, by reason of their extrem Maliginity, there can be no difference in their Guilt?

It may be answered; tho all Sins are damnable, yet not only in the several Degrees of Sin, but in the highest Instances of it there is great difference, arising partly from the divine Threatnings, from Fame and Opinion, or from other Causes. Some are called *crying Sins*, that is, such as call aloud for Vengeance; against which God has denounced horrid Plagues, and which do not often go unpunished in this Life; such are Sacrilege, Oppression of Widows and Orphans, Murder, Sodomy, and the like. Now he who is guilty of any of these Crimes, recollects the angry Words of God, and with Anguish reflects upon the difficulty of escaping Vengeance in this Life.

But besides this, God hath placed in the Minds of Men a natural Aversion to some Sins; such are the Abhorrence against unnatural Lusts; a natural Pity, to guard against Murder and Oppression; and a sense of Pie-

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ty and Religion, against Sacrilege. He therefore who commits any of these Sins, breaks thro' those natural Guards which were placed before him, and so wounds his Conscience not only by a moral, but a natural Instrument. And besides, there are in these Sins certain Circumstances of horror, which cannot but disturb and amaze the Mind. Thus, in Murder, the Circumstances and State of Death is in it self terrible, but much more so, when the Murtherer sees, and sees alone, that himself acted it. So in the Oppression of Widows and Orphans, the Heart is so frequently and so strongly moved, and the Eyes so often meet with so many sad and mournful Spectacles; that if a Man would contrive to make his Soul uneasy, he could not lay before it a more moving Scene. Fame likewise and Opinion do, in such Instances, strongly affect the Conscience. That which justly derives upon us a great Shame among Men, will oblige us to fear and expect Vengeance from God: for that Action which is truly shameful, must, in like manner, be truly formidable. Opinion also has some Influence in this Affair. The Fears of Childhood are not shaken from the Conscience in old Age: And as the Perswasions of our Childhood in moral Actions are permanent, so is the Fear and Hope, which were the Sanctions of those Perswasions. In short, Education, Society, Custom,

Custom, the States of Life, the Religion, or particular Persuasion of Men, have each their share in this Effect.

What I would observe from these Remarks, is this; that we are not to judge of the Greatness or Horror of any Sin, barely by the Affrightments of Conscience. For as some great Sins escape the Rod of God in this Life, so are the Sinners often free from great Affrightments. If a Man fears not, it doth not therefore follow, that he has no cause to fear; nor can the Man himself think, that his Crime will be at all lessened, by his seeming to behave as if it were no Crime at all.

But by the Measures of *binding*, we may judge of the other Act of Conscience, *loosing* or *absolving*. This *Absolution*, when justly pronounced, is the highest and most rational Pleasure the Mind can feel in this Life. But we are to be very cautious, that we mistake not Boldness for Peace, and hardness of Heart for a good Conscience. For a Man may be Quiet, and at Peace, because he enquires not, or understands not, or cares not, or because he is abused in the Notices of his Condition: But the true Peace of Conscience is thus to be distinguished.

Peace of Conscience is properly an Ease and Calmness of Mind, after a severe and impartial Enquiry. It is never to be found in Persons of profligate Lives. It is a Fruit of

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xxviii. 65.
Prov. xxx.
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Holiness ; and therefore, the Quietness we may at any time observe in wicked Men, we are to ascribe to any other Cause, rather than *Innocence*. *The Adulterous Woman eateth and wipeth her Mouth, and saith, I have done no Wickedness.*

That is a true and Holy Peace which we feel, not in the Days of Prosperity, but in the Seasons of Sorrow and Affliction. Then it is that a Man searches every where for Comfort ; and if his Heart encreases not his other Misfortunes by condemning him, then hath he *Peace with God*. Not that we are to consider this Peace of Mind, as a sign that God hath pardoned all our Sins, but those only about which we have made a particular Enquiry. If I find Peace after an impartial Examination of those Particulars, then have I *Peace towards God*, in regard to them : But whether I am pardoned for other Sins, is another, and more uncertain Consideration. We are not to judge of our Condition by the Ease we feel, but by the Causes of that Ease. And tho' I know God will pardon those Sins of which I have repented ; I am not therefore to conclude, from the Ease I feel, that he has pardoned those of which I have not particularly repented. And hence it is, that a true Peace of Conscience is always attended by an holy Fear, a Fear to offend, and a Fear of God's Displeasure for
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our Offences ; a Fear, which, whilst it lasts, will fix our Peace upon the surest Foundations. So that we see true Peace of Conscience cannot take its Original from popular Noises, from the Flattery and Opinions of Men ; but that it is a Peace from within, relying upon God, and its own just Measures.

And now, this whole procedure of Conscience, flows from a Persuasion partly natural, partly habitual, of this Proposition, which all Nations of the World have always considered as the Band of their Religion, Morality, and private Transactions of Justice and Decency, that God is a just Rewarder of all our Actions.

Thus far of the Nature and Offices of Conscience. We shall now consider by what general Methods we are to treat our Conscience, that it may be of Use to us, in *all the Intentions of it*, and in the Designs of God.

RULE III.

We are to be careful that Prejudice or Passion, Fancy or Affection, Error or Illusion, be not mistaken for Conscience.

We immediately see the Reason and Expediency of this Rule, when we consider how common it is for Men to pretend Conscience for all those Actions which fall under

The Rule of

der the Notice of Mankind, and whose Nature therefore cannot be concealed. Thus you'll frequently find the Motives to unjust War, to Schism and Rebellion, taking their Rise from a Pretence of Conscience. Sometimes you will find Men, who suspect their Brother of a Crime, and are (as they say) perswaded in their Conscience that he did it. And thus, Suspicion, Jealousie, Disobedience, and Rebellion, are made Conscience.

But the intent of this Rule is, that we should observe the strict Measures of Conscience; otherwise bare Illusion may make a Conscience, as in the Cases above-mentioned. If Error or Passion dictates, and we mistake them for Conscience, we generally think our selves bound to obey; and therefore this Rule advises us to enquire into the Information and Inducement; and if we can discern the Abuse, the Evil may be avoided. For a Man's Conscience cannot be malicious, his *Will* indeed may; but, if the Error be once discovered, the Conscience, that is, the *practical Understanding* cannot, unless it were possible for a Man to believe what himself knows cannot be true. Now in doubtful Cases, we may be assisted by the following Measures.

First, we are to suppose our Consciences to be misinformed, when we are not willing to enquire into the Particulars. He that searches

searches desires to find, and thus far he is right; for Truth can never hurt a Man, tho' it may check his Vice, and reprove his Folly. But he must likewise put on all the Indifference he can; and not like an unskilful Traveller, chuse the Way that looks fairly, but that which leads surely. We are, in Fact, afraid of Truth, when we are unwilling to search after it.

Secondly, He that resolves upon the Conclusion before the Premisses, who enquires into Particulars with a design not to shake it if it be false, and to establish it only if it be true, is commonly sure to mistake, at least cannot be sure that he does not mistake. This holds in all those Cases where the Particular *unknown*, is not secured by a General which is *known*. Tho' I am not able to prove argumentatively the Doctrine of Christ's Intercession, and yet resolve to listen to no Arguments against this Doctrine; yet do I not hereby act against this Rule, because I am predetermined by a Proposition which cannot fail me. He who cannot chuse for himself, hath chosen well enough, if he relies upon One that can certainly chuse for him; and if he finds such a One, he may prudently trust him in those Particulars wherein he cannot judge for himself, and wherein the other can; at least, wherein he cannot come to know that the other cannot.

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Thirdly, Illusion cannot be distinguished from Conscience, if in our Enquiry we take up with improper Methods, and incompetent Instruments. He who chuses rather to follow the giddy ignorant Multitude, than the wise Guides of Souls ; or a Man who is his Partner in the Question, rather than him who is disinterested ; or a Man of a different Profession from him, whose Office and Business it is to answer ; hath poor Reason to imagine he shall succeed in his Enquiries. The Particulars of applying this Remark to Practice in all special Cases, I shall afterwards enumerate ; at present I shall only observe, that a Man may consent to an evil Authority, and rest in a wrong Persuasion, and be guided by an abused Conscience, so long as we suffer our Persuasions to be fixed and determined by improper Instruments.

Fourthly, we are to suspect that Determination which does apparently serve an Interest, and but obscurely any pious end. It is no inconsiderable Objection against those Propositions, which the *Romish* Church so earnestly contends for, against the other parts of Christendom ; that they so evidently serve the Ends of Covetousness and Ambition. The Pope's Power over Princes, and of Dispensation ; the Exemption of the Clergy from secular Jurisdiction ; the Doctrines of Purgatory and Indulgences, with that of Transubstantiation

substantiation; without the Warrant or Authority of Scripture; have so plain a Tendency to both those Ends, as a considering Man cannot but observe. It was a just and fine observation of the Son of *Sirach*; *Consult not with a Woman touching her of whom she is jealous; nor with a Coward, in matters of War; nor with a Merchant, concerning Exchange; nor with a Buyer, concerning selling; nor with an envious Man, of thankfulness; nor with an unmerciful Man, of kindness; nor with the slothful, for any Work; nor with the Hireling, for a Year of finishing Work; nor with an idle Servant, of much Business; hearken not to these in any matter of Counsel.* Their Interest will direct their Opinion. It is possible indeed, that Truth and Interest may be very consistent; as where Priests preach the Necessity of paying legal Tythes; or a poor Man pleads for Charity; the Truths which they urge are not prejudiced by the Interest they have in them. For here the *End* of Piety is not obscure, nor the *Truth* of the Proposition uncertain.

Fifthly, If the Proposition tends to maintain a Vice, or lessen a Virtue, it cannot be the Result of Conscience, but only of Error or Abuse. But this holds only when the Answer tends *directly* to Sin, not when it does so only *accidentally*. He who marries a proud

a proud imperious Wife, and turns her away that he may live at ease; if, upon consulting a Friend, he is advised to take her again, but says, that then he shall not be able to live innocently; if his Friend proves to him that his Fault in this Instance is no sufficient warrant in neglecting a Duty in another; he is rightly answered and directed. But if he had advised him to drink intemperately, or to come into any other guilty Methods to remove his Sorrow; his Counsel had tended to Sin *directly*.

Lastly, besides the Evidence of the Thing, and an exact Conformity to the Rule; there is ordinarily no other collateral assurance, but an honest sincere endeavour to make the best enquiries we can, and in taking the advice of the wise Son of *Sirach*, *Above all*
 Eccluf. xxxvii. 15. *this, pray to the most high, that he will direct thy Way in Truth.*

R U L E IV.

The Conscience of a vicious Man is an evil Judge, and an imperfect Rule.

I mean here, both the superior and inferior Part of Conscience; for the Rule notes, that the Acts of Conscience may be made invalid, both as it is a *Ruler*, and as it is a *Judge*.

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The superior Part of it, that which contains in it all the natural and rational Principles of good Actions, such as, *God is to be worshipped; do to others as thou wouldst have others do to thee*, and the like; is, as long as a Man has the use of his Reason, a sure and regular Judge in the prime Principles of Reason and Religion. But then these Principles are to be considered, either as they are habitually incumbent on the Mind, or are actually applied to Practice. In the former Sense, they can never be totally extinguished; for they are connatural to the Mind, and will constantly return, whenever a Man ceases from suffering that Violence which seemed to have erased them. But when these Principles come to be applied to Practice, a strong Vice and a malicious Heart may draw a Veil over them, and they shall not then appear to disorder or shock the sensual Resolution. A Man cannot ordinarily think that God is not to be worshipped; but Drunkenness, or a violent Passion, a transient and unnatural Violence intervening in a particular Case, may suspend the Application of that Principle, and hinder the Man from considering his Rule.

But there are likewise some other Principles, which thus far, may as truly be called natural; as they are certainly discoverable by natural Reason; which yet, because they
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are not so connatural to the Soul, nor so easily, nor so plainly evident as the other, may possibly be lost ; at least, obscured to all purposes of usefulness, and Principles directly opposite may be admitted into the Rule of Conscience. And, with regard to the Principles I am here speaking of, some whole Nations have so far abused their Consciences, that Fornication, Over-reaching, Theft, Incest in some kinds, Drunkennels, and the like, have been thought lawful. And to this Day the Practice of Duelling, by private Persons, seems to be thought lawful by a whole set of Men. These are they of whom the Apostle says, *They are given over to believe a lie*, and are delivered up to a *reprobate Mind*.

But this is certain, that whenever the superior or ruling Part of Conscience is an imperfect *Rule*, there the inferior is an evil *Judge*: It acquits the Criminal, and condemns the Innocent ; *calls Evil Good, and Good Evil*. And this is to be understood, when the Persuasion of the erring Conscience is lasting and hearty, not when it is sudden, and carried away by the impetuosity of a Passion ; for here the Conscience condemns, as soon as the Action is over, into which it was hurried and betray'd ; and never proceeds, but where the Errors are fixed and lasting.

RULE V.

RULE V.

All Consciences are to walk by the same Rule, and that which is just to one, is so to all in the like Circumstances.

If all Men were to be governed by the same Laws, had they the same Interests, and the same degrees of Understanding, they would easily see the Truth and Reasonableness of this Conclusion. But we are to take notice, that Men are infinitely differenced by their own Acts and Relations, by their Understandings, by Interest and Mistake, by Ignorance, or Malice, and the like. And hence it is that two Men may be damned for doing two things directly contrary to each other. A *Jew* may perish for not keeping his Sabbath, and a *Christian* for keeping it; *one* may perish for receiving, and *another* for not receiving the Holy Sacrament. But this variety is not directly of God's making, but of Man's. God obliges us to walk by the same Rule, and to this End, *to be of the same Mind*; that is, to direct our selves constantly by the strict and exact Rule of Conscience. But it would be impossible to observe this Precept, if there were not one Rule, and this Rule plain and easy; And the Reason is evident, because
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Men of weak Minds are equally obliged to observe this Precept, with those of clearer Understandings. The Rule therefore is plain, and written in every Man's Heart; and as every Man's Reason is the same thing; so likewise is every Man's Conscience.

Nor is the Unity of the Rule at all prejudiced by any diversity of Cases: For instance; *Autolychns* robbed the Gardens of *Trebonius*, begged his Pardon, and had it. When *Trebonius* was Consul he robbed him again; and when, as a Thief, he was brought before him, he again asked Pardon; but *Trebonius* condemned him to the Gallies. For he who as a private Man was bound to forgive a repenting Trespasser; as a Magistrate was obliged not to forgive him; and both these were upon the same account. All Questions and Enquiries of this kind, should some way relate to the Rule, and be tried only by a plain measure of Justice and Religion; and not be determined by their relation to any Propositions which are no ways concerned with it. For *that* is always *one* and easy; these are infinite, doubtful, and contradictory. But, because all Men cannot make general Propositions, and apply 'em to particular Cases; there will be an eternal Necessity for spiritual Guides, whose Employment it must be to give just and determinate Answers to difficulties of this kind.

RULE VI.

R U L E VI.

In Conscience that which is first, is truest, easiest, and most useful.

There are some Actions, which at first sight, and in their very Nature, appear as directly unreasonable, and against a Commandment, as any other Immorality, tho' of the deepest Die; and yet, object the sinfulness of them to the Authors, and they will give them such a turn to mangle and disguise them, that they do not only sometimes think themselves thereby justified, but also lessen the Persuasions other Men are under of their Guilt. Thus it is in the Question of Images: The worshipping of any does as plainly and easily contradict the second Commandment, as Adultery is forbidden by the seventh. But if we enquire into the Practice of the Church of *Rome*, explained by the wary determination of the Council of *Trent*, upon this Article, with the artful and laboured Distinctions of its Patrons; we shall be inclined to judge somewhat more favourably, than otherwise we should have done. And yet all the while the Worship of Images goes forward. If this Command against the worshipping of Images, were to be understood only by the helps of Sophistry
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and Distinction; or were not to be taken according to the natural and obvious sense of the words; the Conscience is herein left without a clear Rule, and the Command could neither be fitted for, nor given to the meanest Understandings, as it certainly is. This indeed is to be understood otherwise, when the first Sense of the words has, in its Letter, a Prejudice open and easy to be seen; such as the *putting out the right Eye, or cutting off the right Hand*. The words are plainly figurative, and we are to consider only the Import of them, which is to be understood by the Measures of this Rule; that is, the first and most natural signification is the best, that which most nearly relates to the Metaphor, the Design of the speaker, and occasion of the Discourse.

But in all things, where the Precept is plain, and expressed in the proper and undorned Style of Laws, he that takes the first Sense, is most likely to be well guided. In a War between a King and his Subjects, we are plainly taught by Christ and three of the Apostles, with whom we ought to side; but if we would engage against our Prince, it does not look so well, when the Conscience must labour and struggle for its Rule, as when it takes that which lies easy before it.

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RULE VII.

Conscience by its several Habitues and Relations, or Tendencies towards its proper Object, is divided into several kinds.

Conscience, as it relates to its Object, considered *materially*, and in the nature of things, is either true, or false, right or wrong. *True*, when it is rightly informed, and proceeds regularly; *False*, when it is deceived and misled. Between these stands the *probable* Conscience; which, with regard, to its Object, may be either *right* or *wrong*, just as it is in the Event of Things. The division then of Conscience, with respect to its Object, is threefold. For in all Questions where Notice can certainly be had, he who gets it hath a *true* Conscience; he that misses it, has a *false* or *erring* Conscience: But where the Notices are uncertain, or not well understood, or imperfectly revealed; because the *Understanding* cannot be *sure*, the *Conscience* can be but *probable*.

But because intellectual Habits employed about the same general Object, become of different Natures only by their *formal* Tendencies; and the different Manners in which they are affected by the same Object; in

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in order to a just Division of the Kinds of Conscience, we are to consider the *right* Conscience, either as it is *sure*, or as it is only *confident*, but not *sure*. For an *erring*, and an *unerring* Conscience are the same Judge, as to any Effect and Authority upon the Person; but yet they differ infinitely in their Rule. For our Conscience is never a *good* Guide, unless we are truly informed and know it to be so. For if we are truly informed, and know it not; it is an uncertain and an imperfect Guide. But if we be confident, and yet deceived, the uncertainty indeed is taken off; but we may be for all that very miserable. That therefore is the first kind of Conscience, the *right sure Conscience*: This alone is fit to be our Guide; but this alone is not our Judge.

Opposite to this is the *confident* or *erring* Conscience; which indeed is misinformed, but yet assents to its Object, with as much confidence, as does the *right* and *sure* Conscience, but always upon different Reasons. Which, because they are always criminal, tho' the Assent be peremptory and confident: yet the Deception is voluntary in its Cause; and therefore the present Confidence can no way warrant the Action. I call this erring Conscience vicious and voluntary in its Principle, because in all Matters of necessary Duty, all God's Laws are plain; and as they
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are calculated for the unlearned as well as learned, it is necessary they should be so. If therefore there happen any invincible Ignorance, or involuntary Deception, it can be only there where the Rule is not plain; and there the *Matter* can be but *probable*, nor the Conscience neither.

The *probable* Conscience therefore, is made by such an Assent to the Object, as is indeed without *Fear*, but not without *Imperfection*. The Thing it self is of such a Nature, that it cannot give the Mind sufficient Faith or Certainty either way: Because we cannot find that it deserves a *full Assent*, we therefore give it but an *imperfect Assent*: These are all the Kinds of Conscience that are perfect.

But sometimes the State and Acts of Conscience are imperfect; particularly in *doubting* and in *scrupulous* Consciences. Sometimes the Conscience is carried to its Object with an imperfect *Assent*, and acts upon a deficient Principle. In some Questions, the Arguments on both sides seem so indifferent, that the Conscience, terrified, and abused by fear or weakness, is afraid to do any thing, and therefore does nothing; but if it be constrained to act, it is determined from without, not by it self, by Persuasion, Force, Fear, or the like: So that it never acts without Fear, because upon Reflection, it finds

it has no Warrant, and that therefore whatever it does becomes sinful. This is the Imperfection of a *doubting* Conscience, which, for those Reasons, can neither be a good *Guide*, nor a good *Judge*.

A less degree of this Evil is called, the *scrupulous* Conscience; which is not, as is commonly supposed, a distinct kind of Conscience, but differs from the *doubting* Conscience only in the Measures and Degrees of the Evil: Something of the Doubt and Fear is taken off, and the Man can act without *Sin*, but not without *Trouble*. He is uneasy even when he is most innocent; and the Causes of this, besides some Portion of those weaknesses which make the *doubting* Consciences, are Superstition, Melancholy, Pusillanimity, and mean Apprehensions of God. So that tho' the scrupulous Man may proceed to act without Sin; yet his scruple is seldom innocent, and always calamitous. Now this Conscience may be a right *Guide*, but dares not be a *Judge*. Because he *may* err, he thinks he *does*. The Effect of this Imperfection, is nothing but an heartless and uncomfortable proceeding in our Duty; we are afraid to rely upon That, which yet we cannot believe will fail us.

The *tender* Conscience, the *hardened*, the *quiet*, the *disturbed*, and the *perverse* Conscience, which some have enumerated, as
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distinct kinds of it, being only the Affections or Appendages of Conscience, as we have here considered it ; we shall therefore omit.

CHAP. II.

Of the right, or sure Conscience.

RULE I.

A right Conscience, is that which guides our Actions by right and proportion'd Means, to a right End.

WHatsoever is good for Us or our Neighbours, or any way perfective of our Being as God designed it ; all *That* is our *End*: And the *Means* ought to be such, as are proper Instruments to procure it. He who intends to live severely, and to attend the Duties of Religion, his *End* is good ; and thus far his Conscience is right : But if his Conscience tell him, that this *End* is to be attained by erecting Colleges of Women, and that he should recommend the Doctrines of the Cross, in the midst of Feasts, Songs, and Society ; then it is not *right*. For a *right Conscience* is nothing but *right Reason*

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ducting Moral Actions.

R U L E II.

In a right Conscience, the practical Judg-
ment, that is, the last Determination to
an Action, ought to be sure and evident.

This is plain in all the great Lines of Duty, in Actions determinable by the first Principles of Reason, or Divine Revelation; but it is true also in all those Actions which are conducted by a right Conscience. In the Question of Actions, whose Rule is not notorious and plainly evident, there is or may be a twofold Judgment. The first judges the thing probable, from the differing Sentiments of wise and good Men about it; but in this there is a Fear or Suspicion of the contrary; and therefore, in the *direct Act* nothing is certain. But there is also a *reflex Act of Judgment*; which, upon considering that it is certain, that a probable Action may be lawfully done; or else, that That which is but probable in the nature of the thing, (as far as we can find) may yet, by the addition of some Circumstances, and prudential Considerations, by *Equity* or *Necessity*, become more than probable in the particular; Tho', I say, the Conscience be uncertain

certain in the *direct Act*; yet it may be certain, right and justly determined in the *reflex Act of Judgment*; and if it be, it is innocent, and safe, and what we call the *right sure Conscience.*

In moral Things we are not ordinarily to expect Demonstration, or mathematical Certainty; and therefore, in Morality, we often call that *certain*, that is, proper to be chosen, which is only *highly probable.* It is not therefore necessary that the *direct Judgment* should be sure and evident in all cases, because it is impossible it should be so: But if it be not supplied by the *reflex Act* of Judgment, so that the Conscience be either *certain* in the *Object*, or in the *Act*; the whole Procedure is dangerous, the Conscience is doubtful, and the Action is a Sin.

The Conscience therefore must be confident; but it must also be able to give sufficient Reason for its being so; at least so much as can secure the Confidence from Illusion. This it will be enabled to do, by taking all that Care which God has put in our Power; of which I have already said something; and shall say more, in its proper place.

RULE III.

The practical Judgment of a right Conscience is always agreeable to the speculative determination of the Understanding.

This Rule is designed against those whose Understanding is right in the Proposition, but yet declines the Application of it. The Proposition, in its self, is owned to be true; but when it is applied to their own Case, they see not the Force of it. Thus *David* pronounced Sentence of Death upon the rich Man who *robbed the poor Man of his Ewe Lamb*; but when he found himself to be the Man, he likewise found Reasons for reversing the Sentence. We are in all Cases to consider the Rule, not the Relation; the Law, not the Person. If it were otherwise, the Conscience could not possibly be either a proper *Guide*, or *Judge*. Not that we hereby preclude the exercise of Privileges and Pardons in particular Cases; for That which is binding in the Proposition, may by many intervening Causes, be somewhat loosened in the Particular; of which I am to give account in its due place. But this is certain, that whatsoever *Particular*, is of the same account with the *General*, not separated or let loose, by that Hand which
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first bound it, is to be estimated as the *General*.

But this Rule reaches farther also; and is true, and so to be understood, not only in the restrained sense in which I have hitherto used the Words *Practical* and *Speculative*, as relating to Conscience; but also in their first and larger sense. Thus in Philosophy, if we say that God, being a Spirit without Parts and Figure, cannot be represented by an Image; tho' this be properly a Philosophic Speculation, and so no Rule of Conscience; yet when Conscience is to make a Judgment about representing God the Father in Picture, it must not determine *practically* against that Speculation. For whatsoever is true in one sense, will be still true when it is considered in another. We are not to think that we are unconcerned in Philosophick Propositions, when we come to use them in Divinity. We must not worship That which our Reason and Senses tell us is below Worship; nor believe That to be infinite, which we see circumscribed; nor think That greater than the Heavens, which I see and feel goes into my Mouth. The Caution, which is necessary for the due Use of this Proposition, is this: That we be as sure of our Speculation, as of any other Rule which we ordinarily follow; and that we do not mistake vain and uncertain, for true

true Speculation. The adopting into the Christian Religion, and the explaining it by the uncertain Philosophic Principles of *Plato* and *Aristotle*, has done but little Service to it. *Origen* and *Aquinas*, have laboured so unsuccessfully in this Design, that each has been a means of rendering Christianity less pure than it would have been, had they drawn it only from the Fountain of Christ and his Apostles; and had laid less stress upon a Philosophy which is so precarious and uncertain.

But for the fuller Explication of this Rule, it will not be improper to consider that important Enquiry, which has been made concerning the *Use of Reason in Religion*. For some Men finding Reason to be the Guide which God has given us, and that it is created with our very Souls, but that Religion is superinduced, and comes after it; they therefore think, that This should not sway and determine That noblest part of the Creation: And because some things which are said to be Articles of Faith, seem repugnant to their Reason, they stick to This, and let That go. Here is just cause of complaint; and therefore others say, Reason is a good Guide in things Reasonable and Humane; but that in Divine things, it is all dark and obscure, and therefore of little or no use in Religion: For here we are to Believe, and not

not dispute. These are the Pretences urged on both sides, and it will be worth while to examine the Justice of them.

They who argue against the Use of Reason in Religion, say, first, that there is given to every Man sufficient Light to guide his Behaviour in the State in which God has placed him. In Actions of humane Intercourse, and the Notions relating to it, Reason is our Eye, instructed with sufficient Notices drawn from Nature and Experience, for our regular Deportment. But Man being likewise designed for the Knowledge of God, and spiritual Things, he must have new Capacities and Illuminations from Heaven. Reason cannot discern the things of the Spirit, because they are *spiritually discerned*. There are some things in our Religion so mysterious, that they are wholly above our Reason; we may admire, but we cannot understand them: And therefore the *Spirit* of God is sent into the World to subdue our Understandings to the *Obedience of Christ*. But if, after all, we must use our Reason in Religion, we have but one Reason to which we ought to submit; and that is, that we are obliged to believe whatsoever God has said is true. So that even here the greatest Use of our Reason is to teach us to submit it to the Divine Declarations. I may be deceived by my self, but never by God, even
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in any particular Enquiry which gives my Reason the greatest Umbrage. It is enough for me that it is in the Scripture: I will therefore enquire no farther: And I reckon this a sure way of arguing, *this is Scripture, therefore it is true*; and *this is against Scripture, therefore it is false*. Besides, Experience will justify this way of thinking. For we often see, that Men of Wit use their Reason against the God who gave it; and in pursuit of Reason, go beyond Religion. And this was one Cause, that the Religion of *Jesus* was so long and so obstinately opposed. The Philosophers would use their Reason, and their Reason would not admit this new Religion. Reason therefore can be of little use in Enquiries into religious Mysteries: For is it not plain, that some Principles of Reason are against some Principles of Faith?

These are the common Pretences against the Use of Reason in Questions of Religion; and are generally recurred to by two sorts of Men. The first are those, who being destitute of particular Arguments, have their last recourse to the Authority of Men. Now to these Men, it may very justly be said, *let God be True, and every Man a Lyar*. If we trust Men concerning God, we do not trust God concerning Men; that is, we do not judge of Men as God hath taught us,
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viz. that *they are weak, and that they are Lyars.* The Church of *Rome* gives just cause of complaint, when she not only obliges Men to submit, without any Examination, to what she says upon her own Authority; but also requires as strong an Assent to what she cannot prove, as to what she can prove.

The other sort of Men are those, who do the same thing, but under another cover; who not having the Advantages of Union and Government, cannot pretend to a privileged Authority; but being determined to obtrude their Fancies upon the World, and yet not being able to prove the Truth of what they say, pretend the Spirit of God to be the Author of their Decisions. It is impossible that those Men should be in the right, because there are so many of them: For all Men cannot have the Spirit, unless all Men *speak the same thing.* It is possible, that if they jointly asserted the same thing, they might still be Deceivers; but if they are divided, they cannot be right: And therefore since all those Men equally pretend to the Spirit, to prove very different and contradictory Assertions; they are in the right to declaim against the Use of *Reason*, which would question their Positions, and render them ridiculous.

There is a third sort of Men, who equally disclaim *Authority* on one side of the Question,

Question, and *Enthusiasm* on the other; who offer to prove what they say; but upon pretence that they urge Scripture, desire that their Arguments may not be examined by Reason. That is, they will interpret it, but your Reason shall not be judge whether the Interpretation be right or wrong.

For if you judge of that, they say, you judge of their Argument, and so make *Reason* Umpire in Questions of *Faith*. And thus the Sect will be infallibly continued, and Systems of Divinity rely upon a certain number of Propositions from Generation to Generation; and the Scholar, because he is to examine his Master's Doctrines, only by his Master's Arguments, shall never be wiser than his Master.

But to give a just Answer to these Reasons; let it be considered, that it is a weak and trifling Principle, which supposes *Faith* and *Reason* to be opposite. For indeed, *Faith* is one way by which our *Reason* is instructed, and acquires the proper Notices of Things. Our Reason apprehends Things three different ways: First by the Notices of Things abstracted, or first Principles, such as are congenite to the Understanding, as, *that the whole is greater than its part*. Secondly, by reasoning, or drawing Inferences from first Principles. And, Thirdly, by such Things as the Understanding assents to,

to upon the Report, Testimony, or Credit of others ; that is, by Arguments extrinsical to the Nature of the Thing, or by collateral or indirect Principles. In every Science our Reason gets its Notices all these ways. In natural Philosophy there are *first Principles, Inferences drawn from them, and Propositions* to which we assent, upon the *Authority of Plato and Aristotle.* Thus it is in *Theology.* That *God is good, that he is One, I know immediately;* that nothing but *Good* is to be spoken of this *good God,* is an Inference I *certainly* draw from thence ; but that the Afflictions sent upon us, are the Effects of his *Goodness;* or that this *one God* is also *three in Person;* can be known only by *Belief or Faith;* that is, *Reason* knows it only by Testimony, by indirect or collateral Proof. Now, even in this last Instance, it is easy to shew that *Faith* is so far from being contrary to *Reason,* that it is indeed the Effect of it, and is established by it. For thus Reason proceeds in the Enquiry : If I be told that *God* said, there are *Three and One in Heaven;* I first ask, who said it ? And then I enquire whether he deserves Credit ? If my Reason tells me he does ; I believe him, when he says, *God said so.* So that here, Reason is the Ground of my Faith : And tho' I cannot *directly* prove this Object of my Faith ; yet the Authority

thority upon which I believe, where I can prove *That* to be uncontestable, may very justly determine me. My Reason proceeds, and is determined in this Enquiry, just as it is in any other; only that as it does not prove a geometrical Proposition by a moral Axiom; so neither does it prove a Revelation by a natural Argument, but enters into one or the other, by Principles proper to the Nature of the Enquiry. Thus our Reason encourages our Assent to the greatest Mysteries of our Religion. Not that we can *prove* them by natural Reason; for to say *That*, were as absurd as to say, that we ought to prove them by Arithmetick, or Rules of Musick; but whosoever believes wisely, and not by chance, enters into his *Faith* under the Conduct of *Reason*; that is, he finds sufficient Cause and Reason to believe. Indeed, if we consider *Faith* as it is an *Habit* infused into the Mind by God, there is then something more included in it. For so, *Faith* is a *vital* Principle, a Magazine of secret Truths, which we could never have discovered by any Use of our natural Reason, but only by such Means as are wholly Supernatural and Divine.

And here lies the great difficulty of the Question; whether or no *Faith* in this sense, and *materially* taken, be contrary to our natural Reason; or whether any or all the
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Propositions of it, are to be interpreted and understood by this *Reason materially* taken? Or, are not our Reasons, which we justly follow in Physicks, Metaphysicks, or other Arts and Sciences, sometimes contrary to Faith? If they are, which shall we be determined by? Or can That in any sense be an Article of Faith, which is contrary to right Reason? To this I answer; right Reason, or humane Reason, is not the adequate Measure of things Divine, or of *Mysteries of Faith*. Who can tell why the *Devil*, who is a wise intelligent Creature, should, for no other End but Mischiefe, tempt so many Souls to Ruin, when he knows it can be of no Advantage to him? Why should he engage in so many things against God, whom he knows he cannot hurt? Whose Reason can account for God's Permission of Evil for good Ends, when he hates that Evil, and can bring about that Good without that Evil? Who can give any tolerable account, why God, *who delighteth not in the Death of a Sinner*, should not cause every Sinner to be saved; working in him a prevailing Grace, without which, in the Issue of Things, he shall not be saved; and yet this Grace is wholly his own Production? Where is *the wise Disputer of this World*, that can explain the Possibility of God's fore-knowing certainly what I shall do ten Years hence;

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when I am even then at liberty to do, or not do, the thing he is said to foreknow? Well may we wonder that God should wash a Soul with *Water*, and with *Bread* and *Wine* nourish us up to Immortality; but who can say why he should chuse such mean Instruments to effect such glorious Designs? Who can give us the cause, why God should annex so great Rewards to such mean Services; and yet damn Men for Thoughts, for Words, for secret Wishes, which have had no guilty effect abroad, and, perhaps, were not designed to have any? For if the Goodness of God be so overflowing in some cases, we, in *Reason*, could not expect there should be so strong a Resolution to punish *greatly* for *little* Things. And who can give a satisfactory Reason, why, for transient Acts of Sin in this Life, the World is to expect, in the other, never ceasing Torments to eternal Ages? These things the Scriptures teach us; but our Reason knows not why or how they are so; and therefore is not the adequate Measure of Mysteries, but must, in some Cases, assent to what it cannot understand. When therefore, the *Socinians* argue against the Satisfaction of *Christ*, from the difficulty of conceiving, why God, in the Sufferings of his Son, should exact a Price of himself for his own Creature; Or why he, who loved us so well, as to send his own
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Son to die for us, should at the same time resolve to damn us, if his Son should not come and save us: They are highly to be condemned for so obstinate and pernicious an use of their Reason, not where she is not a *competent Judge*, but where she is not sufficiently *instructed*.

Reason is always a right Judge, when she is sufficiently informed; but in many things she sees nothing but the Face of the Article; which may indeed be *plainly* revealed, but without our seeing the *Reason* of it at all; *or we see it, as in a Glass, darkly*; and what we do see, is frequently the least part of what we do not see.

From hence it is plain, that we cannot safely argue thus, *This is agreeable to right Reason, therefore it is so in Scripture, and in the Counsel of God*. Not that one Reason can be against another, when all things are equal and open; but that it is unsafe to determine thus, unless we are fully apprized of the State and Condition of those things about which we reason. Thus, we are not to say, *this is a wicked Man, because he is afflicted*; or, *his Cause is Evil, because it does not thrive*. Tho' it be right Reason to say that good Men ought to be happy and prosperous; yet no Reason can certainly conclude it should be so in this World, because both *Faith* and *Reason* tell us, it may

be so in another. The result of this is, that we are not to suspect, or disbelieve every thing which is *above* our Understanding, nor admit any thing against Scripture, how *reasonable* soever it may seem to be, till all the Information be brought in, by which the Judgment is to be made.

But tho' *right Reason* is not the *positive* and adequate Measure of *any* Article, yet it is the *negative Measure of every one*: So that whatsoever is a *contradiction* to *right Reason*, is not to be admitted as a Mystery of Faith: And this is certain upon an infinite account. For if a thing could be true and false at the same time, it would follow, that two Truths might be contrary to each other: for if the Affirmative be true, and the Negative true too; then the Affirmative would be both true and not true; which is a plain contradiction. If therefore any Proposition be said to be the Doctrine of Scripture, and yet is confessedly against right Reason; it cannot be the Doctrine of Scripture, because it cannot be true, and yet be against what is true.

And if it were otherwise; what could induce us to assert God's *Justice*, if we understood it not? And how can we know him to be *Just*, if we do not certainly know what are, and what are not, the Measures of Justice? And how can we know what
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Those are, if there be two *Justices*, one of which we do not know; and yet if it be another *Justice*, it must be of a different kind from that which we do know? They therefore who have supposed two *Wills* to be in God, a *revealed* and a *secret* Will, the *one* directly contrary to the *other*; lay the Mind of Man under an impossibility of receiving any Satisfaction in Enquiries about the Divine Justice. If That which appears to us to be just, is not so in God's Account, we can never know what is just: And what a Delusion were it to exhort us to be *meek* like *Christ*; *humble*, as he is *humble*; *pure*, as God is *pure*; to be *merciful* as our *heavenly Father* is *merciful*; if the Ideas, the Reasons, and Measures of *Purity*, *Mercy*, *Justice*, and *Meekness*, were not just the same in the humane Mind, as in the Mind of God?

The Design of this Instance is to shew, that in all the Virtues there is a perfect Unity. And because they are all originally and essentially in the *God of Order*, and from him derived to us; and all *our Good*, our *Mercy*, our *Truth*, our *Justice*, is but the having acted in Conformity to *his*; it necessarily follows, that whatsoever is unjust in Men, must be *really* unjust, because it is a deviation from the eternal Pattern. In things of this kind indeed, we can judge

with the greater certainty, because they are not at all *mysterious*; the moral Attributes of God being the strongest Ties of our Duty, and the surest Rule of our Conduct. Our Reason therefore being herein the most fully enlightened, cannot easily be misled; and we can more certainly tell what is *right Reason* in these things, than in others which do not so immediately relate to Duty and Morality.

But farther; this Rule holds in every thing where *Reason* is, or can be *right*. For whatsoever *right Reason* says cannot be done, we cannot pretend from Scripture that it may be done by God's Omnipotence. He never employs his Almighty Power in performing things contradictory, nor can he so employ it. It is no part of Power to do that which is not, cannot be, an effect of Power. Thus much is plainly intimated by the visible Endeavours of all the Sects of Christians, to clear their Articles from the imputation of their implying Contradictions; which is as much as to say, that That cannot be true, to which any thing that is true, is contradictory. Some indeed find themselves obliged, in defence of their Articles, to say, that it is the defect of my Reason, by which I see a contradiction in any of them; and that my Faith here will be the more excellent, the more I oppose my Reason.

fon. Thus in the Articles of the *Ubiquity of Christ's Body*, of *Transubstantiation*, and of *absolute Reprobation*; the *Lutherans*, the *Papists*, and *Calvinists*, resolve upon the Truth of them, tho' Heaven and Earth confute them.

I would not, by what I have here remarked, be understood to mean, that God can do nothing but what our Reason may comprehend and judge of. He can do every thing, but we cannot understand every thing. We are not to say, or believe, that God can do, what *right Reason* says cannot be: But it must be believed, and confessed, that God can do those things, to which the utmost stretch of our Understandings, as they now are, cannot reach. Whatsoever is above our Understanding, is not therefore against it. I know God has the Power of working Miracles, but I do not understand the manner of his doing it; this is *above* my Understanding: But for a thing to be *against* my Understanding, it must first be against some Truth of God, of which I have a full and certain Knowledge and Perception.

But further; there are some things in Reason which are certainly true, and some things which Reason does infallibly judge of, and condemn. Our Saviour's Argument was certain; *A Spirit hath not Flesh and Bones, as ye see me have*; therefore, I am no Spirit.

rit. And St. *John's* Argument was infallible, *That which we have seen with our Eyes, and heard with our Ears, and our Hands have handled of the Word of Life, that we preach*; that is, we are to believe what we see, and hear, and feel : And if an Angel from Heaven should tell us any thing against these Propositions, I do not doubt but we should disbelieve him. But, if it be asked, how we shall *certainly* know what Things are true, or false ; I answer, that in the first place, we are to reckon among the Things we *certainly* know, *first Principles*, and Contradictions ; and in the next place, such things as are manifestly absurd. Therefore it is certain, that if the Parts of a Contradiction, or a right Reason, may be justly opposed to any Proposition ; that Proposition must not be pretended to be an Article of Faith : And to say that it may be so in virtue of God's Omnipotence, is to oppose his *Power* to his *Truth*.

The Result of this is, that our Reason is below many of the *Works*, and below all the *Power* of God ; and therefore cannot perceive all that God hath done, or can, or will do. For this Reason, that which is impossible to *Reason*, may indeed be possible to *Faith* ; but if any thing be really absurd and unreasonable, that is, against some Truth, in which the Mind is really and fully instructed ;

structed ; that is a sufficient Presumption against the admitting such a Proposition as an Article of Faith. And in short, the endeavour to avoid what is unreasonable and absurd, is the very Measure of interpreting very many places of Scripture. For why, otherwise, does not every Christian *pluck out his right Eye, and cut off his right Hand*, that he might *enter into Heaven halt, and blind*? Why do we not believe that *Christ is a Vine, a Door, or a Stone*, since these things are dogmatically asserted of him in the sacred Writings? The Reason why we do not, is, that we expound the Scriptures, as we confute those who deny *first Principles*, by shewing that such Senses of it are not consistent with some other Truth, in which Reason is rightly instructed.

And here we may farther observe, that in all Questions of the Sense of Scripture, the ordinary way of finding it, is to be preferred to the extraordinary. It seems to be more rational to suppose, that God will bring us to himself by Methods which we may easily understand, and be easily determined by, than by working Miracles to no purpose, and without necessity. It is therefore a mighty Prejudice to the *Romish* Doctrine of the *Eucharist*, that it supposes the working daily and innumerable Miracles, to no purpose ; since the real Body can be taken by them to whom

whom it does no good; and all the good can be conveyed to us, tho' we take the Body only in a spiritual Sense; all the Good being conveyed to us by moral Instruments, and to a spiritual Effect. And therefore the Sense of the Church of *England* upon this Article, seems infinitely preferable, because it does no violence to Reason, nor the true intent of Miracles. A Man here may take the Holy Sacrament, discourse of its Mystriousness, and Effects, without talking like a Mad-man, or seeming a Stranger to Reason and Philosophy.

But after all, *Reason*, in its Determinations, must be managed with the greatest Caution. For every Man's *Reason* is not right, nor to be depended upon. As foolish absurd things are not, under the Pretence of being Mysteries, to be obtruded upon Mankind; so neither must mistaken Philosophy, and uncertain Notices of Things, pass for Reason. There have been Mistakes on all Hands: Some Christians explain their Mysteries with so much Art and Subtilty, assert so many things of them which the Scriptures have not taught, and, without a competent Light from Heaven, determine upon those Things so positively; that the Article, which in its own simplicity was indeed Mystrious, but might notwithstanding be believed; is by these Appendages, dangerously exposed and rendered

rendered impossible to be understood, or, perhaps, assented to. Thus it hath fared with the Doctrines of the *Incarnation*, the *mysterious Trinity*, and *the real Presence*. But if it be hard to expect that Reason should submit to a false Article, upon pretence it is being revealed; it will be as hard, on the other hand, to distrust an Article, because it is against a Proposition, which, for want of sufficient Light, I cannot be sure is true.

And now, from what has hitherto been observed, we may give an Answer to the Arguments, which were brought against the Use of Reason in Matters of Religion. And first, I say, that *Reason* may properly be said to be the Eye of the Soul, in all things *natural, moral, and religious*; and that *Faith* is the Light of that Eye, *in things pertaining to God*. It is indeed certain, that bare Reason, which St. *Paul* calls *the natural Man*, cannot discern the Things of God, or the Spirit; for they are *spiritually discerned*: But tho' *natural Reason* cannot, it is false to say, that *Reason* cannot. For Reason *inlightened* can perceive the Things of God; that is, when Reason is instructed by that Master, and by those Rules, which are proper for spiritual Knowledge.

Humility and Piety, which have been urged as Arguments against the Use of Reason, are indeed the best Dispositions for the due

due Use of it, in enquiring into the Mysteries of the Gospel. For the humble Man may certainly understand better than the proud Man, who either will not laboriously enquire, or disdains to be informed. And tho' it may be urged as an Argument against the Use of Reason, that the Doctrine of *the Cross was said to be foolishness to the Greeks*; yet this is nothing to the purpose. For it was *foolishness* to them, only in that they had not been taught the Secrets of God; they were not informed that God would, in a way so contrary to the Interests of Flesh and Blood, cause *the Spirits of just Men to be made perfect*.

To the Argument from Scripture for the Obedience of the Understanding, and submitting our most imperious Faculties to God; it may be answered, that it is very true, that we are to submit our Understanding to God, but that is only when God speaks. Now because we did not hear him, but are only informed that God did speak; our Reason is to examine whether it be fit to believe them who tell us so. For tho' we ought, for the greatest Reasons, to submit to God; yet because some Men have spoken falsely, our Reason is to judge, and discern the *Sayings* of God, from the Pretences of Men: And how that can be done, without using our Reason in Matters of Religion, I must own
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I cannot see. The Obedience of the Understanding therefore, which is thus urged against the Use of Reason in these Cases, properly consists in This: That we submit it to God, wherever it appears reasonable to suppose he hath spoken; but never to Man, unless he has Authority from Reason or Religion, to demand it. That wheresoever Reason and Revelation seem to disagree, if we are fully persuaded that the Revelation is true, no other Pretence of Reason should induce us to disbelieve it. That in particular Enquiries, we make This the general Measure; never to do Violence to the Word of God, never to suspect *That*; but modestly resolve rather to call our selves *Liars*, than maintain an *Argument* at the hazard of an *Article*; that is, *when all things are equal*, we chuse, for the Reverence due to the *One*, and the Possibility of erring in the *Other*, to prefer the Pretences of *Revelation*, to those of *Reason*.

As to the Objection drawn from the Fallibility of reasoning, and its being subject to Error and Illusion; I confess the Charge; but at the same time observe, that the Pretences to Revelation commonly lie under the same Disadvantages. But if, to preclude all Reasoning in Religion, it should be said, that *God hath said it, therefore it is true*; this, indeed, would be the best Reason in the

the World, and all our Faith must rely upon This only. But because even *this* Reason can be of no use to us till the minor Proposition be proved, till it be certain that *God hath said it*; even this must depend upon the Use of our Reason.

It has been objected farther, that by *weak* Reasonings Men may lose their Religion; but this ought not to conclude against *right* Reasoning. As if one should say, that because Men are undone by *Quacks*, therefore *regular Physicians* are of no Use. We are not to measure every thing in Religion by our weak Reasonings: But whatsoever is certain in *Reason*, *Religion* cannot set aside *That*; but *That* which is uncertain or imperfect in *Reason*, *Religion* does often determine and amend. The Mysteries of Religion may indeed seem equally absurd to Reason prejudiced with ill Manners, or misled by false Propositions: But that which seems impossible to vitious Persons, is Reason to good Men. 'Tis not the *Reason* of the Pretenders to Atheism, but the *Abuse* of it, that makes them such: Had they *more* Knowledge, or did they imagine they had *less* than they really have, they had never run into *Atheism*.

RULE

R U L E IV.

A Judgment of Nature, or Inclination, is not sufficient to make a sure Conscience.

This Rule will be of good use, to let us into the Knowledge of our Condition, as to the Nature of many Actions which we call *Moral*, but which do not always merit that Character. Now, in these Actions, we may consider, there are three Degrees of practical Judgment. The *first* is called an *Inclination*, or a *natural Fitness* between the Disposition of a Man, and some certain Actions. All Men are naturally pitiful in some degree or other; and therefore, there is a natural Conveniency between this Disposition, and an Act of Charity. Secondly, in sweeter and better Natures, there is a *virtual Charity*, which is somewhat more than the bare *Disposition* to it. But, thirdly, in those only who consider, and chuse, and act in Consequence of the *Commandment*, or of right Reason, is found the *formal* practical Judgment.

Now, the *first* of these, the *natural Inclination*, is but a remote Disposition towards a *right Conscience*, and a *practical Judgment*; because it may be diverted and made ineffectual by a thousand Accidents.

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We *naturally* Pity a Man in Misery or Distress; but there are infinite Accidents and Reasons, such as they are, which will hinder our relieving him. As to the *second*; the *virtual Judgment*, or natural Inclination, exerted in the *Habit* or Acts of some Virtues; it certainly makes a nearer approach to *real* Virtue, than the former. Some Men are naturally merciful, some abstemious, and some continent. By some accidental Motives, the *Disposition* gathers Strength, and the *Nature* is confirmed; but after all, it is but *Nature* still. The Man may be *Chast*, either because he is shock'd at that Immodesty, which is the incentive to Impurity; or he loves his Quiet, and dreads the Consequences of his Crime. And besides, as Men at first sight fall in Love, against their Reason, against their Interest, and cannot help it; so they may naturally delight in the Practice of some Virtues: But as, in the first Case, they are rather *miserable* than *vicious*; so in the other, they are rather *fortunate* than *virtuous*. Virtue, in this Sense, derives upon the owner of it no other Glory than the having a fair Face, a fine Voice, or a good Constitution, would give him. It is nothing but *Nature* improved and confirmed by *Accident*; or it is such a state of *Good*, which cannot recommend a Man to the Favour of God. It is not a sufficient

Principle of a good Life, nor indeed of the Actions of its own kind. Nor of a good Life; because it may be shewn in a single Instance, and can never be in all: Nor of the Actions of its own kind, because this natural Strength is nothing but an unaptness to suffer by common Temptations; but place the Man in view of stronger Temptations, and this Disposition supports him not, because there may be something in Nature which may overbear it.

To the Constitution therefore of a *right and sure Conscience*, there must be a *formal Judgment*, that is, a deliberation of the Understanding, and choice of the Will, *That being instructed, and This inclined by the Grace of God.* Then it is right and good, not when it is *necessary or natural*, but when it is *thus* chosen. So that it is not enough that Conscience be taught by *Nature*; but it must be taught by *God*, conducted by *Reason*, and instructed by *Laws and sober Principles.*

RULE V.

When two Motives concur to the determination of an Action, whereof one is Virtuous and the other Secular, a right Conscience is not prejudiced by that Mixture.

He who fasts to punish himself for his Sins, and at the same time intends his Health;
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tho' he should not be able to say which was the Motive that determined him to the Action, yet it does no hurt to his Conscience. The *religious View* of it self being sufficient to make it the Act of a *good Conscience*. If the taking in the *other* as a Motive, could prejudice the Conscience, it could not be lawful to be persuaded to it by the Promises of those temporal Blessings recorded in both Testaments, and to which there is a natural and invincible Desire. Indeed if the worldly Inducement be the stronger; it is, so far as it prevails over the *religious* Motive, a diminution of the worthinels of the Action: Yet if it be a worldly Blessing under a promise, it does not alter *the whole kind of the Action*. But if the temporal Motive be not under a Promise, and yet is the first and chief Motive; the whole Case is altered: The Conscience is not right, it is guided by *Inclination* or *Interest*, and not by *Duty*. He who is charitable that he may please a good Prince; tho' his Design be innocent, yet because it is an End which God hath not encouraged, by propounding it as a Reward of Charity; the whole deliberation is properly Worldly or Secular. There is but one Exception to these Remarks, and that is where the worldly Motive is so purely *natural*, that it is also *necessary*; and the Reason

son is, because this *natural End* is also a *Duty*, and tacitly under a Promise.

From this Rule naturally arises a very material Question; which is, that since all who enter into the holy Offices of the Ministry, are so entirely to design the Glory of God, that any other Considerations should scarce be admitted into the Resolution; is this to be understood rigorously? Or if not, how far does it oblige?

I answer; wherever a religious Act, by God's Appointment, may serve both a temporal and spiritual End; it is lawful to have either of them in view: But that our Behaviour is more regular and commendable, if we serve the more *excellent End* with the greater Zeal. So that, tho' it be better to enter upon the sacred Office wholly for spiritual Ends, yet it is not unlawful to enter upon it with an *actual Design*, to make that Calling the Means of our *natural* and *necessary Support*. For it is lawful to intend what God has offered and propounded. The End which God hath designed cannot be Evil; and therefore it cannot be Evil to lay hold on that Instrument to *That End*, which by God's own Appointment is to serve *That End*. Now since God hath ordained, that *they who preach the Gospel, should live of the Gospel*, it cannot be unlawful to intend *That* in order to *This*. And tho' Support

and Maintenance be our *first* and *immediate* Design, yet the Undertaking is not thereby rendered wholly unlawful. For all Callings, all Professions, are to be directed to the Glory of God: *Whether we eat or drink, or whatsoever we do; we are to do all to the Glory of God*: And if one Profession tends more immediately to God's Glory than another; this Difference arises only from the different Nature of the Professions. No Man thinks it unlawful to bring up his Son to the most gainful Trade; if he has Reason to believe that his Son will exercise it, as he ought, to the Glory of God. It is indeed a vast Imperfection to have nothing in view, but the temporal Advantages which God hath annexed to the Priesthood: But, I say, it is not always a Sin to make *Them* the *first Reason* for designing a Man to that Profession.

This Design, indeed, is justifiable only in those Persons, who, at a great distance, intend to be of this Profession; who first study to make themselves capable of it, and to be Masters of those Abilities which are necessary to the Conduct of it. For such Persons may, so it be lawful, first design to serve the *End* that stands next them; and yet afterwards carry on their Views to the execution of the Office in its utmost Extent and Capacity. He indeed who does actually en-

ter into holy Orders, is obliged to take care, that his *principal End* be the Glory of God, and the Good of Mens Souls: For these Reasons.

Because no Man can be fit for that Office, but he who is spiritual in his *Person*, as well as in his *Profession*. He must be a Contemner of the World, a Light to others, an Example to his Flock, *one who minds heavenly Things, and whose Conversation is in Heaven*. Such Characters as these are wholly inconsistent with a Man's placing his chief Affections *on the Things of the World*. The Design of the Priesthood being calculated for the Good of Mens Souls, and the Glory of God, cannot be pursued as the Nature of the Design requires, if any thing necessary to the Advancement of it, be omitted. Thus the Ministers of Religion may intend their Health, may be concerned for their necessary Support, and may, by just and equitable Methods, extricate themselves from any Difficulties or Impediments, which may obstruct the regular Discharge of their Duty: But the Glory of God, and Good of Mankind, must be *habitually, principally, and constantly* in the Heart, and in the Purpose of every such Action.

Now we may know when the *Design* is thus regulated, by the following Rules. No Man can *principally*, that is, as he ought,

design the Good of Souls, who enters upon the sacred Ministry, without those Measures of Preparation and Disposition which the Church, and the Nature of the Thing it self requires ; that is, unless he be well instructed in the Holy Scriptures, and be *fit to teach, to exhort, and to reprove*. Nor can that Man's Intentions be right, who by any indirect Arts, gets himself admitted into holy Orders. He who enters *Simoniacally*, seems to fix his Heart intirely upon a worldly Emolument : Nor can he be capable of filling so sacred, so important a Post, whose sole Recommendation to it, was his Money. On the other hand ; he may be said *principally* to intend the Good of Souls, and the Glory of God, who executes his Office in such a manner as is requisite to produce those Effects. For he thereby plainly shews the Conformity of his Intentions to the Will of God. But we are to understand this under the following Caution : He only may be confident, that his Intentions for God's Glory, and the Good of Souls, are regularly exerted ; who, in the Conduct of them, always makes the less noble Views give place to those which are more important ; that is, who still faithfully pursues the Work of the Ministry, tho' the hopes of Maintenance, Honour, or secular Regards, are lost.

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For, if ever the Minister of holy Things, for Hope or Fear, for Gain or Interest, desert his Station; it may justly be presumed, that *his Heart was not right with God*, who, for any humane Regards, will quit his Service. For, if without a divine Commission, it be not lawful to undertake the holy Calling; to give it up without a divine Permission, must, I think, be very criminal. Where the Need is lasting, the Office, which is to supply it, is perpetual. So that to leave the Calling when the Revenue is gone, to desert the Altar when it hath no Offering; is to despise the Religion, and to love only *the Fat of the Sacrifices*.

But we are not hereby to suppose, that those Ecclesiasticks, who in Times of Difficulty, or Persecution, without omitting any necessary part of their Office, take from it such Portions of Time as are necessary to support them by some honest Employment: We are not to imagine, I say, that these Men are guilty of the Irregularities above-mention'd; for *St. Paul* was a *Tent-maker*, because he would not be burthensome to the Church of *Corinth*. Nor are we to say, that it is criminal for Ecclesiasticks in time of Peace, or War, to change their Station from one Bishoprick or Church to another, where God, or the Church; Charity, or Necessity; Prudence, or Obedience, calls them.

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Indeed, it hath been strongly asserted by some, that Ecclesiasticks, upon no Pretence whatsoever, ought to leave one Church for another, any more than a Man should leave one Wife for another: And for this they commonly urge a Decretal of Pope *Evaristus*, *Can. 7. Q. 1.* and the Case of *Eusebius*, who refused to leave the Church of *Cæsarea* for that of *Antioch*; and the Authority of St. *Jerom*, in his Epistle to *Oceanus*. But that the Authorities here produced do not affect the present Case, will appear from these Reasons. It is certain, that *Evaristus* forbade removals from Church to Church, *Ambitús Causá*, only when Ambition or Covetousness are the Motives to a Remove: Which implies, that he does not condemn such Translations, as are made upon Motives confessedly innocent. As to *Eusebius*, it is to be suspected, that he imposed upon the good Emperor, who knew not the secret Reason why he refused to leave the Church of *Cæsarea* for that of *Antioch*. He had before engaged the Emperor in his Interest, for procuring him that Bishoprick; and was unwilling to appear to him as a Man of Levity, and desirous of Change. But this was not all: He was a secret Friend to the *Arian* Cause; and therefore thought it impolitick to remove to that Church, where *Eustathius* had just before gloriously distinguished himself in opposing

opposing that Heresy. As to the Remark St. *Jerom* takes from the Council of *Nice*; it concludes against those only who did it *without Authority, upon their own Head, for their own evil Purposes, and with Injury to their Churches.*

It is plain then, that an Ecclesiastick may, upon a reasonable Motive, remove from one Church to another; and the Motive is certainly reasonable, if by removing he can do more Good, or be of greater Service to Religion; but of this he is not to judge himself, but his Superiors who have the Power of appointing the Change. It was for these Reasons, that the Translations of the ancient Bishops and Clergy were generally permitted and approved. *Origen* first served God in the Church of *Alexandria*, and afterwards in the Churches of *Casarea*, *Antioch*, and *Tyre*. St. *Gregory Nazianzen* changed his See eight times. St. *Peter* was first Bishop of *Antioch*, and then of *Rome*. And St. *Paul* being himself obliged to an ambulatory Episcopacy, removed *Timothy* and *Titus* from Church to Church, as the Uses and Exigencies of the Church required. In short, if every Man were indispensably obliged to remain in the Place and Capacity whereto he was first appointed; then it were unlawful for a Priest to *desire the good Work of a Bishop*, tho' the Apostle expressly recommends

commends that *Desire*, which necessarily supposes a Remove.

The only Difficulty which remains to be cleared up in this Rule, is, I think, this; how we shall be able to discover clearly the Secrets of our Intentions, and the true Causes of our Actions? Now in order to the judging of the Integrity of our Intentions, let it be observed; that when the Mind is already actually determined, tho' a new Motive may accidentally strike upon it, and so give a new Strength to the Resolution; yet it is not to be considered as the prevailing Ingredient. It only gives fresh vigour to a determination that was made before. In a case of Arbitration between two Persons who are equally beloved by the honest Arbitrator, he resolves, tho' with some Reluctance, to right the injured Party: And the Applause which his honest Design procures from other Men, doth not *make* his Resolution, but only *encourages it*, by abating his Reluctance.

So when the Mind is *almost* come to a determination, and wants some Weight to *finish* it; that which supervenes and sinks the Scale, is not the prevailing Ingredient, but only that which during the deliberation, helped it forward. For That is properly the prevailing Ingredient in the Determination, which is most valued, not That which pleases most: Not That which our Senses, but That which

which our Reason recommends. Thus he who holds a Festival in Gratitude and spiritual Joy to do God Glory; and in Preparation to the Action, finds a vast Pleasure in considering the Musick, the Company, and Festivity of the Day; who, in his Fancy, exults at *This*, but has his Resolution first encouraged by *That*; hath not ruined the Regularity of his Conscience, by this mixture of sensual and spiritual Motives.

Then it is that the good and pious Ingredient is over-powered by a worldly One, when an Instrument toward the *End*, is proportioned rather to *This*, than to *the Other*. Thus he who industriously publishes his Acts of Charity and Beneficence, who is fond of the Applause of Men, and if he has it not in such Abundance as he desires, is unhappy, and complains of Man's Ingratitude; such a Man, in the most humane Action he performs, seems to consider his *Fame* rather than his *Piety*, and would never have exerted the *One*, but in Prospect of the *Other*. In short, every Determination of the Mind is criminal, if any one unlawful Motive contributed to the making of it. He therefore that serves under his Prince in a just War, with a view of gratifying a private Revenge, upon a Person engaged in the adverse Party; loses the Merit of his Obedience, and serves
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his Prince only for the Pleasure of an hellish Revenge.

There are some other things to be said concerning the Conduct of our Intentions, which, because they do not immediately relate to the chief Design of this Rule, are to be considered under their own Head.

R U L E VI.

An Argument not sufficient nor competent, tho' it do persuade us to a thing in it self good, is not the Ground of a right, nor a sufficient Warrant for a sure Conscience.

He who frequents the publick Prayers of the Church, because it is the Custom, or takes the Sacrament to avoid Censure ; does an Act in it self good, but the Motive is by no means sufficient to make the Action *religious*, or to shew that the *Conscience* is *right* and *sure*. For it is certain that every Determination ought to be made upon Motives of its own kind ; that is, we are to be determined to an Action of *Religion*, by a *religious* Reason, and to *Civil* Actions by *prudential* Reasons. If it were not so, we could not well prove the Folly and Inconsistency of that Man's Behaviour, who should wear *Clothes only because* they cost him nothing ;
or

or should *walk*, only for the sake of seeing his Shadow upon the Wall.

Under this Rule, it may be proper to enquire, whether it be lawful to persuade a Man to the belief of a true Proposition, by Arguments wherewith we are not persuaded our selves, and which we do not take to be sufficient? The Case is this: *Girolami*, a learned Priest of *Ferrara*, finds, that many of his Flock, by conversing with the *Jewish* Merchants, are infected with Judailm: He considers, that his Parishioners are led away by popular Arguments, and are not capable of any other. Their Recovery therefore is to be expected only by that kind of Arguments, which at first led them astray. But then he considers, that if they were led into Error, by Error; it is not fit that by Error they should be led back into Truth. And hence he goes on to observe, that That Argument which he can answer, certainly cannot conclude in the Question; for if it may be answered, it is at best but the *shew* of a Reason: And therefore, he who knows this, either must not use that kind of Persuasion, or if he does, he must first resolve to abuse the Man's Understanding, before he can set it right. And this he takes to be inconsistent with the Honour of Truth, and the Charity, the Simplicity, the Ingenuity of a Christian.

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To this I answer: That it is indeed utterly unlawful to tell a Lie for God, or for Truth. God will not be served by That which he hates; nor are there such Defects in Truth as to need the support of Falshood and Imposture. Therefore *Girolami*, in order to reclaim his Flock, could not lawfully fright them with a Tale of a Vision, or pretend a Tradition which he knew to be untrue, or falsify a Record. These Arts are confessedly base. But then, on the other hand, it is certainly lawful for me to use an Argument, which *I believe* is true, tho' I am *not sure* it is true. For a *real Truth*, and a *supposed Truth*, are all one, as to the Innocency of my Designs. And he who knows how little *certainty* there is in humane Reasonings, and that we only *know in part, and prophesy in part*, and that in those Things whereof we *know* a little, we are *ignorant* of much more; must either be content with such Proportions of Knowledge as the Things will afford, and himself can get; or else he must never endeavour to bring any Man over to his Opinion. If therefore a Man, *suppose* his Arguments to be just, and proper to persuade; tho' they are neither proper, nor sufficient for his purpose, yet he may lawfully use them. For, in this Case, tho' himself be deceived, yet because it is upon the strength of those Arguments
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he relies, he cannot be obliged to use any better than he has, any more, than to use such as he knows to be false and inconclusive. And farther; in persuading another Man of a *Truth*, it is lawful to use such Arguments, as derive their whole Strength from the Weakness of him whom I am persuading: And the Reasons are these: Because ignorant Persons are not capable of such Arguments as may *demonstrate* the Question; and because That which will demonstrate a Truth to one Person, may not at all move another. The generality of Men are much more easily wrought upon by Artifice, than by direct Argument. They who were prejudiced against our Blessed Saviour because he was of *Galilee*, needed no other Argument to make them believe in him, than the confuting that foolish Proverb, *out of Galilee cometh no Good*: Yet this would not be a sufficient and rational Proof of our Saviour's being the *Messiah*. The Passions, the Imagination, and the Will, have frequently a mighty Force in hindering our Assent to a Truth; when therefore we persuade Men thus influenced, it is lawful to apply to their Passions, when we see it is to no purpose to apply to their Reasons. When *St. Paul* would persuade the *Jews* from laying violent Hands upon him; he was not to attempt it by offering to demonstrate that he did well in going to

the *Gentiles*, since God had rejected all the *Jews*, but a *Remnant* only : But he persuaded them by saying, that he did nothing against the Law of *Moses* and the Temple. Thus the Holy Spirit of God himself applies this kind of reasoning to the weakness of Men ; for he says, by the Mouth of St. *Paul*, *if Christ be not risen, then is our preaching vain, and your Faith also is vain*. The *Corinthians* disavowing the *Consequent*, were obliged to admit the *Antecedent* ; tho' to other Men this had been no strict Proof of Christ's Resurrection. And in short, thousands of Men would never be drawn from their Errors, if it were not lawful to use Arguments, rather proportioned to their Understanding, than to the Nature of the Question. So that we may *very innocently* persuade weak Men after this manner, provided we take this Caution along with us ; that if we are asked seriously, whether we think the Argument conclusive ; we do not say *it is*, when we know *it is not* ; and that whenever we persuade, we make use of no Argument which we are sure is false.

Now, here arises another Question ; which is, whether it be lawful for Preachers, in order to a good End, to fright Men with panick Terrors, or to create Fears which have no Ground ; as to tell them, *if they lie, their Faces will be deformed ? If sacrilegious ;*

trilegious, they shall have the Leprosy? or the like. I answer; there are Terrors enough mention'd in the *New Testament*, to affright that Man from his Sins, who can be wrought upon by *Fear*. For I am sure there cannot be a more formidable Evil than Hell, nor any Terrors more shocking, than those which are to be the Portion of the damned.

But to answer more directly to the Question; I think the following Rules ought to be the Measure of our Behaviour in this Point. A Preacher may deter Men from Sin, by threatening them with any thing which *may probably happen*. For since the Curses of this *Life* and *the other*, are indefinitely denounced against all Sinners, as *Want*, to the detainers of Tythes; *a wandring Fortune* to Church Robbers: It is not unreasonable to use such Threats, as are most likely to influence the Consciences of wicked Men.

Nor is it unlawful to affright Men in threatening any thing that may *possibly happen in the ordinary Effects of Providence*; for every Sin is against an infinite God, who can produce what Evil he pleases. But then, we are to take care that the Threat we denounce, does not suppose a Miracle necessary to effect it. We may threaten a Sinner in *England* with *Diseases* and *Temporal Death*, if he prophanes the Sacrament; but

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we are not to say, that if he does it, a *Tyger* shall meet him in the Church-yard and destroy him. The Improbability here, were so plain, that the Threat would only be ridiculous. Nor must we be too positive and determinate in our Denunciations, but should rather cautiously apply them, and in a general Sense; as, *it is likely such an Evil may happen, or, we have no Security against it, and the like*: Otherwise, we shall render our selves, as well as the Threat, contemptible. So that, under this Restriction, we need not doubt to press upon the Minds of wicked Men, any Instances of Terror and Punishment threatned to Sin in the Gospel, or to set them out in the utmost Circumstances of Horror. Thus our blessed Lord, when he threatens with the Punishment of Hell, describes the Greatness of it by such Things, as we think the most terrible to our Natures; as *Brimstone and Fire, the Worm that never dies, weeping and wailing, and gnashing of Teeth*.

We may likewise, under the same Caution, endeavour to fright Men from their Sins, by an instance of Terror, which shall never have happened more than once. Thus, tho' the particular Punishment of *Corah, Dathan, and Abiram*, has never been repeated upon the Rebellion and sacrilegious Attempts of other Men; yet as God's Power, and his

Anger

Anger against those Sins, are still the same; it is not impossible to suppose, or absurd to say, he *may* repeat the same terrible Punishment.

But, if it is lawful at any time to make use of Bugbears, or vain Terrors, to bring Men to their Duty; it is only where we find the Minds of those we would persuade, extremely weak and childish: Nor can it be lawful *here*, unless *This* will make it so; that the Minds of those Men are incapable of being moved, but by those things which strongly affect their Imagination.

RULE VII.

A Conscience determined by the Counsel of wise Men, even against its own Inclinations, may be sure and right.

For in many Cases, the Opinion and Advice of wise Men is the best Argument. If the Conscience was first influenced by a *weaker* Reason, every Change to a *better*, is a Degree of Certainty. But this Rule is practicable only in those Cases, where the Conscience observes the Weakness of its *first* Reason, or justly suspects it, and sees not so much Cause to distrust the Opinion of wiser Men. How it is farther to be reduced to

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Practice,

Practice, will be more properly considered in the third Chapter.

R U L E VIII.

He that Sins against a right and sure Conscience, whatever the Instance be, commits a great Sin, but not a double one.

This Man's Sin is indeed the greater, because it is less excusable, and more bold. For, the more Light there is in the Understanding, the more Malice there is in an irregular Will. *If I had not come to them,* says our Saviour, *they had not had Sin; but now they have no Cloak for their Sin.* But it does not follow from hence, that it is an Aggravation of the Nature of Sin, to say, *it was done against our Conscience*: For in Fact, all Sins are so in some respect or other; otherwise they would not be Sins. All that we are to conclude from hence, is, that the more sure and confident the Conscience is, the Sin receives the greater Degree. So that we cannot here infer a distinct kind of Sin. For the Conscience, which hath no Law of its own, obliges us *only*, in Consequence of the Commandment of God.

But then it may be asked, what shall a Judge do who knows that the Witnesses in a
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criminal Cause, have given in a false Oath ? The Case is this ; *Canopus*, a *Spartan* Judge, walking by the Gardens of *Onesicritus*, sees him murdering his Slave ; who, to skreen himself from Justice, accuses another of his Servants, and compels some to swear to the Truth of the Accusation. The Judge knows the whole Process to be unjust, but knows not how to behave, because he is sensible of the Obligation he is under to judge according to Allegation and Proof ; and yet to do Justice and Judgment, which in this Case is impossible. He therefore enquires, which way he ought to determine himself, since he transgresses the Laws of *Sparta*, if he acquits one legally convicted ; and yet if he condemns him whom he knows to be innocent, he sins against God, and Nature, and his own Conscience.

That a Judge not only may, but is obliged to behave according to the Process of the Law, and not his own private Conscience ; has been strongly asserted by several great Lawyers and learned Men ; and the Reasons they go upon are these. 1. They say, that a Judge is to be considered in a double Capacity, a *publick*, and a *private*. In his private Capacity, as he is a *Man* only, he must proceed upon the private Notices and Persuasions of his Conscience : But in his publick Capacity, as a *Judge*, he is to re-

ceive Information by *Witnesses*, and other *Usages of Law*, because he is obliged upon Oath to proceed according to Them : He is not to make his private Conscience the publick Measure ; and if there be any fault in the Process, it is rather to be charged upon the *Law*, than upon the *Judge*. 2. So in putting the Sentence in Execution, the Executioner is not to refuse his Office, tho' he should know, that the Judge has condemned an Innocent ; for so, he would not be his Judge's Judge only, but also of the publick Interest. 3. If this were permitted, the whole Order and Frame of Judicatures would be inverted and confused. 4. We should hereby allow too much to the Persuasions of confident and opiniative Men, who easily imagine their own *Opinions* only, sufficient to determine against the Sentence of the Law. 5. And, in Fact, we find a quite different Procedure, not only in Civil, but also in Ecclesiastical Courts. Thus a Priest may not refuse to admit him to Communion, whom he knows to have been unjustly absolved. For it would subvert all Order in the World, if That which is just in *publick*, should be rescinded upon any private Pretence ; and if *That* were to be overborn by *This*, it would throw all things into Confusion. 6. The *Judge* therefore is to lay aside the *Affections* of the *Man*, when he sits in Judgment ;
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and, instead of his own Reason, is to be guided by the Reason of the Law. 7. Nor will the Pretence of Zeal for Truth and Righteousness, justify a contrary Behaviour: Because, in Judicatures, *legal*, or *seeming* Truth, is all that can be secured; and with this the Law is satisfied. So that we are sure we may proceed upon the Testimony of concurring Witnesses, because They speak *legal* Truth, which is a perfect Rule for the Conscience of a Judge. According to the Words quoted by our Saviour from the *Mosaic Law*, *it is written in your Law, the Testimony of two Men is true*; that is, we are to take it as if it were true, and must proceed accordingly. 8. And thus much must be confessed to be true in some parallel Cases: For a Judge may not proceed upon the Evidence of an Instrument which he hath privately looked over, if it be not produced in Court; even tho' by that means he should be able to do Justice to an oppressed Person: For the Laws do not permit a Judge to act upon any private Information, lest an Inlet should be opened to all manner of Violence and Injustice. And, in short, since no Man is suffered to judge by his own *private* Authority, so neither must any Man judge by his own *private* Knowledge. And to what End shall he call in Witnesses for giving him *public* Information, if after they have done so,

he, by his private Information, shall be allowed to proceed against it?

But if, after all, it should be asked, what then will become of the Judge as a *Man*; and what of his private Conscience? These Men answer; that the Judge must use all the honest Artifice and Cunning he can, to administer Justice, and save the Innocent: He may, as *Daniel* did in the Case of *Susanna*, entrap the false Witnesses; but if he can find no way to relieve the injured Man without prostituting the Character, and laying aside the Duty of a Judge; he must, as a Person of a publick Character, do Justice according to Law.

These are the best and most plausible Reasons that can be urged in Defence of this Opinion. But I shall give my Reasons why they do not appear satisfactory to me. Therefore to the Question I answer.

That a Judge, in this Case, may not do any publick Act against his private Conscience; he may not condemn a Person whom he knows to be innocent, tho' he be proved guilty by false Witnesses. And my Reasons are these.

To slay an innocent Person, is absolutely and indispensably criminal. *Thou shalt not slay the just and innocent*, said God. From whence I thus argue; that which is in its own Nature essentially Evil, ought not to be

be done for any Reason, or Pretence whatsoever. Since therefore in the present Case, the Man is supposed to be innocent, he ought not to be put to Death by any Authority, or for any End we can possibly imagine. Now in all Cases, where Men suffer Death, they are supposed to suffer, either because *they deserve to suffer*, or for *some publick End*. The *first* Reason is not supposed in this Question; and if the *latter* be urged, it is a plain Profession that *we may do Evil that Good may come of it*. This Consequence, say some, will not hold, unless you can prove that in *Law* he appears innocent; but I think it does hold, if he appears innocent to the Judge only, and yet the Judge shall be by Law indispensably obliged to punish him. The Law indeed may condemn him, but she cannot innocently do it by that Judge.

To judge according to the Forms and Processes of Law, is only an human Right or Constitution; for the Law may oblige a Judge to proceed according to his own Knowledge, if she will rely upon him and his Knowledge: But not to condemn the Innocent, is a Divine and Eternal Right, and cannot be set aside by That which is wholly humane. And indeed, the only Reason that can be assigned for a Judge's proceeding upon the Forms and Processes of Law, in receiving Testi-

Testimonies and judicial Proofs, is This ; that he is supposed not to know the Matters brought before him, till they appear in the Forms of Law ; whereas, in the Question before us, he is supposed to have known them long before.

If a King, or Senate, receive Accusations against any of their Council, whom they know to be innocent ; they may not deliver him up to Death ; because They being accountable to none but God, are to *judge* by his Measures, which are to *preserve the innocent* ; and not by Those, which the Necessities, the Weakness, the Imperfections of Man, have made highly convenient. But, if private Judges are not allowed to do so ; it is because they are obliged by their Princes to proceed by *Forms* : Which shews the Necessity of such Proceedings to be founded *solely* on humane Authority. And therefore, tho' the Law may oblige them to act in this manner ; yet as to our Enquiry here, relating to what they are obliged to do in Point of Conscience ; it is certain the Law cannot supersede the Conscience, there being supposed in this Case, a *Knowledge of the Fact*, joined with a *Command of God* for the *Right*.

The Evils that may follow upon a too strict Adherence to the Forms and Proofs of Law, against the Judge's Conscience, may be much

much more fatal, than those which would arise upon his adhering to a Truth which he certainly knew. There is no Man who apprehends he shall be undone by false Witnesses, but will grant that himself is by all means to be preserved. Who will not condemn *Pilate*, who, upon the Testimony of false Accusers, and against his own Conscience, delivered up to Death the most Holy *Jesus*? But supposing his Accusers had made good every Charge against him in Point of Law, and could have legally proved foul Things against the *unspotted Lamb of God*; if *Pilate*, at the same time, had known his Innocence; could the Water in the Bason have washed him clean, after he had meanly, and against his Conscience, yielded to the Desires of those perjured Men, and condemned him *who was purer than the Angels*?

Besides, all Laws proceeding in the best manner they can, in their Enquiries after Truth, would never disable a Judge from making a due Use of it when he hath found it out, and prevented the search of the Law, by an happy Discovery of his own. For the examining of Witnesses being but a means to find out the Truth, we are in search of; cannot surely be preferred to the *End* for which the Examination it self was designed. If therefore no Law ever was, or indeed can be

be so unreasonable as to decree, that in such a Case the Judge, instead of directly relieving the Innocent, shall proceed to his Condemnation; it follows that he is under no Obligation to do it, and therefore the Obligation of his Conscience is, upon no Pretence, to be set aside.

In short, Laws being intended for the Good of Men, are not only to comply with common and ordinary Cases, by ordinary Provisions; but also with their accidental Occasions, by such Provisions as are *extraordinary*. And thus we find that the Laws give way, when they are found injurious in special Cases. And this is the Ground of all Chancery; because it has been sometimes found a true Observation, *summum Jus, summa Injuria*. 'Tis the Advice of *Solomon*, *be not over righteous*; and the Justice of God being always tempered with Gentleness and Favour, Equity and Mercy; our Justice will certainly then be best, when we form it upon the Justice of the greatest and best Being.

And now, there will be the less need of a Reply to the Pretences on the other side, if we consider that they only prove, that a Judge is obliged to observe the Forms of judicial Process, and to proceed according to Allegation and Proof, *ordinarily* and *regularly*; as supposing This to be the best ordinary

dinary way of Information, as most certainly it is. But as the Law, tho' it uses the best means of Information it can get, yet would not refuse the Testimony of a *Prophet sent from Heaven*, or of a *Miracle* which should be wrought to establish the Truth; so neither will it refuse any better way that can be offered. But whatever the Law would do, yet, our present Enquiry relating to the Judge, it is certain, that the Judge, in the Case now before us, hath a surer way of Evidence. And therefore, as the Law, if it had a surer way of Evidence, ought not to act in opposition to so clear a Light; so neither can the Judge.

However, I shall now say something to the Particulars which have been brought to justify the other side of the Question.

1. It is true, that in one Sense the Judge hath a double Capacity, and that in each Capacity he is obliged to different Offices. Some Things he is obliged to do as a *Man*, and some as a *Judge*: That is, some Obligations are natural and essential to him, and some are only super-induced upon his Office. The Duties indeed in this Case are sometimes *disparate*, but never *contrary* to each other; and whenever there is a contrariety betwixt them, the Duties which are *super-induced*, are always to give way to Those which are *natural*. For whatsoever would be his Duty
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as Man, the *Judge* may not refuse to do. It is the *Man* that is the *Judge*; in the *Man* that Office is placed; and the Duty of a *Judge* is laid upon him by the Conscience of the *Man*. 2. That an Executioner may not refuse to do his Office, tho' the Judge have pass'd an unjust Sentence, is only thus far true; when the Matter is dubious, unknown, or intolerable. For if a Judge should order a Hangman to slay alive a *Prophet sent from God*, to crucify *Jesus Christ*, or to stab his King; I doubt not but the Adversaries themselves will own, he is not obliged to obey. 3. And whereas it is urged, that to admit of private Knowledge against publick Evidence, were to dissolve all the Forms of Judicature, and open a way to many Evils; I answer, that the Law therefore refuses the Judge's Testimony, because she hath That which she presumes is better, and because she not knowing the secret, follows the best way she hath. But the Judge knows the secret, he is not deceived; nor doth he make Pretences, for the Case supposes him to speak according to his Conscience; and therefore tho' the Law, for some prudential Reasons, does not believe him, yet he is forced to believe himself; and therefore in Duty to God, must act in Consequence of that Evidence, or he must not act at all. 4. As to the Inconveniences that might arise from

from allowing too much to a confident or opinionative Judge; I grant, he may not prefer his private Opinion to the Sentence of the Law, because it may be, and indeed must be uncertain, as it is an *Opinion*: But yet I cannot doubt, but if a Judge's Conscience were effectively determined against a Law, and he really took it to be unjust and unlawful, he ought to follow his Conscience. For if a *Judge* think the Law to be unjust, he makes himself a partner in the Injustice, in acting by an unjust Law against his Conscience. Not he only who commands Evil to be done, is guilty; but he likewise who obeys such a Command. 5. The Instance of a Priest, and an Excommunicate unduly absolved, will by no means clear up this Question. For there is a wide difference between condemning the Innocent, and acquitting the Guilty. The Law hath Power to forgive the Criminal, but not to punish the Guiltless. And therefore, if a Man be absolved when he deserved it not; we may suppose him pardoned, and the *private* Priest is not his Judge in that Case. For to *excommunicate*, and *absolve*, are Acts of the same *publick* Power, and are authorized by publick Sentence, and not by the private Minister; since to give the holy Sacrament to such a Person, is not contrary to any essential Duty of a Christian. The Priest indeed, if he *knows* him

him to be unworthy, may use his own Power, as far as it reaches, which is only to admonish, reprove, or threaten; but if this will not deter him, the Priest hath no more to do, but to pray for him, and leave him to God and the Church. 6. Tho' it be justly asserted that the *Judge*, when he sits in Judgment, must lay aside all the *Affections* of the *Man*; yet he cannot lay aside his *Knowledge*; and if he lay aside his *Conscience*, he will make but an indifferent Judge. And yet we may say, that his *Affections* are then chiefly to be laid aside, when they tempt him to Injustice: For a Judge certainly ought to incline to be *merciful*, if he knows it will not render him *unjust*. In a word; all those prudential Reasons, which are offered by the Patrons of the other Opinion, as Expedients for Judges to proceed by in such Cases, may be readily admitted, if they will secure the Conscience, and the Lives of innocent oppressed Men: But if they will not, but that the Judge must determine according to *Law*, or to Conscience; the Case to me seems very clear: For God is greater than our Conscience, but our Conscience is greater than any thing besides.

RULE

R U L E IX.

The Goodness of an Object is not made by Conscience, but is accepted, declared, and published by it, and made personally obligatory.

As an Emerald is green before the Eye perceives its greenness; so an Object hath a *material, fundamental, and proper Goodness* of its own, entirely independent upon the Judgment of our *Reason*, or our *Conscience*. And the Rectitude of Conscience depends wholly upon *This*, and follows upon the Perception of it. But yet, there is a *formal, extrinsecal, relative Goodness*, given to an Object by the Conscience; by whose Persuasion, tho' an evil Object is not made *naturally good*, yet it becomes *personally necessary*.

The Design of this Remark is to shew, that we must rather attend to the *Rule*, than to the *present Persuasion*, and should take care that the Conscience be truly informed, before we suffer it to be determined. Now it is not sufficient that Conscience tells us *Thus*, unless God hath first told the Conscience. But yet, if the Conscience does declare for *This*, it engages us in it, whether it be *right* or *wrong*. But *This* hath in it some variety.

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1. The Goodness of an Act arises from the Goodness of an Object; or, in other Words, upon its Conformity to a rational Nature, and the Commands of God. All Acts of Will and Understanding are wholly undetermined, till their Relation to an Object be considered; and they then become *bad* or *good*, as the Object to which they relate, is *good* or *evil* respectively. To design an Act of Theft, is *Evil*, because Theft it self is so; and to design an Act of Justice, is therefore *Good*, because Justice it self is Good. So that our Conscience, because it is to take its *Information* from the *Rule* by which every Action is made Good or Bad, and its *Determination* from the *Object*; is obliged to regard *That* only which is *really Good*, and, without *Sin* or *Error*, cannot do otherwise.

2. But tho' the Conscience is bound to proceed this way, and tho' all things should be thought *Good*, only because they are *Good*; yet some Things are made *Good*, only because they are thought so. The Conscience sometimes finds *Error* dressed up in the shape of *Truth*, and as *such* embraces it. And tho' *This* can never become *really* and *naturally Good*; yet the Conscience supposing it *Good*, it is sometimes accepted by God, as *Good*.

3. For tho' the Measure of Good and Evil be perfect in it self, yet it is not always perfectly understood by us. We are sometimes led away by Probabilities only. God therefore will graciously accept for Good, that which we really and innocently suppose to be so. God indeed requires the Service of all our Faculties, but demands no exact Measures from any but the Will. For the Acts of the Will are perfect in their kind, but not Those of the Understanding; This therefore may find an excuse, but That perhaps never will.

4. And hence it is, that tho' the Goodness or Badness of an Act arises from the Quality of the Object regularly and naturally; yet the Acts may be made irregularly, or accidentally Good or Bad, by Conscience; that is, the Act may be made Good by the Object really Good, or apprehended to be so.

We shall therefore here consider, what changes can be made in moral Actions, by the Persuasion and Force of Conscience.

1. Whatsoever is absolutely and indispensably necessary to be done, and commanded by God expressly, cannot be changed by the Conscience into an Evil, or be made unnecessary. For where the Rule is plain, all Ignorance is voluntary; and therefore cannot render that which we do in Consequence

of it, *lawful* or *good*: For this Reason *Adultery*, *Murther*, *Sacrilege*, and the like, can never become *Good* by any Act of Conscience. 2. But where the *Rule* is obscure, or the *Duty* so intricate, that the Conscience may unblameably err; there the *Object* may be changed by Conscience, and for that Reason the *Acts* may, in some respects, be said to be *Good* or *Evil*. He who thinks it unlawful to give Money to a poor *Turk*, hath made it unlawful to *himself*; tho', in it self, it seems to be a *pious Act*. Wherever the Understanding is *wrong*, but the Will is wholly *right*; the Action is there accepted, and the Error pardoned. 3. When the Act is materially *Evil*, the Conscience believing it to be *Good*, does not so perfectly change it, as to make it really and absolutely *Good*. When two Men take up Arms, the one *for* his Prince, and the other *against* him; tho' each may be heartily persuaded that he acts conscientiously, yet they do not *equally* do well or ill. The one shall be *loved*, and the other perhaps may be *pardoned*. But that Act which needs a Pardon, cannot be said to be of equal *Goodness* with that which needs none. 4. If the Conscience pronounces a Thing *necessary* to be done, the Man is indeed obliged to do it. If a Man enquires whether he is bound to pray kneeling, or whether *he may do it standing, or leaning,*

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or lying; if his Conscience say, that *he must do it kneeling*, it is necessary he should do so, and he may not do it in his Bed: But if his Conscience tells him it is only *lawful*, and not *necessary*; he is at liberty to do it, or let it alone. If the Conscience were to enquire, whether it were *necessary* to observe an Holiday, or *necessary* to let it alone, and should determine That to be *necessary* to be done, which it is *necessary* to omit; the Man indeed is obliged to follow his Conscience, but he cannot avoid an Error. For Conscience; tho' it lays *personal Obligations* upon the *Man*, makes *no real Alterations* in the Nature of the *Thing*: And if it be *Superstition* to keep an Holyday, it cannot be made *lawful* or *good*, because the mistaken Conscience calls it *necessary*. And if it were otherwise, it would be of no moment what a Man thought; for his bare *thinking so*, would become his *Law*, and every *Man might then do what is right in his own Eyes*. In this Case, what the Conscience *falsly* calls *necessary*, becomes so, *personally* and *relatively* only; that is, the Man cannot *innocently* go in the *right* way, since his Guide leads him in the *wrong*; and and yet cannot *innocently* follow his *Guide*, because she abuses him. So that, in it self, or in the divine Acceptation, that which the Conscience calls *necessary*, has only

in it something which is *Good*, a *willingness to obey*; and *That* God may regard.

5. An Action *indifferent* in it self, tho' it shall be called *Good* by a mistaken Conscience, receives no alteration. It is but *lawful* still; and is only *relatively good* or *necessary*. And tho' the Man may be rewarded for the Action; yet the Action has no Claim to Reward, as not being *essentially Good*. When the Lords of the *Philistines*, to avert the divine Judgments, offered to God *golden Mice* and *Emerods*, the *Action* was not at all agreeable to the manner in which God chose to be worshipped; but their Conscience telling them it was *Good*, it became *lawful* to them, tho' it was not *Good*. God saw they meant it for *Good*, and as such he accepted it.

6. If the Conscience being mistaken, calls a Thing *lawful*, which in the Law of God is not *lawful*; there the Conscience neither alters the *Thing*, or lays any Obligation upon the *Person*. The Case is this: *Eleanora* is married to a Man, who first uses her ill, and then leaves her. Being by some Friends persuaded, that she may lawfully be married to another Man, she is accordingly married to him. Her Confessor charging her with the Sin, she pretends, she was persuaded in Conscience that she might do it, and therefore hopes to be excused. He answers, that *her Conscience* could not make

make that *lawful* which God had *forbidden*; and that therefore the Pretence of Conscience could be no Justification. So that here it is plain, the Conscience cannot *alter the thing*, which the Law of God had called *Adultery*; nor could it *lay any Obligation upon the Person*, since tho' she might suppose her self *permitted* to be married to another Man, yet she could not think her self *obliged* to it.

CHAP. III.

Of the confident, or erroneous Conscience.

RULE I.

An erroneous Conscience commands us to do what we ought to omit; or to omit, what we ought to do, or to do it otherwise than we should.

THE only Difficulty in this Rule, lies in the last Clause. Zeal would necessarily lead us into Error, if we were to suppose, that every Instance of Perfection propounded by our Lord, were necessary to be exerted by all Persons, and at all Times. He hath recommended to us the *Renuntiation of the World, spiritual Castration for*
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the Kingdom of God, dying for our Enemies, and the like. That good Man indeed, who with a due regard to both Charity and Prudence, observes those Precepts, will find his Reward swell high: But he who thro' an intemperate Zeal of arriving at Perfection, should think these Advices *literally* necessary, hath abused his Conscience, laid an undue Restraint upon Christian Liberty; and that very Behaviour of his which began from his *love of Religion*, is now become little more than *Fear, Scruple, or Superstition*.

There are two ways by which an erroneous Conscience is generally abused. 1. By a true Application of a false Proposition. 2. By a false Application of a true Proposition. Thus, in the first Case, if I should say, *whatsoever is done against my Conscience is a Sin*; this cannot be true with regard to the Consciences of other Men; but as it relates to my own Conscience, it certainly is true. And herein chiefly would be the Error of my Conscience; if I should make my own Conscience in these Respects, the Standard of the Consciences of other Men. As to the second Case, if I should say, *every Oath is forbidden by God*, therefore *every Oath is a Sin*: Tho' the Proposition is certainly true, the Inference is by no means good and certain. For St. James in saying, *swear not at all*, forbids all kinds
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Oaths *materially* only; that is, in that sense in which *Any* are forbidden, in the same sense *All* are forbidden. We are not to *swear at all*, without just Authority, and upon proper Occasions.

The *Causes* of Error are, 1. *Ignorance* either of *Right*, or *Fact*. No other Division of Ignorance can concern the Relation of an erring Conscience. For tho' a Man be very differently concerned in Ignorance, as it is *vincible*, or as it is *invincible*; yet his *Will* is concerned *directly*, in that Ignorance which is *vincible*, but his *Conscience* only *indirectly* and *collaterally*. 2. *Fear*, whether it arises from Religion, or a *natural weakness of Mind*, does in like manner abuse the Conscience. Ignorance makes it err, but does not lessen its Confidence; it rather increases it. Fear makes it err too; and tho' it begins in doubting, it ends in a silly Choice, which gets as much Confidence as it can; and perhaps enough to establish the Error. To this is commonly reduced, 3. A *morose Humility and Abjectness of Mind*; which because it looks *pitifully* and *simply*, some Men are so charitable as to commend and applaud it. Thus it has been made the sign of a good Mind, to accuse it self of a Fault, where there is none. But to admit of this in all Cases, would be very dangerous and illusive. For if the Question be in a Case
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of Conscience, and the Conscience determines it self regularly, and upon its proper Motives; there to acknowledge a Fault in the Conscience, or the Determination, would be to make Rule it self irregular, to lay the Mind under eternal Scruples, and Irresolution, to disturb our own Peace, and to imagine we should please our God by telling a Lie. But if the *Saying* relates to the whole Action, considered in all its different Circumstances and Relations; then indeed it may be consistent with both *Humility* and *Prudence*, to suspect a Fault where there is none: As that some Passion may have had too great a share in the Determination; that there may have been some obliquity in the Intention; that the procedure has not been, in every respect, so just and regular, as it ought to have been; and the like. But even in this Case we may safely say with St. Paul, *I am guilty of nothing*, my Heart smites me not, *yet am I not hereby justified, for God is greater than my Conscience*: I may possibly have done something amiss, or my Duty not well; but as I cannot accuse, so neither can I acquit my self, but refer my self to God's equal and merciful Sentence.

Other Causes of an erroneous Conscience are usually assigned, but, I think, improperly: Such as *withdrawing the divine Aids*, *Perplexity* or *Irresolution*, *Self-love*, *Pride*, *Prejudice*,

Prejudice, Passion, and the like : Which indeed are no otherwise causes of an erroneous Conscience, than as they are causes of Ignorance or Deception ; which was before assigned as a proper Cause of an erroneous Conscience.

R U L E II.

An erroneous Conscience binds us to Obedience, but not so as a right Conscience does.

The *Object* moves the *Will*, no otherwise than as it is propounded by the *Understanding*. If it be propounded as *Evil*, the *Will* that chuses it, as such, is criminal and malicious. If it be propounded as *Good*, the *Will* that rejects it, despises *Good*. For if it appeared *Good* to the Understanding, it must likewise appear *Good* to the Will. And he that does a *good* Thing, while he believes it to be *Evil*, does chuse the *Evil*, and refuse the *Good*. For he does it, tho' he *believes* it to be *Evil*, and is therefore equally disposed to chuse a *real Evil*.

If it were not thus, if the *Object* did move the *Will* otherwise than as it is propounded by the *Understanding* ; we should then be reduced to the Absurdity of saying, that a Man might do a Thing *reasonably*,
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for which he has no *Reason*; or perform *humane* Actions, without any sense of the common Motives to *Humanity*.

Notwithstanding this Rule hath not been universally admitted. Several Writers have earnestly asserted, that it is impossible that an *erring* Conscience should oblige a Man to follow it. But since many of the Actions of our Lives are nearly concerned in the Resolution of this Point; it may not be improper to consider this Question; *Whether a false and abused Conscience can oblige us to pursue the Error?*

To shew that it cannot, these Reasons, among others, are commonly urged: That if an *erring* Conscience obliges us to follow it, then some Men are bound to persecute the *Church*; that then the High Priests sinned not in the crucifying *Christ*; and the Zealots among the *Jews* were not to be blamed for afflicting the Disciples of our Lord, because they did it ignorantly, and from the Dictates of an *erring* Conscience. *St. Paul* thought himself obliged, before his Conversion, *to do many things against the Name of the Lord Jesus*; and yet he says, he sinned in following his *erring* Conscience, and therefore certainly could not be bound to follow it.

*Lib. de
Præcept.
& Dispens.*

Thus likewise *St. Bernard* reasons on the same side of the Question. To follow *Truth*

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is always *Good*: But if by the Conscience we can be bound to follow *Error*; and that, where the Conscience directs us that way, it is not good to follow *Truth*; that is, if a *Good* may become an *Evil* by the Sentence of an *erring* Conscience; then for the same Reason that which is *Evil*, may become *Good*. And the Consequences of this would be, that an Adulterer might be reckoned *Chast*; the *Murderer*, *Charitable*; and the Idolatrous and Disobedient, Men of *Piety* and *Religion*.

These I take to be the strongest Objections that can be urged against the Admission of the *Rule*: To which I answer,

That it is not the *Error* that binds us to follow it, but the *Conscience in Error*. Nor does it at all follow, that because the *erring Conscience* binds, therefore the *Obedience* to it is not a *Sin*. The Rulers of the *Jews* and *St. Paul*, were both called to repent of what they did in Obedience to their *erring* Conscience, which can never change the Nature of Impiety, but only makes some Instances of *Error* unavoidable. To *St. Bernard's* Objections, the Answer is easy upon another account. For Conscience may make a *good* Thing *Evil* to it self; because, besides the *Goodness* of an Object to make it lawful, there are required the Belief and Persuasion of it in the Man: And if this be
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wanting, as it is in that *erring* Conscience which believes not the *Goodness* of it; the Action is *Evil*, because there is wanting the Persuasion of the Conscience to make it wholly *Good*. But on the other hand, Conscience cannot make an *Evil* thing *Good*, because, besides the Persuasion of Conscience, the *Goodness of the Object* is absolutely required.

In short, almost all the Reasons that are given against admitting the *Obligation* of the *erring* Conscience, derive their Force from hence; that the *erring* Conscience is, in its Obligation, uncautiously considered as *erring*. Whereas, it does not bind as *erring*; but as it is *Conscience*; that is, not by its *Error*, but by its *Nature*, and the Power of God, as being the Reporter and Record of his Commands. He who advises us to proceed against it, thus understood, gives but ill Advice. He who counsels a Man to follow his *erring* Conscience, exhorts him to Folly; he observes to him, that he is in *Error*, and yet bids him not lay it aside. But he who advises a Man to follow his *Conscience*; tho', in Truth, his Conscience, at the same time, should be in *Error*, is not at all concerned in countenancing the *Error*, but only in keeping up the Power of Conscience. For all the Obligation our Conscience lays us, under, is derived originally from

from God, who commands us to follow our Conscience, and yet forbids us to sin. His commanding us to follow our Conscience, supposes our Conscience instructed by the Word of God, and right Reason, and in all the proper means of avoiding it; and if we sin in obeying the Dictates of our Conscience, the Guilt is rather to be charged upon the Misbehaviour of the Man, than upon the Intention of God.

But for the fixing the Measures of Obedience in the present Case, the following Rules are of most Importance.

I. If an *erring* Conscience commands a Thing that is of it self *indifferent*, we are obliged to follow it, and may do it without Guilt. For it may *lawfully* be done for that very Reason, because it is *indifferent*; nor would it cease to be *lawful*, even tho' we should suppose it to be *necessary*. Indeed, if a Governor commands to do a Thing which is *indifferent*, and says, it is *necessary*; we are not to give up our Christian Liberty, or take That to be *necessary*, which *Christ* hath not made so. We must do the Thing, but not own the *Necessity*. But if an *erring* Conscience bids us do an *indifferent*, and represents it as a *necessary* Action; tho' it may be a Sin to believe the *Necessity* of it, yet it can be no Sin to do it. But then it is to be observed, that as it may be
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done without Sin, so it cannot innocently be left undone. For the *Action* is supposed to be *lawful*, and the *Error* hath made it *personally necessary*. 2. If an *erring* Conscience represent a Thing as *Good*, which is not *Good*, it is no Sin to neglect the *Dictate*, or omit doing the Thing. For every *Good* is not necessary; and, in some Circumstances, it may be more proper, tho' it should be really *Good*, to omit, than to perform it. 3. If an *erring* Conscience affirm that which is *Good*, or *Indifferent*, to be *Evil* and *Vicious*; as, that it is a *Sin* to spit on the Pavement of a Church, or *Superstition* to serve the Poor in an Hospital; it is no Sin to omit either the *indifferent*, or the *commendable* Action; because there is no Command of God to determine the Resolution of the Conscience either way. 4. If an *erring* Conscience says that such an Action is *lawful only*, when it is in it self *Good* and *laudable*; we do not Sin, whether we do it, or omit the doing it. It may be a pious Action to pray kneeling on the Ground with our bare Knees; but if the Conscience says it is by no means *laudable*, but only *lawful*; we may safely do it, tho' we should believe there would be no Benefit derived upon us from an Action, which we supposed to be of no Merit, or Importance. 5. If an *erring* Conscience commands what is *simply Evil*,

Evil, or forbids to do that which is *absolutely commanded*; the Man sins, whether he obeys, or does not obey. In the one Case, he sins against his *Rule*; in the other, against his *Guide*. The Use of these Rules is but little to *erring* Consciences, whilst the *Error* remains: For these Observations about *Error*, are not properly applicable to those who will not suppose themselves to be in *Error*, but to those only who are recovered from *Error*, and would be directed in the Conduct of their Repentance.

RULE III.

A Conscience erring vincibly, or culpably, is an unavoidable Cause of Sin, whether it be resisted, or complied with.

When the Error proceeds from Malice, or Ignorance, there is a Sin in the Principle, and leads to an Action *materially* Evil. He who forms Assemblies against his Prelate, and thinks he may lawfully do it; not only does an Action which is punishable by the Laws; but must besides be accountable to God for the Sin that led him into that Error.

But if it be asked, whether That also be a Sin, which is an *Obedience* to Conscience; I mean, whether the *Action* be a Sin; be-
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sides the Malice of the Principle, and so every such Action become a double Sin ; I answer, that the Resolution of this Question depends much upon the Nature of the *Instance*.

1. If it be *against a prime Principle*, in which we are *naturally*, or *clearly* instructed ; then the *Error* is certainly *culpable*, because it remains *voluntary* all the way ; and then not only the *Principle*, but the *Effect* also is a Sin. The Man here is industriously blind ; every Reflexion gives him a sight of his Sin, and he knows it *habitually* all the way.

2. If the Conscience be possessed with a damnable Error, and this Possession be a *Dereliction*, or Punishment from God for other Crimes ; it signifies nothing whether we call the consequent Action a Sin or no. Every Action, in this state, is some way or other *Evil*. Our very *Prayers are an Abomination* : And then certainly the Actions which are *materially* Evil, are much worse, as they are *Heightenings* of this state of Sin.

3. If the Conscience be abused by a *less certain Proposition*, by *evil Arts* and *Prejudice*, by *Interest* and *Partiality* ; there is so much Guilt in the whole *Determination*, as there was in the *Cause* of the Error, and no more. For the *Object* in the Case before us, seems to transmit a Degree of Honesty into

into the *Action*; not as it is in it self, but as it appears to our Minds: And therefore we, not being supposed to know *what it is in it self*, cannot be certainly guided to chuse or refuse; but since we must be determined by something, it must be wholly by Opinion and Conscience.

4. If the Conscience be weak, or innocently misguided; there is no Sin either in the *Error*, or in the *Action* which follows upon it. No Man is obliged to do better than he can do; and where the Cause of the Error is not sinful; it is certain, the Man hath done his best; and to act by the best Light he can get, is to act conformably to Reason and Religion.

From these Conclusions we may easily infer, that tho' an erring Conscience is to be followed, and yet, that God also is entirely to be followed; and that therefore a Man, by Accident, or by his own Fault, may be very easily intangled in Sin: Yet, because he is under no Necessity of continuing in that Condition, but either by suspecting himself, or receiving the Admonitions of another, by Enquiry and Prayer, he may lay his Error down; it follows, that it will never be impossible to obey God, so long as a Man keeps himself in the state and possibility of Repentance. For it is impossible that bare Error should ever lead us into an Action both

formally and *materially* sinful. No Man can say it is his Opinion, that it is sinful to love God; that Rebellion is lawful; or that Adultery and Sacrilege are no Sins. These things are so plainly taught, that an Error about them, must be *absolutely malicious*. But where, thro' Weakness, or any other Cause, the Error is *invincible*, or *irremediable*, the Action there is *innocent*, in proportion as the Error was *unavoidable*.

R U L E I V.

It is a greater Sin to do a good Action against our Conscience, than to do an Evil Action in Obedience to it.

This Rule is to be understood to be true, only where the Cases are *equal*, and neither of them differenced from the other by any certain and peculiar Circumstances of Guilt. And in this Sense it must hold good; because it is a greater Sin to *offend against our Knowledge*, than to sin *ignorantly*: And he that Sins against his *Conscience*, does Sin against all his *Knowledge* in that particular. But if he sins against a Commandment which he knows not to be such, he sins *ignorantly*, and therefore the more excusable. *But I found Mercy*, saith St. Paul, *for I did it ignorantly and in unbelief*.

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And for this Reason, it comes to be the same *Kind*, and the same *Degree* of Guilt, to sin against an *erring*, and against a *right* Conscience in the same Instances. He who omits to hear divine Service on a *Festival*, when he has no reasonable Avocation; and he who omits it upon a common Day, which he *erroneously* takes to be a *Festival*; have equally disobeyed the Law of the Church, and the Analogy of a divine Commandment, on which This of the Church is founded; they being equally against the present determination of his Conscience, or the Rule, by which he is obliged to guide himself.

RULE V.

It is not lawful to delight in an Evil Action, (after the Discovery of our Error) which we did innocently in an erroneous Conscience.

The Case is this. A Man being largely rewarded for having defended a forged *Will*, which he did not at that time know to be forged; afterwards finds the Forgery, but detains the Purchase, and becomes infamous. It was *innocent* till he knew it; but then to keep the Reward, was *criminal*. This, I think, is very plain. But when the Purchase may *lawfully* be kept, the Question is to

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be resolved in a different manner. A Man aiming at a Beast, unwittingly kills his Brother, and possesses a great Fortune by his Death. The Possession indeed is a Blessing; but the Accident which gave it him was a Misfortune: But if he may not rejoice in *This*, he may not give Thanks for *the other*; no otherwise, at least, than he would thank God for a Misfortune. If he pleases and applauds himself upon the *occasion* of his becoming Rich; it is plain that he would have killed his Brother *designedly*, if he durst.

An Act, when it is discovered to have been Evil, ought to give the Man no other Complacency, than he will find in the Reflection, that he did it *ignorantly*. He that suffers nocturnal Pollution, is only to rejoice that he suffered it *involuntarily*; he is only to please himself in considering that he did not sin: And his hating the Act, is the only proper Test of the Innocency of his Joy.

Indeed, in an Act whereby we have *ignorantly* transgressed only an humane Law, and the Transgression turns to our Advantage; we are more at liberty to rejoice in it. For humane Laws make no Actions *intrinsically* and *essentially* Evil; but only *extrinsically* and *relatively*. And therefore the Danger is not so great of polluting the Conscience, by finding Pleasure in the Consequences

sequences of an Action thus forbidden. But if I unwittingly offend against the divine Laws, which are *essentially* Good; to find Pleasure in reflecting upon such an Action, directly turns the *Error* into a *Sin*.

RULE VI.

An innocent, or invincibly erring Conscience, is to be obeyed, even against the known Commandments of our Superiors.

The Objections that have been made to this Rule, are these. That lawful Superiors, are God's Vicegerents set over us in Things pertaining to God, so as to be Executioners of the divine Laws; and to make Laws in Things indifferent and pertaining to Men; that all Contempt offered to them, is likewise offered to God; that it is scandalous to refuse to obey them; that it is Pride which makes Men think themselves wiser than their Superiors; and that he is not to be born, who sets his private Folly, above the publick Wisdom: And therefore, it may justly be asserted, that the Error of an abused Conscience ought to be laid aside; the Man is to suppose the Commands of his Superiors to be innocent; he is to give up his Doubts, and resign to their Authority.

But all This touches not the Secret of the Question. For he that compares the Law of *Conscience*, with the Law of the *Superior*, compares *the Law of God* with *the Law of Man*: But the Question is not, whether a Man should follow his *Superior*, or whether he should direct *himself*; but whether *God* or *Man* ought to be obeyed? For here, the Conscience stands bound by the *supposed Law of God*; which, because it is superior to the *Law of Man*, has a stronger Claim to our Obedience. And therefore tho' it may be very true, that an erring Conscience, disobeying the lawful Commands of its Superior, does truly sin; yet it cannot be proved, that a Man would avoid Sin by obeying against his Conscience. Now, in this perplexed Conjunction of Things, wherein a Man is under a necessity of sinning one way or other; I think the Rule doth justly and piously conclude, that the erring Conscience must rather be obey'd, because the Man is persuaded that he is under *God's* immediate direction; but is persuaded, at the same time, that his *Superior* is not. For, if after all the enquiry I can make, I am fully persuaded that my Conscience is determined by the Law of God; it will be the same thing to me, as if it were really so determined. But this is to be understood only in those Cases, where the Conscience errs *innocently*.

cently and unavoidably; which it can never do in the Precepts of Nature, and clear Revelation.

RULE VII.

The Error of an abused Conscience ought to be reformed, sometimes by the Command of the Will, but ordinarily by a contrary Reason.

If we were engaged in *Error* by a *probable Reason*, it cannot be removed but by a *Reason* which seems equal to it; because a *less Reason* doth not naturally operate with so much Force, as a greater Reason; and to assent to a *less Probability* against a *greater*, is to act against Reason, against all those Reasons, upon which the *less Probability* ought to have been outweighed. For in this Case the Will can have no Influence; which not being a reasoning Faculty, is to be determined by its own Motives, when it is not determined by Reason, or the Motives of the Understanding. Now the Motives of the Will, when it is not moved by Reason, are *Pleasure or Profit; Ambition or Revenge; Partiality and Pride; Chance, or Humour*: And how such Principles as these can disabuse the Conscience, is very hard to understand; but how readily and certainly they do abuse

abuse it, is easily conceiveable. For, in short, the Will never determines it self by any *good* Argument, unless the Argument be founded upon Reason.

Some indeed have affirmed, that the Error of a Conscience may justly be laid aside upon any probable Argument, tho' it be *less strong* and *forcible*. But if this were true, a Man might chuse his side as he pleased; because in all moral Things, as dressed with Circumstances, we may easily find some Degrees of Probability; but it is difficult to find any Case to which nothing can be objected.

Indeed, if the Reason on both sides seems equally probable, the Will may determine it self by any of its own Motives, provided they are honest. Where the Arguments appear equal, the Understanding or Conscience cannot determine.

When the Conscience is erroneous, and the Error commenced upon Interest, trifling Views, or vicious Principles; the Error may honestly be set aside, tho' we have no other Reason for it, but the Discovery of the first abuse. The Will, in this Case, is enough. A Man may, and ought to hate the evil Principle of his Error, and decline it with some Indignation, which, in this Case, would be a part of Repentance. And this hints to you the Reason of this Discourse. For, Repentance

penitance is founded principally in the Will; and whatsoever a Man is to leave, upon the Stock of Repentance, he may do it wholly upon the Stock of his Will, as it is informed by general Propositions; without a full knowledge of the Particulars of the present Question. He that begins without Reason, hath cause enough to leave off, as soon as he sees he had no Reason to begin. And in this Case, the Will is the chief Agent; which cannot here be an ill Principle, because it leaves the *Error*, in prospect of *Grace* and Repentance.

R U L E V I I I.

The Error of a Conscience is not always to be opened to the erring Person, by the Guides of Souls, or by any other charitable Adviser.

1. If the Error began with a Sin, or does necessarily produce a Sin, it is always to be discovered, whatever inconveniencies may follow upon the Discovery of it. To suffer a Man to remain in a state of Guilt, when it is possible to free him from it; would be to hazard an immortal Soul. For there is always some degree of Guilt in continuing in an Error, which *may* be removed.

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2. If the Error be *invincible*, or *innocent*, in its Cause, but the Event be *sinful*, or any way dangerous to the Souls of Men; the Error ought by any means to be discovered. The *Novatians* erred in the Point of Repentance. The Cause of their Error, was a too active Zeal, and too great a Caution and Tenderness in avoiding Scandal, and judging concerning it. Now, tho', in this Case, the Error certainly arose from an *innocent* Cause; yet because it engaged them in such a Course of Discipline, and such a way of thinking as was not *innocent*; their Error ought to be laid open to them, even tho' the Discovery of it should *accidentally* slacken the Reins of Discipline. For Repentance, in their Sense of it, highly reflected upon the Mercies of God; it drove Men into Despair, and rendered the Power of the Keys, and other Ministrations of the Priesthood, in a manner, useless; and would, if it were pursued to its just Consequences, effectually hinder wicked Men from returning into the Bosom of the Church.

3. If the Error be *invincible*, and the Effect of the Persuasion be consistent with a state of Grace; the Error may be discovered, or not discovered, according to prudent Considerations relating to the Person, or the Condition of his Affairs. This, *Comitqlus* says, was the Resolution of a Congregation of

of learned and prudent Persons, upon a strange Case which happened at *Venice*. A Gentleman ignorantly lay with his Mother. She proved with Child; and perceiving her Shame and Sorrow hastening upon her, sent her Son to Travel for many Years. He happens at his return to see the Female Child, which his Mother had brought into the World; he likes her, and not knowing her, intends to make her his Wife. His Mother, almost distracted at this Design of his, urges him against it, with all the Reasons which her Authority, her Prudence, and her secret Aversion to such a Conjunction, could furnish her with: But all to no purpose. The Gentleman married his own Sister, and his own Daughter. Hereupon the Stings of the Mother's Conscience became intolerable; and some time after this prodigious Marriage, she asks her Confessor, to whom she had discovered the whole Affair, whether she were bound to reveal it likewise to her Son and Daughter, who now *innocently* lived in Love and Joy, tho' under a secret Misfortune which they felt not. It was concluded that she ought not to reveal it, lest she should introduce an insufferable Misery into the place of That, which, to them, was no Sin; or lest, after notice of the Error, they might be tempted by their mutual Endearments, and their common Children, still to cohabit,
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and so turn That into a known Sin, which before, was but an unknown Calamity. They were therefore suffered to go on in their Innocence, and all was thought well, under the Protection of an *innocent*, tho' mistaken Conscience.



CHAP. IV.

Of the probable, or thinking Conscience.

RULE I.

A probable Conscience is an imperfect Assent to an uncertain Proposition, in which one part is indeed clearly and fully chosen, but with an explicit, or implicit Notice, that the contrary is also fairly eligible.

A Probable Conscience lies so between the *sure* and *doubtful* Conscience, that it partakes something of both. For a *sure* Conscience may begin upon a *probable* Inducement, but is made *sure* by a stronger Assent to the Conclusion, than the Premises will justly allow. So that the *probable* Conscience differs from the *sure* Conscience only

ly in the *Imperfection* or Weakness of its Assent. But because, in regard to the Imperfection of its Assent, it approaches somewhat towards the *doubtful* Conscience, and so may seem very much like it; we are to observe, that it is still different from it, upon the score of its *Determination*. For the *doubtful* Conscience considers the Probabilities on each side, but dares not, cannot chuse either. Indeed, by the intervening of the Will, it is plainly distinguished from both. For in the *sure* Conscience, the *Will* operates not at all; because it is wholly influenced by the *Understanding*, and its Motives. And in the *doubtful* Conscience, the *Will* is deterred from acting, by its Fear, Diffidence, and Uncertainty. But in the *probable* Conscience, the *Will* has its Force; because here the *Will* always comes in, and adds its weight to the Conclusion, which neither *strict Reason*, nor *Doubt* would ever give it. Nor is there any thing blameable in such a Determination of the Conscience. For tho' he who believes his Opinion to be but *probable*, cannot but know it may *possibly* be *false*; yet he must know likewise, that he may innocently do That, for which he hath a probable Reason. In short, in moral Things, it is sufficient that a thing be judged true and certain, tho' by an uncertain Argument: And the Opinion may be, *practically*

ly certain, when the Truth of it, in *Speculation*, shall be only *probable*.

Reason and *Authority* are the two Motives which influence the *probable* Conscience, and are of great Moment, in order to Practice, of which I am to give account in the following Rules.

R U L E II.

A Conscience that is at first, and in its own Nature probable, may be made certain by Accumulation of many Probabilities operating the same Persuasion.

Every *probable* Argument hath in it something of Proof and Persuasion; and tho' it do not afford Evidence and entire Satisfaction to a wise and discerning Mind, yet it gives all the Assurance that is necessary. For it were to impeach the wise Providence of God, to suppose, that he would permit wise and good Men, Men who study an Indifference to the Gratifications about them, who do all they can to see clearly, who search as they ought to do, for Things they are obliged to find, for Things which they are commanded to search, and upon which even all their Interest depends; and yet, that these Men should be inevitably misled by their own Reason, the best Reason they have; and

and that, when in regard to a Thing which cannot be demonstrated, we are yet to be so fully persuaded of it, as to hazard our Lives and Souls in the asserting it: I say, if this kind of Proof be not sufficient to effect all This; if it cannot sufficiently *assure* such Men, and support their Resolutions upon competent Reasons; Salvation and Damnation must then be by Chance, and will be indifferently the Lot either of the Good or Wicked.

This way of arguing some are pleased to call the way to *moral* Certainty, or Demonstration. Not that, like a Mathematical Demonstration, it can render a Proposition altogether clear and bright; but it can produce the same Effect, as it leads us into Truth, not with as much Clearness, but with as much Certainty and Infallibility in the Event of Things. For the Understanding cannot call any thing a moral Demonstration, till it has freely and impartially considered the Reasons urged on both sides of the Question: And as, on one side, it must necessarily see Force and Strength, and on the other, Weakness and Pretence; it is impossible that both Parts of the Question should seem equally demonstrable to the same Understanding. Besides some Propositions which are only proved by *probable* Reasons, have been assented to by the wisest Men, as *strongly, constantly,*
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and *perpetually*, as a *physical* Demonstration. The Understanding regularly takes the same Impression, gives the same Assent, and, when it is not bribed by Interest, or hurried away by Passion, for ever draws the same Conclusions, in Point of *Assurance*, from the one, as from the other.

Of this I shall take the liberty to give one Instance, which, as it is in it self of the greatest Moment in the World; so the gay, impious Men of the World, who generally derive their Character of Wit from their Impudence and Impieties, have made it now to be but too seasonable: I mean, that *the Religion of Jesus Christ, or the Christian Religion, is from God.*

I take it for granted, that there was such a Man as *Jesus Christ*, that he pretended such Things, and taught such Doctrines. But whether he was *sent from God*, and delivered the Will of God, must be determined by such Arguments only, as are proper to the Nature of such an Enquiry. They therefore who did not live in his Time, nor could behold *the Miracles which he wrought*; have no other way of being satisfied, than by the Testimonies which have been given of him. Now if all the Prophets spoke of him; if there was an exact Correspondence between their Predictions, and his Person; if their Characters fitted him, and never any but

but him; if he was born of a Virgin; and an interested and jealous Husband believed her such, when she had conceived this Child; if his Birth was signified by an Angel, and effected by the holy Spirit of God:

If moreover, he wrought Miracles, raised the dead to Life, and, *by the Word of his Mouth*, cast out Devils; if his own Testimony can be allowed, in favour of his coming from God, in that *he did God's Will*; if his Life was perfectly innocent and unaffected, holy and unspotted, laid out altogether in Actions of Holiness and Charity, and recommending Wisdom to the Minds, and Reformation to the Hearts of Men:

If his Crucifixion was attended with Circumstances plainly supernatural; if the Sun was eclipsed whilst he hung upon the Cross, the Moon, at that time, being at Full; *if the Rocks did rend, and the Veil of the Temple was rent in twain, from the top to the bottom*; if the Dead arose and appeared to their Friends at *Jerusalem*, and the Centurion and many others smote upon their Hearts, and were convinced *that this was the Son of God*; if three Days after his Burial, he rose again from the Dead, and for forty Days together conversed with his Disciples and Followers, and was seen by five hundred Brethren at one time, and was afterwards, in the sight of many of them, taken

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up into Heaven, as *Elias* was, in the sight of *Elisha*:

If these Things, I say, relate to the *Person* of the *Holy Jesus*, they sufficiently prove, that it was *extraordinary*, that it was *divine*, that *God was with him*, and therefore that it was God's Will which *Jesus* taught.

And that these things relating to the *Person* of our Lord, are true; we may be as *morally certain*, as that, if they are true, he came from God. For we have *undoubted Testimony* in Proof of those Things, which is indeed the proper Proof of Facts, and the only one, by which, those who were not Witnesses to the Facts, can possibly be determined.

RULE III.

Of two Opinions equally probable, upon account of their proper Reasons, one may be safer than another.

That Opinion is the most *probable*, which is supported by the most *plausible Reasons*, but that is the *safer*, which is farthest removed from a *Sin*. It is *safer* to restore all the Gains of Usury; but it is more *probable*, that a Man is not obliged to do it. When we make Restitution, we are *absolutely* cer-

tain that we do not *sin*; but if we do not restore, we are supported, only by a great Probability, in the Opinion, that we do not Sin. But how far this Course is to be pursued, or the other to be preferred, will afterwards be considered.

R U L E I V.

An Opinion that is speculatively probable, is not always practically the same.

In a *right* and *sure* Conscience, the speculative and practical Judgments are always united, as was observed in the beginning of this Work; but in Opinions that are but *probable*, the Case is different. It may be *probable* in Speculation, that it is lawful to baptize in the Name of the Lord *Jesus*; but he who does so *practically*, believes *improbably*, and unreasonably. Tho', in the Opinion of the primitive Christians, it were *probably* lawful to give the holy Eucharist to Children, yet in the present situation of Affairs, it would be highly improper to do it. It would be of much service to Mankind, if they would duly consider this; and not, from every *tolerable* Opinion, run immediately to an unreasonable and intolerable Practice. Some are pleased to say, that Churches are not more sacred than other

Places : Yet how great soever the Probability may be, which supports this Opinion ; it would be a strange height of Folly to reduce it to Practice, to chuse to pray in a Barn, when a Church may be had as easily.

This irregular Behaviour among Christians, seems to arise from a false notion of *Christian Liberty* ; as if Men could not be in Possession of it, but in breaking thro' all Laws and Customs, or had no other way to prove things indifferent, and not obliging, but by *actually* omitting to do them. Whereas, tho' we know we are free from the *Bondage*, we may yet innocently do the *Work* ; and tho' our gracious Lord hath taken off our Fetters, yet we may safely obey the Commands of his Stewards in any thing which has a relation to his Service. My *Christian Liberty* obliges me not to the Performance of a Thing indifferent ; but it does not say, that because I am not under the Power of the *Thing*, therefore I am not subject to the Authority of a Man. It is a strange Pertness and Insolence of Temper, to set such a mighty value upon every Opinion and trifling Conceit of my own, as will engage me to maintain it at the hazard of the Churches Peace, in opposition to the wiser Customes of the World, or the Laws and Practices of a wise and well regulated Community of Men. Nothing, in short, can make amends for a certain

tain Change, but such a certain Truth as will plainly conduce to the Ends of Charity and Piety.

R U L E V.

The greater Probability destroys the less.

That is; it is unlawful directly to chuse an Opinion that seems *less probable*, before that which is *more probable*: I say *directly*; because, if the *less probable* Opinion be *more safe*, it *accidentally* becomes more eligible. But where this Circumstance of *greater safety* happens not; we are always to follow the greater degrees of Probability. Indeed, if a Man chuse a *less probable* Opinion, before he knows That which is *more probable*; he hath done well and safely: But when, upon comparing two *probable* Opinions, we reject the *more probable*; the procedure is *absurd* and *unreasonable*.

For, in all those Degrees of Reasonableness, in which the *less probable* Opinion is excelled by the *more probable*; Man wholly proceeds without, and against that Reason. And why does he chuse the *less probable*? I do not ask, why he chuses the *less probable Opinion*, that, I mean, which is so in it self; for he may do that, and it may appear very reasonable to him to do it: But

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I ask,

I ask, why he will proceed according to a *less probable Conscience*? Why does he chuse *That* which he takes to be less probable? For what Reason doth he chuse *That*, for which he hath the least Reason? And if there be no Reason to chuse *That*, before the other, it would be plainly unreasonable to chuse it. In short, our bare supposing an Opinion to be *less probable*, makes it absurd to say we can *reasonably* chuse it.

But this Procedure is not only unreasonable; but it is imprudent also. It is owing to the Levity or Negligence of his Heart, that a Man believes a *less probable* Opinion, and refuses to apply those Means in order to his great End, which himself believes to be the most reasonable, effective, and expedient.

Nor indeed is it honest to proceed in this manner. For a Man cannot possibly believe *That* to be more likely, which appears to him to be less likely. He therefore that chuses the less likely, when it appears to him to be so; thwarts his Understanding, and abuses his Conscience; which, besides the Folly of it, cannot but be criminal.

RULE

R U L E VI.

When two Opinions seem equally probable, the last Determination is to be made by Accidents, Circumstances, and collateral Inducements.

Men differ very much in their Opinions about the *Matter* of this Rule. Some say, the Understanding must for ever remain undetermined, and the Action wholly omitted, as in the Case of a doubting Conscience. Others are of Opinion, we may chuse either part, as we are inclined, allowing the Will to determine the Understanding. The first Opinion cannot be true, because while they both appear equally agreeable to Reason, it cannot be dishonest to chuse that which to me appears reasonable; and therefore, in this Case the Understanding may chuse *practically*. When two things seem equally good, and alike move the Mind, and yet cannot both be enjoyed; I do not, because I take the one, refuse to take the other. Besides, there are many Cases in which we cannot help coming to a Determination; as if the Question be, *whether This ought to be done, or be left undone*; tho' both sides of it may seem equally probable, yet one side must necessarily be chosen; for the very

ry suspending the *Act* here, is not a suspending of the Choice ; the not doing it, is a Compliance with one of the *Probabilities*.

But neither can the second Opinion be true : For the Will alone must not be suffered to determine in this Affair. For, besides that it would be of dangerous Consequence to chuse an Opinion, only because we *will*; it is also unnatural, the Will being no Ingredient in the Actions of Understanding. Indeed, if there should not be any other way to decide the Question, the Will must do it, because there is no avoiding it ; but if there be any other way, as ordinarily there is, this must not be taken.

The Conscience therefore, in determining it self between two Probabilities, which seem equally to move and affect it, is to be influenced by some external Accidents, Circumstances, and Judgments. But of all external Motives, those which have the nearest relation to Piety, are of greatest concernment. That which causes more Honour to God, that which happily engages Men in holy living, that which is most charitable, and useful to Men, is certainly to be preferred.

RULE

RULE VII.

It is not lawful to change our practical Sentence about the same Object, while the same Probability remains.

A Man may change his Opinion as he sees Cause, or alter the Practice of it, upon a new emergent Reason; but when all the Circumstances of it remain unaltered, the Man is not to change it, unless in those Cases, wherein a *Law*, a *Vow*, a *Duty*, or the *Interest* of a third Person be concerned; that is, unless the Actions are in themselves indifferent, innocent in their Circumstances, and so cannot disturb the Conscience.

I shall give an Instance to explain the Import of this Rule. A Gentleman happened to be at *Rome* the three and twentieth of *August*, which is usually *St. Bartholomew's* Eve; but there it is observed on the twenty fourth Day. He refused to fast on the ordinary Day of the Vigils, as he used to do; because he was then at *Rome*, where the Custom was different. He eat his Meals therefore this Day, and resolved to fast the next Day: But being hungry the next Day, he changed his Opinion, and went from *Rome* into the neighbourhood of it, and kept the Feast of *St. Bartholomew*, without observing the

the Eyes. Now this is only to *elude* the Duty, to take away the *Force* and *Import* of the *Law*, by trifling with the Letter of it.

R U L E V I I I.

An Opinion relying upon very slender Probability, is not to be followed, except in Cases of great Necessity, or great Charity.

Were it lawful to follow every Degree of Probability, how little soever, it would put it in each Man's choice to do almost what he would, and do it innocently. For all Marriages might be dissolved, all Vices extenuated and excused, upon Pretence of some *little probable Necessity*. Drunkenness might be considered and recommended as a means of Health, and Fornicators, as a set of Men, whom *God will not judge*.

Not but that, in some Cases, the Obligation even of *slender Probabilities*, is to be admitted; nay, it is convenient it should be admitted; especially, when the Motives for admitting it, are very necessary, and very charitable. The Case is this. A certain Man, having heard a particular account of his absent Wife's Death, after some time, marries another. The new Wife accidentally hears, that he was misinformed, and that his former
Wife,

Wife was still alive, and consequently, that she her self lived in a State of Adultery. This troubled her exceedingly, till she was certainly informed that the Woman was lately dead. Now here a difficulty offers it self to her; whether she is obliged to inform her Husband of the Matter, that they might renew a Contract, which hitherto, she found, might have been invalid? She knows he is a vicious Man, that he hates her, and wishes her dead; she therefore fears that he'll gladly (as soon as he shall be informed of it) lay hold on the Invalidity of the former Contract, and think himself under no Obligation to renew it. In this Case therefore, because it is necessary she should some way or other be relieved, it seems to be lawful for her to follow that *little Probability* which says, that *her* consent may be sufficient to render the former Contract valid. For this Decision is made in behalf of an innocent Marriage, and in favour of the Legitimation of their Children, and will prevent much Evil and Misery to them both.

RULE

RULE IX.

Multitude of Authors is not ever the most probable Inducement, nor doth it in all Cases make a safe and probable Conscience.

This Rule is true, and is to be observed in the following Cases. 1. When there is a strong, or highly *probable* Reason against the common Opinion, then the *common* Opinion is not the more *probable*. For a *Reason* is an internal Motive directly fitted to the Conscience; but *humane Authority*, or the *Citation* of Authors, is but an *accidental* and *external* Motive, and designed to supply the Defect of *Reasons*. 2. So, an Opinion, which is espoused by a whole Clergy, but founded only upon the Veneration they have for a Man of their own Order, who first advanced it; is to be reckoned as the Opinion but of *one* Man. This is plainly true of those, who take up an Opinion, without considering it; and if they have considered it, their *Reasons* are to weigh with us, more than their *Authority*. 3. We are not to rely upon the Authority of any number of Men, who take up an Opinion with a visible view to their Interest. The Followers of *Calvin* and *Beza* have generally taught, when they have been in Power, that it is lawful to put Hereticks,

Hereticks, or obstinate Persons, to Death ; yet none who live under them, can justly defer to their Authority in this Point, because they never assert this in those Places where they are not in Power. 4. Under these Restrictions, indeed, the Multitude of Authors hath a presumptive Authority, so far as there is no Reason against the Thing, nor against the Men. It can never indeed make the Conscience *sure* ; but it may be *innocent*, because it is *probable* ; whereas, he that relies upon Authority only, is governed by Chance.

When a Man of Sense and Learning is said to be determined by the Authority of Writers ; it might, with greater Propriety, be said, that it was the *Reasons*, rather than the *Numbers* of those Men, which persuaded him. So that *Authority*, in this Sense, seems calculated only for the weak and ignorant : And the ignorant are so little able to chuse their *Authority*, that, I think, they had better, in the main, submit to That they are already under, than bewilder themselves in the vain Pursuit of another.

The most proper way to conduct the Ignorant in their Cases of Conscience, in which themselves have no Skill, is This ; to observe to them, that they must believe *One*, and if they have a better way to proceed in, let them pursue it : If they have not, this they

they are in, is certainly safe, because it is their best; and no Man is obliged to make use of better than he hath. They are, indeed, to make it as good as they can by enquiry, by Prayers, by innocent and honest Designs; for these are most likely to secure our Way, by Means of God's Providing. Nor can there be any Irregularity in this, because it is the best Obedience that can be paid by weak Minds; and there is no Danger in it, because the Piety and Prayers of the Man, will draw down God's Blessing upon his innocent well-meaning Soul.

But here it may be asked, how shall the ignorant and vulgar People proceed in such Cases, where their Teachers are divided?

1. I answer, that in the main, it is better to disregard their Divisions, and follow them only in those things, wherein they agree: But if they *must* declare on one side, let them engage in that, which they take to be the *safest*, or the most *pious*, the most *charitable*, and the most *useful*; that so by collateral Considerations, they may determine themselves in That, which, by the Authority, seems equal, and indeterminable.
2. The Authority of one wise and good Man, or one so reputed, is a *probable* Argument and sufficient Guide to ignorant Men in doubtful Matters, where there is no clear or known Revelation to the contrary: And
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we are not to dispute whether the Argument be good, or no, when we are sure it is his best. 3. But if different Men equally Wise and Good, think differently upon the Question, and the Enquirer is obliged to be determined by one; he is rather to follow his own Parish Priest, or his Bishop, than a Stranger who shall be equal to them in all other Respects, only that he bears no relation to the Enquirer, as a Pastor.

R U L E X.

In following the Authority of Men, no Rule can be antecedently given for the Choice of the Persons; but the Choice is wholly to be conducted by Prudence, and according to the Subject Matter.

The *Ancients* are more *venerable*; but perhaps the *Moderns* are more *knowing*. Antiquity taught the *Millenary* Opinion; that Infants were to partake of the holy Eucharist; and that, without Baptism, they were condemned to the Flames of Hell; that Angels were corporeal; with many other Opinions, which we know not how to admit. So that no Company of Men will now assert, that the Fathers, in all Cases, are rather to be followed than their Successors. In many Points, indeed, they undoubtedly

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had the Advantage of the *Moderns*, as they lived nearer the Apostolick Times, had surer and more firm Traditions, and were even *Witnesses* of many important Facts, about which the Christian World is now so wretchedly divided. Their Piety was more warm, and their Manners more uncorrupt: But we do not find that their Knowledge was more extensive; unless in regard to Facts relating to the Discipline, Government, and usages of the first Ages of the Church. Several of their Opinions are demonstrably false, and their Interpretations of many parts of Scripture, erroneous.

For these Reasons, he who would submit to the Authority of any denomination of Men, will behave more regularly, if he considers, first, the Nature of the Subject Matter, and then yield to the Authority of Those, who appear to him to be best able to judge of it. Indeed, the *Analogy of Faith*, the *Piety of a Proposition*, the *Safety and Innocency of it*, are right Measures to guess at an Article; but *These* are more intrinsecal; and sometimes so difficult, that they cannot be duly attended to, but by Those who can judge of Reason, and so are under a less Necessity of being guided by Authority. But for Those, who are wholly to be led by the Power and Opinion of their Guide; besides what hath been already advised, the Faculty
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and Profession of Men is to be regarded. We are to rely upon *Divines* in Things relating to their Profession, and upon *Lawyers* in Matters of Law.

RULE XI.

He that hath given Assent to one part of a probable Opinion, may lawfully depose that Conscience, and that Opinion, upon Confidence of the Sentence of another.

A Priest being sent for to do the last Offices to a dying Man, finds him speechless, but, in dumb signs, shewing the greatest Marks of Penitence. The Priest is at a loss to know, whether he ought to absolve a Man, who gave him only such Marks of Repentance as might possibly arise from another Cause. At last he consents to the negative Opinion as *probable*: Yet finding some Men of Learning dissented from him; he does not act in Consequence of his own Opinion, but in Compliance to theirs, absolves the sick Man. This Behaviour of his was condemned upon a supposition, that to act against his *Opinion*, was to act against his *Conscience*.

But it should be considered, that the Priest doth not directly consent to that part of the Question, which he hath chosen, as that upon which he will finally rely; but he agrees

to it only as a thing that is *probable*. And because he believes it only *probable*, and consequently knows he may possibly be mistaken; he may as well take that part of the *Probability*, which arises from his Regard to the Reputation and Abilities of other Men, as the other, which proceeded from Considerations of such Arguments, as did but lightly and gently move his Assent. For he may prudently suppose, that in what he is not *certainly* persuaded, another may possibly be wiser, may know more, and judge better.

But this Rule is to be understood with these Cautions. 1. That, as far as we can judge, the Man on whom we rely, be neither ignorant, nor vicious, but a proper Person to direct others. 2. That we do not rely on others, out of Idleness, or Impatience to enquire our selves. 3. That we do not take the other's Opinion; only because it serves our Interest, or our Humour. 4. And that we are sure we receive his Opinion, only against a probable *Persuasion* of our own, and not against a *sure Conscience*.

RULE

R U L E XII.

He that enquires of several Doctors, until he find one answering according to his Mind, cannot by that enquiry make his Conscience safe; but according to the Subject Matter, and other Circumstances, he may.

St. Paul observes the Folly of such Men, who heap up Teachers of their own, that is, such as teach what they desire, and declare Things to be lawful, which God never made so: And he who hath already taken up an Opinion, who is in love with it, and longs to be further encouraged in it, is not, ordinarily, the more secure for the Opinion of his Guide; for it was not his Guide who procured his Assent, but a Resolution which he had fixed before. In this Case, to procure the Opinion of a learned Man, is no better than a disingenuous Artifice to quiet the Spirit; for it can be of no moment to the Honesty of the Persuasion, or Conscience.

Not but that there are some Cases, in which this Change of Guides and Enquiries, may not be only innocent, but likewise the means of a just Confidence. As, 1. When the Enquirer hath very probable Reasons for

Opinion, and remains really unsatisfied with the Answers of those he first applied to.

2. When he is really indifferent to any part that may appear true, but it happens that nothing appears true to him, but what he hath already entertained. 4. And when the Design of the Enquirer is to be strengthened in any Virtue, or pious Condition of Life; he may take his Encouragement and Determination from him whom he chuses for his Opinion's sake, and a Conformity to his own pious Intentions.

RULE XIII.

He that is asked concerning a Case, that is on either side probable, may answer against his own Opinion, if the contrary be probable and more safe, or more expedient and favourable.

And the Reason is, because he who holds an Opinion, which himself believes to be only *probable*, knows, that he is under no *Necessity* of recommending it to another, because it may not be true: And he may rather advise the contrary to *another*, than follow it *himself*, because the *other* is hitherto indifferent, but *himself* is already determined. But why he should rather do so than recommend his own Opinion, there is
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no Reason in the *Thing*, but something relating to the *Person* who enquires. As, if the Opinion which he entertains not, be visibly more agreeable to the other's Circumstances and Necessities, and may innocently be recommended, in order to redress them.

R U L E XIV.

When the Guide of Souls is of a different Opinion from his Charge or Penitent, he is not bound to exact Conformity to his own Opinion, which is but probable, but may proceed according to the Conscience of the Penitent.

I mean; supposing the Opinion of the Penitent to be *probable*, and that he did the *Action conscientiously*, as it appeared to him, worthy and commendable; he is not then to be troubled with what is pass'd; lest that be changed into a *scruple* which was no *Sin*, and the *Guide judge unrighteous Judgment*, and prescribe Penitence for That, for which God will never call him to account: For in this Case it is, that no Man can be a *judge of another Man's Conscience*. But if the Opinion of the Penitent be evidently false, or does encourage, or occasionally minister to Sin; the Guide of his Soul must, upon no account, comply with it.

RULE XV.

The Sentence and Arbitrement of a prudent and good Man, though it be of it self but probable, yet is more than a probable Warranty to Actions otherwise undeterminable.

If two Cases that seem *equally probable*, have in them different Degrees of *safety*; it is certain that the *safest* is to be chosen; but it frequently happens, that the Opinion of a good Man is our best Rule to judge of that *safety*. When *Piety* and *Religion*, for Instance, are in Competition for our present Attendance, sometimes we are to prefer *Piety to our Parents*; at other times, to perform an Act of Religion; but what Proportion of our Services is to be allowed to each, is, according as a wise and good Man shall determine.

CHAP.

C H A P. V.

Of a doubtful Conscience.

R U L E I.

A doubtful Conscience assents to neither side of the Question, and brings no direct Obligation.

C O N S C I E N C E cannot directly and properly be called *Conscience*, when its Operations are not *positive* and *practical*: And because it binds to Obedience by the determination of the *Understanding*, and the assent of the *Will*; when the *Understanding* is not determined, nor the *Will* inclined, there can no Action follow.

There may here indeed be exerted a *reflex* Act of *Conscience* and *Understanding*; for when we consider that our Conscience is *doubtful*, and not to be determined, we are obliged to suspend our Action: But this is the Act of a *right*, not of a *doubtful* Conscience; because, in this Point, we are *certain, right, and determined*. So that a *doubtful* Conscience, in this Sense, is improperly called *Conscience*, and cannot be a direct *Rule* of humane Actions.

However, there are some indirect and collateral Obligations laid upon a Man in this unhappy

unhappy State. To the better understanding of which, we are to consider *Doubts*, as relating either to *Law*, or *Matters of Fact*; that is, whether such a Thing be *lawful*? Or whether I did such an Action, and am thereby bound to Restitution or Repentance? Moreover, *Doubts* may be considered as *Negative*, or *Positive*, that is, they remain upon us because we have no way to determine the Understanding. The *negative Doubt* consists in the absolute Want of Arguments; but the positive Doubt, not in the Want of Arguments, but in the Equality and Indifference of them. Sometimes also a Doubt is seated only in the Understanding, without any other Effect than the Trouble and Confusion of the Mind; and then for method's sake, and the better understanding the Rules of Practice, it is called a *speculative Doubt*. But when that Doubt passeth on to the *Conscience*, and affecteth the Action, so as to obstruct it, or render it criminal, then it is called a *practical Doubt*.

From these Distinctions, the following Rules will appear useful in order to Practice.

RULE

RULE II.

A negative Doubt neither binds to Action, nor Enquiry, nor Repentance; but it binds only to Caution and Observance.

1. *It binds not to Action.* For whatsoever is done in Consequence of a *doubting Conscience*, that is, without a full Persuasion that it is lawful to do it, is a Sin. For if we do it with a doubting Conscience, we do it without our *Rule*, which is the *Dictate* of our Conscience: For since no Action is indifferent as to *lawful* and *unlawful*, tho' it may be, as to *Bad and Good*; to do it without our *Rule* (of its being *lawful* and *permitted*) is to act against it. Besides; he who does not know whether it be lawful or no, if he yet does it, may perform an Action displeasing to God, and which, for all he knows, God may have forbidden. Nor, 2. *Does it bind to Enquiry*; because there is no possibility of coming to a Resolution of the Question, for want of Arguments. Nor, 3. *Does it bind to Repentance*: For no Obligation can arise from that which is not, or which we cannot possibly know. But, 4. *It does bind to Caution and Observance*: Every thing does so, where we suspect there either is, or may be any Danger; and therefore

therefore for This here needs no peculiar Reason, any further, than that, as the *Negative Doubt* may approach towards a *Probability*, that the Matter is, as we doubt; the *Observance* should be more strict, and the *Caution* more secure, as it generally happens in *suspicion*, which is but the Image of doubting.

R U L E III.

A privative Doubt cannot of it self hinder a Man from acting what he is moved to by an extrinsic Argument, or Inducement, that is in it self prudent or innocent.

And the Reason is, because there being no Law against it, by which the Man is actually ruled, and no Reason appearing in opposition to it, (which is always the Case of a *privative Doubt*) that is, there being no intrinsecal dissuasive, the Conscience here is left to the Conduct of such as are extrinsecal. For all Actions are indifferent, till they are restrained by some Law superinduced upon them; which Law was never made plain to me, if, *inculpably*, I have no notice of it in my Conscience. But here we are to take care, that, in entering upon Actions against which we know no Law or Reason, we be not *sudden, violent, or careless*,
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like an Horse rushing blindly into the Battle: Because they may possibly, tho' we do not see it, affect the Interest of another Person.

R U L E IV.

In doubts of Right, or Law, we are always bound to enquire; but in doubts of Fact, not always.

Ignorance of our Duty is generally a Sin; and it is certain, that he who perceives himself in a state of Danger, and refuses to enquire after his Duty, is plainly unwilling to do it. In Matters of *Fact*, we are bound, *ordinarily*, to enquire, because we ought to be well acquainted with the State of our Consciences, and what Obligations we are under to Restitution or Repentance.

In some Cases, indeed, it may be safer to trust the Event of Things to a general Repentance, than that the Conscience of some Men should be tempted with a particular Notice of the Fact. This respects those Men, particularly, whose Spirits are more languid, their Minds softer, and more apt to give way to dismal, or melancholy Impressions. The Case is this; a Gentleman having been lately recovered from a long Melancholy he had been under, is prevailed upon to take
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the Diversion of Shooting with some Friends. At a general Discharge of their Arrows, a Man happened to be kill'd; but whether by his Arrow, or no, he knew not, and was advised not to enquire. The Advice was certainly warrantable; for the knowledge of it could not have done him so much Good, as it would have done him Hurt: And it was better to suffer him to remain in a *doubting*, than a *despairing* Conscience, as his in all likelihood, would have been, notwithstanding the Innocency of the Murder.

But in Matters of *Right*, or *Duty*, enquiry is always to be made, when the Question is about the *Lawfulness* or *Unlawfulness* of what is to be done; because we enter upon Danger, neglect our own safety, and disregard our Duty, our Conscience, and our God; if we do not diligently examine into the Action we are about to do, whether it be *good* or *bad*. But when the Act is done, and done under an actual Persuasion, that it was lawful to do it; the Conscience of that Person ought not to be disturbed, unless in order to prevent other ill Consequences.

R U L E V.

In Doubts, the safer part is to be chosen.

This Rule is to be understood to be *good* Advice, but not *necessary* in all Cases. For
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when the *contrary* is the more *probable* Opinion, but *This* the more safe; to do *This*, is generally an effect of *Piety*, and a *strong Inclination* to do Good; but it is sometimes the effect too, of a *weak Understanding*, such a one as is too much inclined to *scruple*, who hardly dares trust the Truth of his Proposition, or God with his Soul, in the Pursuit of it.

Thus, in the Case of Justice, it is the *surer* way, in many Cases, to restore; and is, at least, a Mark of a very honest Mind; which to secure an *eternal*, will give up a *temporal* Interest. But if to *restore*, will undo a Man, and it be *probable* that he is not bound to do it; then, tho' Restitution be the *safer* way, it certainly is not necessary; and there is less Reason still for making Restitution, if the Interest of a third Person, as of Wife or Children, be concerned in the Question. For in this Case, one Duty would be certainly omitted, for the securing another, which is by no means certain.

But in the Application of this Rule, these Measures are principally to be observed.
 I. If *the Doubt be unequal, and the Danger equal*; we are to resolve on that part, where there is less cause of Doubt apprehended: As, if I have but wherewith to relieve *One* necessitous Man, and yet behold *Two* ready to perish; the Danger is *equal*:
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But One is my Friend, the Other a Stranger to me; in this Case the *Doubt* 'is *unequal*, and I ought certainly to prefer the Interest of my Friend. 2. If the *Danger be unequal, and the Doubt equal*; Considerations of *safety* may here determine our Resolution. 3. If *the Doubt be unequal, and the Danger unequal*; there we must take the least Danger, tho' with the *less Probability*; because no degree of Sin ought to be consented to. As, when a Man doubts whether it be lawful, by an officious Lie, to save a Friend from Murderers; as long as the Doubt remains, he is rather to run the hazard of committing an uncertain Sin, in telling an officious Lie, than venture the committing a greater Sin (as it may happen to be) in giving up his Friend to the Assassins. But *if on one side only there be Danger, but on both sides a Doubt*; that side, no doubt, is to be chosen where there is no Danger, unless the Doubt, on one side, be inconsiderable, and the other of greater moment.

RULE VI.

It is lawful for the Conscience to proceed to Action, against a Doubt that is merely speculative.

It is very easy for a Man who imagines strongly, and talks well, by weak Arguments
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to embarrass the Minds of weak Men ; and create a *speculative Doubt*, which shall destroy all the *certainty of Evidence* they had before. But if these Men were not to stick to their own conclusion, in opposition to any Objections that may be artfully raised ; they might distrust every thing, and be confident in nothing ; might be prevailed upon by an Heretick to change *their* Persuasion for *his*, and give up the most important Points of their Faith. Doubts of this Nature may, by an artful Adversary, be raised even in the Minds of Men of the best Sense ; but then, their good Sense directs them *not instantly to change their Practice*, but to enquire further. For if, after every such *Doubt*, their *Practice* must be insecure or criminal, they might be forced to a Lightness of Mind, greater than that of the *Egyptian* Priests. Some Men who cannot dispute well, can believe well, and reasonably ; and therefore their Faith ought not to be changed by such Arguments, as are never wanting to sophistical Wits. In these Cases, the *Practice* is made secure, by a *collateral Light* ; and he is kept from change by *Reputation*, and Custom, by *the dread of Scandal*, and the *Sanction of Laws*, and by some other *indirect* Instruments of Determination, which although they cannot *shew the Weakness of the contrary Arguments*, yet they ought to

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outweigh the Doubt, and guide the Will, and, in such Cases, determine the Conscience.

There is *nothing but a weak Man may be made to doubt of*; but he is not to alter his *Practice*, till he is sure he has been deceived. For if the *speculative doubting Conscience* should always prevail in *Practice*; the *weak and ignorant* might be abused and made miserable in *all Things*, and the most *knowing*, in *very many*.

RULE VII.

Every Dictate and Judgment of the Conscience, tho' it be little, and less material, is sufficient, and may be made use of for the Deposition of a Doubt.

Every little Reason is not sufficient to direct the Will, or to make an *honest* or *probable* Conscience. But in a *doubting* Conscience, where there appears to be great Reasons on each side, and the Conscience, not able to determine between them, remains like a Needle exactly placed between two Loadstones, which inclines so equally to *both*, that it can go to *neither* of them; there, any little Reason which may intervene, may be suffered to give a Determination. For, in the *doubting* Conscience, the immediate
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Case is not to *chuse* right ; for That is the Remedy in an *erring* Conscience ; but when *Doubt*, or *Suspence* is the Evil to be removed, the proper Remedy is *Determination*.

But the Cautions chiefly to be observed in the use of this Rule, are, that when the Judgment of a Man is plainly weak, and not to be trusted ; his Doubt is rather to be laid aside, by another Man who shall be thought able to lead him. The Sacredness of Conscience is, as little as possible, to be conducted by *Weakness* and *Contingency*. Or, if the *doubting* Person be naturally *light*, and *inconsistent*, let him take the more care, that he does not speedily act, what, in consequence of his own Temper, he had lightly determined upon. We are likewise to take care, that we do not mistake *Fear* for *Doubt* : For sometimes a *Doubt* happens to be only in the *Will* ; and the weaker the *Judgment* is, the stronger, generally, is the *Fear*. When therefore, as in this Case it generally happens, the *Doubt* is such, that we neither know, nor can give any tolerable Reason for it, but is only an *unreasonable Trouble* ; it ought directly to be laid aside.

RULE VIII.

*When two Precepts contrary to each other,
meet together about the same Question,
that is to be preferred which binds most.*

He who, having sworn to do a wicked Action, breaks his Oath; offends God by putting his sacred Name to a Lie and a Villany: But he who observes the Oath he hath thus made, despises the Commands of God, hurts his Neighbour, and destroys himself. Now there being worse Evils on this side, than on the other; of the two, we are to avoid *This*. For if *all Evil* is to be avoided, *all the Degrees* of it are to be avoided likewise; and where we cannot avoid as much as we *should*, we are to avoid as much as we *can*. The *lesser Evil*, in respect of the *greater*, is to be esteemed a sort of *Good*; for the lesser Evil is rather to be chosen than the greater, and what is, in any sense, *more eligible*, is, in some sense, *Good*; and that which is more eligible, is, of the two, the greater Good.

But it is somewhat harder to come to a Resolution upon this Case, when it relates to another Person. As if it should be demanded, whether it be lawful, in order to take a Man off from greater Sins, to *advise*
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him to a lesser Sin? The Case is this: A certain wanton young Man falls into Adulteries and unnatural Lusts. His Friend exhorts him to leave those horrible Vices; and if he must indulge his Lust, he had better confine himself to simple Fornication. Now whether his Friend is right in giving this Advice, is properly the Question? And the Reason of doubting it, is this; that he who advises Evil, is guilty of the Sin which he recommends.

To this it may be answered; that in the Case before us, Sin is so far from being countenanced, that it is reduced to as small a Proportion, and as near to an Extirpation, as the Temper and Resolution of the vicious Man will, at present; admit; and it is from an hatred to Sin, that this less pernicious way is propounded. For where the Inclination of a Man is certainly known, and his Resolution to indulge it, cannot be overcome; to advise him to a less Instance of Guilt, is certainly the best Advice we can give him. It is indeed a sad Necessity we are here reduced to; but we cannot help it: The lesser Evil is to be endured till it may be remedied, with a remedy that is not worse than the Disease.

Upon this occasion, it may not be amiss to enquire into the Obligations of Women married to adulterous Husbands; and to examine

mine, whether it be lawful for a Wife, who would fain live in some Degree of Comfort, to connive at her Husband's stolen Pleasures, and suffer him quietly to enjoy his Folly? And what is the Woman's Duty, or her most prudent Course, and manner of Deportment?

St. *Jerom*, St. *Chrysostom*, with others of great Reputation in the Church of God, absolutely condemn it as unlawful, for a Man or Woman to live with either Husband or Wife respectively, if either of them be notoriously guilty of Adultery. But, I believe it may be certainly shewn, that it is not barely lawful, but that it may be very pious and charitable, for a Wife still to cohabit with an adulterous Husband. That it is *lawful*, is certain; because there is no Prohibition by a divine Command, no natural Turpitude in it: And that he, or she, respectively, may still live with the *sinning* Person; needs no other Proof than this, that the *innocent*, being the *injured* Person, may, if he pleases, forgive the Injury. And that it may be *pious* and *charitable* so to do, is certain on the same account on which it may be reckoned Piety and Charity, to suffer Injuries, to be patient and long suffering, to exhort, to bring a Sinner to Repentance, and to save a wicked Man *from the Evil of his Way*.

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But our Behaviour herein is to be guided by the following Measures.

1. The innocent Person must not be bound to do This, because the Union being dissolved, the Criminal hath lost his Right; and therefore, if the other use their own Liberty, they do no Wrong. 2. The innocent Person may lawfully retain the Criminal, tho' he or she have no other view 'in it, than the Love of the Person, or any other Thing, that is in it self lawful and honest. 3. This Cohabitation may last as long as there is any hopes of Repentance; which may be endeavoured to be brought about by all the means which are put into Hands of the Innocent, by the Disorders of the Guilty; and by which the Offender can be made better, and will not be made worse. 4. But if there be no hopes of Repentance, yet still, the innocent Person may use his own Right; because that may possibly happen, which we have ceased to hope for. *How knowest thou, O Woman, says St. Paul, whether thou shalt gain thy Husband?* 5. Indeed, where the retaining the Adulterers hath been actually scandalous, the Church hath been more cautious in her Remissions of this kind, and hath ordered the innocent Person to put the guilty Woman away. And therefore the Fathers, in the Council of *Eliberis*, refused to give the Sacrament to a Clergyman, even at

the last; unless he immediately dismissed his adulterous Wife. But this was rather a matter of Decency, as he was a Clergyman, than of indispensable Necessity. 6. The innocent Person, must not directly, by any Compliance, Cohabitation, or Indulgence, countenance, or encourage, the Impurity of the offending Person; for nothing can make it lawful to promote a Vice, or to be any way directly concerned in the helping it forward. This were to be a Bawd to the uncleanness of that Person, whom, with our Lives, we should save from that Damnation, if we could. 7. But if Compliance and Cohabitation should, accidentally, render the guilty Person worse, against the Study and Design of the Innocent; neither he, nor she is in that Case obliged to give up their Right, or the Advantages they find in Cohabitation. It is certainly lawful to permit an Evil which I cannot help, whilst, by that Permission, I preserve my own Rights, or keep off the Wrongs that would otherwise befall me: But it is by no means lawful, for any Interest, either Spiritual or Temporal, to do an Evil, or set it directly forward.

Thus some Governments tolerate Fornication, and the publick Stews, to prevent the horrid Consequences of the Lusts of their young Men; which, because they cannot cure, they endeavour by this means to lessen
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and divert: And tho' there be a great fault in such Governments, when many Vices which might be subdued, are introduced and supposed necessary; yet, so far as the View is considered, if they were not avoidable, or were incurable by the Severity of Laws, by the Force of Reason, or the Power of Religion; it were then the only Charity that were left. But yet I cannot but think, that this Permission ought, upon no account, to have been allowed of. For it is a Snare to many who are under no such Necessities; it is a Reproach to the Laws and Religion of a Country, where such vile Nests of Impurity are suffered; and the Necessity it self is but fancied, and introduced by Custom and Example: Or if there were a real Necessity; God, who best knows how to provide for the Needs of Mankind, hath appointed Marriage for a Remedy. But if any one, from the Intemperate Lusts of some *Italians*, should urge the Insufficiency of *Marriage* to this End, since *Fornication* is found not to be a Remedy; in this Case, I think, the Wheel, or the Gallies, hard Labour, or the Mines, should be applied to restrain the horrible Luxury.

But tho' Permissions of greater or less Uncleanesses are not to be made by publick Authority; yet there may be particular Necessities in single Instances, for which no Remedy

medy can possibly be provided; and then it may be lawful to divert the Sin upon a less Matter, when it cannot be taken off entirely. Thus, to save the Strangers from the Violation intended to them, and to keep the Citizens from breaking the Laws of Nature and Hospitality, righteous Lot offered his Daughters to the impure *Sodomites*.

But because This depends upon this Principle, that *the lesser Evil, in respect of the greater, hath the Nature of Good*, and therefore is to be preferred; here it may be asked, whether This can be lawful, or is not acting in opposition to the Apostle's Rule, that *Evil is not to be done, that Good may come of it*? This Enquiry may have great uses in the whole Life of Man, and therefore may not be unworthy of a stricter Examination.

As to the present Rule, it is certain, that this Permission is not a *doing Evil, that Good may come of it*. 1. Because no Evil is at all permitted, when all Evil can be avoided. 2. No Man is to apply this Rule to his own Person; because he ought to have sufficient Reason and Strength of Mind, to oblige him to decline any Instance of Sin, about which he, at any time, hesitates. 3. And it is only to be advised to Others, by those who abominate all Sin, and have neither Pleasure, nor Interest in any. 4. Nor is it so properly a giving

giving leave to Sin, as the obstructing as much Sin as is possible. So that tho' it be not lawful to do Evil to a good End; yet it is lawful to suffer a lesser Evil, if it be absolutely necessary to avoid a greater, and to make the best of it that we can.

But as to the Point it self; no doubt, it is wholly unlawful *to do Evil to a good End*. St. Paul, with some Warmth, calls it *Slander*, when it was affirmed to be his Opinion, that it was *lawful to do Evil, that Good may come*. But how clear and certain soever this may be; yet since all Men, some time or other, *do Evil that Good may come*; I shall here observe to you the Matter of Fact, and endeavour to lay before you the proper Measures of the Proposition.

If we look for Instances in Scripture, we shall find that *Elias*, to recover the People from Idolatry, appointed a Sacrifice to *Baal*, and got the Priests to invoke the Idol; which of it self was simply and absolutely Evil. And when *David* and his Soldiers were oppressed with Hunger, they eat the *Shew Bread, which it was not lawful, but for the Priests, to eat*. Thus Drunkenness, and even Pollution, have been considered as lawful, when they were used only for the recovery of Health. A Man is presumed *lawfully* to kill another, when he does it in defence of his own Life; and yet, this is certainly

tainly *doing Evil, that Good may come.*

Thus all Princes think they may lawfully enter into a War, in order to prevent the Dangers of an exorbitant Power in their Neighbours; which is no better than doing wrong, to prevent Mischief. Who will not tell a Lie to preserve the Life of his Friend, of his Child, or of a good and brave Man? So, a Judge exacts Oaths from the contrary Parties, tho' he knows the one must be perjured; but he has ordinarily no other way of coming at Truth, or keeping up the Solemnities of Law. Thus, lastly, we all apply to Tyrants and Usurpers for a Redress of Injuries: But if this be not *doing Evil, that Good may come of it*; then it is not Evil to prevail upon another to do an Act of *usurped Power*, or to own a Power which destroys That, to which we are bound by *the Oath of God.*

I do not give these Instances, in opposition to the Apostle's Rule; but to shew, that a great part of Mankind either act against it when they least think of it; or that some Things which seem to be Evil, are not Evil; and that I may lay before you the Measures of these Things, and fix the Case of Conscience upon its proper Grounds.

He who makes use of the Matter of a Sin already prepared, to which he gives no consent, and which he cannot help; *doth not do*

do Evil that Good may come. Thus *Elias* called upon the Priests of *Baal* to do what they were accustomed to do, that They might never do so again. He was not the Cause of a *Sin*, but only of those Circumstances of it, that it be done *here* and *now*; which therefore cannot be against the Apostle's Rule.

So, when we apply for Justice to the Power of a Tyrant, he will govern whether we will or no, and the Sin will be acted, and persisted in upon his own account; but when the evil matter is thus made ready, we may reap what Good we can from it. When an usurped Power is apt either to Justice, or Injustice, and we have no other way of procuring Justice, we may procure Justice from it, and we thereby do Good, without strengthening, or co-operating with the Evil: We only here determine an *indifferent* Agent to the *better* Part. The manner of *getting* Power, is wholly extrinsic to the *Ministration* of it: *That* is altogether the Fault of the Usurper; but *This*, which is our own Act, is wholly innocent. We only, in this Case, *desire* a Good, and, in order to it, *use* the evil Matter, which is of another's procuring. Besides, in Actions, the *material* part may be distinguished from the *formal*, or, the *Act* from the *Pleasure* arising from it. *That* may be
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altogether *indifferent*, whilst *This* shall be wholly *criminal*. He who, by the Advice of his Physicians, drinks till he is Sick, and Vomits, gives none of his Affection to the Pleasure of any thing which is forbidden; but takes it, as he takes a nauseous Draught, which would have the same Effect with Drink. But when the *Act* cannot be performed without a Sense of Pleasure, which is forbidden, then the *End* cannot sanctify it. And therefore, tho' to drink much for the Recovery of Health, may be lawful; yet I cannot come into the Opinion of those, who, for the same End, assert the other Instance of *Pollution*, to be likewise lawful; because *That* cannot be effected without a Sense of Pleasure wholly unlawful. And the same Objection will hold against drinking for our Health, if we find the Excess administers to us any Pleasure.

But, in short, the best Rule, for guiding and relieving the Mind of Man in the Doubts, which the various Accidents, Emergencies, Difficulties, and Necessities of his Condition, raise in it, is this: That whatsoever is forbidden by the Law, under which we stand, and considered in it self, is found Evil; whatsoever is certainly forbidden, not for any outward accidental Reasons, but for its natural and essential Repugnance to Reason and the Law of God; *That* may not be done,

done, or brought about for any End whatsoever.

CHAP. VI.

Of the scrupulous Conscience.

RULE I.

A Scruple is a great Trouble of Mind, proceeding from a little Motive, and a great Indisposition; by which the Conscience, tho' sufficiently determined by proper Arguments, dares not proceed to Action; or if it do, it cannot rest.

THAT it is a great Trouble, daily Experience may convince us. Some Persons dare not eat for fear of Gluttony; they fear they shall sleep too much, and That robs them of their necessary Rest, troubles their Heads more, and then their Scruples increase. They repent when they have not sinned, and accuse themselves when they are not guilty; their very Virtues make them tremble, and they are afraid even in Innocence. They would by no means Sin, and yet know not how to avoid it. So that *Scruple*, in the restrained Sense of the word

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in which I use it, is properly an Inquietude and Restlessness of Mind in Things done, or to be done, after the Doubts of Conscience are determined and ended.

Very often it hath no Reason at all for its Inducement, but arises from an Indisposition of Body, Pusillanimity, Melancholy, a troubled Brain, Fear, Ignorance, false Notions of Things, strong Imagination, and weak Judgment; from any thing, in short, that can turn aside Reason into Irresolution. And therefore, this Disorder is most observable in Women and monastick Persons, in the sickly and timorous; and is often procured, by Excess in religious Exercises, indiscreet Fastings, by over-much Austerity, and too exact Discipline.

But because a *Scruple* is a Fear, or a light Reason against a sufficient Determination of the Understanding; it can oblige the Conscience to no other Work, than to get rid of the Trouble it receives from it. Which is to be done by the following Rules.

RULE

RULE II.

A Conscience sufficiently instructed by its proper Arguments of Persuasion, may without Sin proceed to Action against the Scruple, and its weaker Arguings, and stronger Tremblings.

Against a *doubting* Conscience, a Man may not act, but against a *scrupulous* Conscience, he may. For a *scrupulous* Conscience does not take away the proper Determination of the Understanding. A Man's own Reason will easily convince him, that if, at the stated Times, he fasts such a number of Hours, and finds that the Abstemiousness impairs his Health, or endangers his Life; he may reasonably confine his Fast to a less number of Hours: But he is afraid to do That, which others, who are not under the same Necessity, refuse to do. This Man discovers his *Weakness* indeed, but cannot lay aside his *Assent* to this Determination, that he may lawfully moderate his Abstinence, if it be necessary either to preserve, or restore the Health of his Body. To which we may add, that since Scruples do sometimes wholly disconcert the Mind, weaken the Body, make Religion a Burthen, and introduce upon the whole Man a weariness and inquietude

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tude of Spirit ; it cannot be criminal to put a stop to those terrible Evils, directly to throw away the scruples, and enter upon the Actions about which they were raised.

But this is to be admitted only when the *Scruple* is such, that it leaves the Conscience *practically* determined. For if the *Scruple* should so far prevail upon the Weakness of the Mind, as not to let it see the Force of those Reasons, which, had it been stronger, would have determined it ; the Conscience loses its Rule, and its Security, and is herein reduced to an *undiscerning, undetermined Faculty*.

R U L E III.

He that is troubled with Scruples, ought to rely upon the Judgment of a prudent Guide.

And the Reason is, because his own Understanding is troubled and distracted, tho' his Reason be never so clearly determined. And then he can but apply to the best Method of Cure, which, in his particular Case, is to be directed by an Understanding, which is equally determined, but not equally disordered, with his own.

RULE

RULE IV.

When a doubt is resolved in the entrance of an Action, we must judge of our Actions afterwards by the same Measures as before: For he that changes his Measures, turns his Doubt into a Scruple.

This is the Reason of this Rule; that which is sufficient for *Satisfaction* before, is sufficient for *Peace* afterwards. But to prevent any Scruples about our Actions, the surest way is to regulate them before we perform them, by these Cautions. 1. We are in the beginning to take care, that we do not mistake our Desires to do an Action, for a sufficient Warrant that we may do it. 2. We are not to be too easy in admitting every Argument to prove This or That Action lawful. For tho', in those Actions which relate to our eternal Interest, God demands no more of us, than to walk by the Measures of a *Man*; yet we do not perform our Duty, if we act by the irrational Measures of a *Child* or a *Fool*. 3. We are to consider the Question separately from our Interest; otherwise the Resolution upon it, cannot be either equitable or pure. But if more Arguments afterwards occur to us, than we were aware of in our first Enquiry; we are

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to remember that it was well enough at first, if it was *probable* enough; and for the rest, pray to God to accept you, if you did *well* and *wisely*, and to pardon you for what was done *amiss*, or *negligently*, or *imperfectly*.

R U L E V.

A scrupulous Conscience is to be cured by Remedies proper to the Disease, and Remedies proper to the Man.

The Remedies against the *Scruple*, are these. 1. Let the uneasy Man frequently consider the Goodness of God; that his Justice is Equity, and that his Judgments are in Mercy; and that he will never consider our *Unhappiness* as our *Sin*. 2. Let him be told, that all Laws, *Humane* and *Divine*, delight in kind and merciful Interpretations; and that God's *Goodness* will not let him *be extreme to mark what is done amiss*; for then, what Man could abide it? 3. Let him be put in Mind, that *Charity is the fulfilling of the Law*. He that proceeds according to the *Reason* of a Man, ought to have the *Confidence* of a Man: And This is *Charity*, that we behave *cautiously* and *wisely*, and follow the *best Directions* we can get. 4. The great Lines of Duty, by which God expects

expects we should regulate our Conduct, are drawn with the utmost Plainness and Evidence. But if every Mistake about Those which are less conspicuous, were to consign a Man over to the Wrath of God; very few of the whole humane Race, would have it in their Power, to recommend themselves to his Favour.

The properest Remedies for the *scrupulous Man*, are chiefly These. 1. Let him avoid all Excess in Mortifications and bodily Austerities; because by spoiling the Temper of the Body, they necessarily disorder the Mind, weaken its Capacity of *Reasoning*, and give it up wholly to the Power of its own *Imagination*. 2. Let him concern himself as little as possible, in such Questions as are rather nice and intricate, than important. They may embarrass the Understandings of the greatest Men, and afflict the Consciences of those who are weaker; but cannot either profit, or enlighten either of them. 3. Let him avoid those *Companies*, those *Employments*, and those *Books* from whence the Clouds arise. For the *scrupulous* are too easily disquieted, if they find themselves full short of those fine Images of Virtue, which some Men love to describe, that they may draw a *fine Picture*, which yet happens to be like no Body.

OF THE
RULE of CONSCIENCE.

Viz.

The LAWS DIVINE and HUMANE,
and all collateral Obligations.

The Second B O O K.

C H A P. I.

Of the Law of Nature in General.

R U L E I.

*The Law of Nature is the universal Law
of the World, or the Law of Mankind,
concerning common Needs to which we
are inclined by Nature, invited by Con-
sent, prompted by Reason, but is bound
upon us only by the Commands of God.*

THE Law of Nature, is an Expression
very common in the Mouths of Men.
They unanimously agree, that there is such
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a *material* Law, which, some way or other, is of the highest Obligation : But, there being no Digests or Tables of this Law, Men have not only differed about the Number of them, and even the Instances themselves, which have been given of it, but also about the Manner of proving and explaining Them. Whereas, if the Law of Nature were such a Thing as we generally suppose it, these Differences would be as strange and impossible, as that we should disagree about what is black, or what is yellow; or that we should enter into a Dispute about Rules to signify when we *desire*, when we *hope*, or when we *love*. But my present Design, is not to enter into large Disputes about it; but only to observe all that arises from it, which at all affects the Conscience, and the Obligations it may lay the Conscience under. And in order to proceed more regularly, I shall distinctly consider the Parts of the Definition.

The Law of Nature] *The Right of Nature*, and *the Law of Nature*, are usually confounded by Divines and Lawyers; but to very ill Purposes, to the throwing into Confusion and Disorder all the distinct Notices which might otherwise be taken from them. For *the Right of Nature* is no *Law*, neither is the *Law of Nature* a *natural Right*. *The Right of Nature* is a perfect, and uncontrolled Liberty of doing whatso-

ever may please or secure me. But by *Right* here, we are to understand, not a *legal*, or *positive*, but a *negative Right*, such a *Right* as a Man has without a *Law*. So, by the *Right of Nature*, I may *naturally* enjoy, what I *naturally* desire: And it were an Absurdity to say, that we are *naturally* restrained, from That to which we have a *natural* Tendency. But this is not the *Law of Nature*, nor can it lay us under any Obligations.

And indeed, *Nature* her self makes not a *Law*. *Justice*, I mean, *that universal Virtue* which contains all others within it, is a *Virtue* derived from something superinduced upon *Nature*. It is indeed thus far *natural*, as it is *reasonable*, and *perfective* of our *Nature*, and *introductive of well-being*: But *Nature alone* did no more *originally* enjoin it, than it made *matrimonial Chastity* a *natural Law*, which could not be before *Eve*, and yet, before her, our *Nature* was perfect. *Justice* is properly a *relative Virtue*, and supposes *Society* and *Compacts*; for no Man can be said to be *unjust* to himself, or to his own Goods which are absolutely in his own Power.

The Law of Nature is the universal Law of the World.] For there are some Laws of Nature which belong to all Men absolutely, who have any Notion of a God, or of good Manners;

Manners ; particularly, those which belong to *common Religion*. Indeed, with regard to the *Laws of Justice*, the Law of Nature is more restrained ; because, like *the Laws of Religion*, it does not only suppose the receiving Commands from God, but also some Intercourse with Man : And therefore, are more or less obligatory, in proportion to the different Force of the Obligations we receive from either. But the *Law* considered in its formal Reason, is the Law of all Mankind : For all Men are obliged by it in all Things.

The Law of Nature is the universal Law of the World, *concerning some common Necessities*.] This takes in the Matter and Body of *natural Laws*. Laws are for no other Reason so properly called *natural*, as for this, that they are Provisions made for the *natural Necessities* of Mankind : Such are, *to do to others, as we would have others do to us : To perform Covenants : To secure Messengers of Peace, and Arbitrators : To be grateful to our Benefactors : And the like*. Without these, a Man cannot receive any Good, nor be secured from Evil.

For this Reason, it is not difficult to distinguish These, or the like Laws, from other Laws ; because These proceed from the *same Principle*, are guarded by the *same Penalties*, written in the *same Tables*, are
equally

equally necessary, and do suppose something *superinduced upon our Nature*: And therefore, that these, and the like, are *natural Laws*, and the others are not, proceeds from their *Relation to the subject Matter*.

For in these, and the like Cases, when that which is *profitable* is made *just*; then That which is *natural*, becomes a *Law*; that is, when the *Law* tends to the same End, whether *Nature* tends; when the *Want* or the *Desire* is provided for by Obedience to a *Law*; then the *Law* is called *natural*. For since all just and good *Laws* are *profitable*; they take their several Denominations of *Civil*, *Religious*, or *Natural*, from their serving the Ends, either of the *Commonwealth*, of *Religion*, or of *Nature*.

The *Law of Nature* is the universal *Law* of the World, concerning some common Necessities, *to which we are inclined by Nature*.] That which is commonly called the *Law of Nature*, is nothing but a Consonancy to *natural Reason*, and *Being*. Some indeed take those only to be *natural Laws*, which relate to the common Appetites and Actions of Men and Brutes: But these are rather Indications of a common *Necessity*, *Instinct*, or *Inclination*, than of a *Law of Nature*. For Beasts enter upon the Action without a *Law*; and so might we, unless something, besides Nature, made it a *Law*
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to us. For *Nature*, or the *natural Appetites* in Them, and in Us, is just the same; but this *Desire*, being in Them, where a *Law* cannot be, therefore it may likewise be in us, without a Law. Beasts, with regard to their Actions, are no more capable of *Law*, than of *Reason*; their other Instincts and Inclinations, are no more than their Appetites to Meat, to which Nature indeed hath determined all, but laid no Obligations upon any. So that those Arguments so commonly drawn from the *Gratitude*, the *Fidelity*, the *Chastity* of Brutes, to persuade Men from the contrary Vices, are infinitely uncertain and fallacious. It might as well be said, that it is as much against the Law of Nature to be drunk, as to be incestuous; because Horses will drink no more than will just quench their Thirst.

This Distinction is the more necessary, because it may be of use against the Scruples of some Persons, in things wherein they ought to be confident. Several of the ancient Fathers, having observed, that Beasts once impregnated, abstain from Coition, have said, that they abstain in Consequence of the *Law of Nature*; but, only for this Reason, to impose upon Men a *Law* to do so too, would be very weak and dangerous. A Brute hath no Perception of *lawful* or *unlawful*, nor can he properly be said to do
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an Injury, because he is incapable of a Law. And if it be unreasonable, to charge the Actions of Beasts with any Obliquity, because they are not under the Conduct of Reason; it must be as absurd to make the Law of Nature, something common to them and us.

The Law of Nature is the universal Law of the World, concerning some common Necessities, to which we are inclined by Nature, *invited by Consent.*] The Consent of Nations, or, publick Fame, among All, or the wisest Nations, is a strong Character of Decency, or Indecency, and a probable Indication of the *Law of Nature*. It seems not to be a vain Noise when many Nations join their Voices in the Applause, or Detestation of an Action; but it rather looks, as if it were derived from some common Principle, which may be supposed to be either *Nature*, or *Contract*: And then, as in the first Case, they would be *reasonable*, so in the other, they are directly *obligatory*.

But yet, this Consent of Nations rather tells us, *what we may do*, than *what we must do*: It being more probable, that *all Nations will not consent to an unnatural Thing*, that is, will not *universally* do Violence to Nature; than that, *whatsoever they commonly act*, should be a necessary Law, and the Measures of *Nature*, or the Mark
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of her Obligations. And it is still more probable, that the consent of Nations may *more properly be used* as a *Corroborative* to a Persuasion, or a kind of Actions, than as the *first Motive*, or *Rule* of Them. For there are some Nations so wholly barbarous and unpolished, that, were we to lay any stress upon their Behaviour, we should be brought to bely and abuse the fair and generous Inclinations and Opinions of humane Nature. When therefore, we would argue from the *Law of Nations*, we are to take into the Account, only Those who are subject to Laws, the well-mannered people only.

And even here, we may discover an uncertainty in the Argument. For, to the *Greeks*, all others were *barbarous*. To the *Romans*, all were *barbarous*, but the *Greeks* and Themselves. And to the *Jews*, all but themselves were *Heathens*; which, with Them, signified much the same Thing, or perhaps, something worse. The Force of Custom likewise renders this Argument less conclusive. Prescription and long Practice made the *Egyptians* allow of Thefts; and the wiser *Lacedæmonians* a sober and severe People, instructed their Youth to steal, not to humour their Avarice, nor to enrich Themselves, but to encourage them to fight the better, by plundering well. And *Solinus* tells us of the *Garamantici*, a whole People, that they

Cap. 43.
knew

knew no Marriages; and therefore their Children, not being able to guess at their Fathers, owned their Mothers only. And indeed the old World did allow of such *vile* Practices, and contracted such base unworthy Customs, that they left it impossible to judge of the *Laws of Nature* by the *Consent of Nations*.

The Law of Nature is the universal Law of the World, concerning some common Necessities, to which we are inclined by Nature, invited by Consent, *prompted by Reason*.] Tully defines the Law of Nature to be *vera Ratio Naturæ congruens, diffusa in Omnes, constans, sempiterna*. Right Reason, which is consonant to Nature, and in every Man is constantly and perpetually the same, is the Law of Nature. But this is not exactly true. Right Reason is indeed the Instrument of using the Law of Nature, and is *That*, by which, in Conjunction with the Conscience, which is also Reason, we are determined to a Choice and Prosecution of it our selves, or to an Inclination of obeying the obliging Power. But *Reason* is not the *Law* it self, nor it's Measure. No Man can be sure that a Thing is a Law of Nature, because it appears to him highly reasonable; neither if it *were so indeed*, is it therefore a Law. For it is very *reasonable* that every Man should chuse his own Wife, because his
Interest

Interest is most nearly concerned in the Choice ; that every Man should *suffer*, as much Evil as he *does* ; that a Man be not punished for Evils he cannot help ; that every Man should suffer for his own Fault, and no Man, for the Crime of another : And yet these are not Laws in all places where they are reasonable.

But besides This, Reason varies like the Colours of a Dove's Neck. It looks otherwise to me, than to you, who do not view it in just the same Light that I do : And if we enquire after the Law of Nature by the Rules of our Reason ; our Determinations will be as uncertain as the Discourses of the Vulgar, or the Dreams of a disturbed Imagination. And, in Fact, very wise and great Men, as far as appears to us from their Writings, or their Characters, have believed the worst of Crimes to be innocent, and to have in them no *natural* Turpitude. *Theodorus* allowed of Sacrilege ; and so do Thousands, who at this Day call themselves *Christians*. *Plato* permitted Adultery and Community of Wives ; so likewise did *Socrates* and *Cato*. *Zeno* and *Chrysippus* approved of Incest ; so did the *Persians*. So that we may well say, with *Socrates* ; when we hear the word *Silver* or *Iron* pronounced, all who speak the same Language, understand the same thing by it ; but when we menti-

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on *Good* or *Evil*, we are immediately distracted into various Apprehensions, and not only differ from one another, but even from our selves.

But the last Clause of the Rule, will finish this whole Question. The Law of Nature is the universal Law of the World, concerning some common Necessities, to which we are inclined by Nature, invited by Consent, prompted by Reason, *bound upon us by the Command of God.*] When God made Man a free Agent, he naturally gave him a Power to do all he could desire: And all *That* is, *jus Naturale*, a *natural Right*, or Power. But the Law was superinduced upon this *Right*. For *Right* is properly *Liberty*, but *Law* is a *Fetter*. This is the *Right of Nature*, to be Free, subject to no Law, to do absolutely any thing that pleases us. Now whatsoever is a Law and Restraint to this *natural Right*, must be superinduced upon it. Nature her self would never incline to restrain it self, nor had any thing Power to do it, but God who is the Lord of Nature. The Law of Nature is a Copy of the Wisdom and Will of God, written in the Tables of our Minds: But those Tables, like *Moses's*, are broke, by letting them fall out of our Hands, on occasion of the evil Manners of the World: But God wrote them again for us, as he did for him, by his Spirit,
more

more or less, in all Ages of the World, by the Arts of Instruction, and secret Insinuation, and by all the ways adapted to a reasonable Nature; till the *Inclination* came up to a firm *Belief*, and then became a *Law*.

God therefore is our Lawgiver, and hath appointed our Hearts to be the Tables of the Laws of Nature, that they might be always under our Eye, legible and clear. It does not indeed become a Law only for being placed there; but God first made it a Law, and then fixed it there for our use. And tho' great numbers of Mankind never had any intercourse with God as a Legislator, but only That which they have by means of their Conscience; that is, they never heard their God speak either by Prophecy or Revelation, or had forgot the Tradition of their Fathers; yet when the Almighty, by secret, indiscernible ways, hath written a Proposition there, and the Man does believe a Thing to be *Good* or *Evil*; it is certainly true, that God is his Lawgiver, because he only is Lord of his Conscience: But it is also true, that he becomes obliged to God by an Act of his own Conscience. And whatever were the occasion that his Conscience was wrought upon, tho' it were only a Fancy or a Fear; yet if it brings the Conscience to the Notice and Obedience of a *natural*

tural Law; the meaner the Instrument was, the greater and more forcible are we to suppose the Efficacy of the principal Agent. The putting it into the Conscience, however That be done, is a sufficient Promulgation of a Law; but Nature alone never does it. The exprefs Voice of God, Tradition, the Prophets, Contract, Providence, Education, and all other kinds of Influence from God, and Correspondence with Men, have their share in this Effect; but it becomes a *Law*, only by the Sanction of God's Authority.

As for the *particular Laws of Nature*, which only, are properly called Laws; we are to look for no other System or Collection of them, than That we find in the exprefs Laws of God, which concern Morality; such as are contained in the moral Law of *Moses*, and in the Religion of *Jesus Christ*. For these are, in some proportion, generally given to all Mankind. But since it is very necessary that This be well understood, because it establishes many Certainties in the Matter of Conscience, and eases us of the difficulty of finding out a particular System of natural Laws, the enquiry after which, hath rather filled the World with Disputes, than produced any Certainty; I shall endeavour to obviate the great Objection which is made against this Assertion.

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Since the Christian Religion, say some, is new in respect of Nature; since it has superinduced some things upon Nature, and rescinded some of her *Rights*, and laid a Restraint upon her *Liberty*; it will seem impossible, that the Christian Religion should be a Body of the Laws of Nature, because the Law of Nature is prime and eternal, which the Christian Religion seems not to be.

Now to this it may be answered; 1. That it is evident, that all those Laws, which any Men call the Law of Nature, are actually contained in the Books of the *New Testament*. All that is essentially good, is there; all that can make the World happy, is there; all that relates to every Man's Duty, is there; all the Instruments of Happiness, and the Conveyance of our great Hopes, is there; but what there can be more in the Law of Nature, which has not a necessary Connection, with what has been here mentioned; I have not been taught, nor can I imagine or understand. But, 2. It is weak to suppose, that all the Instances of the Law of Nature, must be as *prime* as Nature her self; because they neither are so prime, nor so lasting, but are, in some Cases, alterable by God, or by Men. This may seem a new manner of speaking; but the Thing is notwithstanding absolutely certain. For when God ordered

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Abraham

Abraham to kill his Son, and the *Israe'lites* to rob the *Egyptians* of their Goods; he commanded them to break an Instance of the *natural Law*. He made it necessary that *Cain* should marry his Sister; and each of those Laws of Nature, which did suppose, Liberty and Indistinction of Possessions, are entirely altered, when Dominion, Servitude, and Propriety came into the World: And the Laws of Nature which we observe in Peace, do not oblige us in time of War.

And therefore it is not hard to comprehend, that the Christian Religion should superinduce some Excellencies and Perfections upon humane Nature, and lay Restraint upon the first *natural Laws*; those, I mean, which, before this last Period of the World, were Laws of Nature. Herein *God* used but his own Right. To *repel Force by Force*, was originally but a *Right* of Nature; but afterwards it became a *Law*, that Men might do it; *God* expressly gave them leave. And tho', *That* be not properly a *Law*, which neither *commands*, nor *forbids*, but only gives leave; yet when *God* had charged Men not to do Violence, and to enforce the Law, gave Permission to any Man to punish an unjust Enemy that would do him mischief; it may be called a *Law*, in a lower Sense, as it became *lawful* by a Decree passed in the Court of Heaven.

In short; if we believe *Jesus Christ* to be our Lawgiver, and that he hath revealed to us *all* his Father's Will, as he is said to have done; we need look no farther for Tables of the Law of Nature, but consider those only as such, which bind us as Christians. All the Laws of *Christ* relating to moral Actions, are the Laws of Nature: And all the Laws of Nature, which any wise Nation ever believed to be such, are either abolished by God, or else are explained and prescribed by *Jesus Christ*. So that Christianity is a complete System of all the Laws of Nature, of all the *Will*, of all the Commandments of God. In those things wherein Christianity hath not interposed, we have left us a *natural* Liberty, or *permissive Right*, unless, by some kind of Contract or Agreement, we have laid our selves under Restraint.

R U L E II.

The Law of Nature is the Foundation of all Laws, and the Measure of their Obligation.

There is the same Reason, the same Rules and Measures, for all good Laws, and all Justice. Laws are therefore *good*, because they are *profitable*; and *just*, because they are measured by the common Rules of

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Justice;

Justice; and are *necessary*, because they are bound upon us by God, either mediately, or immediately. The Reasons of all wise Laws in Commonwealths, arise from the Analogy they bear to *Nature*, to the clearest Notions of *Justice*, *common Advantage*, and *natural Necessity*. So that every wise *civil Law*, is nothing but a Consequence of the *natural Law*, in respect of its Formality, Reasonableness, and Obligation. All Laws of *Manners* are likewise Laws of Nature: For there can be but one *Justice*, and one *Honesty* in the World. And therefore in observing the Laws of Nature, the Good of every Society, and of every particular Man is comprised: And in every Civil Constitution formed upon the Plan of *That*, there is only something super-added, not to the Reasonableness or Justice of the Law, but only, in regard to some Circumstances of it.

But since the Law of Christianity comprehends all the Law of Nature, and is now the only Law by which we are primarily obliged; it is the first and adequate Rule and Measure of Conscience, and the Explication of all its Precepts, will be a full Institution of it.

RULE

RULE III.

The first and greatest Band of the Law of Nature, is Fear of Punishment.

Fear and Shame are the Restraints which Nature hath provided for every Sin. Now to all Laws there must be some Punishment annexed, the Fear of which may be able to deter Men from acting against the Law ; but This can never be, where we do not fear an Evil in Transgressing, greater than the Pleasure we find in the Sin. Hence it is, that God hath established a *Court* within us, a *severe Judge*, who will not spare ; a *wise Discerner*, who cannot be deceived ; an *exact Remembrancer*, who forgets no flagrant Crimes ; and a *Witness* too just to be suborned. The Stings of Conscience, and Dread of the Divine Vengeance, is the Evil which *naturally* restrains us. It becomes the greatest Restraint, by being the greatest Evil we can fall under ; and by being *natural* and *unavoidable*. So that it is not only *lawful* to abstain from Evil for fear of Punishment ; but it is likewise *natural* and *necessary*. It is not bare dread of Discovery and Civil Punishments, which is appointed to restrain wicked Actions ; but such an *Apprehension* of future Punishment as God hath made *na-*

tural and *congenite* with the Mind of Man; as, the Fear of God's Displeasure, and the Destruction of our Nature and our Happiness, to which, the natural Love of our selves, and the desire of our own Preservation, oblige us to have a strong and invincible Regard.

There is indeed another kind of Fear, which has its Force upon those Men who are not affected with the Fear of future Punishments; and That is, the Civil Sanctions of *natural* Laws. But to do Good, in order to avoid Punishment, in this Sense, is to do Good only whilst I am observed, or whilst I am constrained. The Civil Laws were not originally designed for good Men, who are restrained upon better and more rational Principles; but for the Unjust, the Oppressors, the Insolent, who contemn the Motives which lay Restraint upon Men of Virtue. Not but that even wise and good Men have a Fear in them, which is an Instrument of Virtue and Religion; but it is a Fear of God, not of the Magistrate; a Fear that is *natural*, that arises from the natural Notices of Things; a Fear of doing a base Action; or a dread of becoming a Fool, or a vile irrational Being. The Happiness and Perfection of Men were but poorly provided for, if those Vices which elude the Law and the Judge, were not terribly punished by some *natural*

natural Fears and Apprehensions. But this Fear, in the Minds of good Men, proceeds from a natural Love of Virtue, and their own Perfection, and from the Acknowledgment of God's Omniscience, his Justice, and his Goodness.

R U L E I V.

The second Band of Virtue is Love, and its proper and consequent Deliciousness.

This is not wholly *natural*, but is sometimes the Effect of Philosophy and Religion, of virtuous and severe Instructions, to do that for *Love*, and without Constraint, which weak, or guilty Minds commonly do for Fear of Laws. When, I say, This is not *natural*, my meaning is, that tho' it be agreeable to Nature, yet it is not primarily introduced by it, without a *Tutor*, whose Nature forbids *Injustice*, but enjoins *Justice accidentally* only, and in consideration of certain Circumstances. Thus, *to do Injustice*, is always a Sin ; but it is not always a Sin *not to do Justice*. For a Man may lay aside the Person of a *Judge*, a *Trustee*, or a *Delegate* : But They who are habitually just, finding the Rewards of Reputation, and the Pleasure of being eased from the Tortures of an evil Conscience, insensibly grow so far in love

love with Justice, as to imagine they love it for its own sake. But as this Persuasion may raise scruples in the Mind, or fill it with Opinions a little too nice; it may not be improper to bestow a Reflection or two upon it.

Antigonus Sochæus, an old Jew, was famed for saying, that *They are not Servants, who serve their Lord in prospect of a Reward from them; but they only, who serve without any Consideration of Wages, or Recompence. Let the Fear of God be upon you.* Baithus and Sadoc, his Disciples, from whom arose the Sect of the *Sadduces*, not well understanding him, from hence took upon them to deny the Resurrection, and Rewards after this Life. And indeed, such Expressions as these, may be easily abused. But it is impossible a Man should perform great Things, or suffer nobly, without a View to some Reward; and because much of Virtue lies in suffering Evils, Virtue it self is not so properly a *Blessing*, as the *Way* to a *Blessing*. That Man does Things like a Fool, who does them for no End; and if he does not chuse a good End, he is still worse. Virtue would indeed be very unreasonably proposed to us, if we were, without any prospect of Reward, to chuse, and support the Pressures it often lays us under. *If in this Life only we had hope, the Pleasures of*
Sense

Sense were properer, and more rational Objects of our Wishes, than to make our selves *Miserable*, for the sake of being *Good*: And it is absolutely impossible, that Men should be virtuous only upon this View.

A good Man may, in a Sense, be said to love Virtue for Virtue's sake, when he so *habitually* loves and practises it, as to perform several Instances of it, without a direct View to a Recompence: But tho' this or that Instance of it be exerted without any Eye to a Reward, it is yet only in Consequence of the *Habit*, which originally derived its Strength from the Hopes of Recompence.

Virtue is to the Soul, what beautiful Colours are to the Eyes, or delicious Savours to the Tongue. God hath exactly proportioned it to all the noble Ends, to all the worthy Desires of Man, and made it the proper Instrument of their Happiness. All its Beauties, all its Effects, all that renders it amiable, is indeed part of its Reward. To say therefore, that a Man can love Virtue without any prospect of a Reward, is only to say, that a Man may love it without any Inducement, or that his Affections may be moved without any Motive.

To love Virtue therefore for Virtue's sake only, is so far from being the Honour of a good and perfect Man; that it is, if it proceeds

ceeds no farther, the Character even of a wicked Man : For it amounts to no more than this, that the *Understanding* is convinced of the Worthiness of it.

So that, tho' it be not allowed to good Men to be influenced to Virtue, purely from the worldly Regards of Praise, Glory, Riches, Power, or the like ; yet, by those who know any thing of the Nature of Things, even the best Men will be allowed to have any habitual Regard to any Recompence their God has given them hopes of. So *Moses despised to be called the Son of Pharaoh's Daughter, because he had an Eye to the Recompence of the Reward.* So those brave Persons reckoned up by St. Paul in the eleventh Chapter of the *Hebrews, all died in the Faith, not having received the Promises.* And our blessed Lord himself, *endured the Cross, and despised the Shame ; but it was for the Glory that was set before him.*

The Result is This ; tho' the Fear of God be implanted in Nature, and in the Conscience ; yet the Expectation of Reward is rather put into us, than born with us ; it is rather *revealed*, than *natural*.

RULE

R U L E V.

The Imperfections of some Provisions in Civil Laws, are supplied by the natural Obligation remaining upon Persons, civilly incapable.

Laws make Provision for all the Cases which can be foreseen ; yet some Things will emerge which cannot be foreseen : So that no humane Constitution can reach all the different Cases that may arise. Here Nature, the common Parent of all just and necessary Obligations, takes the Case into her Protection. This happens in many Cases.

Humane Laws give Measures of Things generally fitted to the Occasions of Men ; but sometimes they are not. Young Persons, at such an Age, are made capable of entering into profitable Contracts ; at another Age, of making Contracts that are hazardous, and they are obliged to stand to them, be the Consequence never so fatal. At one Age they may marry ; at another, contract a Debt : At *This* Age, they may make a Will ; at *That*, they are liable to capital Punishments. But in some, whose Malice and Wit are of a more early Growth, and the Sense of their Advantages, strong and lively ; the Contracts which they make, the Actions
which

which they perform, and the Part which they chuse, is really *made*, or *done*, or *chosen*; tho' the Civil Laws, in regard to their Youth, does not oblige them to stand to it: And yet if they can *chuse*, they are *naturally* obliged. The Civil Law can provide only for the common Exigencies of Men; but the Laws of God make Provision not only for the general, but for the particular Cases which may arise. God and our Conscience can take exact account of every such Case. The Fullness therefore of his Law, is to make up for the Deficiencies of the other. Every Instance of Duty, is, in Fact, an Instance of Obedience to God; and every one who can hope, or fear, is obliged to this Obedience. There was not at that time among the *Romans*, any civil Constitution against Rapes; and yet *Tarquin* ought not to have committed a Rape, because there was an eternal Law against it. He could not but know the Action was criminal, and irrational, and directly opposite to those Principles by which he ought to govern himself.

So, in Case of clandestine Contracts, where both Parties are concerned; tho' all Christian Countries have made severe Laws against them; yet if the Contract be once made, in some places, they are thought valid; in others, null and void. When they are declared

clared null, *Nature* is overborn by that Decision, and the Parties are warranted to do a Mischief. If a Man and a Woman clandestinely enter into a Contract of Marriage, and the Man repent his Bargain; where shall the Woman be relieved? The Law of the Church forbids it; and, if she complains, will punish her for doing it. It does not fall under the Notice of the Civil Law, for it cannot legally be proved: If it be declared null, a Law of Nature is rescinded, and so nothing left to hold the Man to Justice. The nulling therefore such a Contract, besides that it is against the Law of Nature, is a Remedy that destroys the Patient. The Laws may forbid the doing it, but cannot rescind it when it is done. For the *Civil* Constitution is less than the *Natural*, and *Convenience* is of less moment than *Conscience*, and Man is infinitely beneath God.

R U L E VI.

Sins against the Law of Nature are greater or less, not by that Proportion, but by the greatness of the Matter, and the evil Consequent of the Malice of the Sinner.

The Design of this Rule is to remove an Error, which highly abuses the Persuasions of Men in many Cases of Conscience, as it inclines

Men to think, that They are the worst Sins, which are *unnatural*; or that to Sin *against Nature*, is the highest Aggravation of *Sin* in the World. Here therefore we are to observe; that all Sins *against Nature*, are no more detestable than all Sins *against God*. And as all Sins, are in themselves, *against God*; so are they, some way or other, *against Nature* too. For the Reason upon which I pronounce any Action to be a Sin, is *that Reason*, which is *common* to all wise Men, and consequently must be also *natural*: Not that it is wholly taught us without the help of Revelation, or Institution; but that it is such, as all Men so taught, find to be, in the Nature of Things, truly reasonable.

All voluntary Pollutions are Offences against Nature; because they are the Gratifications of Lust, in such ways as Nature never intended: But they are not therefore all of them, worse than Adultery or Fornication. For tho' all such Pollutions are contrary to the Order and Provisions of Nature; yet in some of them, there is not such a complication of Guilt, as there is in Fornication: Which, tho' it be against Nature too, inasmuch as it dishonours the Body, yet it is *expressly* forbidden in the Commandment, whilst some of the others, are only *consequently* forbidden. Besides, Fornication
always

always supposes the Guilt of two Persons, which the other does not always, and is generally acted with Circumstances infinitely more vile, and more pernicious.

The breach of a Commandment is a surer Rule to judge of Sins, than the acting in opposition to a *natural Reason*. For there are many Things *unreasonable*, which are not *unlawful*; and there are some things, which, in some Circumstances, are reasonable, and yet, in the Law, irregular and forbidden. Such are all those Things, which are permitted, *because of the hardness of our Hearts*. Such was Polygamy to the *Patriarchs* and to the *Jews*. In such things as these, the *Commandment*, and nothing else, is the Measure of *Right* and *Wrong*.

R U L E VII.

Actions which are forbidden by the Law of Nature, either for Defect of Power, or for the Incapacity of the Matter, are not only unlawful, but also void.

This holds in Contracts, in Acts of Donation, in Vows, and the like. He who cannot give, or he who cannot be given, can neither contract, nor be contracted with. A Man desirous of Children, contracts himself to one whom he took to be a Woman, but
P found

found to be an Eunuch, and consequently incapable of entering into such a Contract. The Eunuch did ill in contracting, but That was all; for the Contract was void by the Incapacity of the Person.

Upon this Account, the Lawyers, among the Reasons for annulling Marriages, reckon *Error Personæ, the Mistakes of the Person*, to be one: Tho' certainly, if we speak of *natural* Nullities, this ought not to extend beyond mere *natural* Incapacities. Therefore, if I contract my self to a Person whom I take to be a Lady, and she proves a Servant, or of mean Birth; tho' she did ill in deceiving me, yet if she is *naturally* capable of performing her part of the Contract, the Contract is not *naturally* void. Whether or no it may be void upon a *civil* Account, is not now the Question: But it can never be made void by the Law of Nature, but when, by Nature, it cannot be consummated. Indeed, when a Man enters into a Contract upon *certain Conditions*, the Contract is void, if the Conditions are not fulfilled: But then he can contract only for such Things as are *actual* and *present*, but not for such as are altogether *future*, and *contingent*. He may contract with a Woman, upon Condition her Fortune be really *so much*; but not upon Condition, that she shall

shall continue in a state of Health, or Beauty for seven Years.

Another *natural* Cause of Invalidity, is, when a Contract is made by him, who had no Power *naturally* to make it. This happens in Case of Precontracts; unless the Man is freed from them, by the non Performance of Conditions expressly stipulated, and possible to be performed. But where This is not the Case, he hath given up all his Power in this Point, and cannot *naturally* resume it.

RULE VIII.

When an Act is forbidden by the Law of Nature, for the Turpitude and Indecency that it hath in the Matter of the Action; the Act is also void, when the Turpitude remains, or hath a perpetual Cause.

He who contracts a Marriage with his Father's Wife, or any Marriage, in which every elicit Act is a new Sin, did not only sin in entering into the Contract, but the Marriage is void by the Law of Nature. And the Reason is plain; for no Man can bind himself to Sin. And here is likewise a Defect of *Power*; for no Man can bind himself against God: And the Law of Nature, whose chief Rule is, *to do Good, and avoid*
P 2 *Evil,*

Evil, cannot enforce an Act which is done in opposition to her first and most important Principle. It were an Absurdity to suppose, that *Nature* could give a Permission to Sin against *Nature*; for then the same thing would be agreeable, and not agreeable, to *Nature*.

But this is to be understood only in Things which are forbidden by the Law of *Nature*, the eternal and immutable Law of God, or That Law of his, which is only *positive*; but it does not hold in Things forbidden by humane Laws only. For if a Man have entered into a Contract against an *humane Law*, the Contract is established by a *divine Law*, which is more forcible and binding than That which is *merely humane*. The Law of the Church of *Rome* forbids some Persons to enter into Contracts of Marriage; and yet, if they do, the Contract is binding: For the Persons being both by *natural* and *divine Law*, capable of contracting; they only sinned who contracted against the Law, and they sinned only in That one Action; for the subsequent Actions being no Sins, cannot be invalidated.

RULE

RULE IX.

*The Law of Nature can be dispensed with,
by the divine Power.*

And here we are to observe, in the first place, that God's Dispensations differ very much from humane Dispensations. As he is *Supreme Lawgiver*, he can cancel *Those*, and impose *These*, just as he pleases. By this Power, he can free particular Persons, from personal Obligations; and when he does, the Law preserving its Power over other Persons, in other Cases; this is properly *Dispensation*.

In *divine Dispensations* God himself gives the Cause of Them; for his Laws are so wisely contrived, and so exactly fitted to all Cases and Emergencies, that there cannot arise any new Case, which God did not foresee: But because he hath Ends of Providence, of Justice, of Goodness, or Power to serve; he often introduces new Causes of Things, and then permits Men to carry on his Designs, by such means, as, without such Permission, would be unlawful. Whereas, in *humane Dispensations*, the Cause of them is prepared beforehand, not by the Lawgiver, but by accidental, unavoidable Deficiencies. God does not permit any Man to

break a natural Law, as long as he keeps that natural Law in its Force and Reason ; but because Actions, generally forbidden by the Law of Nature, may, when the Force and Reason of it, in this or that Instance, are less obliging, be commanded by God to be done, and so become lawful by a temporary Command, tho' they were originally, and at their first Sanction, unlawful : This is directly and properly a Dispensing with Men in particular Obligations to the Law of Nature. But tho' this may happen as often as God pleases, yet it happens as seldom as a Miracle. This, indeed, is frequently the Case of humane Laws ; and therefore they may be frequently dispensed with.

But because some Doctors of the Law have contended, that God cannot dispense with natural Laws in his Capacity of *Law-giver*, but only as he is *Lord* and *Judge* ; I shall give Instances to shew, that he hath actually dispensed with them, in each Capacity.

1. That the Marriage of one Man and one Woman is in Consequence of a Law of Nature, appears from the Institution of Marriage, and from our Saviour's reducing it to its original Sanction. If any thing be a Law of Nature, this seems to be so, from the consent of all Men. And yet *Moses* allowed of Divorces ; and God, and *Moses* his Servant, permitted Polygamy, when there was no change

change of the Case, no Necessity, no apparent Reason for it, but only that Men had a mind to it. For if at first, when there seemed to be the greater Necessity for the Plurality of Wives, in order to the Peopling the World, the Man had but one Wife given him; then, as the World grew more populous, that Necessity could the less be pretended. So that, to dispense with a Plurality of Wives, when the best Reason for it was altogether ceased, is properly an Act of *Jurisdiction*. Tho', by the way, I must own, that to distinguish between the Power of a *Judge*, or *Lord*, or *Law-giver*, when they are equally supreme, is to make a Distinction without a Difference. But the way in which the Schools have managed this Argument, has obliged me to it. So again, that Brother and Sister are not to marry, seems to be a Law of Nature: But yet God dispensed with it, in the Case of *Cain* and his Sister. He made it necessary to be so; and yet he was not obliged to make it necessary; for when he created one Man and one Woman, he might have created as many as he had pleased. That which would be Incest in others, was not so in him. He only did what God would have him do: But whether this be *Jurisdiction* or *Dominion*, let him who is able, determine.

But in some Things God hath dispensed, *in Right of Dominion* only. As he did in the Matter of the sixth Commandment, when he commanded *Abraham* to slay his Son. God was certainly Lord of *Isaac's* Life, and might therefore justly take it away himself: But when he commanded *Abraham* to do it, he dispensed with him, in that Instance, from observing the Commandment. God, indeed, in Right of his Dominion, made the Cause for the Dispensation; but yet it was a direct Dispensation; as much as it would be, if in Right of his Dominion, God should resolve to take away the Lives of a whole Nation, and in order to it, give a general Permission to Mankind, to destroy all of that Nation, as they had Inclination or opportunity to do it. For to permit the doing That, which, without Permission, were to Sin against the Law of Nature; is, in a proper Sense, a *Dispensation*.

The other way of *Dispensing*, is in the applying the Power of a *Judge* to a particular Person or Community, and by way of Punishment, to take from him, what cannot be taken from him but by a supreme Power. Thus, it is a Law of Nature, that we should do as we would be done by. But even in This, God dispensed with the Children of *Israel*. They might not exact from each other exorbitant Usury, but from Strangers they

they might. What they hated to have done to Themselves, they were expressly allowed to do to others.

That God therefore, can *dispense* with the Laws of Nature, is plain and evident: But tho' it be hard to say how far this Dispensation can reach, and to what Particulars it may extend, because God's Ways are unsearchable, and his Power not to be comprehended by us; yet since our Saviour hath given the World a perfect System of the natural Law, and hath obtained to himself an everlasting Kingdom, so that his Law must be perpetual, and God will always govern Mankind by it: By the eternal Reasonableness of this Law, we may be able to say, what is indispensable, and what is not. And the Measure by which we are to judge in this Point, is this: *Every Matter, from which the Cause of the Obligation can be taken away, is dispensable.*

But if it should be asked, what Relation this Enquiry hath to the Affairs of Conscience; the following Reflections, arising from it, may serve for an Answer.

1. Hence we may learn, that our Duty to God is Supreme; that it is due to him only; that it cannot be lessened, and ought upon no Account to be extinguished; for his Will is the only Measure of our Obedience. Our Reason, our Nature, our Affections,

ons, our Interest, our Virtue, our Religion, ought to be entirely subject to God. And all the Good which is in our Actions, or our Desires, arises from the Conformity of our Behaviour to the Divine Will and Law. We are to consider the holy Scriptures of the *New Testament*, as the Light of our Eyes, and the surest Guide of our Consciences in all the great Lines of Duty; for there our blessed Lord hath fully registered all the natural and necessary Obligations of Men to God; and to one another. All the Precepts of Christ are perfective of our Nature, and are the Instruments of all the true Happiness we are capable of. And since it hath pleased God, by his holy Son, to pronounce this Will of his to be lasting, and never to be changed by any future Lawgiver; we are to rest here, and assure ourselves, that no Power, less than God's, can alter any thing of This; and that by this Law we shall stand or fall in the severe Scrutiny at the last Day.

R U L E X.

The Law of Nature cannot be dispensed with, by any humane Power.

The Laws of Nature deriving their Force and Obligation from the Laws of God, cannot

not be dispensed with by a Power inferior to That, which first gave them their Sanction: So that they cannot be dispensed with but by God himself. But because wise Men have publickly asserted, *that by the Law of Nations, and the Civil Laws, something may be taken away from the Law of Nature*; we are to consider what they meant by those words; for we are not to suppose that wise Men would allow This, in any Case, to be lawful, unless they had observed, in some Cases, that it was lawful. The following Remarks will let us into all they mean.

1. Whatsoever is *forbidden* by the Law of Nature, cannot be allowed of by the Civil Law. For where a superior Power hath already interposed, a lower Power has no Authority. 2. Whatsoever is *commanded* by the Law of Nature, is not to be forbidden by the Civil Law. For here God is the Law-giver; who never sets up any Authority in opposition to his own, nor allows any Man to disobey him. 3. That which the Law of Nature has *permitted*, may be made a Civil Law, or by a Civil Law, may be forbidden. For those Things, which, in Morality, we call *indifferent*; in Nature, we call *Rights*, or those Things which are not naturally under the Restraint of Laws. These *Rights* the Civil Law may restrain, because the free use of them, in some Circumstances, might be

be very pernicious. Such would be an uncontrolled use of the natural *Rights* of *Liberty*, *Community*, *Power of Revenge*, of *taking any Thing*, or *killing the Man who injures me*. 4. That which is only *confirmed* by the Law of Nature, may be dispensed with by the Civil Power. One Man owes another a large Sum of Money, and by the natural Law of Justice, is obliged to pay him. But the Creditor, being under no natural Obligation to exact the Payment, is at Liberty, if he pleases, to forgive him the Debt: And if he does forgive him, tho' the other is obliged by a natural Law to pay him, yet he is dispensed with by the private Power of the Creditor. So likewise, when the Obligation is conditional, if the Condition upon which it was entered into, justly fails; the Obligation, which derived its Power from the Law of Nature, may be rescinded or dispensed with. For if a natural Law could oblige longer, than that Reason lasts, for which it did oblige; we must then, very absurdly suppose, that a natural Law could be unreasonable. 5. The Civil Law can *extrinsically change* the natural Law. Indeed, when natural Laws are considered in those prime Instances, where the *Matter* is unchangeable; there the Law of Nature cannot be altered but by the Lord of Nature. But when the natural Laws are considered in
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a *Matter* that can be changed, and do presuppose *Contract, Cession, Condition, any Act of Will*, or the like, whose Cause is not perpetual; the Law here, obliges by the Condition of the *Matter* of it. Thus we say, *God's Gifts are without Repentance*, that his Love never fails, and that his Promises continue for ever; and yet he resumes his Gifts, withdraws his Love, and will not give what he had promised: But it is not because he changes in himself, but because the Subjects of his Love and of his Promises are changed. Now hence may appear the Weakness and Impiety of ascribing to the Bishop of *Rome*, the Power of dispensing in the natural Law. For since the Rules of Nature are unchangeable and eternal, the Laws of it being formed upon these Rules, are also eternal, only in those Cases where the Matter of them is, or can be, changed. Now if the Matter of them be in the prime Instances, such as *the Conjunction of Sexes, Relation between Parents and Children*, and the like; the Law continues the same for ever, unless God, by some miraculous or extraordinary Act change the Matter of it; and then indeed, the same Power that altered the *Matter*, might alter the Law too. Sometimes indeed the Matter of a Law changes of itself, or is changed to our Hand, as it happens in *Conditional Contracts*; here the

Force of the Law ceases, and its Obligation, as to that particular, is removed from us. Sometimes the Matter of the Law is changeable by the Will of the Persons concerned, and by none but themselves, and Those who have the same Power over them which themselves have; such as God, and the Civil Magistrate under whom they live. Now in order to apply this to the Question about the Pope's Power of dispensing; I consider, that to establish this Power upon any words in Scripture, would be to pretend, that his Power of dispensing is an Act of Jurisdiction, and direct Authority; that is, he is allowed to dispense either with, or without Reason, only because he will. And he who can do so, can perhaps do more than God can do. For God never dispenses in a Law of Nature, till he has made such a Change in the Matter of it, as will justify the Dispensation. But if this Power of Dispensing be pretended to be such only, as arises from a Change of the Matter already made; that is, if there be a reasonable Cause for the Dispensation, but not sufficiently reasonable to him who is concerned, till it be competently declared: Then all the Dispute will be this, whether or no the Pope be the most probable Doctor. For to explain, when a natural Obligation ceases, is rather an Act of Wisdom, than of Power: But whether the
Pope

Pope be the *wisest Man*, is no where determined in Scripture. And further than This; if, in Things which are not prime Instances of natural Law, or of perpetual Obligation; but in humane Contracts, Promises, Laws, and Vows, which arise from the Will or Pleasure of Men, and are only corroborated by the Law of Nature, he assumes to himself a Power of dispensing as he pleases; the Effect of such a Power must be this: That he is *Master* of the Actions and Fortunes, the Wills and Contracts of Men. But neither can this be countenanced by any Words of Scripture. 6. The Civil Law can *add* to the Law of Nature: Not only by giving it the new Sanction of Civil Penalties, but by requiring new Circumstances to strengthen and consummate an Action. Not that any Civil Laws can annul any thing which a natural Law hath confirmed; but only, that they can hinder it from receiving the publick Approbation or Allowance. Thus they may, as severely as they please, discountenance clandestine Marriages, but they cannot dissolve them. For the Persons contracted are under stronger Obligations to obey a Natural, than a Civil Law.

RULE

RULE XI.

That the Obligation to a natural Law does cease in any Particular, is not to be presumed by every one, but is to be declared by the publick Voice.

This is plain from what has been said before. For the several Dispensations in the Law of Nature, are to be made only by the change of their subject Matter. But then, since the several Matters of Laws can be altered by several Powers respectively; that Authority which changes the Matter, and so dispenses with the Law, must, by some Evidence or other, declare the Alteration. If God, by his Authority, changes the Case, and dispenses in the Law; he must not only declare it, but give express leave to perform those Actions, which we imagine such a Change would infer. He hath bound us to the Laws of Nature; and leaves us so bound, till he tells us we are free. The Case is just the same, in Laws where the Matter of them is changed by Man. For, being obliged by the Law of Nature, to submit to Laws, and perform Contracts; we must remain under this Obligation, till the Power which restrained us, tells us we are free.

RULE

RULE XII.

The Exactness of natural Laws is capable of Interpretation, and may be allayed by Equity, and Piety, and Necessity.

Whatsoever can be dispensed withal, is either dispensed with by an absolute Jurisdiction, or for some Reason in the Nature of the Thing. And if the Laws of Nature can cease to oblige, without Reason, only by the Will of God; much more may the same Will make it cease, to oblige when there is Reason for it. And if, in some Particulars, there be Reason to remove the Obligation of them wholly; we may suppose there may be better Reasons for taking off a little from their Rigour and Exactness. A Man is naturally obliged to restore his Neighbour's Goods, when they are demanded; but if a Man requires his Sword of me to kill another immediately; the Charity and Equity of refusing it him, till his Fury is over, will save me from the Breach of a natural Law. To pay Debts is a Law of Nature; but if a wealthy Man calls for a Sum of Money which is due to him, and I, by paying it him to Day, shall be undone, but he, by staying for it till next Week, shall receive no Damage: I do not transgress the Law of Nature, tho'

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I detain the Money a little longer; and then offer Satisfaction for the Wrong, if I have done him any.



CHAP. II.

Of the Law of Nature, or of all Mankind, as it is commanded, digested, and perfected by our supreme Lawgiver JESUS CHRIST.

Viz.

Of the Christian Law, the great Rule of Conscience.

RULE I.

When the Law of Jesus Christ was established, the Old Testament, or the Law of Moses, did no longer oblige the Conscience.

GOD being the supreme Lawgiver, hath Power over his own Laws, as, in the Capacity of a Creator, he has Power of the whole Creation. He who bestowed *Being*, has it in his Power to take it away; and God may change his own Laws, tho' himself be immutable. His Attributes indeed

deed are unchangeable, but not his Works. He commanded all Men *not to do Murther*; and yet, expressly ordered *Abraham* to kill his Son. So that, tho' he at first established *the Law of Moses*; yet it was still in his Power, without the Imputation of Mutability or Inconstancy, to give the World a new, and better Law. Our blessed Lord therefore was indued *with Power from on high*, to give a new Law. He was a great Prophet, performed many Miracles, promoted the spiritual Worship of the only true God, and brought Mankind over, from a mean and childish, to a natural, spiritual, and manly way of worshipping Him. And indeed, considering that the Rites in the Law of *Moses*, were burthensome, imperfect, expensive, and insignificant, utterly unable to *put away Sins*, or to perfect the Minds of Men; that they had nothing substantial in themselves, but were only *a shadow of good Things to come*; in a word, that they seemed chiefly calculated for the Weakness of an imperfect People: I say upon considering this, we cannot but see the Expediency of a Change in Them.

Asto the *Imperfection* of the *Mosaic Law*; we may shew from the Mouth of God himself, that it was imperfect, when, tho' he permitted Divorces, he says, by the Mouth of his Prophet, *I hate putting away*. The

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Promises

Promises of the *Mosaic* Laws, upon Obedience to those Laws, were wholly temporal, and related to this Life only. And very many of the Laws themselves which they were obliged inviolably to observe, not being formed upon the Laws of Nature and Reason, ought not to be supposed to be perpetually obliging, or unlikely to admit of a change.

For these Reasons there will be the less difficulty in removing the Pretence of the *Jews*, for the Eternity of the *Mosaic* Dispensation. They commonly urge, that God himself called it an *everlasting* Covenant: But then, they well know, that the word *everlasting*, does not, even in their own Books, always signify an Infinity of Time. God, in relation to the Land of *Canaan*, promised to give them an *everlasting* Inheritance; and yet their Possession of this Land, and their Covenant, which were both promised to be *everlasting*, expired together.

The Reflections hitherto made relate to the *Jews*, and are designed to shew them, the Possibility of the Abrogation of *Moses's* Law. But to prove to *Christians* the actual Abrogation of it, I shall produce some of the words of the *New Testament*, so far as the Thing it self relates to Conscience. Nor will this be altogether unnecessary, since very many both of the ancient and modern
Christians,

Christians, have, in their Doctrines, their Reasonings, and their Actions, paid so great a Deference to it.

And in order to this, I alledge the Apostolic Decree at *Jerusalem*, upon the Point of Circumcision; the Abrogation of which dissolves the whole Law: *For I Paul say unto you, if ye be circumcised, ye are Debtors to keep the whole Law:* And consequently, if Circumcision, that great Sacrament and Sanction of the Law, be annulled, we are then no longer *Debtors to keep the Law*. It is said likewise, in the *New Testament*, *the Law and the Prophets, were until John*; since that time, *the Kingdom of God is preached*: Where the different Terms of the *Law* and the *Gospel*, are expressly mentioned. So that from *John* the Baptist's time, *we are no longer under the Law, but under Grace. We are dead to the Law: And Christ, our High Priest, is after the Order of Melchisedec, not after the Order of Aaron*: So that, *the Priesthood being changed, there is made, of necessity, a change also of the Law*. Nor was the *Law* given any longer, than till *Christ the promised Seed* should come. And ever since he came, he was made our Lawgiver, and we became his Subjects till the last Day, in which *he shall give up the Kingdom to his Father*.

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But

But the main difficulty is still behind. For since part of the Law of *Moses* is enjoined by *Christ*; and some of it is of natural and perpetual Obligation: The next Enquiry therefore will be, what part of *Moses's* Law is abrogated by *Jesus Christ*? To this I shall endeavour to give a distinct Answer.

R U L E II.

The Ceremonial Law of Moses is wholly void.

Colof. ii.
16.

For this is that *Hand-writing of Ordinances*, which *Christ* nailed to his Cross; and of which there is this Command recorded by the Apostles, *Let no Man judge you in Meat, or in Drink, or in respect of an Holy Day, or of the new Moon, or of the Sabbath Days.* So that to us the Case is plain; and those Arguments which have been urged hitherto, relate chiefly to the Ceremonial part of the *Mosaic* Law, which being made up of Types, Figures, and imperfect Services, were not naturally obliging, nor sufficient to cleanse the Conscience, nor to take away Sins.

There is, indeed, one Difficulty in the Point before us, which may occur to more tender and scrupulous Minds, and which therefore it may not be improper to endeavour

your

vour to remove. Some imagine that the Obligation *to abstain from Blood and Things strangled*, Acts xv. remains in full Force; and in Defence of this scruple, urge the Canon of the Apostles at *Jerusalem*, who reckon the abstaining from These, among the *Things necessary*. It is certain that the Church did, for several Ages, religiously abstain from Blood; and it was the great Argument by which the Primitive Christians refuted the Calumnies of the Pagans, who charged them with drinking humane Blood, that They could not be supposed to drink humane Blood, who so religiously abstained from the Blood of Beasts.

But to the Difficulty, I answer: 1. That to abstain from Blood, is not a Law of Nature, appears from its not being at all imposed upon the old World; but only, for a special Reason, given to the Posterity of *Noah*, to guard against any Inclinations to Cruelty and Inhumanity. And the Prohibition it self against the eating of Blood, implies no more than This, that they were not to eat the Flesh of Beasts that were alive; that they were not *to eat the Flesh with* Gen. ix. 4. *the Life thereof*, that is, *with the Blood*. So run the words of the Prohibition; and accordingly the Doctors of the *Jews* explained it by the not tearing or rending the Members of any Beast whilst it was alive.

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2. But

2. But the Point is cleared up by God himself, in the Place where he made the Law. The original Design of the Prohibition, was to introduce Mercy into the World, by obliging us to be merciful even to Beasts, and to deter Men from the Guilt of Homicide. And accordingly, *Irenæus*, *Tertulian*, *St. Cyprian*, and *St. Ambrose*, take the Design of the Command to be only a Prohibition of Homicide. This Precept could not be founded upon a Law of Nature, because it is not mentioned by *Christ* in all his Law: Only that Sense of it which I have just given, arises from a natural Law, and is consequentially enjoined by *Christ*, under the Precepts of Mercy and Charity. 3. We may distinguish between Blood as it is a Substance, from Blood as it is alive. We are to abstain from Blood that flows whilst the Beast is dying, that is, we are not to indulge the Inclinations of Cruelty or Inhumanity even towards them. But Blood considered as such after the Beast is dead, may be safely eaten as other Things. For that Blood should be forbidden considered as Meat, is directly against the Analogy of the Gospel. *Christ* saith, that *nothing that entereth into the Mouth, defileth a Man*. And *St. Paul* observes, that *Meat commendeth us not to God; for neither if we eat, are we the better; neither if we eat not, are we the worse; nor*

Matt. xv.

nor doth the Kingdom of God consist in Meat and Drink, but in Righteousness and Peace, and Joy in the Holy Ghost. It follows therefore, that *Blood*, considered as Meat, cannot be supposed to be prohibited here, as naturally unlawful, or essentially evil. If therefore the Apostles had forbidden the eating Blood as Meat; it must be supposed to have been a temporary Prohibition only, which was to expire, when the particular Reasons, for which it was made, should cease.

R U L E III.

The judicial Law of Moses is annulled or abrogated, and retains no obliging Power, in whole or in part, over any Christian Prince, Commonwealth, or Person.

The judicial Law was either wholly Civil, or it was part of the Religion. If it was wholly Civil; it expired with the Commonwealth, to whom it was given: If it was part of the Religion; it then expired with the Temple, the Priesthood, with the Covenant of Works, and at the coming and Reign of the *Messias*. Indeed the Instances of this Law, as coming from the wisest Lawgiver, are good Guides to Princes, when the same Reasons, and Circumstances of Things occur; but lay no manner of Obligation upon Them.

Them. In the judicial Law, Theft was not punished with Death: The Thief was only to restore four fold: And unless the Necessities of a State highly require it, it were very agreeable to the Design of Christianity, to Compassion, to the Worth and Interest of Souls, that a Life should not answer for the Theft of a Trifle.

But the Abrogation of the judicial Law, in general, is confessed; why therefore it should be thought obliging, in any Particulars, I do not well understand. For there are no Exceptions of any particular Instances, made in the new Law, or the Law of *Jesus Christ*. But there are some Difficulties arising from this Article, in Relation to two great Instances; which are, 1. The Approach of a Man to his Wife, during the usual Term of her Separation. And, 2. The Degrees of Kindred in which Marriage is prohibited. Both which Points, being expressly settled in the Judicial Law, but not so much as mentioned in the Law of *Christ*, are yet supposed to oblige *Christians* as much now, as they did the *Jews* of old. But in order to remove the Uncertainty and Inquietude which often arises in the Minds of Men in their Enquiries into these Points; I shall here consider them distinctly, and enquire whether they are still obligatory.

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We are, first, to examine whether the judicial Law of mutual Abstinence, in the Days of Womens separation, obliges Christian Pairs.

The judicial Law declared an Approach, during those Times, to be twice Penal. Once, it only derived upon the Offenders, a legal Uncleanness for seven Days, *Levit. xv. 24.* But, *Levit. xx. 18.* it is made Capital to them both; *they shall be both cut off from the People.* From hence, *Aquinas* and others of the Schoolmen, affirm it to be a mortal Sin, for an Husband then to approach his Wife.

They who suppose such an Approach to be unlawful, contend that the Law made against it, is *Ceremonial*, *Judicial*, and *Moral*. It is *Ceremonial*, say they, as it inferred a legal Impurity, or separation for seven Days; it is *Judicial*, as it decreed upon the Offenders a capital Punishment; and it is *Moral*, in that it was charitably designed against the Injuries which might happen to a Child begot in such Approaches. So that the whole stress of the Affair depends upon This; that That which was, by the divine Law, to be punished with Death, was something more than a mere breach of *Ceremony*, something that has in it a natural Turpitude and Obliquity. And besides, this being enumerated among the Things which were
committed

Lev. xx. committed by the Nations, and for which
 23. God abhorred them; it follows, that since it was thought a Crime in Those who were not under the Law of *Moses*, it could be a Crime only because it was a violation of the Law of Nature.

To these Reasons, I answer; 1. That tho' all such Approaches were, under the Law of *Moses*, to be punished with Death; yet this would be no certain Argument, that there was a natural Obliquity in the Approach. For then, Circumcision would be necessary by a natural Law; for *every Soul* that was not circumcised, was also to be *cut off from his People*. 2. But neither was it just thus in the *Mosaic* Law. For by that Law, it only became a legal Impurity, a Separation from the Temple, from the publick Sacrifices, and some kinds of Commerce for seven Days: And thus much was laid upon the Woman, only in Consequence of the Circumstances she was then in; and tho' she had not conversed with any Man. If therefore, we may judge of the greatness of a Sin, by the greatness, or favourableness of the Punishment; it will follow, that every such Approach, was nothing but a breach of a legal Rite or Ceremony, since it was punished with a legal Separation, and which was likewise inflicted upon every *innocent* Woman during a certain Period. But it was observed,

observed, that by the judicial Law, such Approaches were likewise made *Capital*. But, I think, that could not be, if the Case were the same. For Laws do not, *directly* and *primarily*, appoint two Punishments for the same Offence. Some therefore having observed, that there seems to be a direct Contradiction in the *Letter* of these two Laws, contend, that they ought to be reconciled in a spiritual Sense, but which they cannot make intelligible either to themselves or others. Others have thought, that the first Punishment was to be inflicted only upon those who sinned *ignorantly*; but that the Punishment was *Capital*, to those, who *voluntarily* and *knowingly* offended. But neither is This Account probable: For then it might happen, that the Man should only contract a legal Impurity; but the Woman, because she could not be ignorant, should be sure to die for it. Theirs therefore is the most likely Opinion, who say, that the legal Impurity was the Punishment, only when the Fact was private; but that the Crime, when it was brought before the Judge, became Capital; and not altogether without Reason. For since the Woman also was to die, we cannot imagine she would accuse her Husband, and condemn her self; and such things are not wont to be done publickly. It may therefore be presumed, that whoso-

ever should be guilty in such a manner, as to put it in the Power of another to accuse and convict him of this Crime, must have done it in Contempt of *Moses's Law* ; for which, says *St. Paul*, *a Man was to die without Mercy*. And hence it is plain, that the Capital Punishment was inflicted, not for any natural Turpitude of the Action, but for the open Contempt of the Law.

As to the Argument, which is drawn from the Injury which the Child begotten at such a time, may receive ; tho' it were certain and conclusive, yet it does not prove the Unlawfulness of such an Approach. For if the Man and Wife have a mutual Right to each other, there is no Injury done in using their own Right. Indeed, if either of them, intended Hurt to the Child in such Approaches, as hoping the Child might not live ; or if it was the Design of either of them, that by such means, the Child should be rendered less perfect ; the Approach then, would be impious and detestable. Besides, if this Argument proves any Thing, it proves too much. For it as strongly concludes against those, who, labouring under any chronic, or hereditary Distempers, should endeavour to get Children, or use the Remedy God hath given them against Uncleaness.

If

If it be pretended, that the Cases are different ; since in one Case, the married Persons may wait Nature's leisure, who will in few Days restore them to their usual Liberties ; whereas if they have the Leprosy, that will stay upon them ; and yet, since either a Child must be gotten by leprous Persons with that Danger, or not at all ; and since it is better a Child should be born Leprous, than not be at all : In this Case there is indeed Charity in some sense, but no Cruelty in any, to the Child. And there may be likewise a Necessity on the Part of the Parents. To this I reply ; that the difference of Case here urged, is not sufficient ; because the Leprosy may not be so remediless a Disease, but that, for the preventing of Cruelty, or any dismal Effects upon the Child, they may wait nature's time. But if it should be said, that there may be Danger of Fornication in abstaining so long ; I reply, so there may be, and actually is, to some Persons who should abstain no longer, than the Law, here under consideration, enjoins. The *Jews* found less difficulty in obeying this Injunction, by the Relief they might find in Divorces, Polygamy, and Concubinage : But *Christians*, who are to confine themselves to a single Bed, if they were obliged to observe this Law, might possibly find themselves under such a Necessity, which, were it not provided

vided for by a natural Permission, would forcibly, and almost irresistibly, hurry them into Sin. If therefore, accidentally, and under those Circumstances, it may be lawful and necessary to approach a Wife, it cannot be actually and essentially Evil.

To the last Objection, that this Approach is reckoned among *all those Things for which God abhorred the Nations*, and therefore must have in it some natural Impurity, since God would never punish them for not obeying the Law of *Moses*, which they had never heard of, but only for the Transgression of a natural Law; I answer: That we are not to lay too great a stress upon this Argument, because, in some Instances, the Servants of God have even infringed the Law of *Moses*, and yet God delighted in them. Thus, in Relation to Marriages in certain Degrees, *Abraham* married his Father's Daughter; and yet this is not reckoned in the Catalogue of their Crimes.

From what has been said, therefore, we may conclude, 1. That this Abstinence was a *Mosaic* Law, partly Ceremonial, partly Judicial, but in no Sense Moral. 2. That the Abrogation of the *Mosaic* Law, doth effectually annul This. 3. That the Sanction of this Law to the *Jews*, was the Fear of Death, or of a legal Impurity: Which Fears being now removed, and no new ones introduced by

by *Christ* our Lawgiver, we are not now under that Restraint.

We proceed now to consider another Instance in the judicial Law, of much greater moment, *concerning the Prohibition of Marriages in certain Degrees*. For all those Degrees, in which *Moses* hath prohibited Marriages, are still supposed, by very many, to retain their former Obligation; imagining, that because God once annexed to this Law very severe Sanctions, it therefore continues its Force upon us who are Christians. I shall examine this Point as distinctly as I can, because the Questions arising from it, have not been so fully and clearly stated, as the Importance of the Matter, and the Necessities of the World require. For it is, at this Day, a Point mightily canvassed among Men, *whether Brothers and Sisters Children, or Cousin Germans, may lawfully marry?* Which Question implies, that not only the *Levitical* Degrees are still thought obliging, but even all other Degrees, which, by a Parity of Reason, may be reduced to their Measures.

Of Parents and Children.

There may several natural Reasons be assigned, why Parents and Children, or the higher and lower in the direct Line, should not be permitted to marry. It would invert

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the Order and Course of Nature. If a Son marry his Mother, she who is greater in right Geniture, becomes less, upon the same material Account upon which she became greater ; she cannot receive the Duty and Reverence due to a Mother, from him who is her Husband. The Case is much the same between a Father and a Daughter ; it being very indecent, that she should claim from him the Rights of a Wife, to whom she owes the Awe and Veneration due to a Father. These however, and the like Reasons, as the general Detestation of such Mixtures, and the shock it gives our natural Modesty, are not sufficient to make it become a natural Law, but by the Assistance of God's Authority. These Reasons, indeed, made it highly expedient to be established into a Law ; God therefore did establish it, and would not trust the mere Reason of Men with the Conduct of it. It became therefore an eternal Law, when God made it so ; and that was, when he gave a Wife to *Adam*. *Moses* informs us, what God then made to be a Law : *For this Cause shall a Man leave his Father and his Mother, and shall cleave unto his Wife, and they shall be one Flesh.* This Law indeed, could not concern *Adam* on both sides, who had no Father nor Mother ; and therefore must be intended for those who should spring from him. When they should take a

Gen. ii. 24.

Wife or Husband respectively, they must forsake Father and Mother; for between them and their Children a Conjunction must not be allowed. This is the way in which the *Jews* understood that Law; and thus they commonly reconcile the seeming difference between this Law, and the fifth Commandment; a Man shall leave his Father and Mother; and yet he is obliged to Honour his Father and his Mother. He must never leave to Honour them; but when he thinks of marrying, he must throw up all Thoughts of contracting with either of Them. For *Mother* and *Wife* here, being opposite Terms; and it not being allowable ever to leave honouring the Mother; it seems highly probable, that to *leave* or *forsake* in this place, which we are commanded to do, only signifies, that we are to leave or forsake any Designs of making a Mother a Wife.

A Mother is not less to be loved, or less to be revered, after Marriage than before; if therefore a Man be never permitted to leave loving his Mother, the Precept seems principally to intend, that he is to leave all Thoughts of marrying her.

This therefore being made a Law of Nature, in that way only which is certain and incontestable; the different Sentiments of some Men, or the Practice of whole Nations, are not Arguments against it. For, as

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I observed in the first Chapter, the Consent of Nations is not all that is necessary to establish a natural Law : For God only appoints the Sanction ; and when he hath declared it, tho' all Mankind should act in opposition to it, yet they would not annul it.

Of Brothers and Sisters.

But tho' *Nature* forbids the Conjunction of Parents and Children ; yet the other Relations are prohibited upon other Reasons. No Conjunction is against the prime Laws of Nature, but That which is made in the right ascending and descending Line. The Marriage of Brothers and Sisters was, at first, absolutely necessary, that the World might be peopled ; and all Mankind are Sons and Daughters, proceeding from the first Marriages of Brothers and Sisters.

But that we may consider this Point more distinctly, let it be observed, that tho' the World does generally condemn all such Marriages, as *incestuous* ; yet *Incest* is not a Scripture Word, but wholly Heathen ; and among the Pagans, signified all unchast, forbidden Marriages, such as were not allowed by Law and Honour, but inauspiciously made *sine Cesto Veneris*. This word being taken into the Civil Law, had a determinate meaning appropriated to it ; for there were three kinds of unlawful Marriages, *damnatæ, incestæ,*

cestæ, and *nefaria*. The *damnata Nuptia*, are those which the Law, for political Reasons, has forbidden: As the Conjunction between Guardian and Orphan; and in the Law of *Moses*, between the High Priest and a Widow; and in Christianity, between a Priest and an Harlot. *Incestæ Nuptia*, the Law defines to be *Coitio Consanguineorum vel Affinium*, the Conjunction of Kindred; meaning, in those Instances which are prohibited by the Law. Now these are forbidden for Reasons different from the former; for their nearness of Blood, which the Law would have more disseminated, for their Approach to Marriages plainly unnatural, for publick Honesty, or the like. But because some Persons have injudiciously called *unnatural* Mixtures, by the Name of *incestuous*, as *incestuous Lot*, and the *incestuous Corinthian*; therefore Men think they may equally condemn what the Law calls *Incest*, with those unnatural and abominable Conjunctions. And in Fact, these are not so properly *incestæ Nuptia*, *incestuous*, as *nefaria*, *impious* and unnatural Marriages. For *nefaria Nuptia* are, in a proper Sense, only those Marriages which are made in the right ascending or descending Line. The Marriages of Brothers is indeed, in the highest Degree, *incestuous*, and as such, prohibited by all Civil Nations: But they are unlawful for no

other Reason, than that they are forbidden by positive Laws. But because this Prohibition is not expressed in the Laws of Christ; therefore such Conjunctions cannot be against the prime Law of Nature, of which Christ's Laws are a perfect System.

But this is not intended so much as to insinuate, that such Marriages can now be made lawful, or are, for any Reasons, to be tolerated. The Prohibition of them indeed could not be founded upon a prime Law of Nature, because the Constitution of the World made it unavoidably necessary to be broken: But because God afterwards passed it into a Law; and it is now highly reasonable it should be a Law; and because the Reason of it is natural, and will be perpetual, and all Christian Nations have agreed to prohibit such Mixtures; he who shall now recommend them as wise and reasonable, cannot do it upon the Motives of Religion, Reason, or Modesty.

Of Mothers in Law, and their Husbands Children.

That the Marriage of these is utterly unlawful, may be gathered from this Expression of St. Paul; *it is a Fornication which is not so much as named amongst the Gentiles, that one should have his Father's Wife.* Now here we are to observe, that
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what St. *Paul* so highly abominates here, is not the Adultery, but the Impiery of it; not so much that it was committed with a Wife, as with his Father's Wife: And tho' considered barely as Adultery, it were a very high Crime; yet the Unnaturalness and Scandal of it, is what St. *Paul* here condemns. And indeed the Thing it self is so shocking to the common Sense of Men, that to name it only, is enough to confute it. For that Woman who is one Flesh with my Father, should be as near to me as my Father, and that is as near to me as my own Mother; as near, I mean, in the Eye of the Law, tho' not in the account of Nature: And therefore, tho' there be a less Turpitude in the Crime, yet it is equally prohibited; and is against the Law of Nature, tho' not directly, yet by Interpretation.

Of Uncles and Nieces,

Now if the very nearest Relations in the collateral Line, were not forbidden to marry by the Law of Nature, much less are they so forbidden, who bear a more distant Relation to each other. The ascending and descending Line are forbidden to marry by God in the Law of Nature: So are Mothers-in-Law and their Husbands Children: And Brothers and Sisters, are reasonably forbidden such Mixtures by the Laws of all the World,

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tho' not by the Law of Nature. As for all the other Degrees of Kindred, it is only then unlawful for them interchangeably to marry, when they are forbidden by a positive Law. And therefore the Conjunctions of Uncles and Nieces, of Aunts and Nephews, become unlawful, as the Laws of Men have decreed them so. But they were not originally unlawful, nor are they prohibited by any Law of *Christ*. And *Josephus*, upon very good Reasons, supposes, that when *Abraham* said of *Sarah*, *she is my Sister*; he expressed himself in a way very common among the *Jews*, and only meant, that she was the Child of his Father descending by his Brother. But whether this were his meaning, or that she was really his half Sister; it is certain, that by the *Levitical* Law, a Conjunction with either was forbidden. And therefore it is plain, that the Unlawfulness proceeded from the Breach of a positive Law, and not from the transgressing any Law of Nature.

Of the Marriage of Cousin Germans.

From what has been said, it follows, that no Man ought to be affrighted at the Pretences of those mistaken Persons, who violently contend that the Marriage of Cousin Germans is against the Law of Nature. For the Law of Nature being imprinted in our
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Hearts, explained by Christianity, and formed upon plain, prime, natural Reason; if a Man needs information as to the *natural* Lawfulness of such Marriages, when those Principles of the natural Law do not condemn them: He may as well want to be informed, when he does a thing against his own Will, as when he acts against his own Reason and against his own Nature, which, as was said, are the Principles of the natural Law.

But if it should be asked, what is the Sense of the *judicial* Law, in this Case, which is the main of our present Enquiry; I say, that supposing the judicial Law did still in any Instance oblige Christians, yet Cousin Germans would have the Liberty to marry. For I do not find that such Marriages are there forbidden. The Law it self, upon which the contrary Opinion is founded, runs in these words, *Levit. xviii. 6. None of you shall approach to any that is near akin to him, to uncover their Nakedness, I am the Lord.* We shall see whether this Law relates to the Marriage of Cousin Germans, by considering the Import of the words, *none of you, and near of kin to you.*

The Rabbies contend, that the words *none of you*, extend universally to both *Jews* and *Gentiles*. It may indeed easily be granted, that, in a Sense, all Mankind were included,
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as all who were born to *Israel*, and all the Gentile Profelytes to the *Jewish* Religion, were, as such, obliged to observe this Law: But to say, that it included Those who conversed not with the *Jews*, and were utter Strangers to their Laws, is as absurd as to say, that the *Parthians* were to be judged by the *Gallic* Laws, or that the *Persians* were indispensably obliged to observe the Laws of the *Greeks*. The Design of Those who would introduce this sense of the words, is, to intimate, that the Degrees here mentioned, are forbidden by the Law of Nature, and consequently, still obligatory to all *Christians*; but since it appears from the Premisses, that this cannot be; I shall only observe further, that no Nation of old did observe all these Laws, and that there was never any sufficient Argument to inforce the Obligation of them upon us. So that we now stand in the same Relation to them, that the *Jews* did, before the delivery of the Law; and if they were not obliged *then*, neither are we *now*.

As to the meaning of the words, *near of kin to you*; it has been observed, that our *English* does not fully express the Sense of them. The *Latin* is somewhat nearer to the *Hebrew*, *Vir Vir non accedet ad Propinquitatem Carnis suæ*, to the Nearness of of his *Flesh*, to her that is so near akin, that they

they usually live together in the same House; that is, Parents and Children, Brothers and Sisters, or Parent's Brothers, and Sisters. And it is very observable, that there is a mighty difference between *Propinqui* and *Cognati*: For God never forbade to marry our *Kindred*, but has forbade us to marry *the Nearness of our Flesh*. When we rightly understand this Expression, the Difficulties of the Question will be easily removed.

For *near of Kin*, is an indefinite Expression, and may signify as indeterminately, as *Great* and *Little* do. It may take in all Generations of Mankind, among whom any Records are preserved: As, among the *Jews*, they were from *Judah* to *Joseph* the Husband of the *blessed Virgin*. Thus likewise it commonly is among the *Spaniards* and the *Welch*, and in the greater and more noble Families in all Nations. But since, upon some occasions, the Prohibition of marrying with Kindred, hath reached farther than at other Times; it is highly proper, that the Lawgivers should explain the meaning of the indefinite Terms they use. Now *Hemingius* gives as probable an Explication of the Words before us, as can be taken from the Words themselves, or from the most evident design of them. *Propinquitas Carnis*, says he, *quæ me sine Intervallo attingit*. That is, she who is next to me, none intervening

vening between the Stock and me. The Propinquity, or *Nearness of my Flesh* above me, is my *Mother*; beneath me, is my *Daughter*; on the one side, is my *Sister*: This is all. To which may be added, that These are not to be *uncovered*, for thy own sake; they are thy *own, immediate* Relations. And if any others are prohibited, they are forbidden for the sake of These, for the sake of thy Father or Mother, thy Son or Daughter, thy Brother or Sister. For Thou must not *uncover that Nakedness* which is Thine own, in another Person who bears such a Relation to Thee in *Blood*, or Affinity. This I take to be all, that can possibly be said to be forbidden by the Expression of *near of Kin*, or *the nearness of thy Flesh*.

And this we find expressed in the Case of
 Levit.xxi. the High Priests Mourning: *The High Priest might not be defiled for the Dead among his People; but for his kin, that is near unto him, he may*: That is, for his Father, or his Mother; for his Son, or for his Daughter; for his Brother, and for his Virgin Sister. This is therefore the *Propinquitas Carnis*; she, who is born immediately of the same Flesh of which I am born; or she, from whose Flesh I am born; or she, who is born from my Flesh, is *the near of Kin* here meant. But when a Bar doth intervene, all the others may be accounted *Kindred*, but not *near a Kin*,

Kin, or nearness of my Flesh, which is here forbidden.

But That which ought to put it past all Doubt, the Conjunction of Cousin Germans was not forbidden by the *Levitical Law*, either expressly, or by Consequence from any other Prohibitions; is this: That it was practised by Holy Men, both before and after the Law, at the Command or Direction of God himself. Thus *Jacob* married *Rachel* his Cousin German, the Daughter of his Uncle *Laban*. And there was something very remarkable in the Case of *Zelophebad's* Daughters; who, because they were Heiresses, were commanded to marry their Kindred; and accordingly they married their Father's Brother's Sons. I presume to offer one Proof more, as the last and greatest Example, of the Lawfulness and Sanctity of such Marriages under the Law of *Moses*. The blessed Virgin the Mother of the holy *Jesus*, was married to her Cousin German, as was supposed, for this Reason: Her Husband *Joseph* was (saith St. *Luke*) the Son of *Heli*; that is, the legal Son of *Heli*: For according to St. *Matthew*, *Jacob* begot him. Now *Heli* and *Jacob* were Brethren the Sons of *Matthan*, who was Grandfather to *Joseph* and *Mary*: For unless by the Kindred of *Joseph* and *Mary*, the same Genealogy took them both in; the Account of the Genealogy of
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Numb.
xxxvi.

Joseph, could not have proved that *Christ* descended from the *Seed of David*. But if this Instance should not hold, and they were more distantly related, (for they certainly were Cousins) yet the Examples already given are enough to satisfy us in the Enquiry.

We now come to the Christian Law, and shall enquire whether our great Master and Lawgiver *Jesus Christ* hath prohibited the Marriage of Cousin Germans? But it cannot be very difficult to determine upon this Question: For the Sum of all that *Christ* hath said relating to Marriage, is this; *for this Cause, shall a Man leave his Father and Mother, and shall cleave unto his Wife, and they two shall be one Flesh*. So that he only here obliges us not to act against that primitive Law of Nature, in marrying in the right ascending and descending Line.

There are indeed some general Precepts in the *New Testament*, which may seem to relate to the Question of Marriages; as, *provide Things honest in the sight of all Men, and follow after Things which are of good Report*. The meaning is, whatsoever is against publick Honesty, the Law of Nations, the common Sense of Mankind, is not to be done by Christians, tho' the Thing it self be not forbidden by the Laws of *Christ*. And it was well observed of *Modestinus* the Lawyer,
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in Nuptiis, non solum quod liceat, sed etiam quod honestum sit, semper est respiciendum.

But to obviate the Inference which some might draw from hence, I offer this Caution; that we do not take up with false, or weak Opinions of publick Fame and Honesty. Nothing but the Laws of God or Men, or the general Opinion of that part of Mankind with whom we any way converse, is the Measure of publick Honesty. Thus for a Bishop to hunt in his Pontifical Habit, or a Priest to keep an Alehouse, is against publick Honesty. But when a Thing is questioned and disputed on both sides, by good and learned Men, to act either way, is not against publick Honesty.

The *New Testament* therefore, as to the Point before us, having only laid us under a general Obligation to conform to the Rules of publick Honesty; we are only to enquire, whether the Marriage of Cousin Germans be inconsistent with it, or whether it be condemned by the Law of Nations, or the general Opinions or Practices of wise Men.

And here, I observe, that *Plutarch*, speaking of the ancient Laws and Customs of the *Romans* in marrying their Relations, says, it was a Practice, before it was a Law; and because it happened, that a worthy Man found very considerable Advantage by marrying his Cousin German, the People passed it
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into a Law, that any other Man might do it. Now this was very ancient; and before this Law for such Marriages, I find no Law against them: And it is very certain, that the older the Times were, the greater was the Liberty of marrying their Relations. Thus much however is certain, that there was an early Law for it; but none, that I can find, against it. But in later Times, *Augustus* gave his Daughter *Julia* to *Marcellus*, Son of *Octavia* his Sister. And the brave *Brutus*, a wonderful Example of Virtue and Morality, married *Porcia*, the Daughter of his wife Uncle *Cato*. And that incomparable Man *Marcus Antoninus*, the Philosopher and Emperor, married his Cousin German, *Annia Faustina*.

Such Instances as these are sufficient to make one question the common Pretence, that the Marriage of Cousin Germans is against publick Honesty: But if we consider further, that God never forbad it; that he hath sometimes actually commanded it; that the Patriarchs practised it; that the *Jewish* Church never scrupled it; that it hath been admitted by the Law of Nations; and is nowhere prohibited in Scripture: We may, from these Considerations, venture to say, it ought to be of good Report.

But if we enquire farther, how these Marriages were considered in the Civil Law of the

the *Romans*, we shall still find a new Reason for lessening or removing our Scruples about them. For if the Law of the *Romans*, a Law composed by so many great, wise, and worthy Men, and which hath all along been in the highest Use and Veneration among the most considerable Nations; if, I say, they were allowed of by those Laws, we can have little Reason to think they can be of ill Report, or against publick Honesty. But that the Civil Law did permit such Marriages, it is in the Power of any Man abundantly to satisfy himself.

The Canon Law indeed, which is next to be inquired into, does forbid the Marriage of Cousin Germans; but it no where pretends, that the Marriage of Cousin Germans is against the divine Law. As is plain from the Epistle of *Rabanus* to Cardinal *Humbert*. *Quod Pontifices, usque ad sextum vel septimum Gradum, Conjugium prohibent, magis ex Consuetudine humana, quam ex Lege divina Eos præcepisse credendum.* The Canons did not intend to signify it to be against the divine Law, for Cousins to marry within the Degrees forbidden by the Canon Law.

But in *England*, these Laws are not now allowed, either by our Civil or Ecclesiastical Governours. They were laid aside, as burthensome and useles. They seemed to be chiefly Drains for Money, and Levies for

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Rents. And even at this Time, a Dispensation may be had from the *Pope* himself, for Cousin Germans to marry, if they can but come up to his Price.

Notwithstanding the Reflections hitherto made upon the Force of those Laws, which are commonly thought to oblige us; yet because the present Enquiry relates chiefly to the Obligations of the *natural* Law, from which, some suppose, there is a Prohibition derived against the Marriage of Cousin Germans: Let us farther, in few words, examine whether the Thing be in it self imprudent or unreasonable.

And here we may venture to affirm, that whoever shall go about to assign the true and proper Reasons, why, by the Law of God, Marriage is forbidden within certain Degrees; will experimentally find, that he is engaged in a Difficulty which he will never be able to surmount. And yet Men have ventured to give such Reasons as they could; but whether they are conclusive, will, in some sort, appear from the Examination of those which are the more specious. *St. Austin's* scruple is This: *Inest nescio quomodo humanæ verecundiæ Quiddam naturale ac laudabile, ut cui debet, Causa Propinquitatis, verecundum Honorem, ab Ea contineat, &c.* There is in the Modesty of Mankind something natural and Praise-worthy; which
restrains

restrains them from mixing with those, to whom they owe Honour and Reverence.

This indeed is a good Reason, where this natural modesty does really lay Restraints, and takes its Rise from a true Sense of Duty and Reverence; and is, consequently, one of the most proper and natural Reasons against the Conjunction of Parents and Children; and may, in some certain Circumstances, extend to the Case of Brother and Sister: But if you indulge it one step further, you may e'en let it run as far as you please; for you can never certainly know, where it ought to stop. It should therefore be restrained to the Bounds which God hath fixed; and the pretence of a natural Reason or Instinct, should not carry us further, than Nature ever intended. The Permissions of Nature, are certainly larger, than the Fears, the Scruples, the Interest of some Men, will let them avow. And tho' *Cicero* sometimes speaks against the Marriage of Cousins; we may reasonably suppose, he did it to remove a suspicion, that himself was too fond of a very near Relation of his own. For *Q. Fufius Calenus* had very severely upbraided him, Dio. Lib.
Filia Matris Pellex tibi jucundior, atque ^{46.}
obsequentior, quam Parenti par est.

But the best Reason against the Convenience of those Marriages, is, that it were better that Cousin Germans should not marry;

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propter multiplicandas Affinitates, &c. as St. *Austin* expresses himself, that they might multiply Relations and Friendships in more Families, and be an occasion of a more diffusive Charity and Benevolence. But to this I observe, that tho' this Objection were never so well founded, yet it does by no means prove such Marriages unlawful; nor did *Philo* and *Plutarch*, from whom St. *Chrysostom* and St. *Austin* borrowed it, design it should. And tho' there should be that one inconvenience in it, which the Objection mentions; yet there may possibly be other Conveniences in it which may render that one Inconvenience less forcible. St. *Austin's* Observation, in another place, appears to me very considerable to this purpose. *Fuit antiquis Patribus religiosa Cura, ne ipsa Propinquitat, &c.* The Dearness of Kindred will quickly wear out, and Cousins will too soon grow Strangers to each other: Therefore the Patriarchs were religiously careful to recall the Propinquity which was dividing and separating too fast; and as it were to fasten it by the Ties of Marriage, and recall it when it was flying away. And perhaps nothing was a firmer support to a Family, or a greater Band to conjugal Affection, than the Marriage of Cousins.

There is one trifling Pretence more against the Marriage of Cousin Germans, which I

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shall just speak to, before I leave this Point. Second Cousins, say some, are expressly forbidden to marry; therefore, much rather, must first Cousins be forbidden likewise; tho' they are not mentioned. To this I shall only say, that neither does the Law of God forbid either of them, nor the Laws of our Church or State, nor the Laws of Nature or Nations, nor right Reason. On the contrary, they all justify such Marriages.

R U L E IV.

The Ten Commandments of Moses, commonly called the Moral Law, is not a perfect Digest of the Law of Nature.

In the School of *Moses*, Men practised the first Rudiments of Perfection; but *Christ* was the last, and therefore the most perfect Legislator. They who began under *Moses* the *Servant* of God, were to advance under *Jesus* the *Son* of God. And therefore *Christ* is called $\tau\acute{\epsilon}\lambda\omicron\varsigma\ \tau\tilde{\epsilon}\ \nu\acute{o}\mu\omicron\varsigma$: If therefore we acknowledge *Christ* to be our Lawgiver, and the Gospel to be his Law, called in the *New Testament*, the *Law of Liberty*, a *Royal Law*; we are to expect that our Duty shall reach further, than to a bare Conformity of our Actions to the Law of *Moses*.

I will not here dispute whether *Christ* hath given us Laws, of which, neither before *Moses*, nor since, there are no Footsteps in the *Old Testament*; for I think there are none, which may not be said to have been some way taught and recommended before: But this I may venture to say, that some Perfections of Morality were, by *Christ*, super-added in the very Instances of the Decalogue. These also were bound upon us by severer Sanctions, are endeared to us by glorious Promises, and we, by the Assistance of God's Grace, are enabled to perform them.

To give an Instance of this: The *Christians* were obliged to love their Brethren, and their Neighbours; and so were the *Jews*: But with this Difference. The *Christians*, were commanded to show their Love to all of the same Nature with themselves, to all in Calamity: They were to consider them as Neighbours, which the *Jews* did not think themselves obliged to do. For to the Question asked by the *Pharisees*, and *who is our Neighbour?* *Christ* answered, in the Parable of him who fell among Thieves; he who is in need, is our Neighbour. The *Jews* understood this to mean, only one of their own Nation or Religion. Those of a different Country or Religion, were *an Abomination to them*. Here then is plainly a new Duty, to which the *Jews*, in the same Latitude,

Latitude, and the same Expressions, were not obliged by the Decalogue. This therefore imports as much as a new Commandment; for it is in Fact, new to me, if it imposes a new Duty. And that is made a Duty to us, which, to the *Jews*, was not a Duty; and we may perish for omitting That, to which they were not obliged so much as under the Pain of a legal Impurity.

But not to mention the many Precepts laid upon us by *Jesus Christ*, which were never heard of in the *Old Testament*, and which therefore justly make him our Law-giver; there may be many other Instances taken from the Nature of Things, to shew, the Imperfection of the Decalogue, considered as a System of the Laws of Nature. For tho' the Decalogue forbids us to do Evil, it no where commands us to do Good. The Sons of *Israel* are bound to do Evil to no Man, but are not obliged to do Good to every Man: Nor did they ever understand that they were bound to give Alms by the sixth Commandment. Of the same Nature are Gratitude, readiness to help the Miserable, the keeping a Secret, or the performing Promises; which are of greater moment to the Welfare of Men, than to be intrusted only to uncertain Inference or Analogy. And yet for These, there is no Provision made in the Ten Commandments.

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What we are to infer from these Remarks is, that when the Nature of Man was made, and in its Infancy, God drew from the eternal Fountain but a few of those natural Laws; but still occasionally added more to them, as the World did need them; and at last, by his Son, who in his Incarnation hath adorned our Nature with a Robe of Glory, hath drawn out all those Laws, by which we are to converse with God and Man, in the best and greatest manner,

R U L E V.

All the Explications of the moral Law, which are found in the Prophets, and other holy Writers of the Old Testament, are to be accounted as Parts of the moral Law, and equally obliging the Conscience.

When God had said, *Thou shalt do no Murder*; and *Moses*, in another Place, had added these words, *Thou shalt not hate thy Brother in thy Heart, nor be mindful of any Injury*; we are to suppose, that this Prohibition was intended by God in the Commandment, that it is a just Commentary upon the Text, and therefore a Part of the moral Law. Besides, by the sayings of the Prophets, they came to understand, what things

things were permitted by *Moses*, which yet God did not love. For tho' (as our Saviour afterward expressed it, *Moses* permitted Divorces *for the hardness of their Hearts*; yet, that *from the beginning it was not so*, they were sufficiently assured by the Gloss which God himself gave by the Prophet *Hosea*, when he said, *I hate putting away*.

The Use of this Rule, as it relates to our Conscience, is to shew of what Use in our Religion, and of what Influence upon our Lives, are the Writings of the *Old Testament*. All the moral Precepts of it arising from the Law of Nature, or universal Reason, are either Explications of the Decalogue, or evangelical Precepts by which the old Prophets did *prepare the Way of our Lord, and make his Paths strait*. In this respect indeed, the Prophets are *Preachers of Righteousness*; and we may refresh our Souls at those Rivulets springing from *the Well of Life*: But our chief Refreshment we are to take from our Redeemer, who hath *anointed our Heads, prepared a Table* for us, made our *Cup to overflow*, and of his *Fullness we have all received*.

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RULE VI.

Every Thing in the Decalogue is not obligatory to Christians, is not a Portion of the moral, or natural Law.

It has been a Question very much debated among the Ancients and Moderns, *Jews* and *Christians*, how the Ten Commandments ought to be divided. Particularly, whether those which we commonly call the *first* and *second*, are really two distinct Laws; or whether That, which is usually called the *second*, is not rather an Explication of the other, and so only a part of it. They who contend, that That which is commonly called the second Commandment, is only an Explication, or part of the first, would infer, that they are thereby only forbidden to introduce the Worship of other Gods, *Dii alieni*; or that they are not to consider the Images as Gods; but only as the Representation of God; and that therefore, they are not forbidden to pay them such Worship as does not belong to the true God. But on the other hand, they who say that the *second* is a distinct Commandment, are of Opinion, that it prohibits the making, or paying to Images any kind of Worship at all. These are the Consequences designed to be drawn

drawn from the different Division of the first Table; whether or no they justly follow from it, I shall not examine; but shall consider it, only as it relates to the Rule of Conscience.

It may not be improper however, occasionally to observe, that the Church of *Rome*, and the *Lutherans*, generally confound those two Commandments, yet for no other Reasons but such as are taken from their different Interests. For the Church of *Rome* is aware, that if the *second* be a distinct Commandment from the *first*, it will follow, that the taking of Images into Religion, or the worshipping the true God by an Image, is as expressly forbidden, as the worshipping more than one God in the first Commandment. But if these two Commandments were only one, then they are of Opinion, that this Prohibition of Images, being only a Consequence of the other Prohibition of having more Gods than one, is intended only to shew, that we are not to consider the Images as God; which the Church of *Rome* certainly does not.

The Interests indeed of the *Lutheran* Churches, which have engaged them in confounding those two Commandments, are less important, and therefore less excusable. They seem to confound them chiefly for this Reason, lest it should be unlawful to make, or
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to possess Pictures or Images. They still retain them in their Churches ; but are afraid of being charged with a Crime forbidden in the second Commandment : For they retain them only for the sake of Memory ; but in no sense take them into their Worship or Religion. But herein they are rather afraid than hurt. For tho' the second Commandment were distinct, and wholly forbid Images, and their Worship ; yet every thing in the Commandment is not of a moral Nature, tho' the Commandment it self be. For God was pleased to appoint such convenient Instruments of a moral Duty, as were fitted to the Condition of that People ; which, like the occasional Supporters of a Building, were placed there only till the building had fixed it self, and could stand alone.

But whether the Clause about having or making Images, be referred to the first, or second Commandment, the Case is just the same. If it be referred to the *first*, it intends, that they were not to make Images, lest they should become the Objects of divine Worship: If to the *second* : Then they were not to be made, lest they should become Instruments of a false *manner* of divine Worship: But in both senses, the Prohibition is still but relative, as is plain from *Levit. xxvi. 1. Ye shall make ye no Idols, nor graven Image, neither rear ye up a standing Image*

Image, neither shall ye set up any Image of Stone in your Land (to bow down unto it) for I am the Lord your God. So that it is plain, that the Prohibition refers not to the Image absolutely, but only as the Worship of it might be made a part of their Religion. God himself gave orders for the making the brazen Serpent, and the Images, or Hieroglyphicks of Cherubims to be set over the Propitiatory, which he would not have done, had it been against his own eternal Law. He suffered them not to worship them, but only to make them; which shews, that to make them, was no breach of Morality, tho', to worship them, was.

This then may serve for one Instance of the Rule; that the having or making Images, tho' it be, by the second Commandment, forbidden to the *Jews*, yet it is not unlawful to Christians.

Now as to the Religion of Images, I mean, the worshipping of God by them directly, or indirectly, whether That be lawful to Christians; tho' I have in some sort already shewn that it is not, when I observed, that the Lawfulness of it could not be inferred, but by confounding the first and second Commandment; or that tho' they were really one Commandment, yet it could not follow from thence, that the Worship of Images was lawful, or allowed of; yet it may not be altogether

together impertinent to determine this Case upon its proper Grounds, in these two Enquiries. 1. *Whether it be lawful to make a Picture or Image of God?* 2. *Whether it be lawful to worship God by either of them?*

As to the former, *whether it be lawful to make a Picture or Image of God?* I am of Opinion that it is not. And my Opinion is founded upon the plain Words of God in *Deuteronomy*, which in consequence of the *fifth Rule*, are to be considered as an Explication of the moral Law, and therefore obligatory to *Christians*; as relating to the Matter of the Commandment, giving a natural Reason for a natural Duty, and enforcing That by Argument, which was before supported only by Authority, and explaining upon *the Tables of the Heart*, that which he had before delivered to *Moses in Tables of Stone*. Take ye therefore good heed unto your selves, for ye saw no manner of similitude, in the Day when the Lord spake unto you in Mount Horeb, out of the midst of the Fire: lest ye corrupt your selves, and make ye a graven Image, the similitude of any Figure, &c. Now why should God so emphatically observe to them, that they saw no Image, but because he would not have them think of representing him by an Image? In other Places he discountenances

nances any such Attempts, in a manner, which shews it to be not only impious to do it in opposition to his Commands, but likewise, that it is absurd, foolish, and, in the nature of Things, impossible. *To whom will ye liken God? Or what Likeness will ye compare unto him?* says he, by his Prophet.

But it is commonly said, that tho' the Essence of God cannot be represented in Painting or Sculpture; yet such Representations as, upon certain occasions, he hath been pleased to make of himself, may. And since God was pleased to appear to *Daniel like the ancient of Days*, the Holy Ghost, *in the shape of a Dove*, and *Christ in the form of a Man*; these Representations may be made in Picture or Imagery, without any Disparagement to the Divinity.

To this I reply; first, that we are not to suppose that *Daniel*, in that Vision, really saw God, in the shape he there mentions. *No Man hath seen God at any time.* *Daniel* therefore did not see God the Father, nor could he possibly see him. God would not be represented to him by any visible similitude; neither therefore have we any Authority so to represent him by this Dream. It is not enough to say, that tho' *Daniel* did not see God's Essence, yet he saw a Representation of it; for he did not see any Representation of God; he did not see God
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by any Thing that expressed his Substance. The Vision might represent to him some august and glorious Figure ; but that could not represent a Being who has no Figure. But if, because there is in *Daniel*, mention made of the *Ancient of Days*, it were lawful to picture God like an old Man ; we might as rationally draw a *Door*, and say, it represents *Christ*, because he calls himself a *Door* ; or a *Thief*, and say, it is like the Day of Judgment, which is said to come *as a Thief in the Night*. But this is only intended to point out the Weakness and Indecency of such Attempts ; the unlawfulness of them, seems to arise from the express Command of God.

Our Saviour indeed, considered in his humane Capacity, was a Subject capable of being represented ; and therefore, it cannot be either impious or absurd, to possess, or make a Representation of *Christ's Humanity*, or, to speak more properly, his humane Body.

But there is a great and more plausible Pretence for the common Image of the Holy Ghost in the form of a Dove ; even the words of Scripture. For in this Instance, that Reason is of no Force, for which God forbade the making an Image of himself. For here they did not only *hear a Voice*, but also *they saw a Shape*. For the Holy Ghost descended in the likeness of a Dove, or *in a bodily Shape*.
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So St. *Luke* expresses himself. To this I reply, that the Holy Ghost did not appear in the shape of a Dove at all; but the Dove mentioned in the account, signifies only the manner of his descending and hovering over *Christ*. As is plain from the words of St. *Matthew*, he saw the Spirit of God descending *like a Dove*; that is, as Doves use to descend, hovering over him. It cannot be denied indeed, that Men generally suppose, without having considered the Point, that the Holy Ghost did actually descend in the Shape of a Dove. Yet granting this to be true, it will amount only to thus much; that they beheld a Light, formed into such a shape; like a bright Cloud, which represents different Figures, according to the differing Imaginations of the Beholders: And if they saw nothing but a dazzling light in such a Form; they cannot justify themselves in making That a real and proper Representation of the Holy Ghost. *Tertullian* indeed, is of Opinion, that it was really and properly a Dove which descended. If it were so, the whole Business is at an end: For any Dove may be represented; but the holy Spirit is not to be represented by that Creature, which was only sent upon his Errand and Design. And this I take to be a full Solution to the Objection. If either of the Persons in the most holy Trinity were to appear

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in a bodily Shape ; I doubt not to say, that Shape might be painted, or an Image of it made : But God having hitherto kept himself, with regard of his Substance, within the secret Recesses of his Sanctuary, it is the greatest Absurdity to suppose, that the God-head can be represented by This or That Form. If therefore a Dove be drawn, it must not be designed to represent the Holy Ghost. For tho' it should be granted, that at the descent of the Holy Ghost upon our Saviour, the shape of a Dove was really visible, yet that Form bore no manner of Relation to the Person of the Holy Ghost, but only to the Impression made upon the Person on whom the Form descended.

Some will contend however, that it cannot be unlawful to represent in Picture those Ideas, which the words of Scripture had before conveyed to the Mind. And therefore since the words of the sacred Writers have ascribed to God a particular and distinct shape, it cannot be more impious to describe him in Picture. But let these Men represent God in Painting, *as one awakened out of sleep, or as a Giant filled with Wine* ; and their saying, that This may be drawn, as well as written, will not save them from the Charge of unsufferable Impiety.

But the next Enquiry, *whether it be lawful for Christians to worship God by an Image ?*

Image? Is of much greater Importance. This Question is best resolved by the Commandment: For it is certain that the *Jewish* Church, in Obedience to That, thought it Idolatry to worship God in any Image whatsoever. Thus the *Israelites* were Idolaters when they made the golden Calf; and proclaimed, *These are thy Gods, O Israel, who brought thee out of the Land of Egypt; and to Morrow is a Solemnity to Jehovah, said Aaron.* The Calf they designed for an Image of their God, and by it intended to worship him: *For they changed their Glory into the similitude of a Calf that eateth Hay;* that is, they represented their God, who was their Glory, by a golden Calf. In short, the Unlawfulness of worshipping God by an Image, was so universally maintained by the Fathers, so condemned by the Doctrines and Practice of the Church, and the Opinions of the *Jewish* Doctors; that *Vasquez*, a great modern defender of Image Worship, is forced to confess that, at that time, when the Commandments were given; it was not lawful, to worship the true God by an Image.

But, say some, tho' it was not then lawful, it is lawful now: For the Prohibition was only temporary, as it was only calculated for restraining that strong Inclination to Idolatry so visible in the *Jews*: And that

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therefore the Precept it self was meerly of a *positive*, and not a *moral* Nature.

In opposition to this, it may be observed, that Idolatry is a Sin against the Law of Nature; and that therefore whatever was Idolatrous in the *Jews*, is likewise Idolatry in *Christians*. Now that the worshipping God by an Image is Idolatry, or a Sin against natural Reason, may in some sort appear, from the Absurdity and Impossibility which was before observed, of representing God by an Image. Besides, to worship false Gods, or to pay divine Honour to an Image which is not God, is equally idolatrous: For in each Case, we make That to be our God, which indeed is no God.

He who forms an Image of God, and worships it, pays it the very worship due to God whom it represents, or a worship of a different kind. If a different or less worship, he does not properly worship God in the Image: But his Adoration, such as it is, is terminated on the Representation. But if I would worship God by the Image; then in the Act of Adoration, I conjoin and consider them as one Object, and so pay to both the same Worship: And therefore, unless the two different Objects, the Exemplar, and the Representation, become really one, I cannot avoid paying divine Worship to that which is no God; which is direct Idolatry.

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The Council of *Trent* used much Caution in determining upon this invidious Article. It appointed no *particular* Honour, but only that *due* Honour and Worship be given to them: Yet when at the latter end of the Decree, it approves the second *Nicene* Council, and refers to it in the Article; it is too evident what kind of Honour and Worship was intended; nor is it to be believed, that they designed to contradict an Opinion, at that time so generally received, or openly recede from the determination of their great *Aquinas*. They very artfully endeavour to make this Doctrine seem to be what it is not, and fancy they maintain it, by explaining it thus: This worship being not for the Image, but, for God's sake, passed through the Image, does not give divine Worship to it. But it may be asked, is it a divine Worship that is paid to the Image, or is it not? Is it the same which is offered to God? Or is it of another kind? If it be the same, then tho' it be not for the Image, but for God; yet it is for God, that divine Honour, is paid to the Image; which is as much as to say, it is for God's sake, that what is due to God only, is offered to that which is not God; that is, for God's sake they commit Idolatry. And on the other hand, if it be not the same Worship, then how do they Worship God by the Image?

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A good Man, in short, is a much nobler Image of God, than any Painter or Statuary can make: But if when we pay divine Worship to a good Man, we are guilty of Idolatry; much more are we guilty when we pay it to an Image; which does not so nearly resemble him. This Instance may serve to take off the trifling Distinction of *relative*, and *terminative* Worship. For if we should offer Sacrifice to a Man, build Temples, and erect Altars to him; it would not serve our turns to say, that we do all this to God, whose Image this Man bears, or that we intend these Honours to God *finally*. This certainly must be Idolatry. But it may be further observed, that tho' the distinction above-mentioned is of great Service to the Inventers and Maintainers of it, as it renders the Question difficult to the Weak and Superstitious, and affords to themselves the better opportunity of removing Scruples: Yet they do pay, and openly profess to pay divine Worship to that which is no God: Which may be thus proved. The Cross on which *Christ* suffered, is but a Creature; but to the *Image* of this Cross they pay a *relative* divine Honour; therefore to the *Exemplar*, that Cross whereof the others are Images, they *terminate* the divine Worship paid to it. This is plainly asserted somewhere by *Jacobus Almain*; *the same Honour*

Honour is owing to the Image and the Exemplar. And therefore the Images of the Trinity, of Christ, and of the Cross, are to be adored with the worship of Latria; that is, with divine Worship.

But next to the Reasons taken from the Nature of the Thing, the Practice of the Primitive Christians, and the Ecclesiastical Laws, will give us the greatest Insight into the lawfulness or unlawfulness of worshipping God by an Image. The Primitive Christians so abhorred the worshipping God by an Image, or Representation, that they industriously avoided the having any in their Churches. And what *Lampridius* says in the Life of *Alexander Severus*, is very remarkable; that when *Adrian* had commanded Churches to be built without Images, it was conjectured he designed them for the Service of *Christ*. This I take to be a clear and strong Proof of the Doctrine and Behaviour of those first Christians in this Point. As to the Ecclesiastical Laws; the Council of *Eliberis* in *Spain*, made a Canon, * *that Pictures must not be in Churches, lest that which is adored or worshipped, should be painted upon the Walls*. Thus likewise the Fathers of ^{Syn. 7.} the fourth Council of *Constantinople*, quoted ^{Act 6.}

* Placuit Picturas in Ecclesia esse non debere, ne quod colitur, &c. *Eliber. Can.* 36.

the words of *Epiphanius*, as we may learn from the Acts of the second *Nicene Council* in these words; *Take heed to your selves, and retain the Traditions ye have received, decline not to the right Hand, nor to the left: And remember, my dear Sons, that ye introduce not Images into the Churches, nor into the Cemeteries of the Saints; but by Remembrance place God in your Hearts.*

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To the same purpose it was decreed by another Synod at *Constantinople*, consisting of 338 Bishops, under *Constantius Copronymus*; prohibiting all use of Images in Churches or not in Churches; and so much of their Decree as prohibited the worshipping of Images, was followed by *Charles the Great*, and the learned Men of that Age, and confirmed by a Synod at *Francfort*, whither the Bishops of *Italy, France, and Germany*, were convened to that purpose. To these, if we add the Council of *Mentz*, and the second Council of *Sens*, which ordered *Populum moneri ne Imagines adoret, that the People should be admonished not to worship Images*; we have sufficient Proof of the Christian Doctrine, and Usages of the best Men and the best Times.

For these Reasons we may conclude, that neither God nor Nature, neither Reason nor Religion, introduced Images into the worship of God; but that they got into Use from the Weakness and Superstition of some, or
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from the mean villainous Arts of others. And it is no inconsiderable Argument against the Use or Conveniency of them, that they who are most deeply concerned in the Defence of them, never say, that the Use of them is either enjoined by God, or prove, that to worship God by them, is more acceptable to him, than to pay him divine Honours without them. Besides, all the Religions that ever God instituted are directly against Image worship: And, in a word, if the Testimony of those many great Men, who affirm, that all the Precepts in the two Tables of *Moses*, but that of the Sabbath, are in themselves moral, or proceed from the Law of Nature, is of any Force; we may certainly pronounce the Doctrine of worshipping God by Images, to be directly against the Law of Nature too.

Of the Jewish Sabbath and the Lord's Day.

The Precept of the Sabbath is one Instance more to verify the Rule under Consideration. Now God instituted the Sabbath for many Reasons: As that it might be a perpetual Memorial of the Creation, and that himself might be glorified in the Work of his Hands, by the Religion of that Day; and in order to keep up the Memory of their Deliverance from Captivity in *the Land of Egypt*, *Deut. v. 14.* and that some tolerable

ble Ease and Remission from daily Labour, might be allowed to Servants and Slaves. These are Reasons for which God gave the Precept relating to the Sabbath: But it cannot follow from hence, that there was a natural Morality in observing that Day; because those Precepts which are given for a temporary Reason, cannot lay Men under an eternal Obligation. The *Jewish* Sabbath therefore, which was instituted for Reasons which might cease, and which actually have ceased, might be, and indeed is, wholly abrogated.

But tho' it be absolutely necessary that some Time must be set apart for the Worship of God, and accordingly, among Christians, that which is called the Lord's Day, is appointed for his more immediate Service; yet this doth not properly succeed in the Place of the Sabbath, but is entirely of Ecclesiastical, or human Institution. It was not introduced in obedience to the fourth Commandment; for the Christians, for a great many Years together, observed the Day prescribed in that Commandment. They did not think there was any thing moral in observing the Lord's Day, above any other Day, only as that was the time they had set a part for the more immediate worship of God; which they were naturally and morally obliged to do; but which they might as well have command-
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ed to be done on any other Day. For it is impossible to assign a natural or a moral Reason, why one Day in seven should be set apart for the Service of God, rather than one Day in six, or in Ten : For as it doth not naturally follow, that, God having on the seventh Day ceased from the Work of Creation, we are therefore to keep the seventh Day holy ; so neither could we possibly have known it, but by Revelation : From whence it evidently follows, that all the Morality that ever was in the keeping that Day, was derived, not from natural Reasons, but from mere positive Institution.

However, in imitation of the Reasonableness and Piety of that Law, and in Commemoration of a much greater Benefit than was there recorded ; a Day of more solemn Religion, was instituted and observed by the Christian Church. For as on the *Sabbath* the *Jews* remembered the Creation, and their Redemption from *Egypt* ; so on the *Lord's Day*, the *Christians* commemorated the Works of God, their Redemption from Sin, Hell, and the Grave. Now it may be fairly supposed, that the Reasons for observing the Sabbath, were to yield to those stronger ones for keeping the Lord's Day ; as the Light of a lesser Star, is lost in the Glories of the Sun ; and tho' it be there, yet it appears not to
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the Eye, whose whole Capacity is taken up with a greater and stronger Lustre.

And that we are wholly discharged from the Observation of the *Sabbath*, is expressly affirmed by *St. Paul*, who says, that Feasts, new Moons, and *Sabbath-days*, and Meats, and Drinks, are but *the Shadow of things to come, but the Body is of Christ*, Colof. ii. 16. The Primitive Christians indeed, as was observed, did meet publickly on the *Jewish Sabbaths*; but they did not think themselves obliged to it by the fourth Commandment, which they affirmed to be *ceremonial* only, and no part of the *moral* Law, as may be seen in *Irenaeus*, *Tertullian*, *Origen*, *St. Cyprian*, and others.

When therefore the Obligation Men were under to the *Jewish Sabbath* ceased, the *Christian Liberty*, like the Sun, after the Dispersion of the intervening Clouds, appeared in its full Splendor. Then the Division and distinction of Days ceased, and as *St. Paul* argues in his Epistle to the *Galatians*, one Day was not more holy than another. But tho' there was no natural Holiness in any Day; yet it was always thought proper, to commemorate the great Blessings of God, which had been conferred upon certain Days. And tho' all the Christian Church that observed the *Sunday Festival*, did it in remembrance of our Lord's Resurrection; yet

yet, that the Day in which it was thus remembered, was not more holy than another Day, or naturally necessary to be observed, appears evidently from the Practice of all the *Eastern Churches* and all the Disciples of *St. John*, who celebrated the Feast of our Lord's Resurrection; I mean the Anniversary, the great Feast which was the Measure of all the rest, not upon that Day of the Week on which he rose from the Dead, but on the Day of the Full Moon, whenever it should happen. Which plainly demonstrates, that the observation of the Day on which *Christ* rose from the Dead, was not of Divine or Apostolick Institution. The Memory of the Blessing, indeed, was to last for ever: But we are under no natural Obligation to observe the Anniversary; tho' the Circumstance of its being the yearly returning Day, might render it proper and convenient.

The Observation therefore of that particular Day which we call the *Lord's Day*, being not enforced upon Men by any Law of God, but merely by humane Laws; it may possibly be asked, *how are we to celebrate this Day?* To this I answer, that as the *Jewish* manner of observing it was with a perfect Rest; so the Christian manner consists in an excellent Religion and Devotion. They were to abstain only from such Works

on that Day, as were inconsistent with the Duties they were obliged to perform. This was the only Rest in which the Christians were on that Day to indulge themselves; for even their bodily Labour, on that Day, was sanctified, if it was laid out in Acts of publick or private Benefit, or Charity. And it is certain in Fact, that the Primitive Christians, even in the Times of Persecution; when they more severely observed all the divine Commands, did all manner of Work on the Lord's Day; which they would not have done, had they thought themselves commanded by God, not to do any. And therefore when the Emperor *Constantine* had published an Edict against working upon the Lord's Day; yet he excepted and allowed of Agriculture, or the Labours peculiar to Husbandmen.

The *Rest* of this Day was so wholly calculated for the Ends of Religion, and so immediately related to the publick Services of the Church; and, considered absolutely in It self, was so far from being any part of the Duty of the Day, that many of the Fathers have affirmed it to be better to follow our ordinary Occupations on that Day, than to be idle and do nothing.

In those places, where the Offices of the Church do not take up the whole Day, we may, upon just Cause, do any manner of Work;
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which is neither forbidden by our Superiours, nor scandalous to our Brethren, in those Hours of the Day which are unemployed. Now the Lord's Day being set apart by the Church for the publick Duties of Religion, ought to be employ'd as the Church enjoins. And tho' it would be very Pious, not only to attend the publick Offices, but also to be more taken up in our private Devotions, on that Day, than on other Days, yet the Church does not oblige us to it. The Question therefore concerning particular Works, or the Permission of Recreations, is wholly trifling and useless. For the Law has plainly determined *Quod Lege prohibitoria vetitum non est permissum intelligitur. That which is not forbidden in the negative Precept, is understood to be permitted.* But as it would be neither Pious or Prudent, for some Persons, on that Day, to indulge themselves in great Liberties of Sport and Diverſion; so neither would it be just or charitable, always to deny others, some proportion of it. The Plowman sits still in the Church, and the Priest labours: The wearied Man is indulged in some Recreations, which are denied to others, who need them not: And there is no violation of any Command of God, tho' the Day, for some pious and worthy Considerations, should be, by some Persons, less strictly observed.

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Thus I have considered the two great Exceptions which are in the Decalogue, and yet are not parts of the moral Law; but all the rest are natural Precepts of eternal Obligation. But for a Supplement to this Rule, and to explain some Questions which may arise concerning the Matter of the divine Laws, and their respective Obligations; it will not be improper to enumerate those Marks and Characteristicks, by which we may unerringly discover, what Precepts are moral, and what are not.

1. All moral Laws are such, whose first and immediate Measures are natural Reason: But of Precepts not moral, the Reason may be either Œconomical, or Political, arising from an Accident, or some new State or Condition, and the like. That we are to obey our Parents, is a moral Law. This we know naturally and from our very Being; and need not the Instructions and Reasons of other Men to satisfy our own. Love and Obedience, in regard to Children, are but Gratitude and Necessity. For Children come into the World weak and helpless, and live upon the Love and Care of Parents. They derive their Natures and their Birth, their Education and Subsistence from them; and consequently, owe them all That for which any Man can be obeyed and loved. And if we consider farther, that Children are a part
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of the Parents; that the Parents are blessed or cursed in them; that they feel a strong natural Affection towards them; that Parents are more wise, more powerful, prior in Point of Time, and, in every respect, more considerable; that Children cannot at first, either understand, act, or speak, and that therefore naturally they must be under the care of those who can; that no Man will give up his Right without just Reason, and the Reasons of Subjection, being some of them natural, and some perpetual, and all of them leaving behind them the strongest Motives to Gratitude and Endearment, cannot be obliterated, but must leave an indelible Impression: It must from hence naturally and necessarily follow, that Children are obliged to pay their Parents the Duties of Love and Obedience.

2. That, of which no Reason can be given, cannot be a moral Precept. For moral Laws, being also natural, are perfective of our Nature, and provide for our natural Wants, and prescribe the Measure of gratifying our natural Appetites. They are such, in short, in which all Mankind plainly and distinctly feels a Benefit. For this Reason, neither Sacraments, nor Sacramentals are reckoned among moral Laws; for they deriving their whole Force from divine, positive Institution, the Reasons for which are frequently
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kept secret and unrevealed ; we can neither naturally know, nor naturally assent to them, nor are we bound to observe them any longer than to the expiration of that Period, thro' which they were designed to last.

3. The Consequences of natural Reason, are no certain Indications of a moral Commandment. For, moral Laws are few, founded upon clear, distinct Reason, such as appears so to all discerning Persons. But if we were to follow every artful Deduction which cunning Men might draw from a natural Reason, we might be eternally bewilder'd and unhappy. And in Fact, the Observations, which Men make upon a natural Reason, are so deceitful and so fallible, that God's Wisdom and Goodness would never put our eternal Interest upon the Disputations and Decisions of Men. Some, for Instance, have contended, that it is a Consequence of the Law of Nature, that spiritual Persons should be exempt from the Civil Jurisdiction: But because they prove this only by some Proportions of Nature, by the natural distinction between *Spiritual* and *Civil*, or by two or three remote uncertain Consequences ; we are to lay no stress upon it. Nor indeed can we possibly imagine there is any Force in this Argument, unless we have forgot, that our blessed Lord, the Head of all spiritual Power, was yet Subject to the Civil Magistrate ; and that neither
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himself, nor his Apostles, have any where given the least hints to encourage an absolute Independence upon him.

4. When God prescribes a Law, and gives a Reason for it ; tho' the Reason be in it self eternal, yet it does not infer the morality of the Law, unless it relates rather to the Nature of the Thing, than to the Power of him who gives it. When God commanded the Children of *Israel* to give him the first Born, or to redeem it, he gives this Reason for it, *I am the Lord*, Numb. iii. 12. Now tho' this Reason be eternal, yet it does not point out the morality of the Precept, so much as the absolute Power and Dominion of God, by virtue of which he might enjoin what Commands he pleased.

5. All the Instances and Consequences of a moral Law, are not equally moral and necessary, with the original Law from whence they were taken. That those who *serve at the Altar, should be Partakers of the Altar*, is a moral Law, as it arises from the natural and essential Principles of Justice and Religion. Thus the *Jewish* Priests did eat of the Sacrifice, and were maintained by Tythes and Offerings. But tho' these were the ways in which the *Jews* observed this moral Law ; yet these very Instances of the manner of observing it, are not moral and eternal, because they might *naturally* have

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obeyed this Law as well, by fulfilling it in other ways of providing for their Priests.

6. The strong, violent, and firm Persuasions of Conscience in particular Persons, or in some Communities of Men, is not a sufficient Indication of a moral Law. The weak Brother, whom St. *Paul* mentions, thought it an Impiety to eat Flesh ; but he was abused. And there are at this time, great numbers of People, who cannot, on the Lord's Day, conscientiously dress Meat, or come into any kind of Recreation, tho' never so generally allowed, or never so innocent. Now when such a Persuasion makes a Sect, and finds bold and zealous Defenders ; it will in a little time dwell upon the Conscience, as if it were a Native there, tho' at the same time it is but an importunate, and bold Intruder, and ought to be turned out of Doors.

7. The Behaviour of Heathens, in a Matter which God had not expressly obliged them to perform, is no Proof, that what they did, in that Instance, was in Consequence of the Light of Nature, or a Duty of a moral Commandment. The Heathens paid Tythes to *Hercules*, kept Holy the Seventh Day, and forbad second Marriages to their holy Persons. But there is no Necessity upon this Account, of believing that these Actions were to them Matters of natural, or necessary

cessary Duty. As God never expressly laid these Duties upon them, nor no Evidence of Nature or Reason, could shew them that they were directly necessary; we may suppose the grand Reason why they performed them, to have been, from their having observed something like them in neighbouring Nations, or in those with whom they had any Commerce. But Consent can be no Argument, if it arises only from Imitation.

8. Tho' God should annex the Penalty of Death to the breach of a Law; yet that does not necessarily infer the Morality of that Law. To gather Sticks on the Sabbath, to omit Circumcision, to approach a Wife when it should be *with her after the manner of Women*, were forbidden by the greatest Penalty; yet they had not the greatest Obligation, as being neither natural, nor moral Laws.

9. When two Laws demand our Obedience at such a time, when it is impossible to obey more than one; that which has the least of Morality in it, is to give place to the other. The legal Observation of the Sabbath, and the doing Works of Charity, did often interfere in the Course of our Saviour's Life: But we find, that he constantly made the Sabbath give way to Charity.

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But notwithstanding these Rules of discerning between these Laws; which in all the Laws of God are *moral*, or not *moral*; the best and surest Resort is still to the Scriptures of the *New Testament*; wherein whatsoever is commanded to all Mankind, is either *moral* in it self, or is rendered so by Adoption; which last Clause I insert upon the score of the Sacraments, and some glorious Appendages of Morality, and heroic Acts of Charity commanded by *Christ*: The Observation of which, tho' it be not strictly moral, or of prime natural Necessity; yet because it is laid upon us by *Christ*, whose Law is to oblige us *as long as the Sun or Moon endureth*; to us *Christians*, and to all to whom the Notice of the Excellency of those Laws shall come, it is all one, in Point of Duty, and will not, in the Event of Things, be distinguished from That, which is in it self *moral*.

RULE

R U L E VII.

There is no state of Men, or Things, but is to be guided by the Proportion of some Rules or Precepts in the Christian Law.

Where there is no Law to lay Restraint upon us, we may do what we please: But where we are tyed up to Rules and Measures, we have no Lawgiver that can oblige us but God, who *in these last Days, hath spoken to us by his Son*; who, as he is *the Author and Finisher of our Faith*, so, we are to believe he hath taught us all his Father's Will. We pray, that *his Will may be done on Earth, as it is in Heaven*; which supposes, that he ought to rule our Wills here, since it is certain, he rules all above. All the Duty of Mankind lies in Religion, Justice, and Sobriety. God, by his Son, hath given us many Laws relating to these Things, and none which do not relate to them. If therefore our Lord be a perfect Lawgiver, his Law alone must be the Rule of our Duty and Obedience: But if he be not a perfect Lawgiver, where shall we go to find out the Will of God? Or discover a sure Place whereon to set our Foot?

The Result of these Reflections is, that we are to take all the Laws of Good and Evil from the Evangelical Lines. Right Reason indeed may discover the Measures of Things; but it makes no Laws, unless it be conducted by a competent Authority. Nothing therefore ought to be condemned which *Christ* permits, or be permitted, which he condemns.

Under this Rule, it may properly be enquir'd, whether it can be lawful for a Prince or Common-Wealth, to permit any thing to the publick Necessities of the People, which is prohibited by the Laws of *Jesus Christ*?

To this I answer, that if the Question means, whether in any Cases there may be *actual Impunity*, there is no Doubt but there may: For sometimes it is absolutely necessary, as when a Multitude sins; for in that Case to cut off all the Offenders would be a Remedy much worse than the Disease. But if by *Impunity* be understood a *legal Impunity*, it must either signify that a Law shall warrant the Action, or that it shall, before the Commission of it, promise Indemnity. If it warrant the Action, which is forbidden by the Evangelical Law, it erects a Government against the Law of *Christ*: If it condemns the Action, but at the same time promises Indemnity, it reproaches it self, and confesses its own weakness. But

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as the first can never be lawful, so neither can the other ever become lawful, but with these Cautions.

1. That the thing, thus permitted, be, in the present State of Affairs, absolutely necessary. Thus it is necessary, that in all Communities of Men there be borrowing and lending. But if this cannot be without Usury, tho' Usury were, of it self, uncharitable, yet the Commonwealth might promise not to punish it. And tho' Usury may be said to be unlawful, as far as it is uncharitable; yet when it becomes absolutely necessary, as is here supposed, it is comparatively charitable. For if to lend upon Usury can possibly be more charitable, than not to lend at all; to lend, is, in some sort, a Charity.

2. Impunity may be promised to any Thing prohibited by the Law of *Christ*, in such Cases, where we are uncertain, whether what we permit, be really permitted, or not permitted. Thus it frequently is in Questions of Religion; wherein, no doubt, there are many determinations given contrary to the Truth of God. But yet they may be permitted, in as much as there are great Probabilities produced on both sides: And no one is fit to punish the Error, but he, who is absolutely certain, and can demonstrate to others, that himself is not deceived.

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3. Whatsoever is against the Law of *Jesus Christ*, in any Instance, may not be directly permitted for the procuring any greater good; but only for the avoiding a greater Evil, which is otherwise inevitable. Thus a Prince, being fully persuaded, that to suffer the Doctrine of Transubstantiation, is against the Laws of *Christ*, is not to permit it, tho' the Parties concerned in it, promise to pay all the Gabels of the Nation, and raise an Army to defend it: But if a Rebellion cannot be otherwise prevented, it is lawful for this Reason, because, when two Evils are before me, but neither of them of my procuring, I am innocent if I suffer either; I am wise if I chuse the least, and am guiltless of any Crime, because I am but a suffering Person. Whereas, if I do it to obtain a greater Good, I chuse the Evil directly, because I am not forced to pursue the greater Good.

4. When any such unavoidable Evil is permitted against the Laws of *Christ*, it is by some means so far to be discouraged, that the necessary Impunity may not so strongly encourage the Evil, as the Censure may abate it. But because generally Impunity is the greatest Encouragement to Sin, and, next to the Pleasure or Interest of it, the strongest Temptation; we must take all the Care we can, that That which serves the Interest of
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the Republick, may not be prejudicial to the Souls of Men, by annexing to the unavoidable Evil, all the other Discouragements we are able.

These are some of the general Restrictions, under which, all Impunity of Evil is not to be condemned.

However, against the Doctrine of the Rule it self, there seem to lie a great many Objections; which may be taken from many Cases, for which the Laws of the Holy *Jesus* have made no Provision. War, with all the great Cases and Incidents of it, may be brought as an Instance. For since it is disputable, whether Christianity allows of War, but very certain, that it says nothing of it expressly, nor gives any particular Rules concerning it; it will seem to be a *Casus omisus* in the Law. Upon this Point may arise several Considerations.

Of the Measures of War, by Christ's Law.

1. If it be said, that War is wholly unlawful, and against the express Lines of our Religion: This indeed would remove the present difficulty, but not without involving the whole Christian World in many more. 2. If it be said that our Religion leaves the Affairs of War to be managed wholly by the Laws of Nature and Nations: We shall find that this Account will but embarrass the Enquiry,
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and never let us into any Light or Certainty. For if the Christian Law be (as has been proved) a perfect Digest of the Law of Nature; to say that Matters of War are to be conducted by natural Laws, is not to remove them from under the Cognizance of the Christian Law, because they are both the same. If therefore in the Laws of *Christ* there are no Rules of War, neither can there be any in the Laws of Nature. And besides this, if the Laws of Nature concerning War, be not set down in the Gospel, and that therefore we are to look for them in the Tables of our own Hearts, wherein we find such horrible Disorders, introduced by Passion, by Interest, by Custom, by Education; we shall find the Law of Nature a strange Thing, if we draw it from thence only, and from thence took our Rules of War, which is so very dissonant to the excellent and perfective Laws of Nature. 3. But if it be said, that War is to be ordered by the Measures of Peace, we say what, in the Nature of Things, is impossible to be true. And if it be said, that right Reason ought to be the Rule of it; it may be answered, that if right Reason were to be heard, there would be no War at all: And since one Party begins the War against Reason, it is not probable, that for any Reason that can be urged, he will give up his Advantage. Besides, in these Cases, whose

whose Reason shall judge? And whose Arguments shall determine?

Amidst these Difficulties, the Point that we can most reasonably rely upon, is this; that Christianity hath made no particular express Provisions for the management of War, because it hath so guarded all the Actions of Men; hath so ordered their Religion; hath taken such care, that all Men should be just; hath prescribed Laws so perfect, Rules so excellent, Threatnings so severe, and Promises so engaging, that nothing but the perverse Will of Men can obstruct the Happiness of Mankind. It would be absurd therefore for the injurious Person, to inquire how he ought to proceed in War, since he is already gone beyond all Laws, into a Condition of Things, where Laws are of but little value. But for the injured Person, he is to behave as well as he can, as having one Measure of *Action*, and another of *Defence*.

As to his *Defence*, that is not to be measured by Laws, but by Privileges: That is, Things having on one side, exceeded the Laws of Nature, he is left to the use of his natural Powers and Defensatives, and without any Restriction, to defend himself, and drive away the Injury. For there being no divine Law to forbid him to defend himself, he is at Liberty to preserve and exert those
Rights,

Rights, which every Man is naturally possessed of.

But then if it be asked, what is the Measure of those *Actions*, which are to be performed in the Defence of an injured Prince or Government; or how can they be measured by Christians, if *Christ* hath left no Laws relating to them? I answer, that the Measure of our publick Actions, is no other than That of our private Actions; since the same Rule of Justice ought to be observed between Princes and between private Persons. They are equally obliged *to do as they would be done to*, to observe Covenants, to perform their Promises, to hurt no innocent Person, whom they can preserve; and to preserve themselves, they must keep within the Limits of a just Defence. And as in private Contentions, and Assertions of Right, we must endeavour only to procure Justice, and do nothing inconsistent with Charity; or, are to assert our own Rights, without doing our Adversary Wrong, by a too angry or passionate Defence of them: Just so it ought to be in the Behaviour of Princes. For as Contracts entered into by a Multitude, are to be governed by the same Justice, as a Contract between two Men only: So in the Contentions of a Multitude, two and two thousand make no difference in
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the Equity of the Rule, but only in some accidental Circumstances of the Matter.

And here it may be seasonable to examine, whether the Precedents in the *Old Testament* are so far imitable, by those who engage in Wars, that they can pass into a Law? Or, if not, whether they are safe or no? And tho' the Instance in which I chuse to consider this Question, relate only to War; yet it may be of use in many other Cases; since there are some who think every thing imitable they find in the Scriptures; and others, who think nothing safe or warrantable which is not there.

1. It is very certain, that not every Thing done in the *Old Testament* is a warrant for us. I instance in all the Acts of Injustice, the Violences, the Rapines, the open Infringement of natural Rights, concerning which there needs no further Disquisition.
2. The Actions of good Men there recorded, are not a sufficient Warrant for our Imitation, not only when they are condemned, but even when they are mention'd without Censure. For as we are not to imitate *David's* Murder and Adultery; so neither are we to persuade another to tell a Lie for us, as he persuaded *Jonathan* to say he was gone to *Bethlehem*, when he only went into the Fields. And tho' we do not find that *Jacob* was charged with any Guilt in being Husband

Husband to two Sisters at one time ; yet this would not extenuate the Guilt of such an Action in Christians, who are conducted by a more excellent Spirit, taught by a more perfect Institution, governed by a severer Law, under the last and supreme Lawgiver ; and therefore ought to shew a greater and severer Virtue. 3. The Actions of Men in the *Old Testament*, tho' attested and furthered by the Providence of God, are no Warrant for our Practice, nor can they make an authentick Precedent. I mention the Fact of *Jeroboam* who rebelled against the House of *Solomon*. Tho' God was the Author of that alteration, and by his Providence ordered the Event ; yet *Jeroboam* had certain Rules to go by, which if he had observed, God would by other Means have executed his Design, and *Jeroboam* would not have become a Prodigy, and a Proverb of Impiety. 4. Actions done in the *Old Testament*, tho' by an exprefs Command from God, are not justifiable Precedents to us, unless we are under the same exprefs Command. *Jehu*, by the Command of God, took up Arms against the House of *Ahab* : But tho' our Prince be wicked, we are not, without such an exprefs Command, to lift up our Hands against him. 5. Examples in War are ever the most dangerous and uncertain Precedents ; not only because Men in a state of War are

more violent and unreasonable than at other Times; but because the Rules of War are the most uncertainly described, the Necessities contingent and numerous, and the Reason of the Action depending upon a multitude of Circumstances, is the less intelligible. *David* forced the *Ammonites* to pass under Saws and Harrows of Iron; and perhaps he had a Reason for it: But it would be a poor Reason for imitating an Action which appears very cruel and inhuman, for Christian Soldiers to say, they did it only because *David* did it. 6. But when a Law is changed, the Examples taken from that Law, lose all their Influence, and cannot make an imitation of them just or necessary. A private Man, among the *Jews*, might transfix his Brother or his Father, if either of them tempted him to Idolatry; and in the Cause of God, they might do Justice by a private Hand. But these Actions are no Examples to Christians; For when that Priesthood was changed, that Law was changed also; and in Consequence of that, these Actions, of *lawful* became *unlawful*, and therefore were not to be imitated. Our Lord's Disciples would fain have done as *Elias* did: But *Christ* instructed them, that he was not imitable in That, in letting them know that the Spirit, the great Instrument, or Principal of Action, was wholly changed.

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As to the *Example of Jesus Christ*, and how far that ought to be imitated, may be best declared by this short Rule. *In whatsoever he has given us a Commandment, in that only we are bound to imitate him: but in whatsoever he proposed to us as excellent, in that also we may imitate him.* This Rule fixes the whole Rule of Conscience in this Point: For our Saviour being an extraordinary Person, was to do some extraordinary Things, in which, either we cannot, or ought not, to imitate him. He underwent a Fast of Forty Days; we *cannot*: He whipped the Buyers and Sellers out of the Temple; but a Christian *may* not do an Action of this kind without a publick Authority. But then, as *Christ* must be imitated in all Matter of Duty, and is imitable in the Degrees of Duty, but that, as to the bare Circumstantials of each Duty, we are left wholly to our Liberty: So likewise it is in Things of his own Ordinance and Institution, wherein the Religion is to be obeyed, the Design to be observed and promoted, and the Essentials of the Observation to be religiously preserved; but in the Circumstances, which have no necessary Relation to the Nature of the Rite, or to the Religion, we are under no Obligation; nor are we obliged in point of Love, Duty, or Advantage, to imitate herein the Behaviour of our
blessed

bleſſed Lord. Thus, to celebrate the Sacrament of the Lord's Supper with Bread and Wine, to do it in memory of his Death, to do it as he commanded, in Obedience to him, to receive it from the Hands of the Miniſters of his Religion; is a matter of Duty, Love, and Obedience; but to imagine that we are ſo nicely to imitate the Actions, and the Circumſtances of the Actions of our Lord, as that we are neceſſarily obliged to take it in unleavened Bread, to mix Water with the Wine, to receive it in Wines of *Judea*; lying or leaning on a Bed, or to take it after Supper; is ſo far from being a Matter of Love and Duty, or a commendable Imitation of *Chriſt*; that it ſeems to be rather mimical and theatrical, a Snare to Conſciences, and an Abufe of Religion. It is rather Adulation than Love, to lay ſo much ſtreſs upon the imitating our Lord in thoſe Things, wherein he has never propounded himſelf as imitable, or demanded our Obedience. For what Inſtance of Religion or Morality was concerned in the Circumſtance of *Chriſt's* eating this Supper at Supper time? Or in the drinking the Wine of his own Country? Or, according to the Cuſtom of ſober Men, in diluting the Wine with a mixture of Water? How could theſe Things become Matters of neceſſary Religion or Imitation, when they are merely incidental, or the Circumſtances on-

ly of some of the ordinary Actions of Life.

Let us now enquire into *the positive Measures of Example*, and see what Examples may be safely followed.

1. That Example is safe, whose Action is warranted by God's Blessing. Thus the Piety of the *Ægyptian* Midwives is justly imitable, who refused to murder the Lord's People at the Command of *Pharaoh*; for it is said, *therefore did God build them Houses*. I do not mean, that whatsoever is blessed or prosperous is imitable; for that very Action which blesses or makes a Man prosper in this World, may damn him in the next: But only, that whatsoever God says he rewards with a Blessing, that, in equal Circumstances, may be safely imitated.

2. But because our Imitation of those Examples which are not strengthened and recommended by some certain Rules, is not a direct, but only a collateral Duty, not a Matter of direct Obedience, but only of Fame and Reputation, or the Care we ought to take of providing *Things honest in the sight of all Men*, therefore such Examples only ought to be followed, as are of *good Report*. He ought not to be called a just Person, who invades his Neighbour's Rights, or dispossesses another People who live at Peace, upon Pretence that *Nimrod*, who was an infamous

famous Man, did so. But when *Joshua* preserved the *Gibeonites* alive, in regard to the Oath he swore to them, notwithstanding they had deceived him; and yet made them Slaves to his People: He may safely be imitated both in one part, and in the other; and tho' we may not break our words upon pretence we are deceived, yet we may do all that we can justly do for the Interest and Safety of our Relatives; and may justify ourselves herein from the Example of *Joshua*, whose Character is intire and illustrious, and who is universally thought a brave and worthy Man.

3. We must carefully distinguish the Examples of Things *lawful*, from the Examples of Things *good* and *just*. We may always imitate *These*, but are to follow *Those* cautiously. Not only because what was lawful in the *Old Testament*, is not always lawful in the *New*; but because what is always *lawful*, is not always *fit* to be done. But then let every Example be proportioned to the Question: As, if it be asked, whether or no this Action be *holy*? An Example that only declares it lawful, does not come up to the Question: But if it be enquired, whether it be *lawful*? An Example proving it is *holy*, more strongly infers its being *lawful*.

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4. When evident Marks of Piety appear in the Example, it gives the stronger Warrant to an Imitation. Thus our Lord, in his Apology for his Disciples, appealed to the Example of *David*, eating the shew Bread. To them indeed the great Force of the Argument arose from the Fame and Character of the Patriarch; but our Saviour knew that *David* omitted a Ceremony, in order to perform an Act of Piety and great Charity to his hungry Followers. But yet *David's* Action only was not *Christ's* Warrant; but the Piety of the Thing it self was sufficient Warrant to them both.

CHAP. III.

Of the Interpretation and Obligation of the Laws of JESUS CHRIST.

RULE I.

In Negative Precepts, the Affirmatives are commanded; and in the Affirmative Commandments, the Negatives are included.

NOT he only who gives the Law, but he who authoritatively expounds it, becomes to us a Lawgiver: And all, who believe

believe in God, and his Son *Jesus Christ*, own themselves Subjects of the Christian Laws; but tho' all confess themselves equally obliged and equally desirous to obey, yet all do not obey alike: For Men, by a wrong or imperfect Interpretation of the Laws, become a Law unto themselves or others, prescribing Measures which our Lord never intended. But as Error in these things is of very dangerous consequence, I shall endeavour to lay down some plain and rational Measures of Interpretation.

It is observable that in the Decalogue, and indeed in the whole Law of *Moses*, there are more negative Precepts than affirmative. In the Decalogue particularly, all the moral Précepts, but one, (I do not here reckon the Observation of the Sabbath among them) are negative: That only of Obedience to our Superiors is not a negative Precept.

On the other hand, the Precepts of *Christ* are positive and affirmative, as is plain from his Sermon on the Mount, the Summary of his Law; wherein, when he explained the negative Precepts of *Moses*, he still superadded an affirmative of his own: So that it would be to little purpose to enquire whether, in the *Mosaic* Law the Affirmatives were included in the Negatives. It is indeed certain that the *Pharisees* did

not understand them so, nor were they always involved in the nature of each other; nor were the Promises of that Law sufficient to enforce and encourage the Practice of good Works, tho' the fear of Punishment should be enough to restrain the Evil. But that which now concerns the Conscience is plain and evident. In the Law of *Jesus Christ*, the negative and affirmative are cor-relatives, and mutually infer each other. Thus we find it express'd, *Whoso looketh on a Woman to lust after her, hath committed Adultery*. This was our Lord's Commentary on the sixth Commandment, which was negative. So again, *resist not Evil*, is the negative Precept; to which *Christ* adds, *if any Man sue Thee at the Law, and takes thy Coat, let him have thy Cloak also*. So in the matter of Oaths, He said, *swear not at all*, adding a more severe Negative to the Negative of the Law: but then he adjoins his own affirmative, *let your Communication be yea, yea; nay, nay*; that is, let it be plain and simple, meek, easy, and ingenuous.

As to the latter Part of the Rule, that, *in the affirmative Precepts, the negative is included*; there is no other Difficulty but This; that we take Care that the Negative be opposed to the Affirmative in Relation only to the same Subject; For, because we
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are obliged *to love our Friends*, therefore we must not *hate them*; but it does not follow as the *Pharisees* falsely expounded this Precept, that, because we are *to love our Friends*, therefore we must *hate our Enemies*. For here, the Negative and Affirmative relate not to the same, but to different Subjects.

RULE II.

When a Negative and an Affirmative seem opposite in any sense, the Affirmative is to be expounded by the Negative, not the Negative by the Affirmative.

Thus are these different Expressions of our Saviour to be understood; *Unless ye eat the Flesh of the Son of Man, and drink his Blood, ye have no Life in you: And He that eateth the Flesh of the Son of Man, hath Life abiding in him.* Now to Those, who contend that these Words relate to the sacramental Manducation, the Question will be, whether it be necessary to drink the *Blood*, as well as to eat the *Flesh*? For the exclusive Negative in the former Expression requires Both; and yet in the other, Life is promised to him that eateth the *Flesh*, without mentioning the *Blood*.

Now this Question is answered by this Rule. For if the Affirmative were, in this Case,

Case, sufficient when the Negative expressly requires more, than the Affirmative were directly contrary to the Negative; which we cannot safely suppose. Besides, in matters of Duty, whatsoever is any where required, is every where supposed; and tho' all our Duty is not every where repeated, yet, the not repeating in any Place, cannot lessen its Obligation in that Place, where it is expressly requir'd. And tho' we are assured in Scripture that *the pure in Heart shall see God*; and that *the poor in Spirit shall inherit the Kingdom of God*; yet, if all that is required, be not put together in the Duty, the Reward will not be given to the Person thus partial in his Obedience.

R U L E III.

In the affirmative and negative Precepts of Christ, not only what is in the Words of the Commandment, but whatsoever is symbolical or alike, is equally forbidden or commanded.

To the Enumeration of those *Works of the Flesh*, or Crimes of Men which are ordinarily provided against by human Laws; Gal. v. 21. St. Paul adds, *καὶ τὰ ὅμοια τῇς*, *Things like to these*. For there are some Crimes too shocking for the Ear; and these the Apostle
to

hints at, when he says, *It is a shame even to name such Things as are done of them in secret.* Now when all unnatural Lusts are prohibited, it is no part of the Perfection of the Law to name every kind of Impurity which may possibly be committed, or to mention the Circumstances of that Vileness, which gets a new Name, upon every little variation of them.

There are some Crimes which Nature and the common Sentiments of Mankind do so universally condemn, that they need no special mention in the Laws. No Law prohibits the eating human Flesh; and yet the civil part of Mankind does hate and detest those who do it.

In consequence of this Rule, the Christians have a certain Demonstration of the Unlawfulness of Polygamy, or the having many Wives at one time. For our blessed Saviour said, *He that putteth away his Wife, unless it be for Fornication, and marrieth another, committeth Adultery.* He therefore must be certainly guilty of Adultery who marries another Woman, when his Wife is neither put away, nor hath committed Fornication. But in this and the like Cases, we are to act by the measures of Reason, and the common Usages of Laws.

1. A Law drawn from another Law, must naturally and evidently arise from it; or else
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it must not be obtruded upon Men, as the Opinion and Intent of the Lawgiver. *Obeey them that have the Rule over you*, is a plain Precept : But if it should be inferred, that with Regard to any Determination of your Rulers, you are to deny your Reason, and give up your Understanding; this can never hold, because we are obliged to obey them only in such Things, wherein they ought to govern us. God only hath a Right to assert an uncontrollable Power over our Understandings. 2. That which is not expressed in the Letter of the Law, is then supposed to be intended by the Law, when it is not artfully and laboriously, but naturally, easily, and evidently deduced from it. For Laws ought to be as few as possible; and he who prescribes Laws to himself, which *Christ* never intended, ignorantly lays a snare for himself, and may do himself a Mischief by a superstitious Care to avoid it. *Christ* Commands us to do our Alms, and pray, *in secret*. From hence it plainly follows, that all the pompous Solemnities, all the Trappings and Ornaments of Prayer, designed to indulge our Vanity, and procure the Applause of Men, are criminal. But if I proceed further, and say, that therefore it is unlawful to appoint publick Assemblies for Prayer, at least, that it is unlawful to appear to Men passionate and devout; or should say, that private Prayer is

is better than Publick ; that therefore it is to be preferred before publick Prayer, and that consequently, we may safely *neglect the assembling our selves together* for Prayer : This, I say, would be a Conclusion too forced, and absurd, to carry in it the Force and Obligation of a Precept. 3. In deriving Duties from express Laws, the first Presumption should be for Piety and the Honour of God : That is, tho' the Obligation be not evident, yet, if it be plain that such Obedience is for the Honour of God, we may the more reasonably suppose, that such a Consequence might be intended by the Law of God, whom it so apparently serves. But where this Circumstance does not appear, we are to presume rather for our Liberty, than for the multiplication of Laws.

R U L E IV.

Where any thing is forbidden by the Laws of Jesus Christ, all those Things are forbidden also, which follow from that forbidden Action, and for whose sake it was forbidden.

The Laws of any Lawgiver, being the Result of his best Wisdom, are designed for the noblest End, the restraining of Evil. And tho' every particular Evil is not, cannot be specified,

specified, yet every Instance of it is thereby supposed to be provided against and discouraged. Thus it is in the Laws of God. When we distribute Alms, we are commanded not *to blow a Trumpet*; which was a general Prohibition of Pride, so strongly arising in the Minds of Men, upon doing a beneficent or generous Action. But if, without the Instance there specified, we are really proud of having done it, or show our Pride in any other Instance, we as effectually transgress the Commandment, as if we proclaimed our charitable or generous Actions by the sound of the Trumpet.

But this Rule hath two Limitations: It is not to be understood of Events which are *accidental* and *contingent*; but of such as are *natural* and *necessary*, *foretold* and *threatned*, or at least *common*, and *remarkable*. He who spreads false Doctrine in the Church, is answerable not only for the Heresy, but for the Mischief which he designs, or is willing it should produce. But if another Man, out of Malice, or to lessen his Reputation, should set up a contrary Heresy; tho' this Heresy certainly arose from the other; yet because it proceeded from it only *accidentally*, and upon a view, which the broacher of the former Heresy was an utter Stranger to; it cannot therefore be charged upon him, as a Sin. But any Effect
which

which *naturally* follows upon a forbidden Action, is, no doubt, wholly criminal. Thus he who divides the Church, is accountable for all the Evils, which, he knows, are the natural and necessary Consequences of *Schism*. So, if an imperious, haughty Woman, by a continual dissatisfaction and restlessness of Temper, Insolence and Ill-nature, disturbs her Husband's Quiet, robs him of the Ease of his Mind, and so occasions the Loss of his Health; she does not only violate the Laws of Love and Duty which she had vowed to her Husband, but is likewise guilty of his Murther, if he dies; or of any other less Misery, which she knows, her Ill-nature keeps him under.

Whatsoever Event is *foretold* or *threatned* to a forbidden Action, is also imputed to him who does the prohibited Action. He who grieves the holy Spirit of God, and causes him to depart; is likewise answerable for that Beggary and Meanness of Soul, with which the contemptuous Treatment of the holy Spirit, is often punished. But if an evil Event, be not either *natural*, or *threatned*, yet, if it ordinarily and remarkably occurs, it is chargeable upon him, who commits the forbidden Action, which occasions it. Thus it hath been frequently observed, that the Father's or Mother's Curse hath been attended with some terrible Misfortune upon

upon the offending Child. He therefore who shall commit an Action which shall derive such a Curse upon himself, is not only justly punished; but, if upon his Account, the Evil should descend upon his Posterity, he is guilty of that Evil, and is directly a Sinner in their Punishment.

R U L E V.

The Laws of Jesus Christ, are the Measures of the Spirit, and are always to be extended to a spiritual signification.

Humane Laws can exact but the outward Action. They neither have sufficient Power over the Understanding, nor are they competent Judges of the Will: And yet, without these Powers, their Interest is well enough preserved. He who pays the Debt he owes me, does me Justice, tho' he pays it unwillingly; and therefore falls not under the Censure of the Magistrate. Thus the *Pharisees* understood the Law of *Moses*; and supposed that Man to be innocent, whom the Laws did not make guilty: And this was one Reason why *Christ* prescribed new and better Rules to Mankind. He who offers a pure Lamb to God, may dishonour him with a filthy Thought: And no Sacrifice is pure, barely from the Skin and Colour, but from the

the Heart of him who offers it. Acts of outward Religion are *Publications* of the divine Honours, but the Heart does only *pay* them. If *They* are but *right with God*, our Services will never be wanting or rejected; and tho' our Hearts may supply the want of Power, yet it is certain, that nothing can supply the want of our Hearts.

This then is the first Sense of this Rule, that the Obedience which *Christ* demands, is a sincere Obedience of the Will; and that we are not satisfied with the bare external Action. He who distributes Alms to the Poor, and yet curses them in his Heart; or entertains *an Apostle in the Name of an Apostle*, and grudges him the Charge of his Diet, is neither charitable nor hospitable, nor will he find the Reward of an Apostle, or a Brother.

This Rule further intends, that the whole Design of the Laws of *Jesus Christ*, is to render his Religion a spiritual Service. From whence it follows, that the Body of Christian Services, is wholly made up of natural Religion, or such Duties wherein we can glorify God, and represent our own Wants: Such are Prayer and Thanksgiving, Acts of Love, Fear, Faith, Hope, the Love of God and our Neighbour; which are those Things by which we can either do Good, or receive any. And, excepting the Sacraments, whose

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Effect

Of the Interpretation of

Effect is spiritual, the Sense mysterious, the Rites easy, and the Number smallest of all; there is not in the whole Body of the Christian Law, any external Rite or Ceremony prescribed.

And as it intends an entire Abolition of the *Mosaic* Ceremonies, so it will not admit of a Body of new and superinduced Ceremonies. The Ceremonies of the Christian Worship, must be only the *Circumstances*, not *Parts* of the Religion, as they were in the *Jewish* Dispensation. If we are enjoined by our Superiors to pray kneeling, we must kneel in Obedience to the Law: And yet, at our private Devotions, we may either *fall on our Faces*, or pray standing.

But tho' the spirituality of the Gospel excludes all Ceremonies, all bodily Rites from being of the Substance of Religion; yet it does not prohibit the Ministry and Service of the Body: For to worship God with our Bodies, is a *reasonable*, and therefore a *spiritual Service*. Thus when the Eyes are lift up in Prayer, when the Bowels yearn with Pity, when the Hands are extended to succour the needy and distressed; the Body then serves the Spirit, the Spirit serves its God, and all is a spiritual Religion.

But because a *bodily Religion*, such as the *Jewish* was, cannot be a *spiritual Religion*,

on, such as the *Christian* must be; and yet the Service of the Body is also part of the Ministry of the Spirit: The Rule, which may determine our Consciences in the Instances of this Article, is This. *Whatsoever is an elicit or imperate Act of Virtue, whether it be performed by the Soul or the Body, is an Act of spiritual Religion;* which implies, that those only are properly Acts of spiritual Religion, which are the Productions of an holy Mind, or the proper and immediate Instruments of some Virtue.

RULE VI.

The imperate Acts, or outward Expressions of the Virtue of one Commandment, must not contradict the elicit Acts of another.

By *imperate Acts*, is here meant all those Actions which are commanded to be done for the Interest of any Virtue; but which are not *proper* to the Virtue, but may only *minister to it, or signify it*. To reject the impure Solicitations of the Unchast, is an *elicit Act* of the Virtue of Chastity: But to lie on the Ground, to wear an hair Shirt, to roll the naked Body upon Thorns, are only *imperate Acts*, such as may be chosen

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for

for the Interest of the Virtue, without being necessary to any Man. The Terms being thus explained, the following Remarks are the Measures of the Rule.

1. *The elicit Acts of several Virtues can never be contrary to each other.* Thus an Act of Religion is never against an Act of Charity. Charity is never inconsistent with Justice, nor is Temperance ever contrary to Piety. Indeed, it may so happen, that the outward Actions of several Virtues may not be consistent; as sometimes I may not be able at once to feed my Child, and the Poor that begs; or, at another time, to tell the Truth, and yet preserve the Life of my innocent Brother: But tho' the external Act cannot at all Times be exerted, and therefore must be omitted in some Cases, yet it can never be lawful, for the Interest of one Virtue, to act against another. Nor can it be said, that in the Cases just mentioned, in performing one Virtue, we act against the other; for here we only do that which we are most obliged to do, and would perform the other, were it in our Power. But, 2. *The imperate Acts of one Virtue, may contradict the instrumental or imperate Acts of another.* Thus Fasting, when it is commanded by Religion, may be prejudicial in the Opinion of our Physician, whom to obey, is sometimes a Precept of Prudence, and sometimes

sometimes of Charity. What we are chiefly to regard in this Case, is This: That since, all the *imperate Acts of Virtue* derive their Worth only from their *Relation* to Virtue; that *imperate Act*, which ministers to the Virtue then to be preferred, is to be preferred likewise. But in these Cases, Prudence, and the Conduct of a good Guide, is the best Security to him, who enquires with an honest and pure Heart. 3. Those Actions, which only collaterally and indirectly serve the Interest of any Virtue, must give way, if they would otherwise obstruct the proper Acts of any Virtue whatsoever. Thus Fasting must not then be used, when to Fast, would be inconsistent with Charity: For Charity is directly commanded, and for it self only; whereas, Fasting is made a Precept not for its own sake, but with a view to something else. 4. Tho' the Terms of Art here used, are not common, yet the Practice of these Rules in the Questions of Conscience will not be very difficult, if we will but, with some Application, observe the difference of outward Actions, and endeavour to discover, which are the *elicate* or *proper*, and which the *imperate* or *instrumental* Acts of Virtue. For these latter being in their own Nature sometimes obliged to give way to other Actions; but the former Actions always taking place, unless they

find an invincible Obstacle from without :
Our Duty will be easy when we once know
the Nature of the outward Action.

R U L E VII.

*When any Thing is forbidden by the Laws
of Christ, all those Things also, by which
we come to that Sin, are understood to
be forbidden by the same Law.*

In this Case, there is one great difference
between positive and negative Laws. For
when any thing is commanded or enjoined,
our Duty does not oblige us to make use of
this or that particular Instrument in order to
our Obedience, but the Choice is left whol-
ly to our own Prudence : For it is all one as
to the Law, by what Instrument our Obe-
dience be effected, so it only be a good one.
But in negative Precepts, the Case is diffe-
rent. For we are not only to abstain from
the Crime, but from every Instrument of it,
every Path that may lead to it, or whatso-
ever can introduce and promote it. For all
these Things bear some Relation to the Sin ;
and therefore, tho' every thing which is,
or may be good, is not commanded, yet e-
very thing that is evil, is forbidden. This
we are plainly taught by our Saviour's Ser-
mon in the Mount, wherein when he ex-
pounded

pounded the Precepts of the Ancients, he as strictly guarded the Purity of the Intention, as the external Action. And in this the Law of our blessed Master, is much more perfect than the Digest of *Moses*. For tho' there also God forbad Concupiscence, yet it was instanced only in the Matter of Covetousness.

He who thinks a lustful Thought, hath transgressed a Commandment: And if the Eye be adulterous, the Mouth impure, or the Hand unclean; the whole Man is polluted before God, and stands guilty of the breach of the main Law. The Rule therefore principally intends, that even the least Addresses and Preparations to forbidden Actions, are likewise forbidden. Thus, we are not only to abstain from Fornication; but even from those things which may probably become Temptations to it, as wanton Gestures, loose Dresses, eating high, and drinking deep, and all the other Arts of Pleasure and Provocation. For every Temptation is a Sin, when it is procured by our own Act and Design; and unless the Man be surprized, he never chuses the Instrument of Sin, only as an Instrument; but merely for the Relation it bears to the Sin.

Some Men who dare not act the Sin, will yet please themselves with the Contemplati-

on of it, and would act it, if they durst; And there are others, who are not afraid, but only unwilling to act it, because they would not lose the Pleasure of the Temptation, which lasts longer than the Pleasure of the Sin. There can be no other Reason assigned for this, but an immense Love of Sin, and so perfect an Adhesion to the Pleasures of it, that these Men will deny themselves even in that they most love, rather than at all interrupt their Relish for the possessing it.

But tho' these Men only tempt themselves, or handle the Instruments of Sin; tho' the Temptation does not carry them on to the Sin; yet, by this subtilty in sinning, they may be said to be the greatest Transgressors of the Laws of *Christ*.

RULE VIII.

The suppositive Propositions with the supervening Advices of our blessed Saviour, are always equivalent to Matter of Duty, and are, by Interpretation, a Commandment.

This Rule is principally intended as an Explication of the Precepts of Prayer, Alms, and Fasting; all which our Saviour, in his Sermon upon the Mount, expressed by way of supposition. This way of Expression, tho'

tho' it be not a positive and legal Expression of a Commandment, yet it supposes either a preceding Law, a constant Practice, or that They, to whom the words were directed, understood them to be real Intimations of the divine Pleasure. *When ye give Alms do not blow a Trumpet, said our Saviour, when ye pray, stand not in the corners of the Streets: When you fast, do not disfigure your Faces.* As to the Duties of Prayer and Almsgiving, there is no difficulty; our Lord and his Apostles having given us several express Commands relating to them. But as to Fasting, since he hath only given us these *suppositive* words, with a Prophecy, that his Disciples should fast in the Days of the Bridegroom's absence, and a Declaration of the happy Effects of Fasting; there is more difficulty in coming to know, whether these words have the Force of a Commandment.

I shall not here enumerate the Examples of Fasting recorded in the *Old Testament*, nor observe how necessary a part of Religion the *Jews* thought it. But it is certain, that our Saviour approved it, that he allowed a Time to it, even a Portion of that Time in which God will be served. And in that most excellent Body of Laws, his Sermon on the Mount, he recommends Fasting to us in the same manner, and with the same Force,

as

as he proposed the other Duties of Prayer and Almsgiving. But to put this Matter past all doubt, it is certain, that the Disciples of our Lord understood it to be a Duty. St. Paul
 2 Cor. xi. was *in Fastings often*; and this seemed one
 27. Characteristick of the Ministers of the Go-
 2 Cor. vi. spel: *In all things approving our selves as*
 4. *the Ministers of God in much Patience, in Watchings, in Fastings.* And when Paul and Barnabas were constituted Apostles of the Uncircumcision, they *fasted*, and prayed, and laid their Hands on them, and sent them away. And this Duty was thought so sacred, that St. Paul permitted married Persons to set apart some Time, from their ordinary Endearments, that they might give themselves to Fasting and Prayer.
 1 Cor. vii
 5.

Besides, Fasting is an Act that may contribute to many Virtues. It is an *elicite* and proper Act of Temperance, Repentance, Humiliation, and of the *Mortification of the Flesh, with its Affections and Lusts*: And it is an *imperate* or instrumental Act, as it ministers to Prayer. Now That which serves God, and ministers to Religion so effectually, which produces so many Graces, was practised by the Faithful in both Testaments, was part of the Religion of both *Jews* and *Gentiles*, an Instance of natural Religion, and an Impetration of God's Mercy and Compassion: That which *Christ* recommended,
 to

to which he has annexed Promises, and assured the World that his heavenly Father will reward it; that certainly can be no less than a Duty of the Evangelical, or Christian Religion.

RULE IX.

The Institution of a Rite or Sacrament by our blessed Saviour, is a direct Law, and passes a proper Obligation in its whole Integrity.

This Rule relates but to one Instance, that of the Sacrament of *Christ's* Body and Blood. For tho' *Christ* did appoint two Sacraments; yet that of Baptism was instituted in the Form of an express Commandment: But the other Sacrament, only by certain Intimations of Duty, by relative Precepts, and the Supposition of certain Actions. As, *quoties feceritis, as oft as ye shall do it*, and the like. Now whether this doth amount to a Commandment, is the Enquiry. And tho' the Question relating to half Communion, may be otherwise determined; yet it cannot be cleared up by any Instrument so certain and immediate as this.

In order therefore to the Rule of Conscience in this Instance; I observe that the Institution

stitution of a Thing by God and by *Christ*, is to be distinguished from the *Manner* of the Thing so appointed. When God appointed Marriage, he did not, by that Institution, lay every single Person under an Obligation to marry: For *some were Eunuchs from their Mother's Womb*, some were made such by Men, and others made themselves such *for the Kingdom of Heaven*. But then, if we consider the *Manner* of the Thing thus instituted, we shall find it a perfect, unalterable, universal Commandment. For tho' every Man be not, in Consequence of the Institution, obliged to marry; yet if he does marry, he is by the Institution, so far obliged, that he is not, upon any score, to transgress the Measures and Bounds of it. He must have but one Wife at a time; he must use her with Kindness and Honour, and within the Limits of Nature and Sobriety; and so in other Things to which he is bound by the Institution.

And the Reason is this; a divine Institution, is the proper Cause, Warrant, and Original of this State or Action: And therefore whatever is not in the Institution, is not derived from God, but from our selves. So that, tho' it does not oblige us in all Cases, to do the thing at all; yet, in every Case, when we do it, we are obliged to do it, as we are appointed.

Now

Now the Case is just the same, with regard to the Sacrament, as it was observed to be in the Institution of Marriage. For the word *Institution*, not directly signifying a Law, but rather, the prescribing the *Manner* and *Measures* of Obedience to those who are already obliged; all Men are not thereby obliged always to receive the Sacrament: For it being instituted only for certain Ends, and there being required in the Receivers some certain previous Dispositions; the Obligation to receive it can be only relative, and limited. But to them indeed, who do receive it, the Institution is a perfect, indispensable Commandment, for observing all those Things, which were intended in the Institution.

From whence we may safely argue, that since every part of *Christ's* Institution of the Sacrament, is for ever obligatory to all who receive it, and the taking it in both kinds, is part of his Institution: Therefore, all whoever communicate, are to receive it in both kinds. Hence we may plainly see the Absurdity of pretending a Tradition from *Christ* by the Hands of his Apostles, and the Ministry of the Church; when even in the essential Parts of that holy Supper, we celebrate it in such a manner, as *Christ* and his Apostles never did.

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Our Saviour, in this sacred Institution, gave his Apostles an express order, *drink ye all of This*. Now if *Christ* instituted this Sacrament for the whole Church, and the Apostles were the Representatives of the whole Body of *Christ*; then the whole Church, when they communicate, are obliged by the Commandment to receive the Cup. But if they did not represent the whole Church, where shall we find a sufficient Authority to prove, that the People are to receive at all? For if they received only in the Capacity of Priests, then the Institution reaches no further; and it would be as much Sacrilege for the People to eat and drink the Symbols, as to consecrate Them.

I shall here only make one farther Reflection, upon that artful and delusive Pretence, upon which, the Laity in the *Romish* Communion, are not uneasy in being deprived of the Cup in the Eucharist. They are told, that under each kind, whole *Christ* may be received: That he who receives the Body, receives also the Blood; because, by *Concomitance*, the Blood is received in the Body. Now, that this cannot be true, is evident; because the Eucharist, being the Sacrament of the Lord's Death, of his Body broken, and his Blood poured out; the receiving the Sacrament of the Body only, does not, by *Concomitance*, include the Blood,
since

since the Body is here sacramentally represented, as slain, and separate from Blood. And this is so notorious, that some superstitious Persons, *A. D.* 490. refused the Chalice, because (said they) the Body of *Christ*, represented in the Eucharist, is without Blood: Whereas the *Romanists* refuse the Cup, upon pretence, that the Body is not without Blood. But they were both in the wrong: For it is certain, that the Body is represented sacramentally as killed, and so, without Blood, which had flowed out at the Wounds; and therefore the Pretence of *Concomitance*, is wholly idle and impertinent. But tho' the Body is represented without Blood in his Death; yet, because the pouring out of his Blood is likewise to be sacramentally represented, they ought not therefore to have omitted the Cup.

In short, if it be true, that the Blood is in the Body by *Concomitance*, as it is called, and that therefore they who receive the Body, receive also the Blood; it seems a necessary Consequence, that they who sacrifice the Body, do likewise sacrifice the Blood; and then, it will be no more necessary to *celebrate*, than it is to *communicate* in both kinds.

RULE

RULE X.

If the Sense of a Law be dubious, we are sometimes to expound it by Liberty, sometimes by Restraint.

Tho' the Sense and Intent of the Laws of *Jesus Christ* are so visible, that all good Men, guided by the Spirit of God, and applying to proper means, may generally discern the main Intention and Design of God; yet the meaning of some Laws is so embarrassed by the difference of Mens Understandings, the various Circumstances of Actions, and other accidental Disorders, that a Cloud is thrown upon the Light of God's Word, and a Vail upon the Guide of our Lives. Now when any uncertainty of this kind occurs, the first sense of the words is to be either enlarged, or restrained, according to the following Measures.

In what Cases the stricter Sense of Christ's Laws is to be followed?

I. When the Duty enjoined by the Law, is under Consideration, and is to be done; we are rather to take the severer Sense of the Law. And the Reason is, because that is the surer way, and is neither inconvenient, nor impossible. For in a Matter of Choice, and on which we may deliberate, the safest way

way is to determine for God, and the Interest of Religion. Thus, we are commanded to *judge our selves, that we be not judged of the Lord*. Now in the Enquiry, which a Penitent Man may make, as to the Nature and Extent of this Duty; if the Question be, whether *judging our selves*, only means condemning our selves for our Sins, and owning our selves justly obnoxious to God's Displeasure; or whether it intends that we should put in Execution our own Sentence against our Sins, and chastise our selves with some corporal Punishments: If the Man can be no otherwise determined, he certainly acts safely in chusing the securer side. For here is the less danger of omitting any thing he ought to do: He does all that he imagines is required; and thereby certainly shews the utmost Caution and Regard, both to God and himself. But this is not only the safer Method of acting, but the securer Sense of the Law is of it self most reasonable to be chosen, as it is the very View and Intent of the Lawgiver, who puts no positive Bounds to his own Laws of Love and Duty. 2. In interpreting the Laws of *Christ*, the strict Sense is to be followed, when the Laws relate to God and to Religion, and contain in them direct Matter of Piety to him, or Charity to our Neighbour. For the farther we proceed in Actions of this kind, the nearer

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Approaches we make to our God; and are therefore never to be stopped till we arrive at our Journey's end. To this effect are those words of the Son of Sirach; *When you glorify the Lord, exalt him as much as you can; for even yet will he far exceed: And when you exalt him, put forth all your strength, and be not weary; for you can never go far enough. Who hath seen him, that he might tell us, and who can magnify him as he is? There are hid greater things yet than these be; for we have seen but a few of his Works.*

When the Laws of Christ are to be interpreted to a Sense of Ease and Liberty.

We are in no Case to omit any *necessary* Part of Duty, nor indulge the omission of it, to the Weakness or Infirmary of any Man. For our Weakness can never be the Measure of the Necessity of the Law. That Infirmary by which we omit any *necessary* part of Duty, is therefore a state of Sin. God, who well knew all our Imperfections, and the Difficulties of our Obedience, complied with them sufficiently in the Sanction of the Law, and laid on us no heavier a Burthen, than it was in our Power to support. So that no Sin, no Omission of any necessary Duty is to be allowed of; no Law of *Christ* is to be explained so as to comply with our Weakness, in opposition to the Command of God.

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But, on the other hand, when a less severe Sense is within the Limits of the Duty, it has been thought very charitable and necessary, that our Weaknesses ought to be complied with. Thus, if it should be enquired, whether our Sorrow for our Sins ought to be piercing, sharp, and sensible, like the Perception of any great temporal Evil, or that which a Mother feels at the Death of an only Child; this being a Question of Degrees, there is no necessity of answering in the affirmative. For any Degree which is consistent with the main Duty, may be permitted to him, whose Infirmary requires such Indulgence. For, were a weak and a diffident Man to be told, that the highest Degree of Sorrow is indispensably necessary, and that the Commandment is to be taken in the severest Sense; an exact Conformity would appear to him impossible; and he might desperately resolve to omit it all, since he is told he cannot be safe, if he omits any of it.

There is another Case in which the Law may be explained to a Sense of Ease and Liberty; I mean, in Questions relating to some external Acts of Religion. Thus it is in regard to the Injunction of Fasts, or other outward Acts of Mortification, which are indeed naturally deduced from the Laws of *Christ*; but still the Measures of these Laws

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are

are to be consistent with the great Design of the Law, which is Mercy and Internal Religion.

Who are truly and innocently weak, and to be complied with?

1. They are to be complied with, who are but Novices in Religion, or the uninstructed: Whose Weakness is derived, not from the Force of any habitual Sin, but only from the want of Knowledge. For none can more innocently or more justly pretend to Tenderness and Forbearance, than those, who with respect to Religion, are yet to be supposed weak as Infants. 2. They likewise are to be complied with, who are unwilling to make any abatements to themselves, but sincerely and diligently prosecute their Duty. For this Diligence and Sincerity is a sufficient Proof that their Weakness has been wholly innocent, and unavoidable. 3. Infirmary of Body is another Reason for explaining certain Laws in a sense favourable to the infirm. For God, who demands nothing that is impossible to be done, is satisfied if the Obedience of the Spirit be secured, and the Body obeys the Laws only as well as it can.

RULE

R U L E II.

The positive Laws of Jesus Christ, cannot be dispensed with by any humane Power.

I have before shewn, that the natural Laws, from which the Evangelical are chiefly taken, are indispensable. But *Christ* hath introduced some Laws whose Reason is not natural and eternal; and which therefore have given occasion to the Question, whether or no they are dispensable by an human Power. As to this Enquiry; I am of Opinion, that, since *Christ* is the King of Heaven and Earth, that he is the Head of the Catholick Church, and therefore hath Supreme Power; since he is *the wonderful Counsellor, the everlasting Father, the Prince of Peace*; since his Wisdom must be Supreme, in as much as he is *the Wisdom of the Father*; he hath made his Laws so wisely, and so adapted them to the Powers and Circumstances of Men, that they may be observed by *all Men*, and in *all the Ways*, wherein he hath made them absolutely obliging: Now, because every Dispensation of Laws supposes an Infirmary or Imperfection either in the Law, or in the Man; either, that the Law was attended with some Inconveniences unforeseen and unavoidable,

or that there may such a Change of Circumstances happen to the Man, as does not fall under the Cognizance of the Law: It therefore follows, that in the Laws of the holy *Jesus* there is no Dispensation. For certainly, there can be no Infirmary or Imperfection in his Law, for the Reasons above-mentioned: Nor ought we to suppose any Incapacity in the Man; for it may be in the Power of every Man, always to do all that *Christ* commands, or exacts of him; that is, he is under no natural Incapacity of doing any Act, which *Christ* hath required.

Indeed, with regard to some external Instances of a Commandment, it may be accidentally impossible to obey. Thus, for want of Water, we may not be able to baptize a Child; or, for want of Bread and Wine, cannot possibly celebrate the holy Eucharist. But it does not therefore follow, that there is a Power of dispensing in these things, lodged in any Man or Society of Men: For, in such Cases, the Obligation of the Law it self ceases; and therefore a Dispensation in it is wholly needless. God cannot be unjust; and therefore we need not beg his Pardon for leaving a thing undone, which we would, but cannot do; nor are we therefore, to suppose a Power of dispensing necessary to the Church, or to be intrusted to the Conduct of Men in any Cases,

Cases, where we cannot suppose, that the Laws of God do bind.

However, as to the Power of dispensing, several of the *Romish* Writers, have asserted that the Pope is invested with it, in relation to all the Laws of God, excepting only the Articles of Faith : But the more modest of them, have confined him to the exercise of it only in such Cases, where the Observation of a Law, shall be an Obstruction to a greater spiritual Good ; as it may happen, particularly, in the matter of Oaths and Vows. We shall be able to see whether they are in the Right, by making some Reflections upon an Instance of great Moment among them. A Man solemnly vows to marry a Woman, and contracts himself to her, *per Verba de presenti*. The Woman hereupon, considers him as her Husband, and loves him passionately. He changes his Mind and designs to enter into a Monastery ; but first would fain know, who can warrant him in the Breach of his Faith and Vows. The Pope answers, he can : And tho', by the Law of God, he be tied to that Woman, yet, because the keeping his Vows, would hinder him from doing God better Service in Religion ; there is sufficient Reason for dispensing with his Vow.

But this is directly against the Apostle's Rule, and is *doing Evil that Good may*
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come.

come. But besides, who can assure me that such an Act of Religion is better than an Act of Justice? Or that God will be served by my doing my Wife the greatest Injury? Or that by our Engagements to our Wives, we are not as much obliged to God as by monastick Vows before the Abbot? Or that Marriage is not as high an Act of Religion, if prudently and piously undertaken, as the taking the Habit of St. *Francis*? Or that I may not as well steal from a Man, in order to be able to give Alms, as wrong my Wife, in order to give my self to a Cloyster? Or that I can ever safely give my self to Religion by first breaking thro' the Religion of Vows and Promises, of Justice and Honour? Or that the doing the Duties of a monastick Life, will clear me from the Guilt of having made my Wife miserable, and all her future Life desperate and calamitous? Am I sure, or does it appear probable to me, that God will hear the Prayers I offer to him in a Cloyster, when possibly at the same time my injured Wife is praying to God to do her Justice, and avenge my Perjury upon my guilty Head? How therefore can I certainly know whether such a Religion is a greater Good, and as such ought to be preferred to the keeping a Marriage Vow: For I take Marriage or a single Life to be in themselves indifferent as to Piety or Impiety. They
may

may either of them be well used, or abused to the vilest Purposes.

No Man assumes to himself a Power of dispensing in the Law of God, but the Pope only ; and he does it only in consequence of those Words spoken to St. *Peter*, *Whatsoever thou shalt loose in Earth shall be loosed in Heaven*. ^{Matt. xvi. 19.} But did ever any of the Apostles, or apostolick Men imagine, that St. *Peter* could dispense with the Violation of a lawful Oath ? Did not all that Power then promised to him relate only to fraternal Correction ? And was it not equally given to the other Apostles ? For either it was never perform'd to St. *Peter*, or else it was in like manner promised and made good to the other Apostles, in the Donation of the Spirit, of the Power of binding, and the Words of Christ to them before and after his Resurrection. ^{Matth. xviii. 18. John xx. 23.} From whence it seems necessarily to follow, either that all the Successors of the Apostles have had the same Power ; or else, that the Successors of St. *Peter* never had it.

But however this be, if by those Words, *Whatsoever thou shalt loose*, the Pope claims an Authority of loosing or untying the Bond of Oaths and Vows, he may as justly claim from them such a Power over Men's Lives, their Rights, their most solemn Engagements,

gements, as we cannot without Impiety believe, that God would invest any Man with.

There is besides This another Consequence, which arises from the Reflections I first made upon this Rule, *viz.* that, as there is no Necessity that there should be any Dispensation in the Laws of Christ, so, in those Cases wherein there may be an improper Dispensation, that is, a Declaration that the Law does not in this Case oblige at all ; no Man must presume to appoint any Expedient which the Law permits not ; or assert, that a Part of the Law only may be used, when by the Institution the whole was made necessary. For instance ; under the want of proper Materials to celebrate the holy Eucharist, it might certainly be declared, that the Precept of Consecrating does not oblige, because no good Law can oblige as to Impossibilities : but then no Man may of his own Head propose an Expedient, and say, tho' there be no Wine wherewith to celebrate, yet you may do it in Ale or Water : nor can any Man warrant an imperfect Consecration, or allow the Priest to celebrate with Bread only. And the reason is plain ; because all Sacramental Institutions and positive Laws arise not from the nature of the Things themselves, but depend wholly upon the Will of the

the Lawgiver ; and the Will of the Lawgiver being actually thus specified, in this Manner, this Matter, this Institution ; whatsoever is superadded to this, is no part of the Legislator's Will, and therefore can have no Warrant or Authority.

And thus it is with regard to all positive Precepts, wherein the Will of the Lawgiver is the only Reason of them : And therefore the Manner of our performing them is never to be determined by our own reasoning upon them, but by complying with the Will of God, which is all the Reason we are here to enquire after. Indeed in natural Laws, and Obligations derived from reasoning upon the Natures of Things, we must do what we can ; and if we cannot do all that was at first intended, yet it is still the Design of God, that we do as much as we can. For there is a natural Reason to be given for a natural Duty ; and by this natural Reason, if we cannot come up to the whole Duty, we are still obliged to all the Parts of it, which are naturally good.

RULE

RULE XH.

Not every thing that is in the Sermons and Doctrine of Jesus Christ, was intended to bind as a Law or Commandment.

That we are to love God with all our Hearts, is the first and most important Duty; and there is a certain Point to which it must be carried, or we perform not the Duty at all. Thus, we are so to love God, that we love nothing in opposition to him, that we love nothing more than him, that we love nothing equal to him: In short, that our manner of loving him be such, as will engage us to set a due Value upon his Love, and comply with the Duty he demands from us. Thus far the Law obliges every Man. This may be called the *legal Sense of Duty*, to which we are obliged fully to conform, or we cannot be innocent. But there is another, which may be called a *latitude of Duty*, or a carrying the Duty of the Commandment still higher. But this is not a Consequence of the Obligation of the Law, but only of the Strength and Ardour of the Man's Love; which indeed God *encourages* as far as it can go, but *commands* no farther than to the strict observation of the Duty.

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The different Degrees of Perfection in Men, whom *Christ* will bless in another World, are a sufficient Proof, that every thing in the Sermons of our Saviour, was not intended to bind as a Law. He who observes all the Evangelical Exhortations, does not indeed do more than his Duty, but only does it better: And he who does it in a less perfect manner, shall indeed receive a less Reward, but shall not perish, if he obeys the just and strict Measures of the Law.

No Man however, in keeping the Law of *Christ*, must set Limits to a Duty by saying, *hither will I come, and no further*. For Evangelical Counsels are thus far necessary and obliging; that altho' in them, that is, in the Degrees of Duty, there are no determinate Measures prescribed; yet we are obliged, each Man in his proportion, from the beginning of each Duty, to endeavour to carry it on to Perfection.

But the Rule holds, as well in some great Instances of Duty, as in the Degrees of it. Thus, where those are mentioned, who *made themselves Eunuchs for the Kingdom of Heaven*, or who *sold all they had, and gave it to the Poor*; the Duties and Laws here designed, are Chastity, Benevolence, Contempt of the World, and Zeal for the Propagation of the Gospel. The Virtues themselves

selves are Duties to which we are obliged by Laws: But that we are to be charitable, to the Degree of *giving all away*, or chaste, by a perpetual Coelibacy, are not Laws.

Here it may not be improper to observe some of the Marks of difference between *Evangelical Laws*, and *Evangelical Counsels*. 1. Where there is not a negative either expressed, or implied, there it cannot be a Law, but is only an *Evangelical Counsel*. For in every Law, there is a Degree of Duty so necessary, that to fall short of it, is necessarily an Act or State of Sin: And therefore, if the Law be Affirmative, the Negative must be included, and is properly the Sanction of the main Duty. *Honour thy Father and thy Mother*, is a Law; because the lowest step of the Duty here enjoined, is laid upon us, by this Negative, *Thou shalt not curse thy Father or Mother*. But in the Evangelical Counsels there is nothing but what is affirmative. *There are some who make themselves Eunuchs for the Kingdom of Heaven*. This points out to us a religious Act or State; but all that is Negative in the Sanction of it, is this; *He that hath Ears to hear, let him hear; he that can receive it, let him receive it; or, he that hath Power over his Will, and hath so decreed in his Heart, doth well*. With regard to *Laws* or *Commandments*, he who does
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the Duty, does well; but he who doth not the Duty, doth ill: But in respect to *Counsels*, it hath been said, he who does not, may do well; but he who does, hath done better: As St. *Paul* says upon the Question of Marriage. 1 Cor. vii. 2. When an Act, or State is propounded to us only upon the account of Reward, without any Penalty annexed; it is then a Counsel only, and not a Law. The divine Laws are derived from the divine Power and Wisdom, and, as such, Fear, which is said to be *the Beginning of our Wisdom*, is the Sanction of them. Therefore, we may conclude, That to be no divine Law, to the Transgression of which, there is annexed no Penalty to work upon our Fear. 3. *In Counsels, sometimes the contrary is evil*; because he who acts in opposition to the Design of an Evangelical Counsel, is an Enemy to the Grace and Virtue of it: But in *Laws*, not only the *contrary*, but the *privative also is very criminal*. For not only he who oppresses the Poor, is guilty of a breach of Charity, but he also who does not relieve them.

RULE

RULE XIII.

Some things may be used in the Service of God, which are not commanded in any Law, nor explicitly commended in any Doctrine of Jesus Christ.

This Rule is principally designed to regulate the Consciences of those scrupulous and superstitious People, who imagine they cannot justify any Action of their Lives, or, more particularly, any Action in the Service of God, unless it be expressly warrant-ed by Scripture. We shall therefore here inquire, 1. *Whether we are to require from Scripture a warrant for every Action in common Life?* And, 2. *Whether we may not do any thing in Religion, which the Scripture does not expressly oblige us to?*

As to the first Enquiry, there are no Difficulties in it but such as are raised by Ignorance, Jealousy, or Superstition. The Laws of *Jesus Christ* were intended to regulate the Actions of Men, in the great Lines of Religion, Justice, and Sobriety. But whether a Man shall speak *French* or *English*, whether a Person ought to be baptized in the Water of the Spring, or the Water of the Pool; whether a Man shall marry or abstain; live upon Flesh, or the Fruits of the Earth;

Earth; or whether he should profess Law or Physick: How can the holy Scriptures be supposed to prescribe Rules in these Affairs, or in any other equally indifferent?

If we were to do nothing but what the Scripture either commands or approves; it might, with a less Hyperbole than that St. *John* used, be said, that *the World would not contain the Books that should be written*. But since all the Actions to which the Scriptures oblige us, are contained in these few Rules; that we are bound to follow that which is *Good*; that we are to decline that which is *forbidden*; to love and pursue that which is *laudable*: We have nothing more to do, than to form those Actions, which have any relation to them, by these Rules. But if there are some Actions which do not fall under those Measures, and yet cannot be omitted; it were absurd to become useless to our selves and to Mankind, because we imagine we want a Warrant to justify those Actions, which no Lawgiver has ever made unlawful.

There is, however, something more difficult in the other Enquiry, *whether in matters of Religion, we have the same Liberty as in matters of common Life*? Or, whether we may chuse something to worship God withal, of which he hath neither given

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us a Command, nor the least Intimation of his Pleasure?

Of Will-worship.

In answer to this Enquiry, let it be observed, that to worship God, is an Act of Duty and Obedience, and therefore supposes a Commandment: And our Choice is no farther concerned in it, than that we must chuse to obey. Of this God plainly forewarned his People, when he gave them a Law, and commanded them to observe it entirely, without Addition or Diminution.

Deut. xii. *Whatsoever I command you, observe to do*
 32 *it; thou shalt not add thereto, nor dimi-*
 Ver. 8. *nish from it. And again; Ye shall not do*
after all the Things that we do here this
Day, every Man whatsoever is right in
his own Eyes. So that in the Old Testa-
ment, there is an exprefs Prohibition of any
Worship of their own chusing; every thing
there was unlawful, which God had not
chosen and declared.

In the *New Testament*, we are still under the same exprefs Prohibition; and *θελοθρησκεια*, or Will-worship, is a word which generally sounds ill among Christians, as meaning the same thing which God forbade in *Deuteronomy*, the doing that which seemeth Good in their own Eyes, or as our Saviour says more fully, *teaching for Doctrines, the Traditions, the Injunctions,*

Injunctions, the Commandments of Men.
He who says, that an Action which God hath not commanded, is *of it self necessary*; or that God is rightly worshipped by an Act, of which he *hath no way expressed his Pleasure*, is guilty of Superstition and Will-worship. For thus far we are certain, that nothing is *necessary*, which is not commanded by God; that nothing is pleasing to God in Religion, which is wholly of humane Invention; and that the mere Commands of Men, are no direct parts of Religion, no Rules nor Measures of Conscience.

But since there are many Actions, by which God hath been served and pleased, tho' they were never commanded, and which therefore may be justly called Instances of Will-worship too; we are carefully to distinguish them from those Acts of Will-worship which are confessedly criminal, and not call every thing *Superstitious*, that is, in any sense, an Instance of Will-worship. For it is very possible, that the same word shall sometimes signify that which is laudable, and sometimes that which is criminal and blameworthy.

We shall therefore endeavour to shew, what *voluntary or uncommanded Actions, are lawful and commendable.*

1. *Those things, which Men do, or order to be done by a probable Interpretation of*
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what is doubtful or ambiguous, are not Will-worship in the culpable sense. God commanded the *Jews* to rest, or keep a Sabbath on the seventh Day. How far this Rest was to be extended, was not to be taught by the Law, but by the Interpretation of it. And therefore when the *Jewish* Doctors had rationally and authoritatively assigned the extent of a Sabbath Day's Journey, they who resolved strictly to observe a Measure which God gave not, were not to be blamed; for what they did, seemed to be, in some sort, the Consequence of a Commandment.

2. *Whatsoever is done with a wise Design, in things relating to Piety and Charity, is not Will-worship, or Superstition.* Thus, since we are commanded to worship God with our Body; if we bow the Head, if we prostrate our selves on the Ground, or fall flat on our Faces, if we labour in the Service of God even to the loss of our Strength, or give our Bodies to be burnt; tho' we are not commanded to do these things, yet we are not superstitious if we do them; because these voluntary Actions of our own, are but the Circumstances or Instances of something which is not voluntary, but imposed upon us by God.

3. *Whatsoever is really instrumental to any Act of Virtue or Grace, tho' it be no where expressed in the Law of God, is not Will-worship,*

worship, in the guilty sense. Thus, we do not find that *David* had a Command from God to build a Temple to him: And yet *Nathan* assured him, that *he did well, because it was in his Heart to build it.* It was therefore pleasing to God, because it ministred to that Duty and Religion, about which he had signified his Pleasure. So, to fast, is an Instrument of Religion; and to appoint particular Days of Fasting, is an Instance of Religion and the Worship of God, not indeed directly, but as it is evidently subservient to both.

The Circumstance of a religious Action, may be admitted or imposed civilly, without being superstitious. As to worship God, is a Duty, which cannot be a superstitious Will-worship; so to adore him by bowing the Head or Knee towards the East or West, is a Circumstance of the pious Adoration we owe him. Now this Circumstance can never be *Superstitious*; but as it may be enjoined by Laws, it becomes, in a sense, *religious*. This Act of Adoration must be performed some way or other: And if a private Will may, in regard to a Man's self, determine the manner of it; then certainly a publick Law may innocently do it.

But that what is in it self, innocent or laudable, may be preserved so; it is neces-

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sary that we observe the following Cautions.

1. Whatsoever a Man does in an uncommanded Instance, it must be done with a Liberty of Conscience: That is, we must not lay that upon others as a necessary Duty, which we our selves take to be only an Act of Love, or the Instrument or Circumstance of a Grace or Virtue. 2. This Instrument of Grace or Virtue must be such, as naturally and reasonably contributes to the Exercise of the Virtue, of which it is made an Instrument. It must be such as is commonly used by wise and good Men in the like Case, and hath a plain and direct Tendency to the Effect for which it is designed. 3. All uncommanded Instances of Piety are to be expressed by their own proper Qualities; that is, if their Worth be only relative, they are not to be pressed upon Men, as things of an absolute Excellence. Thus the *Encratites* and *Manicheans*, besides their being Hereticks, were very superstitious. For tho' they might lawfully have abstained from the ordinary use of Wine, in order to a greater Temperance and Sobriety; yet when they began to say, that such an Abstinence was absolutely necessary, and all use of Wine abominable, they run directly into Superstition and a criminal Will-worship. 4. When any uncommanded Instance relating to a Commandment,

mandment, is to be performed; it ought to be done temperately, and in proportion to its real Use. For if a stronger Zeal invites us to the Action, we are not to give the Reins to that Zeal, so as to let it pass on as far as it naturally can, but only as far as piously and prudently it ought. He who gives Alms to the Poor, may, as another Instance of the same Virtue, spare all vain, or less necessary Expence, that he may be able to give the more liberally, and may highly please God with this uncommanded Instance of Duty; but then, he must not pursue it beyond the proportion of his own Affairs, to the Ruin of his Relations, or to the making himself feel, and repine under, the pressures of want.

These Measures being observed, the voluntary and uncommanded Actions of Religion, by the Relation they bear to the Laws of God, and as they are Instances of our Obedience, become very acceptable to God; and by being a voluntary Service, or an Act of Religion proceeding from the Will of Man, that is, from his love of God, and his Desires to please him, will, no doubt, procure him a Reward.

RULE XIV.

The Christian Law, both of Faith and Manners, is fully contained in the holy Scriptures; and from thence only can the Conscience have divine Warrant and Authority.

I have already given some account of the Perfection and Fullness of *Christ's Law*; but where this Law is recorded, and that the sacred Scriptures are the perfect and only digest of it, is the design of this Rule to shew. This is of great Importance to the Rule of Conscience; because, if we know not where to find our Rule, or if there can be several Tables of this Law, pretended, our Obedience must spring from Chance, or, which is as bad, our own uncertain choice.

That the Scriptures of the *Old and New Testament* contain the whole Will and Law of God, is asserted by the primitive Fathers, and by all the reformed Churches. That the Scriptures are not a compleat Rule of Faith and Manners, but that Tradition is to be admitted, in order to make it a full Repository of the divine Will, is affirmed by the Church of *Rome*. For the clearing up, and establishing this great Rule of Conscience, I shall shew, 1. That the Church of God,

God, in the first and best Ages of it, when Tradition might have been more certain, and an Assent to it more reasonable, did nevertheless consider the holy Scriptures as their only Rule of Faith and Manners. 2. I shall shew what use there was of Traditions. And 3. That the arguing from Traditions, after the fixing the Canon of Scripture, was not only of very little use in any Point, but false in many, and consequently, unsafe in almost all; and as the World grew older, Traditions grew more uncertain, and the Argument drawn from them, much less forcible.

1. That the first and purest Ages of the Church did appeal to Scripture in all their Questions, may be made appear by the following Testimonies. * *Clemens Alexandrinus* thus expresses himself: *It is not fit that we should singly attend to the Affirmations of Men, for our Negative may be as good as their Affirmative. But if the thing be matter of Faith, and not of Opinion only, let us not stay for a Testimony of Men, but prove our Question by the Word of God; which is of all other the most certain, or rather, the only Demonstration.* Now that he here means the *written word of God*, is evident from what he says in the words be-

* Clem. Alex. 7. 'Ου γὰρ ἀπλῶς, &c.

fore,

fore, that we are to derive our Certainty from the *Scriptures*.

St. *Basil*, in his * *Ethics*, says, *Whatever is done or said, ought to be proved by the Testimony of the divinely inspired Scripture; both for the full Persuasion of the Good, and also for the Condemnation of the Evil*. So likewise † *Origen*; we ought to bring *Scripture* for the Proof of our *Exposition*.

Besides, it is certain, that the primitive Fathers did confute all Heresies from *Scripture*. To this purpose ‡ *Tertullian*, Take from Hereticks their Heathen Learning, that they may prove their Questions by *Scripture* only. Thus || *Origen* produces the Precedent of our blessed Lord, confuting, by the *Scriptures*, the Heresy of the Sadducees concerning the Resurrection; as Christ did, *Sic facient*, &c. So will the followers of Christ do, by the Examples of *Scriptures*, which will put to silence every Voice of Pharaoh, that is, every Doctrine of their Adversaries. ** St. *Chrysostom*, comparing the *Scriptures* to a Door, says, for they lead us to God, and open to us the Knowledge of God, and keep Heretics from entering in.

* Definit. 26. Δείκναι πῶς, &c. † In Matth. Tract. 5. Debemus ergo, &c. ‡ De Resur. Carnis, Cap. 3. aufer Hæreticis, &c. || Tract. 23. in Matt. ** Homil. 58. in Johan.

So likewise * *St. Austin*; in opposition to treacherous Errors, God thought fit to place our Strength in the Scriptures; which none, who would at all seem a Christian, dares speak against. And from hence, in Fact, did the Fathers conclude against the *Gnosticks*, the *Valentinians*, the *Marcionites*, the *Manichees*, the *Photinians*, the *Arians*, and all the other Pests of the Christian Church.

The Fathers did likewise reject whatsoever was proposed, as an Article of Faith, or Rule of Manners, that was not contained in, or could not be proved by the Scriptures. They are the words of † *Tertullian*; if you cannot produce the Authority of a divine or apostolic Precept, your Office is not Religion but Superstition; not a reasonable Service, but only Affectation and a vain Curiosity. And *Pamelius* supposed these words to make directly against Ecclesiastical Traditions. † His other words against *Hermogenes*, are still more full and satisfactory: *Whether all things were made of præexistent Matter*, I have no where read; let the School of *Hermogenes* produce the Place where it is written: If it be not written, let him fear the Curse of those, who add to, or detract from what is

* Tract. 2. in Johan. contra insidiosos, &c.

† De Orat. Cap. 12. sed quoniam Unum, &c. † Cap. 22.

written

written in the Scriptures. * St. Basil is still more decisive in this Point: *It is a plain Defection from the Faith, and a Proof of Pride, either to reject any thing of what is written, or to introduce any thing which is not.* And in consequence of this important Truth, † he says in another place, *whatsoever is without Scripture, and not derived from thence, is not of Faith, and therefore is a Sin.*

From these, and infinite other Passages which might be produc'd, the plain Consequence is, that they thought nothing to be matter of necessary Duty, either in Faith or Manners, which is not contained in the Scriptures; and with regard to things not contained therein, that we are left to our Liberty, and may consider them only as things indifferent.

But farther; *The Fathers of the Church did affirm, the holy Scriptures to be a sufficient and compleat Rule of Faith and Manners* So ‡ Irenæus; *we know certainly that the Scriptures are perfect, for they are the Word of God, and were spoken by the Spirit of God.* So likewise || St. Athanasius; *the sacred and divinely inspired Writings,*

* Homil. de Fide.

† In Asceticis, Reg. 80.

‡ Lib. 2. Cap. 47. credere hæc talia, &c.

|| Orat. cont. Gentes, in Initio.

are in themselves sufficient for the preaching, or Enunciation of the Truth. To the same purpose are St. Chrysostom's words *; look for no other Teacher; thou hast the Oracles of God: None instructs thee like them: Read the holy Scriptures, says St. Austin †, in which ye shall fully find, what is to be held, and what to be rejected. And again, ‡ The holy Scripture limits and determines the Rule of our Doctrine. || St. Chrysostom, speaking of the Scripture, says, if any thing be added to it, or taken from it, it ceases to be a Canon; and consequently the Scriptures are not the Christian Canon, they are not canonical, if they need to be supplied by Traditions. The same thing is affirmed also by Œcumenius, and the very words of St. Chrysostom are transcribed by Theophylact.

This may be sufficient to prove the Rule, as far as it is to be proved by Matter of Fact, and by the Doctrine of the Church. For if we are to regard Tradition, then, that the Scriptures are a perfect Rule of Faith and Manners, is sufficiently shewn by that very thing, which our Adversaries in this very Question, pay the highest Regard to: But if

* Homil. 9. in Ep. Coloss.
in Eremo.
in iii. Philip.

† Serm. 38. ad Fratres
‡ De Bono Viduit. C. 1.
|| Homil. 12.

Tradition

Tradition be not considerable, we are then to be determined by Scripture only. And, in Fact, there is no Tradition so clear, so regular, so undoubted, as that which concerns the Scripture. For if the concurrent Testimony of so many Fathers cannot establish this Article, that the Scripture is the written word of God; then, to argue from Tradition, will, in any Question, be wholly useless: But if it can, as in this Question it certainly ought; then we certainly infer the Truth of this important Rule of Conscience, that the holy Scriptures are the great Rule of Conscience with regard to both Faith and Manners.

2. The next Enquiry is, what Use there may be of Traditions; and if they cannot be a part of the Rule, what Assistance or Supplies do they afford the Conscience in Points of Faith, or Manners?

To this it may be answered, that Tradition is of great Use for conveying down to us this great Rule of Conscience, the Scriptures of the *Old and New Testament*: For when it is said that the Scriptures are a perfect Rule of Faith and Manners, that they contain all the Word of God, the meaning is, that it is a full and compleat Rule to those who believe them to be the Word of God. For the Question is not whether the Scripture be a Rule, but whether it be a *perfect* Rule;

Rule; not whether it is the Word of God, but whether it be all the Word of God, that is necessarily to be preached to the Church. So that the Traditions concerning the Scriptures themselves, being extrinsecal to the Scriptures, are likewise extrinsecal to the Question: And supposing that Tradition were the only way of conveying the Scripture to us, yet that Tradition must not, cannot be any part of the Question; because the Scripture must be supposed to have been delivered to us and accepted by us as the Word of God, before we enquire whether this Scripture so delivered, be all the Word of God or no.

Besides, to enquire of what Use Traditions are, seems to be wholly useless to us, since there is no Tradition of any Doctrine of Faith, or Rule of Life, but what is contained in Scripture. But if there were, if the Traditions were derived from *Christ* and his Apostles, they would be of the same use as the Scripture is; at least, if they were as *certain*, as *universal*, as *credible* as that is, by which we are assured that the Scripture is the Word of God. If God, by his Son, by his Apostles, or by any other means hath certainly taught his Church, there is no disputing it; let it be made appear that it is a divine Tradition, and then, it is of no moment whether it be written or unwritten.

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But if this cannot be evinced, it lays us under no obligation.

However, it ought to be known, that in the earliest Ages of the Church, the Fathers, in their Disputes with Hereticks, did frequently urge against them the constant and universal Tradition of the Church. But it was for these Reasons: 1. Because the Hereticks denied the Scriptures. Thus the *Manichees* rejected the four Gospels. *Ebion* admitted St. *Matthew's* Gospel only; *Cerintus* only that of St. *Mark*; *Marcion* received only part of St. *Luke's*; *Valentinus* only St. *John's*; *Cerdo*, *Cerintus*, *Tatianus*, and *Manichæus*, disowned the Acts of the Apostles. The *Ebionites* rejected all St. *Paul's* Epistles. Others would not admit the Epistles of St. *James*, St. *Jude*, the second of St. *Peter*, the second and third of St. *John*; as we may see in *Eusebius*, and St. *Jerom*. Now in opposition to such Men as these, and till the Canon of Scripture was generally fixed and received, it was very proper to alledge Tradition, especially since the Doctrine of the Scripture was entirely and piously preached in all the Apostolic Churches; and by Doctrines thus generally known and preached, they might well refute the Blasphemies of wicked and heretical Persons: But there is no objection to be raised from this; since all this Tradition, was

was nothing more than the Doctrine of the holy Scriptures.

2. The Hereticks indeed proposed to themselves great Advantages in having their Cause tried by Tradition. They hoped that since there were in several Churches several Customs, there might also be different Doctrines, or at least they might be plausibly pretended. And therefore the Fathers had some reason for arguing Tradition, and wresting it from the Hands of those Men who would fain have used it ill. Now there were but two Methods of confuting those Men. One of them, which the Fathers most insisted upon, was, that the Sacred Scriptures were a perfect Rule of Faith and Manners, and that there was no necessity of any Other Tradition; the other was, that the Traditions which they argued from, were false, and directly contrary to the Doctrines which had been always preached by the Church of God. Thus far certainly Tradition might justly and usefully be urged; and the Fathers never pretended to prove by Tradition, what they could not prove by Scripture.

3. There is yet another Use of Traditions, but it is in *Rituals*, and those Instances concerning which St. *Paul* wrote thus to the *Corinthians*, *The Rest will I set in Order when I come*. Such are. 1. the *Observation of the Lord's Day*. 2. The Government
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of the Church by Bishops, which is conveyed down to us by a Tradition greater than some Books of Scripture, and as great as that for observing the Lord's Day, and so notorious that it is to be seen in almost all the Monuments of Antiquity. 3. *The performing Ecclesiastical Offices by Ecclesiastical Persons*: such as praying in the Church, consecrating the blessed Eucharist, and the like. These three are Universal and Apostolick Traditions; and tho' they are also really founded on Scripture, yet because the universal Practice and Doctrine of the Churches of God in all Ages, and in all the primitive Churches, is infinitely plain and notorious, less liable to exception, and is the best Comment upon the certain, but less evident Places of Scripture; these therefore may be put under the Protection of universal Tradition: for they really have it beyond all Dispute.

From these Instances, it is plain, that we are not to reject Tradition when it is universal; nor suppose, that in any Thing of great Moment the Scripture is defective: for in these Things we are to admit Tradition as the Comment, but are to consider Scripture as the Text. And tho' a Tradition so absolutely universal as these, is of much greater Weight than any Objections that can be raised against it, and were to be admitted without
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the exprefs Authority of Scripture, which all Thofe have; yet, that even thefe Things alfo are contained in Scripture; is a very forcible Argument of the Perfection of it.

Let us now come to the third Particular propofed, which was to fhew, that the arguing from Tradition, after the Confignation of the Canon of Scripture, was not only of little ufe in any Queftion of Faith or Manners, but was fallfely pretended for many Things, and is unfafe in all Queftions of prefent Concernment.

And in order to this, I fhall confider the Traditions contended for by the Church of *Rome*, 1. As they relate to Things neceffary; 2. To Things unneceffary, and not belonging to Matters of Faith; and 3. As they relate to Things which, in Fact, are falfe.

I. The Traditions of Things neceffary, are Thofe which relate to a Trinity of Perfons in the Godhead, the Consubftantiality of the eternal Son of God with the Father; the Baptifm of Infants; the Proceffion of the Holy Ghoft from the Son; the Doctrine of original Sin; the Deity of the Holy Ghoft; and the like. That thefe are Points of Faith I eafily allow; but that the Truth of thefe Articles, and fo much of them as is certain and neceffary, is likewise contain'd in Scripture, I appeal to all the Writings of the An-

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cients;

cients, and of all the Moderns who assert and defend them, by Testimonies from Scripture. All the Mysteries of *Christ's* Nature and Person, of his Divinity and Humanity, are clearly set down in the Scriptures ; but they are not clearly reported by Tradition: For, as it has been observed by many learned Men, the Fathers, in treating these Articles, have sometimes rather expressed themselves in the *Arian*, than in the *Catholic* Style. The other Articles are likewise evidently contained in Scripture, or at least, are by plain and necessary Consequence, deduced from it. When therefore the Writers of the Church of *Rome*, endeavour to prove all their Articles by Scripture, they plainly invalidate the Pretence of the Necessity of Tradition. For if they assert, that Scripture may be produced for all their Articles, they cannot without lessening the Authority of the Scripture, but allow it to be sufficient.

2. There are also Traditions pretended for Things which are not necessary : such as the Fast in Lent, God-fathers and God-mothers in Baptism, the mixture of Wine and Water in the sacramental Cup, trine Immersion in Baptism, the Apostles Creed, Prayers for the Dead, Unction of the Sick, the Forms of Sacraments, and the perpetual Virginity of the blessed Virgin. Now that these
neither

neither are divine nor apostolick Traditions, may appear from their want of proper Proof. They are indeed Ecclesiastical Traditions, and some of them are of great Antiquity : but how far they oblige, I shall endeavour to shew hereafter. In the mean time, let it be observed, that they neither are of the Necessity of Faith, nor the Observation of them, in itself, a necessary and essential Duty of the Christian Religion. And since a Christian may go to Heaven without observing them in certain Circumstances, the Scripture therefore is a full and perfect Canon, without giving any Rules concerning Them.

But there are besides these several pretended Traditions, which, at the best, are only false Articles, wicked Practices, or uncertain Opinions. Such are many of those obtruded by the *Romish* Church ; as the Invocation and Adoration of Saints and Angels, the worshipping of Images, the Doctrine of Purgatory, praying in an unknown Tongue, the Pope's Power to depose Kings, the half Communion, the Doctrine of Indulgences, and the like. Now these are so far from being Apostolick Traditions, that they are some of them apparently false, some of them expressly against Scripture, and some of them confessedly new, and of very late Date. They are therefore very proper Instances to

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shew how the Church hath been abused under the Pretence of Tradition.

And after all, the Question of Tradition is wholly useleſs in the Diſputes between the Church of *Rome* and other Parts of *Chriſtendom*. Not only becauſe there are many Churches whoſe Rites and Doctrines are very different from theirs, and who likewiſe pretend a Succeſſion and Tradition of the ſaid Rites and Doctrines *per Tempus immemoriale*; particularly, the *Greek*, the *Ruſſian*, the *Abyſſine* Churches: But alſo becauſe thoſe Points which they contend for with the *Western* Churches cannot be proved by univerſal Tradition; as evidently appears from the pitiful Attempts they are forced to recur to, when they would prove them to be ſuch.

However, upon the Matter of this Argument, there are three further Questions to be conſider'd in order to Faith and Conſcience. The *firſt* is, Whether there be not any Rules or general Meaſures of diſcerning Tradition, or of being reaſonably induced to believe, that any Particular is derived down to us by Apoſtolick Tradition, and is therefore to be admitted, in order to compleat the Rule of Conſcience? The *ſecond* is, How far a negative Argument from Scripture is valid, or obliges the Conſcience? And the *third*, Whether there can be any
new

new Articles of Faith, or whether the Creed of the Church may so increase, that what is sufficient in One Age, will be too little in Another ?

The first Enquiry is concerning the indirect Ways of discerning Tradition.

It seems unnecessary to dispute, whether Traditions are to compleat the Canon of Scripture, when it cannot be made appear, that there are any Apostolick Traditions of Doctrines which are not contained in Scripture. Thus much however is certain, that no Tradition ought to be received as Apostolick, unless it comes up to, and is approved by the famous Rule of *Vincentius Lirinensis*. And even that Rule is of little use, if it be true, that there is no Doctrine, no Rule of Faith or Manners, which is not contained in holy Scripture, which yet *was believed always, and in all Churches, and of all Men in those Churches*. But, as it is very probable, that by this Rule he designed to reprove the new Doctrines introduced by *St. Austin* into the Church, in opposition to the Sentiments of the Fathers which were before him ; it will serve effectually to overthrow all our late Pretences to Tradition. For by this Rule we find it not to be enough, that a Doctrine has been received by the Catholick Church for a Thousand Years together, reckoning upwards from this Period;

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unless

unless it were also received in the Apostolick Ages, and by the universal Church in those Ages, it is of no Force or Authority. So that if by this Rule of *Vincentius*, we push our Enquiries as far back as we can, if we carry them not up to the Apostles, we do nothing at all ; but if we began there, and made it plain that the Doctrine was theirs, it matters not how little a way it descends. For if it were admitted by all the Apostolick Churches, and by all good and wise Men in those Churches, if any Church should afterwards give it up, it ought not to lessen our Veneration for the Doctrine. But with regard to any Doctrine, how shall we know whether it be really an Apostolick Tradition ? Here the Rule of *Vincentius* properly comes in. If it can be made appear, that all Churches did, from the Apostles Times down to the Time of the present Enquiry, admit it as true, and report it from the Apostles ; then it is to be received and continued as such. For if we can be certain that the next succeeding Age to the Apostles, did universally receive it as from the Apostles, we are then by no means to reject it. But then of what absolute necessity is this to Faith, if it be true, as was hinted above, that there is no Doctrine so delivered, but what is somewhere contained in Scripture ?

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But let us consider further, some of the Rules which are commonly prescribed to let us know how the Tradition of a Doctrine not contained in Scripture is certainly Apostolick.

And the *first* Rule is this : *That which the Catholick Church believes as an Article of Faith, tho' it be not found in the Scripture, is to be believed to descend from Apostolick Tradition.* But there are many Reasons for doubting the Truth and Sufficiency of this Rule. 1. If the Church can err, this Rule will be of no importance : If she cannot err, there will be no need either of Scripture or Tradition. 2. There are Thousands who believe such an Article to be taught by the Catholick Church ; and yet the Catholick Church with them is nothing but their own Party. So that this Rule may serve every Party that is very numerous ; or any, less numerous, by the help of a little Pride and Contumacy. What influence would this Rule have had upon the *Donatists* of old, or upon those modern, little, peevish Sects, who damn all but their own Congregations ? 3. It is absolutely certain, that what one Age takes to be a necessary Doctrine, another Age (I mean of the Catholick Church) did not believe as such : And it is not sufficient to make a Doctrine catholick, that it be believed *every where,*

where, unless it has likewise been received *always*, and by all Men. The Doctrine of the necessity of giving the Sacrament of the Lord's Supper to Infants, and which was asserted by St. *Austin*, and Pope *Innocentius*, prevailed in the Church for six Hundred Years. But then it is certain, that for six Hundred Years more, the Church which calls her self Catholick, believed the contrary. Now which of these can prove Apostolick Tradition? 4. This Rule would hold only upon supposition that there were no other way of making an Opinion to be universally received, but by demonstrating that it took its rise from the Apostles. But there are some who contend, that every Age receives new Revelations: And it is certain that they who believe This, may universally receive Opinions which the Apostles never heard of. Besides, it is not impossible, that a very considerable Man may be imposed upon by another less considerable, but more artful and designing, and the new Opinion of this good Man, how weakly soever he hath received it, shall proceed strongly upon his Authority. It is notorious, that this was the very Case of *Papias*, with regard to his Opinions of the *Millennium*.

The next Rule which is pretended for discovering an Apostolick Tradition, is this: *That which the universal Church observes,*
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which none could institute but God, and is not found in Scripture; it is necessary to say, that it was enjoined by Christ and his Apostles. This Rule must necessarily be false, because it actually deceives those who lay the greatest stress upon it. For their Church, which they fondly call the Catholick Church, uses, as the conveyances of Grace and the holy Spirit, certain Sacramentals; (which none can institute, but *Christ* the Fountain of Grace) which yet, it were the greatest Absurdity imaginable to derive from Apostolick Tradition. Such are holy Water, baptizing of Bells, hallowing Roses, Swords, Hats, and the like; the necessity of which can never be derived from Apostolick Tradition; and yet they are such Rites, as none but God could be the Author of, if they were good for any thing.

The third Rule is; that *whatsoever the Catholick Church hath observed in all past Ages, may justly be believed to have descended from the Apostles, tho' it be such a thing which might have been instituted by the Church.* This Rule is the same with that of *Vincentius*, and is indeed the only good one. But then, it cannot relate to any Matter of Doctrine, but to Rituals only. It is not in the Power of the Church, as such, to appoint Doctrines. For *Christ only is the Author and Finisher of our Faith*, which
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the Church is only to declare and to believe, not to enlarge or contract, alter or diversify. And tho' we cannot, by this Rule, prove it an Apostolick Tradition, that *Easter Day* was to be kept on the first Day of the Week, because the *Asian Churches* observed it otherwise; yet we may certainly infer from it, that the distinction of Bishops and Presbyters is an Apostolick Tradition, and the Consecration of the blessed Eucharist ought to be performed by Ecclesiastical Persons, either Bishops or Priests. By this Rule we may likewise be certain, that the observation of the Lord's Day was derived to us from the Apostles, together with the Practice of baptizing Infants. How far these Practices are obligatory upon all Ages, and all Churches, is another Point, which, because it is certain that some Rituals, which were used in the Apostles Times, are now, by several Churches, with good Reason omitted, I shall consider afterwards.

In short, among all the Rules for discerning the real, from the pretended Apostolick Traditions, there is but one which is at all considerable: And that transmits to the Church only a few Rituals, but nothing, which is not contained in the Scriptures, relating to Faith or Manners. It is therefore to little purpose, to search any where but in the Pages of the *Old and New Testament*,
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for a divine Rule of Conscience. They are certainly sufficient, because they were intended by God to be our only Rule. And yet, if God had intended that Traditions should have been received, in order to compleat the Rule, and oblige the Conscience; it is plain, that he intends it not now, since the Traditions are lost, if ever there were any; or if they are yet in Being, they do not appear, and therefore are to us, as if they were not.

The second Question does likewise nearly relate to Conscience, and the regulation of it; *since the Scripture is the perfect Rule of Conscience, and contains in it all the Will of God; whether or no, or how far is a Negative Argument from Scripture to prevail?* ✓

The Resolution of this Question in great Measure depends upon what has been said before. For if Scripture be a compleat Rule of Faith and Manners, then nothing is an Article of Faith, or Duty of Morality, which is not, in its whole kind, set down in Scripture. However, I shall make some further Reflections, upon occasion of this Question.

I. *A negative Argument from the Letter of Scripture, will not hold, if the contrary Affirmative can be plainly deduced from any part of it.* It is no where directly said in Scripture, that the Holy Ghost is God;

God; that he is to be invoked, is no where commanded, nor is there any Example of its having been done, recorded: but it does not therefore follow, that he is not God, or is not to be invoked. For his Deity may, by necessary Consequence, be inferred from what is expressly said of him. The negative Argument therefore is very imperfect, and consequently not conclusive.

2. *A negative Argument from a Word or an Expression, cannot be certainly urged for the denying the Mystery signified by that word.* The *Arians* therefore argued weakly, when they said, shew us where, in all the Scripture, the Son is called ὁμοούσιος, or *consubstantial* with the Father. For we are certain that God is one. If we find therefore in Scripture, that the Son is truly God, he must necessarily be of the same Substance with the Father, since two Substances cannot make one God.

3. *A negative Argument from Scripture is sufficient to prove an Article not necessary to be believed, but does not necessarily prove it not to be true.* The Scripture no where says, that the blessed Virgin continued a Virgin to the Day of her Death. Therefore, tho' the Opinion of her perpetual Virginity ought not to be obtruded upon Men as an Article of Faith; yet, from the unanimous Consent of almost all Churches, the Opinion

pinion is very probable, and may piously be entertained.

4. *When the Question is of lawful, or unlawful, a negative Argument is always valid.* If a thing be neither directly, nor consequentially forbidden in Scripture, it is certainly lawful; and on the other hand, if it be not some way or other there commanded and enjoined, it is not necessary.

5. *A negative Argument must not be μέσον μέλλον, a partial or broken piece of a medium.* We must not say, that because St. John in his Gospel, takes no notice of the Sacrament of the Lord's Supper, therefore the observation of that Sacrament is not necessary to Salvation: For the other three Evangelists had before made it necessary; and probably that was the Reason why he did not. In like manner we do not find in Scripture, nor in the Days of the Apostles, any Instance of baptizing an Infant: But we are not therefore to infer, that no Infants were baptized. The Argument indeed had been good, were there no other way of proving the Practice of Infant Baptism, but from some remaining Accounts that the Apostles practised it: But we derive it from the Force of the Words in *Christ's* Institution, from his Discourse with *Nicodemus*, from the Analogy it bears to Circumcision, and the Custom of the *Jews* in baptizing their Children, from the Effects
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and Graces of the Sacrament, and from the absolute necessity of Regeneration. These are some of the principal Rules, with regard to the Force and Obligation of negative Arguments drawn from Scripture.

As to the third Question, whether there may be any new Articles of Faith; or whether the Creed of the Church may so encrease, that what is sufficient for Salvation in one Age, will not serve in another? It may be answered, whatsoever the Apostles taught we must equally believe, if we equally know it: But it is certain, that all they taught, is not equally necessary to be taught, but only those things, upon which the Piety and Regularity of our Lives, and our hopes of Heaven, have a necessary Dependence. For whatsoever is in Scripture, is indeed alike true, but not equally necessary or useful, nor as easily to be understood, as some other parts of it. But the Question here, is not so much to know, what we must believe, when we know it to be the Word of God; for that is every thing which is the word of God: But the Enquiry is, how much we are obliged to know, how much must be taught to all Christians, how much their Memories and their Hearts must be charged withall. For the Faith of a Christian is not to be made up of every Proposition which is true; but those things which are the Foundation of our

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Obedience to God in *Jesus Christ*, the Endearments of our Duty, and the Establishment of our Hope.

2. Now this Foundation, is that necessary Belief, without which, nothing in our Religion could subsist. *Christ* and his Apostles laid it sure, and at first made it but of a just Extent with the intended Building. The Faith of Christians was then the most plain and easy, the most simple and wise Institution in the World. It was wholly an Act of living well, and of believing in God thro' *Jesus Christ*. If we examine the Creeds, or Symbols of Belief, which are in the *New Testament*, we shall find them very short; *Thou art Christ, the Son of the living God*, was ^{Matt. xvi. 16.} St. Peter's Creed. *We know and believe, that thou art Christ the Son of the living God*, ^{John vi. 69.} was the Creed of all the Apostles. And, *this is Life eternal, that they know thee the only true God, and Jesus Christ, whom thou hast sent*, ^{John xvii. 3.} was the Creed which our Saviour himself propounded. There are infinite other Passages in Scripture to the same purpose; so that nothing can be more plain, than that the believing in *Jesus Christ*, is that main and fundamental Article, upon which all the others are raised, and on which they depend.

In proportion to this *Measure of Faith*, the Apostles preached the *Doctrine of Faith*.

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St. Pe-

Act. ii 24. St. Peter's first Sermon was, that *Jesus is*
 Ec. iii, 15 *Christ, that he was crucified, and rose again*
from the dead: And they that believed, were
 immediately baptized. When the Eunuch
 had confessed that *Jesus Christ* was the Son
 of God, *Philip* forthwith baptized him.
 And it is observable, that when he had de-
 sired Baptism, *Philip* told him he might have
 it if he did *believe*. That *Jesus is Christ*,
 that he is the Son of God, that he ought to
 suffer, that he died, and rose again the third
 Day; were the Points which St. *Paul* most
 laboriously inculcated in the Synagogues and
 Assemblies of the People: And this was all
 that new Doctrine for which the *Athenians*
 and other *Greeks* wondered at him, and took
 him to be a *setter forth of strange Gods*,
because he preached to them Jesus and the
Resurrection. Sometimes indeed, other glo-
 rious Things were mentioned, still promoting
 the Faith and Honour of *Jesus*, as that he
 ascended into Heaven, and shall hereafter
 judge all the World. In short, the whole
 Christian Faith is comprized in those *Things*
which concerned the Kingdom of God, and
the Name of Jesus Christ; that is, such Ar-
 ticles as represent God to be our Lord, and
Jesus Christ to be his Son, and the Saviour of
 the World, that he died for Mankind, rose again,
 was glorified, reigns over all the World, and,
 at the general Resurrection, shall judge Men
 according

according to their Works; and that in his Name only we shall be saved: This is all that the Scripture calls necessary, and is that Faith alone into which all the Church was baptized.

This excellent Summary of Faith, we find also, with very little addition, offered as sufficient by St. *Polycarp*, in that excellent Epistle of his to the *Philippians*, which St. *Irenæus* so highly commends. This St. *Ignatius* Ad Mag-
nellos. calls a *full knowledge concerning Christ*: Then he enumerates the Generation of the Son from God the Father before all Worlds, his being born of the Virgin *Mary*, his holy Life, his doing Miracles, his preaching one God, even the Father, his Passion and Crucifixion, his Death and Resurrection, his Ascension, and his sitting at the Right Hand of God, and, that at the End of the World, he is to judge the quick and dead, and render to every Man according to his Works. When he had reckoned up these Articles, he adds, *he that plainly knows these things, and believes them, is blessed.*

The same Creed, in more words indeed, but not in more Articles, is recited by St. *Irenæus*, in the second and third Chapters of his first Book, where he says, *the Church throughout the World, being planted by the Apostles to the end of the Earth, and by their Disciples, hath received this Faith.* Lib. 3.
Cap. 4.

He who of all the Prelates speaks the most powerfully, cannot say any thing else ; and he who is weak in speaking, cannot say less : For since the Faith is one and the same ; he that speaks much cannot say more, and he who speaks little, must not say less. And afterwards, speaking of some barbarous People, who had not the Scriptures, yet were not without the Faith, which he there shortly recites, beginning with the Belief in God the Father, the Maker of the World, and in Jesus Christ, going on with the usual Articles of his being born of the Virgin Mary, his being the Son of God, his reconciling God and Man, his suffering under Pontius Pilate, his Resurrection, his being received into Glory, and his last Judgment; he adds, they who believe this Faith, are most wise in their Persuasion, and Custom, and Conversation thro' Faith, and they please God, &c.

Now here were, by this time, almost two Ages spent, in which arose the most pestilent Heresies, that ever troubled the Church. Yet there was nothing added to the Christian Creed, no new Articles for the Condemnation of any new Heresy. Whatsoever was against this, was against the Faith. This Faith passing into all the World, was kept with great Piety and Simplicity, no Church varying from it at all. Some indeed added
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some great Things to it, which were only Appendages to the former : But the fullest and most perfect were the *Roman* and *Jerusalem* Creeds, the same which the *Greek* and *Latin* Churches use to this Day. Indeed the first and more simple Forms were sufficient : But these fuller forms, being compiled by the Apostles themselves, or by Apostolick Men from the words of Scripture, made no great Alteration ; the first were not too little, nor were these too much. Now this Form so described, so delivered, and so received, the Fathers of the Church affirm to be entire and sufficient, and that nothing ought to be added to it. Therefore said the Writer of the Epistle to St. *James* attributed to St. *Clement*, *for all that believe these Things contained in the aforesaid Symbol or Creed, and do good Works, is prepared the Salvation of their Souls, and eternal Life.*

'Tis true indeed, that the Church of God did explain two of the Articles of this Form, or Creed, that of the second, and that of the third Person in the Trinity ; the one, in opposition to *Arius* ; the other, to *Macedonius* : But still they added nothing but what they supposed was really contained in the Apostolic Creed. They had Reasons for doing what they did ; and were so little removed from the Apostolick Ages, that their

Explications were more likely to declare the Sentiments of the Apostles: But afterwards, the Case was altered, and their Example was made use of to explain the same Creed, so far, till by explaining the old, Men have inserted new Articles.

And yet, it is agreed on all Hands, that this Faith alone is sufficient. That which can be certainly deduced from these infallible Articles, is as certainly true as the Articles themselves, but is not so to be imposed, because it is not certain, that this or that Explication is right, or that this Consequence is fairly deduced; or if it appears to me to be fairly deduced, it may not appear so to you. It may therefore accidentally become rather an Instrument of Schism than of Peace; it may divide more than it may instruct; and is plainly a Deviation from the Simplicity of the Christian Faith, in which Simplicity, both the Learned and the Ignorant are more safe.

But notwithstanding the Inconvenience and Danger of adding to the Apostolick Creed, the Church of *Rome* pretends to a Power of appointing new Articles of Faith; and for denying that it had this Power, Pope *Leo* the Xth condemned *Luther* in his Bull, added to the last *Lateran* Council. Thus they have added twelve Articles to the Creed in the Council of *Trent*, with the Preface and
Postscript

Postscript of the *Athanasian Creed*, damning all those who do not yield the same Assent to the Creed of *Trent*, as to that of the Apostles.

What Force the Declaration of any Article by the Church hath, or ought to have upon the Conscience, shall be considered under the Title of *Ecclesiastical Laws*: But the present Enquiry is, *whether any thing can be of divine Faith in one Age, which was not so in the Age of the Apostles*. Now here we may venture to say, that nothing can make any thing to be of divine Faith, but our blessed Lord himself, who is therefore called the *Author and Finisher of our Faith*. The Apostles themselves could not do it, since they were only the *Stewards and Dispensers of the Mysteries of God*. Their Office, as such, was only to declare what was necessary, and what was not. No Man, indeed, nor no Society of Men, could do this, but themselves; for none but they knew the Force and Obligation of Propositions of Faith. They were to lay the Foundation; they did so, and wisely built upon it: But when they commanded that we should keep the Foundation, they only shew us, which was *it*.

All the World will not be able to tell us, how much is necessary to be believed, and how much not, if it once goes beyond the

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Apostles

Apostles Creed. And yet it was infinitely necessary, that we should at first know how far we were to believe, since there were so many false Apostles, each pretending to Authority and Illumination, and endeavouring to introduce a *new Word and Doctrine*. The Apostles did not only foresee that there would be, but lived to see Heresies and false Doctrines obtruded upon the Church, and professed that it was necessary such false Doctrines should arise. That they should not provide a Remedy for these Mischiefs, is not credible; and yet if any were provided, it was the Creed. This was received and used by all the Church, who professed it to be that Summary of Faith, which was a sufficient Declaration of all necessary Faith, and a powerful Guard against any Heresies that should arise.

But then, after all this, if any one should obtrude new Propositions not deducible from the Articles of the Creed, nor contained in any Article, and should impose the observation of these, under pain of Damnation; if this be not to *have Dominion or Lordship over the Faith*, which St. Peter himself disclaimed, and *to Lord it over God's Heritage*, which St. Paul forbid any Man to do; I own I do not understand the words, nor have yet seen any Man who did. I shall only further add the excellent words of

* *Justinian,*

* *Justinian* to this purpose, in the *Code*, part of the Imperial Law, by which almost all the World was governed: Speaking of the Apostolick Creed, part of which he there recites, *This right and irreprehensible Faith, which the holy Catholick and Apostolick Church of God doth teach, can by no means receive any Change or Innovation.*

To conclude this Question. In our Enquiries of Faith, no Man's Conscience can be obliged by any Authority, but of *Christ* enjoining, and his Apostles declaring what is necessary. And if, as † *Sixtus Senensis* says, *all the Orthodox Fathers affirm, that the Creed was drawn up by the Apostles*, and they all say, it is a compleat Rule of Faith to Christians; here we ought to rest our Heads and our Hearts, and not render our Faith more intricate by Questions which we do not know are necessary.

* Cod. Lib. 1. de Sum. Trinit.

† Lib. 2. Biblioth. 5. Omnes Orthodoxi Patres, &c.

RULE XV.

In the Law of Christ there is no Precept that wholly ministers to the Law of Moses; but for a Time only, and less principally.

Our blessed Lord descended upon the Earth, *like Rain upon a Fleece of Wool*, and made no violent Changes, but retained all the Morality he found among his Countrymen. He used their Propositions, spoke their Proverbs; he changed their Rites into Sacraments, their Customs into Mysteries; from their Washings, he instituted our Baptism, their Paschal Supper he made the holy Eucharist. And because he would be fully understood by them, he retained the *Mosaic* words when he delivered a Christian Precept. For he knew his Father would send the *Holy Ghost* to be a certain and infallible Interpreter; and when the Types of *Moses* were turned into the Substance of *Christ*, there the typical words likewise, would be explained in the Sense of Evangelical Duties.

Thus when our blessed Lord delivered the Precept of Charity and Forgiveness, he made use of this Expression; *when thou bringest thy gift to the Altar, and there remembrest that thy Brother hath ought against thee; leave*

leave thy Gift at the Altar, first be reconciled to thy Brother, and then come and offer thy Gift: If instead of this, he had said, when thou comest to *the Lord's Supper*, &c. he had not been understood. But because we know that this is an eternal Precept, part of a moral and eternal Excellency, and a Duty of Christianity; and since we know that *Christ* hath destroyed the *Jewish* Altars, and made useless the Sacrifice of Beasts, by the Sacrifice of himself; and since we are likewise sufficiently informed by what Instruments, and by what Ministrations the Memory of that is preserved, and the Benefits of it conveyed: Therefore we are also sure, that in these words *Christ* designed to oblige us to be at Peace with our Brother, and with our Enemy, whenever we presume to offer up our Prayers, or to celebrate the Memory of his eternal Sacrifice.

R U L E X V I.

The Laws of Jesus Christ are to be interpreted to a Sense of present Obedience, according to their Subject Matter.

That, which in its own Nature, is good and necessary any Day, is likewise good and necessary every Day: Therefore there cannot be any essential Duty of Religion, which
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ought not to be the work of every Day. To confess God's Glory, to be subject to him, to love him, to live according to Nature, and the Precepts of the Gospel; to be chaste, temperate, just; these ought to be the Employment of every Period of a Christian's Life. For the Christian Law is nothing but a perfect Institution of Life, and Understanding. It makes Men wise, and obliges them to be good. It teaches Wisdom, and it prescribes Justice. It makes Men wise and simple, or in other words, prudent and innocent; and there is no point of our Lives, in which we are permitted to be otherwise. They who, in the primitive Church, deferred their Baptism till they found themselves in the Article of Death, knew that Baptism was a Profession of Holiness, an Undertaking to keep the Faith, and to live up to the Laws of *Jesus Christ*. To put it off therefore, when they thus knew the excellent and important Design of it, was an egregious Prevarication of their Duty, and enough to ruin all their Hopes. For Men, as soon as ever they are convinced in their Understanding, are obliged in their Consciences; and a Man is obliged to live the Life of a Christian, as soon as ever he believes the Doctrines and Precepts of Christianity. And since Baptism, in one Relation and Intention of it is only the Publication of our Undertaking to do that, which in our
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very Nature, and by the first and universal Laws of God upon Mankind, we are obliged to do; to refuse Baptism, or to defer it, seems to be a refusing or deferring to acknowledge our natural Obligations, a denying, or not accepting the Duty of living up to the Law of our Nature. For Christianity being, in its moral part, nothing beyond the Perfection of the natural Law, lays no more upon us than God did by the very Reason of our Nature.

Under this Rule it may be very proper and very necessary, to enquire into the Duty of Repentance. For upon this Article the whole Question about a late or Death-bed Repentance; and consequently, the Happiness or Misery of great part of Mankind, will depend. This therefore I take to be the most important Case of Conscience that can possibly arise; and perhaps it may appear so in the Event of the Discourse, as well as in the Event of Things.

Let us therefore, I. consider this Question: *At what time precisely is every Sinner bound to repent of his Sins, so that if he does not repent at that time, he commits a new Sin?*

To this Question of, *at what time*, the Church of Rome answers, *at what time soever*. For it is with Repentance, as it is with the Precepts of Baptism and Prayer. Neither

ther this Day, nor to Morrow precisely, is it necessary to be baptiz'd; it is necessary only to be baptiz'd some Day or other: And if we pray half an hour hence, it is as much Obedience, as if we fell upon our Knees this Instant. Add to this, that since Repentance is a *punitive Duty*, as well as an *affirmative Commandment*; it is generally agreed upon, that no Man is obliged to undergo his Punishment till the Instant that the Law determines him; and that therefore, when he is required; when the Day of Humiliation comes; when there is Danger, that if it be not done now, it will not be done at all: Let the wicked Man then look to it, his Repentance cannot be deferred with safety. This is the Doctrine of the *Roman Schools*, and of some others, which they have pursued to dangerous and horrid Consequences.

Even *Scotus*, and the severer Casuists among them, who affirm, that a Man is obliged to repent every Holiday, do not intend to say, that by the Laws of God Men are so obliged, but by the Laws of the Church only. And *Medina*, and the looser part of them, deny that the Church hath determined this affirmative and indefinite Command of Repentance, to so much severity; as even that amounts to. Particularly, we are told by *Reginaldus*, that *the true and common Opinion*

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Opinion of Men is, that the time in which a Sinner is obliged to have Contrition for his Sins, is in the Article of imminent Death, whether natural or violent. And in the mean time, there is no Precept obliging a wicked Man not to persevere in Enmity against God; there is no negative Precept forbidding such a Perseverance. Nay worse if it can be, even to resolve to put off our Repentance, and to refuse to repent till such a Day, is but a small Sin, saith Sotus; it is none at all, saith Medina, it is neither an Act of Impenitence, nor by any means unlawful.

These are horrible Assertions, from the Mouth of a Christian; and are therefore the more carefully to be guarded against, because it concerns the last and most important Issue and Event of Things; and an Error here, may be of most fatal Consequence. For Repentance being the proper Remedy for the Evil of our Souls, if it come too late, or the Application of it be deferred till the Disease becomes unsufferable or incurable; the happy State of our Soul is irretrievable, and wholly desperate.

Now there is no other way of effectually overthrowing these horrible Tenets, than by proving this Proposition; *that a Man is positively and directly obliged to repent of his Sin, as soon as ever he hath committed it.*

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For, if there be not something in the Nature of Sin, which must by no means be retained; if there be not much in the Anger of God, which we must not continue under; if there are not Obligations to the Service of God which must not be put off; if there be not something in the Love of God, which should engage us to love him whilst we live; and, if our Lives were not exposed to infinite Hazards, and every Instance of deferring Repentance, did not lay us open to the inexcusable hazard of no repenting at all: Then indeed, and then only, it would follow, that we are obliged to Repentance no otherwise than to Alms, or Prayers; that so, if we perform it at all, we are safe enough if we perform it at any time: And if we may put it off till to Morrow, we may likewise defer it to the Day following, and so on to the Day of our Death. There is no avoiding this Consequence: For with regard to the affirmative Command, *to Morrow* and *to Day*, are both alike; and by God's Law, we are not obliged to repent, till the *Day of our Death*, if we are not obliged to repent *every Day*. We must therefore chuse our Proposition: Doth God, when we have been guilty of Sin, permit us to live in it, to forget our Danger, to neglect the Wound that putrefies? Is he pleased, that we, for whom he hath given his Son; we, whom he hath

made Sons by Adoption, and Members of *Christ*; we, on whom he perpetually sheds his Grace, whom he invites by the kindest Promises, or makes restless, by the daily Emotions of an unquiet Conscience: Is he, I say, pleased, notwithstanding all this, that we should remain in his Displeasure, and continue in that terrible Condition of Things, that, if on any Hour of so many Days, Weeks, Months, or Years, we chance to die, we should die again, and die for ever? Is this likely? Does he so little value the Services of our Lives, the Vigour of our Youth, the Prudence, the Wisdom of our Age? Does he so little mind *the Growth in Grace*, the Repetition of pious Acts, the Strength of good Habits, the Ardour and Firmness of our Love; that he will receive an accidental Repentance, a Repentance that comes by chance, that might not have been, and that, very probably, comes too late? For if we ought not to put off our Repentance to the last, we certainly ought not to defer it one Day; the very same Reasons lying against this, which lye against the other. And this will appear from the Reflections which I shall further offer upon this Subject.

1. He who remembers he hath committed a Sin, remembers it either with Joy, or with Displeasure. To remember it with Displeasure, is it self an Act of Penitence;

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to reflect upon it with Joy, is a new Sin : Or if it be recollected without either, the Man seems not to consider at all. But tho' a Man feels no sensible Delight in reflecting upon his Sin, yet, if he feels no Displeasure neither, he is still thus far in a State of Sin ; that since the Remembrance of it makes him not uneasy, he only wants the same Force in the Temptation, and the same Relish in himself to make him repeat it.

2. Does not God every Day derive something of his Grace upon our Minds ? Does he not continually solicit us, as long as the Day of Salvation lasts ? Does he not send his Spirit to invite, his Arguments to persuade, and his Mercies to endear him to us ? Does he design that all this should be ineffectual ? And is it not a Sin once to resist and *grieve the holy Spirit* ? And he who recollects his Sin, and knows it to be an Offence against God, and yet repents not upon that Recollection and that Knowledge ; does not he resist the holy Spirit, thus moving, thus acting, and thus persuading him ? This is the very way of arguing, which the Spirit of God himself uses ; *because I have called, and ye refused ; I have stretched out my Hand, and no Man regarded ; but ye have set at nought all my Counsel, and would none of my Reproof, I also will laugh at your Calamity, and mock when your Fear cometh.* Are we not therefore

fore to regard every Call ? And is there not a Degree of Guilt in every Refusal ? From these things put together, it naturally follows, that he who sins, and refuses to repent forthwith, sins twice, and draws upon himself a greater Portion of the Wrath of God.

3. He who repenteth not as soon as he recollects that he hath sinned, does sin further in that very Delay, because he certainly exposes himself to the unavoidable Danger of committing other and new Sins. Let us but reflect on the sad Circumstances of those Men, who have continued long under the neglect of Duty : How dead their Spirit is ; how every Day they grow more unwilling to repent ; how habitual and stupid their Persuasions are in behalf of Sin ; how accidentally hard they grow ; and having found a long Impunity, tho' they sinned highly many Years ago, yet they find they are still well ; how they therefore grow confident and more negligent : we shall find that their Souls are in Declension, gradually and continually removing further from the Friendship of God.

4. The Scriptures every where require of us a speedy Repentance. For God, who commands us to pray every Day, consequently obliges us to repent every Day. And since we are obliged by God to pray every Day, we are likewise to do that, without

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which we cannot pray as God intends we should. For *the Prayer of a wicked Man, is an abomination to the Lord*, said Solomon ; and in the Gospel it is said, *We know that God heareth not Sinners.*

5. When we see a Man do amiss, we reprove him immediately, we forthwith call him off from the Guilt ; and every good Man would gladly have his unhappy Friend desist in the midst of the Sin, and be sorry that he pursued it so far. God Almighty deals thus with Man for much the same Reasons. To continue in Sin, does a Man no real service ; to abstain from it, hath vast Advantages. There is Danger in staying under the Power of Sin ; but to chuse to stay under it, is an Act of Love to the worst State, and consequently a direct Sin ; and not to repent when we are admonished, is, in Fact, a chusing to abide there. So that from first to last, it evidently follows, that without a new Sin, we cannot recollect that we have sinned, unless, immediately upon the Recollection, we repent : And the strong Inclination we generally shew to retrieve others from a State of Guilt, is no inconsiderable Proof, that every such Man is equally obliged to recover himself from it.

6. He who hath sinned, and remembers he hath sinned, but doth not repent, continues himself all that while in the Wrath of
God.

God. And can it possibly consist with any Christian Grace, with Faith, Hope, or Charity, with Piety or Wisdom, with the Love of God or of our selves, to brave the Shock of Thunder, to dare the Divine Anger, to be indifferent under the Hatred of the Fountain of Love and Goodness, and unconcernedly to stand excommunicated from Heaven? Can a Man possibly reflect that God hates him, can he despise this Hatred, and yet be innocent?

7. If there were nothing more, but that so long as his Sin is unrepented of, the Man is in an unthriving Condition, he cannot receive God's Grace, cannot hope for Pardon, cannot duly thank God for any spiritual Blessing, cannot love his holy Word, and must not approach the holy Table: I say, if there were nothing more than the mere want of those Excellencies which were thus kindly, thus beneficially provided for him, it must be a State intolerably evil, to be as it were so long in the Dark without Fire or Food, without Health or Holiness. But when he is at the same time the Object of the Divine Wrath, and its right-aiming Thunder-bolts are levell'd directly against his Heart, what Madness, what Impiety, or Stupidity must it be to continue in this Condition of Evil, without Fear, and without Love?

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8. The Words of St. *Austin*, which he intended for Exhortation, are likewise argumentative in the Point before us. *Hodiernum habes in quo corrigaris, You have this Day for your Repentance.* God obliged not him who lived in the Time of *Samuel*, to repent in the Days of *Moses* ; That was before Him, and therefore could not be his Time : Nor did he command *Manasses* to repent in the Days of the *Asmonæi* ; their Time was long after his, and therefore could not be his Season for Repentance. Every one hath a Day of his own. But when we recollect that God hath commanded us to repent, but hath assured to us no Time beyond the present ; we shall plainly perceive, that the present was the only Time in which he designed we should obey him. Against This there cannot possibly be any fair Objection ; for it is so in all other Commands whatsoever, unless there be something in the Nature of the Action, that is otherwise determinable by particular Circumstances ; but in this there is nothing of Relation to Time and Place ; it may be done at any Time, and there is an absolute Necessity it should be done. God could no more design that *To-morrow* should be the proper Season of Repentance, than he could design the five and twentieth *Olympiad* to be your Season for it.

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For the Commandment is present, but *To-morrow* is not present.

As an Appendage to this great Case of Conscience, it may not be useless to consider a second Question; *Whether a Man is bound to repent not only the first Time, but every Time he thinks of his Sin?*

It may be answered, that he is; but to several Purposes, and in different Measures. And the Reasons why we are perpetually to repent of our past Sins, may be reduced to these two.

I. Whenever we have sinned, and fallen under the Divine Displeasure, we dwell for ever after, as it were, in the Dark. We are sure we have sinned, and we are sure that God's Anger is revealed against Sinners; but we know not how far this Anger will reach, nor when it will break out, nor in what manner it will be expressed, nor when it will be appeased, nor with what degrees of Sorrow God will be satisfied, nor how much will be allowed to our Infirmities: I say, nothing of this we can know, because nothing of it is revealed. But we are obliged to an indefinite Duty, which requires almost all our Time, and all our Power; and yet the Reward of this Duty is hitherto far removed from us, and we are to receive it only in another State. In the mean time, we labour and fear, we fear and hope, we hope and are

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uncertain, we pray, but cannot discern the Event of Things. Sometimes we are confident; but that Assurance may possibly arise from the Temper of the Body; and it is never easy to demonstrate that it comes from God; and when we are dejected, it may possibly be only the Effect of Spleen; all may be well with us, much better than we believe it is: But we are under the Cloud, and, which is worst of all, we have generally too much Reason to fear, and be concerned at the Causes of this Darkness, Fear, and Danger.

2. Besides all this, our Sin expires so slowly, we reprieve it so often, our Repentance is so frequently interrupted, or made good for nothing; that a Man can hardly ever tell when he hath done, and when he is to begin a-new. For these Reasons it is necessary that we hate our Sins perpetually, and never recollect them but with Sorrow and Remorse. Not that it is hereby intended that a Man should weep every time he thinks on his Sins; for sometimes he must thank God for his Escape, and rejoice in the Memory of God's Mercies, please himself with the Promises of Pardon, and exercise himself in Acts of Praise and holy Joy. But even these Acts of holy Joy, if they indear our Duty to us, they destroy our Sin; if they engage us to love God, they oblige us to hate

hate Sin; if they are real Acts of Piety, they are indeed Acts of Repentance.

The Result therefore is this: If by Repentance we mean nothing but Sorrow, then it may have its particular Season, and doth not always oblige to all Times. But if by Repentance we understand a Change of Life, to which Sorrow is only instrumental and preparatory; in this Sense, to repent is a Duty of perpetual Obligation.

RULE XVII.

Because the Laws of Jesus Christ were delivered in Sermons to a single Person, or a definite Number of Hearers; we are carefully to enquire when those Persons were only personally concerned, and when they were Representatives of the whole Church.

That there is a Necessity of making a Distinction here, is certain; but it is very uncertain how this Distinction is to be made. If we do not distinguish Precept from Precept, Persons from States of Life, and States of Life from Communities of Men; it would be very easy for witty Men to lay Burthens upon Men's Shoulders which they ought not to bear; and scrupulous Persons will too easily lay themselves under unnecessary Obligations;

ligations; and others will dispute themselves out of their Duty, and say, *This does not concern me.* The best Measures therefore that I know in this Case, are these.

1. There are some Precepts which are universally owned to be *general*; and there are others, which are as universally known to be only *personal*. A few Reflections upon these, will help us in our Account of others. When *Abraham*, as a Proof of his Obedience, was commanded to sacrifice his Son; the Precept here related only to himself and his Son. So when he was ordered to leave his Country, and go to *the Land of Canaan*; this was wholly *personal*; for no other Man can think, that if he kills his Son, or leaves his Country, he shall be rewarded for his Obedience. Other Precepts are as certainly and confessedly *general*. Such were the ten Commandments to *the Children of Israel*: they were given to all the People, prescribed to the whole Nation, and the Observance of them exacted from them all, for the same Reasons, and upon the same Conditions.

2. Whatsoever related only to a Person, or was determined by a particular Circumstance, or limited to a certain Time, passes no Obligation beyond the Limits and Extent of those Circumstances. The Obligation therefore to the Judicial and Ceremonial Law
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of the *Jews* ceases. The Service which related to a Temple now destroy'd, and which was to be performed by a Priesthood now extinct, can no longer lay the Conscience under any Obligations.

3. Whatever Precept was given to Many, if it was followed by another inconsistent with or differing from it; the *Former* is by the *Latter* declared to have been personal or particular, relative, temporary, and not generally obliging. When *Christ* sent out his seventy two Disciples, he commanded them to go without either Sword, or Shoe, or Scrip, and that they should not go into the way of the Gentiles. Now that these Commands were temporary, and related only to that Mission, appears from the following Mission after *Christ's* Resurrection; by which they were commanded to go into the way of the Gentiles, for they were *to teach all Nations*.

4. It is not sufficient to prove a Precept to be perpetual and general, that it is, without any external Mark of Difference, annexed to a Body of Precepts which are perpetual and general. Thus in the Decalogue of *Moses*, we find one Precept for resting upon the seventh Day from the Creation. It is there prescribed with as much Solemnity as the others, and seems to be pressed upon the Minds of the People more laboriously than

than any, tho' without any external Mark of Difference, to distinguish the temporary Obligation of This, from the Perpetuity of the others. And yet the whole Christian Church think themselves absolved from the Observation of this Day, tho' they are still obliged to observe all the other Precepts. And they may justify themselves herein, from the very nature of the Precept which was merely typical and ceremonial: For tho' to serve God, be a moral, and an eternal Duty; yet to serve him on this or that Day, is by no means moral. And the Reason, why there were no Marks given to distinguish This from the other Precepts of the Decalogue, was, because that People, to whom they were all given, were to make no difference between them: But as soon as that Dispensation was to determine, God allowed the Distinction, when St. *Paul* reckoned This among those things, which were *only a Shadow of good Things to come*.

5. When any thing is said by *Christ* to a single Person, or particular Number of Men, which relates to *moral Duty*, or to a *perpetual Rite* of general Concernment; that single Man, or that small Number of Men, are the Representatives of the whole Church. This cannot well be disputed; because all moral Precepts are agreeable to the Nature of Man, and, in every Capacity, are necessary

fary to his Perfection. Such Precepts therefore are not to be confined to a few, but must necessarily extend to the whole Species. But then there are some other Precepts, which tho' they are not moral, are perpetual and eternal, and nearly concern every Member of the Christian Church. Such are the Precepts relating to the Sacraments, and other Rituals of Christianity. Now with regard to these, let it be observed; that whatever concerns every One by the nature of the Thing; tho' it was at first directed *personally*, yet it is of *general* Obligation. Thus, we suppose, that all Christians who have the use of Reason, or who are capable of Laws, are obliged to receive the Holy Communion. For tho' the Precepts, *do This*, and *drink This*, were personally directed to the Apostles, yet there is nothing in the nature of that Sacrament that appropriates the Observation of the Rite to Ecclesiasticks only. For the Apostle explains it as obligatory upon all Christians, and so it was always understood and practised. Some indeed have pretended that Part of the Precept concerns none but Ecclesiasticks. The Unreasonableness of this Pretence has been consider'd before; and therefore, I shall here only observe further; that if the Apostles represented Ecclesiastical Officers when *Christ* said *drink ye all of This*; then they likewise represented Eccle-

fasticks only, when he said, *Do this in remembrance of me*: And then it will necessarily follow either that all are obliged to receive the Cup, or that none but the Priests are bound to partake of the holy Bread.

6. When the universal Church takes herself to be obliged by some preceptive Words, tho' they were spoken to particular Persons, yet they are to be understood to be of universal Concernment. Now this Assertion is supported, not only by the highest Probability, *viz.* that universal Consent is the best Interpreter of the Difficulties in every Commandment; but also, in that there is in the Church an holy Spirit assisting Her to guide, and warranting us to follow those Measures of Holiness by which she thinks herself obliged. No Interest surely, but that of Heaven and the Love of God, could incline the universal Church to take upon herself the Burden of a Commandment. Were she to decline a Burden, there might be some reason for suspicion; but when she takes it up, and thinks herself obliged by a Precept given to the Apostles, to the Pharisees, or to any single Person among them; it must be the Necessity that inforces her, or the Charity that invites her, or the Prudence of doing it, that determines her; and therefore she is certainly to be followed. Hence it is that we may be fully satisfied in the foregoing

ing Instance: The primitive Catholick Church did imagine herself bound by the Words of the Institution of the Cup in the blessed Sacrament; and therefore we may safely conclude, that the Apostles, at the delivery of that Precept, were Representatives of the whole Church.

7. When any Precept is given *personally*, and is yet enforced with the threatening eternal Death; that Precept is of universal Force. And the Reason is, because the Covenant of Life and Death, is the same with all Men; and God, being *no Respector of Persons*, deals alike with all Men. And therefore the Words our Saviour spoke upon occasion of the Fall of the Tower of *Siloam*, were a sufficient Reason for all Men to repent, tho' Repentance had been no where else commanded in Scripture. *Except ye repent, ye shall all likewise perish*, was said only to those who heard him; yet others may easily learn from hence the absolute Necessity of their own Repentance.

This indeed is to be understood only of such Precepts as do not relate to the different States of Men, but are of an absolute and indefinite Nature. Thus when St. Paul said, *There is a Necessity laid upon me, and Wo is unto me, if I preach not the Gospel*, he here represented those only, who have committed to them the Care of Souls: But
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when he said, *I press forward to the Mark of the Prize of the high Calling*, here he spake of his own Person, That which is the Duty of every Christian; and in that respect, represented the whole Church.

R U L E XVIII.

Evangelical Laws given to one, relating to the Duty of another, do in that very Relation, concern them both; but in differing degrees.

Thus he who has the Care of Souls, is obliged to see that those under his Care, are chaste and charitable, just and temperate, religious and orderly. He, I say, is bound to see that they be so; but themselves are more bound: Each however in their Proportion. The People are not only obliged by God to behave regularly, but also by their Bishop, or their Priest: And not only God will exact a regular Behaviour from them, but their Prelate must likewise insist upon it; and they must be accountable to him for themselves, since he will be accountable to God for them.

But if the People do not demean themselves well, they are not only unchaste and intemperate before God and their Bishop, but they are likewise disobedient. I shall here take for granted the Necessity of Infant Baptism

Baptism. But if we enquire upon whom this Necessity lies, it will be hard to say, upon the Infants; for they are neither capable of Law, nor Obedience; and yet, it is said to be *necessary* for them. If we lay the Necessity upon the Parents, then we certainly absolve Infants from any such Necessity. However, it is impossible to conceive, that the *Precept* should belong to others, but the *Punishment* or *Evil* of not obeying, should belong to the Children, or, that the Happiness of Infants should depend upon the Diligence or Good-will of any Man whatsoever. If others therefore, are obliged, it is necessary that they bring them to Baptism, but it will not be so necessary that they be brought; that is, they who do not bring them, and not they who are not brought, shall suffer Punishment. To clear up this Case therefore, this Rule is of great use. It is necessary that Parents, or the Church should bring Infants to Baptism, and it is necessary, tho' not in Point of Duty or Obedience, that Infants be baptized: Both therefore are obliged, tho' upon different Reasons; for Baptism must not be omitted. The Parents are obliged at first, but the Children, not till they are sensible of the Necessity and the Obligation. If the former are negligent, they only are answerable for the ill Consequences; but when the Children are able to chuse,

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they are to supply the Wants occasioned by their Parents neglect, and provide for their own Necessities.

St. *Paul* wrote to *Timothy* concerning the Qualifications requisite to those who were to be made Bishops; but it will not be very easy to say, of whom the Defect of some of those Qualifications shall be required. A *Bishop must be the Husband of one Wife*, that is, he is not to marry whilst his first Wife lives, even tho' she be *civilly* dead, whether divorced, or banished, or any other way separated from him. But what if he has two Wives at once? Many of the Converts from *Judaism*, and *Paganism*, certainly had two Wives at once, and yet were not compelled to put away either of them. If a Man, who is a Polygamist, be made a Bishop; who sins? That is, who is obliged by this Precept? Is the Bishop who ordains him, the Prince or People that elects him, or the Ecclesiastic himself thus elected? These Questions may be answered, by considering the Nature of a Law, in which the Duty is divided, and several Persons have several parts of it incumbent on them. He who chuses, and he who ordains him, are obliged to take care, that he be canonically capable; but the Man thus chosen, is not bound to any thing which is not in his Power: He is not obliged to put away whom he hath legally

gally married, nor her, whom, without guilt, he may lawfully retain. But because that which is not attended with Guilt, is not always free from Reproach and Obloquy; they who call a Man to the Office, are to provide against That, and he who is called, ought not to be charged with it. So that, tho' such a Man ought not to be burthened with that which is innocent, and, at present, out of his Power to remove; since such a Person may be innocently chosen, tho' they who chuse are not entirely innocent: Yet when any thing of the Will is an Ingredient on his Part, he must take care of That himself. He must not violently sue for it, or thrust himself upon it. Care was taken that a Bishop should not be a *Novice*: Yet *Timothy* was chosen a Bishop at five and twenty Years of Age; yet he was innocent, because it was the Act of others, who came off from their Obligation upon another account. But if he had desired it, or by Violence and Faction, had thrust himself upon the Church with that canonical Insufficiency; he had acted against the Apostolick Canon.

This Rule holds likewise in all relative Duties. For Parents are bound to rule their Children, and Masters to govern their Servants; and Children are likewise obliged to be governable, and Servants must be obedient. Every Man is obliged to bear his own

Burthen, and observe his own share of the Commandment.

R U L E X I X .

Custom is no sufficient Interpreter of the Laws of Jesus Christ.

Truth and the *Divine Precepts* need no Prescription, but have an intrinsic Warrant, and a perpetual obligation : But that which is warranted by *Custom* only, can be but of humane Authority, and is only *accidentally* binding. It cannot of it self introduce a divine Law, or Duty. Our Customs ought to be formed only upon the Laws of *Christ* ; but we cannot conclude from thence, that this or that is *Christ's* Will or Command.

The Design of this Rule however is not to take from Custom its real Use, in the Exposition of the Sense of a Law or Doctrine. For when it is once plain that *Christ* gave the Law, but uncertain, how he intended it should be understood ; Custom may then be of use in the Interpretation of it ; especially, the Customs of the earliest and best Ages of the Church ; and the farther down such Customs did descend, we may put the greater Confidence in them, because we have all the wise and good Men of so many Ages concur-

concurring in the Interpretation and Meaning of the Law.

But we are then only to allow Custom to be a good Argument, when we have not a better; and a competent Reason to the contrary, is to be preferred to a Custom of the longest standing. Custom therefore may, under the want of other Proofs, declare the meaning of a Law; but it cannot, of it self, be a certain Interpreter of the Will of *Christ*, or a sufficient Warrant of a Law, or immediately oblige the Conscience, as if it were a signification of the divine Pleasure; much less ought it to be urged in opposition to any words of Scripture, or to right Reason, or to any Arguments plainly deduced from them.

All good Customs are indeed good Warrants and Encouragements; but whether the Customs are really good, is to be examined and proved by the Rule and by the Commandment. Custom therefore, it self, is but an improper Interpreter of the Commandment, from whence it self must be marked for good, and justified; or else must be rejected as good for nothing.

Indeed, when Custom strikes in with some other Means of Proof, when it is apparently pious and reasonable, and agreeable to the Analogy of Faith; it contributes much towards the clearing up and establishing of

Truth, and of warranting the Conscience : But when it stands alone, or has an ill Aspect upon other more reasonable Methods of Proof, it is very suspicious and very dangerous, and is commonly a very ill sign of an ill Cause.

I shall afterwards, when I come to treat of Ecclesiastical Laws, enquire into the Force of Ecclesiastical Customs, with regard to Practice, and in the Enquiries after Truth. What I would observe at present is This; that the Customs and Usages of the World are but an ill Commentary upon the Precepts of our blessed Lord.

For, 1. Evil is crept into the Manners of the generality of Men; and therefore Custom is most likely to transmit her Authority to that which ought to be removed and destroyed.

2. Custom hath such a strange Influence even upon our moral Behaviour, that Men, overborn by a false Modesty, too easily neglect or discard those Motives which would have enclined them to Truth and Piety. The Customs of the *Germans*, and some neighbouring Nations, so vilely expound the Laws of *Jesus Christ* concerning Temperance, that were we to take our Accounts of it from them, we could not distinguish it from Intemperance. And the common Behaviour of the World expounds all the Laws of the blessed *Jesus* in such a manner, as if they were really

really obligatory at no time, but in the Danger, or in the Article of Death. But surely, that is but an ill Gloss that evades all the honest and holy Purposes of the Law; And, at the last Day, when we shall behold infinite numbers of the damned hurried away to their sad Sufferings; it will be but a poor Apology to say, I did only as almost all the World did besides me; and from their Customs, I understood the Laws of the Gospel in a Sense of Ease and Gentleness, and not by the Severity of a few morose Preachers.

It may not be unseasonable, whilst we are upon this Subject, to enquire, *whether the Customs of Jews, or Gentiles, or indefinitely of any Nations, be a just Presumption, that the thing so practised is consonant to the Law of Nature, or is any way to be supposed to be agreeable to the Will of God?*

To this some eminent Persons of the Church of *Rome* answer affirmatively; and are not ashamed to own, that many of their Rites and Ceremonies are not only derived from the Customs of the Heathens, but that they are in themselves prudent, reasonable, and pious: According to the Opinion and Practice of *Gregory Thaumaturgus*, who, as *St. Gregory Nyssen* in his Life, reports, consented, in order to allure the common Peo-

ple to Christianity, to retain those Dances, and other solemn Sports, which they celebrated in Honour of their Idols, only appropriating them to the Honour of the departed Saints. And *Baronius* supposes it to be no worse, than the *Israelites* taking Silver and Brass from the *Egyptians*, and employing it in the Service of the Tabernacle. * *Belarmine* likewise urges Custom as an Argument for a Purgatory, because the *Jews*, *Turks*, and *Pagans* believed something like it: As if it necessarily followed, that what almost all Nations consent in, must be derived from the Light of Reason common to all Men. From hence likewise † *Cardinal Peron* argues in behalf of Service in an unknown Tongue; because, not only the *Greek*, and many other Christian Churches, but even all Religions, the *Persians* and the *Turks* use it.

This Pretence therefore ought to be considered. And, 1. I answer; that it is true, that the Primitive Church did retain some Ceremonies in use among the *Heathens*; but then they were such as had no Relation to Doctrine, but might decently and properly enough be used in external Ministrations. Such were the Garments of the Priests, Fasts,

* Lib. de Purgat. Cap. 7.

† Advers. Reg. Jacob. in prima Infantia, Cap. 1.

Vigils, Processions, Festivals, and the like; and the good Effect of retaining these might then justify the Use of them. For the People, who were most of all affected with exteriour Usages, finding many of their own Customs taken into Christianity; might with less Prejudice acquiesce in the Doctrines of that Persuasion, which so readily complied with their ordinary Ceremonies.

But how convenient soever this might be for the Infant Ages of the Church; yet it ought to have been done with the greatest Caution imaginable. For tho' it served a present turn; yet it rendered the Christian Religion less simple and less pure. At first it was, or might have been, a *complying with the Infirmities of the Weak*: But when these weak Persons are sufficiently instructed in the Religion; and when to dissent from it, is rather Pride or Contumacy, than Infirmary or Ignorance; Compliance or Condescension is no longer Charity, but rather strengthens and encourages their Error. For when Reasons taken from the Religion will not satisfy the supposed weak Brother; to comply with him, looks like confessing his to be the better way: And when Men of Learning follow the Ignorant to Superstition, they will no longer consider it only as Compliance and Condescension, but as real and necessary Duty. This seems to be the very Danger which
God

Deut. vii. 5. & xii. 4. God provided against, when he expressly charged the *Children of Israel*, that they should abstain from all Communion with the *Gentiles*, their Neighbours, even in things indifferent; and that they should destroy the very Monuments and Rituals, and the very Materials of their Religion, lest by any little Compliance, they should be too far tempted. But,

2. If the Customs and Rites be such as are founded upon any Point of Doctrine, then whatsoever is derived from Pagan Customs, may also be supposed to arise from their Doctrines. And then, to follow their Customs in this sense, were to incorporate the Religions, to blend *Light* and *Darkness*, to join *Christ* with *Belial*. *Alexander ab Alexandro* says, that the Ceremony of sprinkling with holy Water was a Pagan Rite, used in the Sanctifications and Lustrations of the *Capitol*; but because this is not a bare Ceremony of Order, but pretends to some real Effect; because it is derived not from *Christ* and his *Apostles*, but from the *Gentiles*, and is kept in Use by the Doctrine of the real Effect of such Ceremonies; it is by no means to be justified.

It is but a mean Pretence, to say, that if many Nations and Religions agree in such a Rite, or such an Opinion, it may therefore rightly be supposed, that it arose from the
Light

Light of Nature. For there are but few Propositions in which Nature can rightly instruct; and we should know but very few things, were we not taught by God, by Experience, or by our Necessities. But if this Pretence would hold, it would establish not only Purgatory, but the worship of Images, a multiplicity of Gods, Idolatrous Services, infinite Superstitions and Absurdities, which cannot at all comport with the Simplicity and Dignity of Christianity.

In short, if it be certain, that Custom cannot warrant any Evil, then those Customs or Rituals which introduce false Principles, Superstition, Scandal, or Danger, are not to be imitated, but are wholly to be laid aside.

RULE XX.

the Measure of Perfection and Obedience expected from Christians, is greater than that of the Jews, even in moral Duties common to them and us.

It is of no moment to us, whether or no there are more Precepts in the Law of Moses, than in the Law of Christ. Our Work is set before us; and we are not concerned to know how much *They* had to do. In most of those Instances, which are, or are said to be, new Commandments, it may be said

said of them, as it was said by the Apostle concerning Charity, *this is a new Commandment*. That which was before a Commandment, becomes, as it were, a new one, since it is *established upon better Promises*, and endeared to us by new Instances of infinite Love. It is therefore highly reasonable to think, that tho' this new Commandment superadds nothing new as to the Matter; yet it introduces something new, as to the Manner, or Measure of our Obedience.

Both the *Jews* and *Christians* are to pray: But we are commanded to pray *fervently*, and *continually*. They were obliged to Charity, as well as we: But they were to shew it to their Friends and their Neighbours; but we, to our Enemies. And tho' in some Instances, their Benevolence was to reach as far, yet there are a greater number of Instances to which we are to extend ours. More Men are our Brethren, more our Neighbours, and consequently, more our Duty. They were to forgive upon Submission and Repentance; but we must invite to Repentance, and proffer Pardon. They were *to love God with all their Souls, and with all their Strength*; we indeed cannot do more than *This*, but we can do more than *They did*: For our Strength is greater, and our Minds more enlightened.

1. This

1. This Rule principally concerns Christian Churches and Communities of Men; that their Laws be more holy; the Condition of their Subjects more tolerable; that War be not so easily commenced; that it be carried on with more Gentleness; that the Laws of *Christ* be enforced; that Vice be more effectually discountenanced; that nothing reflecting upon Religion be permitted; that the Priesthood be honoured and supported in proportion to its Dignity, and the Relation it stands in to *Christ's* Priesthood; that Virtue be duly encouraged; in a Word, that *Christ* may in all things be more honoured by us, than *Moses* was by them; and likewise, that God, thro' *Jesus Christ*, be more glorified, than he was under the *Levitical* Government.

2. This Rule also concerns *single Persons*; that they are not to satisfy themselves in those Imperfections of Duty, which were either permitted in the Law, or introduced by the Comments of their Doctors, or insensibly derived upon them by a general Declination from their first Piety, and the Corruption of Manners. The *Jews* would not take Usury of a needy *Jew*; but they would take it of a Stranger: We must consider Men with a more equal Eye, and must be chatitable to all; for to a real Christian,

no

no Man who wants, and asks him, is a Stranger.

3. In Matters of Duty, a Christian is to explain his Obligation with a Regard to Piety, to the Ease of his Brother ; and if that cannot otherwise be, to the incommoding himself. But the *Jews* thought themselves not obliged to go beyond the Letter of the Commandment. In short ; there are no *positive Measures* of a Christian's Duty, but That which cannot have no Measures it self, and That is *Love*. Now he who *truly loves*, must think every thing he does too little ; and he who thinks thus, will endeavour to do more, and to do it better : And Christians, who have greater Knowledge of God, who more fully understand the nature of Charity, who profess to long after the eternal Love of God, and who are sensible that every increase of Grace is a further step towards Glory and Happiness ; need no other Arguments to enforce, nor any other Measure to describe the Duty of this Rule, but only to consider the State of his Religion, the Commandments, the Endearments, the Helps, the Examples, and the Means of it. I only add, that in the Measures of the Practice of this Rule, there is no difficulty but what is made by the thoughtless Lives of Christians, by their lazy, cold, unholy Principles. At the rate in which Christians commonly

commonly live, it is indeed hard to know, how, in what Instances, and in what Proportion, our Obedience ought to be more humble and more diligent, than the Obedience of *Moses's* Disciples. But they who really love, will do what Love teaches them, and, of course, understand the Rule.

As to the Interpretation of the Laws of the most holy *Jesus*, I know of no other important Consideration here to be inserted. But because there are several Pretences of external or accidental Means of understanding them, such as are made use of from the Authority or Reasonings of Men; they will more properly be considered in the Rules concerning *Humane Laws*, which will be the Subject of the following Book, and where the Reader will find them.

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